

Message 1 of 218

Information resources working group

Sender	ricardo.charvel@enron.com
Recipients	['margaret.carson@enron.com', 'janel.guerrero@enron.com', 'lisa.feener@enron.com', 'steve.kean@enron.com']
File	kean-s/calendar/untitled/249.

SK - If possible, Ricardo would like to you to attend at least the first hour of his meeting. I have it on your calendar. mm

First of all, happy new year to all of you. I sincerely wish we all have a great and very productive year.

As you may know by now you have either volunteered or been volunteered by someone else to participate in the Information Resources Working Group.

The members of the group are:

NAME LOCATION PHONE # E-Mail Margaret Carson Houston 713-853-7088 Margaret Carson/Corp/Enron Lisa Feener Houston 713-646-6514 Lisa M Feener/ENRON_DEVELOPMENT Janel Guerrero Houston 713-853-9104 Janel Guerrero/HOU/EES Marie Hejka Houston 713-853-9698 Marie Hejka/Corp/Enron Stephen Jones London 011-44-171-316-6752 Stephen Jones/LON/ECT Jeff Keeler Washington, DC 202-466-9157 Jeffrey Keeler/Corp/Enron Sue Landwehr Minneapolis 612-339-4599 Susan M Landwehr/HOU/EES Lara Leibman Houston 713-853-9193 Lara Leibman/HOU/EES Elizabeth Linnell Houston 713-853-3896 Elizabeth Linnell/HOU/EES Becky Merola Dublin, Ohio 614-792-6021 Becky L Merola/DUB/EES Sarah Newson Palmer Houston 713-853-9843 Sarah Palmer/HOU/ECT Jim Steffes Houston 713-853-7673 James D Steffes/HOU/EES Ricardo Charvel Mexico City 011-52-5258-9933 Ricardo Charvel I am planning to organize a kick-off meeting in Houston on January the 18th in the morning (8:30 to 11:00). Please let me know if you will be able to attend or if the majority of you have conflicts with your agenda please we will reschedule the meeting. Let me know how this date works for you.

What I would like to do that day is to present to all of you a first draft of a concept of what we want to achieve. We will then discuss if and how we can achieve our objectives and finally we will come out of the meeting with a work plan with responsibilities for everyone.

Before that meeting (lets say by January the 12th) I would like everyone of you to send me some information about you in one page so that we can distribute it among the group so that we all know who everyone else is. Remember, this is the information resources group, we must be informed:

For example Name: Position/report : Responsibilities: Prior Experience: Education: Reason for you to be in the group: or how you think you can contribute something to the group

I am sure that with the committed participation of all of you, we will accomplish our goals and develop Information and Knowledge tools to increase the productivity of our organization.

I am looking forward to meeting with all of you very soon.

Best regards,

Ricardo

Message 2 of 218

FINAL! Itinerary for Steve Kean, Washington, DC May 2

Sender	lora.sullivan@enron.com
Recipients	['steven.kean@enron.com', 'maureen.mcvicker@enron.com', 'john.shelk@enron.com', 'tom.briggs@enron.com', 'linda...']
File	kean-s/discussion_threads/3148.

Note: All meetings (including breakfast reservations) have been confirmed.

*The Honorable Pat Wood, III 512-936-7499 (direct) 512-936-7009 =01) (Assistant: Linda) 512-422-4386 (cell) Residence Inn =01) 202-898-1100 =01) May 2, 2001

MEMBERS OF CONGRESS SCHEDULING MEETINGS FOR: Steve Kean, Executive Vice President and Chief of Staff
May 2, 2001

SCHEDULE: Wednesday, May 2, 2001 NOTE: There will be no driver for the majority of the meetings. Driver=20 hired to take Steve Kean to the DCA.

8:45 AM *Breakfast with Pat Wood and Linda Robertson and Steve Kean Hay-Adams 800 16th Street, NW Washington, DC 20006 202-638-6600 Steve Kean, party of three

10:45 AM The Honorable Roy Blunt Steve/Karl/Linda US House of Representatives 217 Cannon House Office Building Washington, DC 20515 202-225-6536 202-225-5604 (fax) Richard Eddings: Scheduler

11:45 AM The Honorable Wally Herger Steve/Linda/Karl US House of Representatives 2268 Rayburn House Office Building Washington, DC 20515-0502 202-225-3076 202-225-1740 (fax) Ms. Cherstyn Monson, Scheduler R-CA-2nd District

1:00 PM The Honorable George Radanovich Steve/Linda/John US House of Representatives 123 Cannon House Office Building Washington, DC 20515-0519 202-225-4540 202-225-3402 (fax) Lisa Wallace: Scheduler

1:45 PM The Honorable Adam Smith Steve/Chris/Bruce 116 Cannon House Office Building Washington, DC 20515-4709 202-225-8901 202-225-5893 (fax) Contact: Ali Weise (Chief of Staff) (D-WA)

2:30 PM The Honorable Ed Royce Steve/John/Karl 2202 Rayburn House Office Building Washington, DC 20515-0539 202-225-4111 202-226-0335 (fax) Joan Korich: Scheduler (Steve Kean and John Shelk)

3:30 PM The Honorable David Dreier Steve/Linda Meet @ H312 Contact Information, only: Office @ US House of Representatives 237 CHOB Washington, DC 20515 202-225-2305 202-225-7018 (fax) Scheduler: Janice McKinney

4:00 PM The Honorable John T. Doolittle (R-CA-4th District) =20 Steve/John/Karl 2410 Rayburn House Office Building Washington, DC 20515-0504 Scheduler, Danielle Constantini.=20 202-225-2511 202-225-5444 (fax) (Steve Kean and John Shelk)

4:30 PM The Honorable Greg Walden Steve/John US House of Representatives 1404 Longworth House Office Building Washington, DC 20515-3702 202-225-6730 202-225-5774 (fax) Scheduler: Melissa Galvan (Steve Kean and John Shelk)

5:15 PM Pickup at Longworth House Office Building Ed Washington, White=01,s Limousine 703-521-2100 703-926-0034 (cell phone) Driver will take Steve to DCA

6:00 PM Flight Leaves DCA

Message 3 of 218

RE: Tom Sansonetti's bio

Sender	j..kean@enron.com
Recipients	['barry_hunsacker@eogresources.com', 'james.derrick@enron.com']
File	kean-s/sent_items/253.

I don't have a role for Tom at this time, but I appreciate the interest.

-----Original Message-----

From: Derrick Jr., James Sent: Wednesday, July 25, 2001 9:53 AM To: Kean, Steven J. Subject: FW: Tom Sansonetti's bio

Steve, per my voice mail to you. Jim

-----Original Message-----

From: Barry_Hunsaker@eogresources.com@ENRON

[mailto:IMCEANOTES-Barry+5FHunsaker+40eogresources+2Ecom+40ENRON@ENRON.com] Sent: Tuesday, July 24, 2001 2:23 PM To: jderric@enron.com Subject: Tom Sansonetti's bio

Jim - I left you a voice mail message (V&E) about this. Hope all is well. Best regards, Barry

Barry Hunsaker, Jr. General Counsel EOG Resources, Inc. 333 Clay, Suite 4200 Box 4362 Houston, Texas 77210-4362
tel.: 713 651 6940 fax: 713 651 6941 or 713 651 6987 e-mail: barry_hunsaker@eogresources.com ----- Forwarded by
Barry Hunsaker/EOGResources on 07/24/2001 02:13 PM -----

Steve Williams To: Barry Hunsaker/EOGResources@EOGResources 07/24/2001 cc: 11:28 AM Subject: Tom Sansonetti's
bio

Barry: Attached is a short bio for Tom Sansonetti. As I mentioned earlier, any help that our friends at ENE can offer,
especially with the members of the Senate Judiciary Committee, and Senators Feinstein (D-Cal), Leahy (D-Vt.), and
Schumer (D-NY) in particular, would be much appreciated.

Steven P. Williams Assistant General Counsel--North America EOG Resources, Inc. 600 17th Street, Suite 1100N
Denver, CO 80202

tel: 303-824-5512 Fax: 303-824-5513 e-mail: steve_williams@eogresources.com ----- Forwarded by Steve
Williams/EOGResources on 07/24/2001 10:13 AM -----

"Melissa Defratis" To: <steve_williams@eogresources.com> <MDEFRATIS@HOLLAN cc: "Larry Wolfe" DHART.COM>
<LWOLFE@HOLLANDHART.COM>, "Thomas Sansonetti" <TSANSONETTI@HOLLANDHART.COM> 07/24/2001 10:15
Subject: Tom Sansonetti's bio AM

Larry Wolfe has requested me to send you a copy of the biography for Tom Sansonetti. Please let me know if you desire
any other information regarding Tom's experience.

Melissa DeFratis Legal Secretary Holland & Hart LLP P.O. Box 1347 Cheyenne, WY 82003-1347 (307) 778-4207 - Direct
Line (307) 778-8175 - Fax mdefratis@hollandhart.com

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(See attached file: TLS Short bio.doc)(See attached file: TLS Short bio.doc)

- TLS Short bio.doc << File: TLS Short bio.doc >>

Message 4 of 218

FW: Churn approval for request #11385 - THIRD REQUEST

Sender	j..kean@enron.com
Recipients	['judith <.martin@enron.com']
File	kean-s/sent_items/1.

approved

-----Original Message-----

From: Linnell, Elizabeth Sent: Thursday, December 20, 2001 8:25 AM To: Kean, Steven J. Subject: FW: Churn approval
for request #11385 - THIRD REQUEST

Please approve and forward to Judy Martin.

Thanks!

-----Original Message-----

From: Regalado, Clare Sent: Wednesday, December 19, 2001 3:35 PM To: Linnell, Elizabeth Subject: FW: Churn approval for request #11385 - THIRD REQUEST

Elizabeth, I am having trouble getting a churn processed for Holly Strong. According to Judy Martin, a churn cannot be processed without the approval of a VP or above. Holly is currently based at the Ardmore facility but needs a space here. All she needs is a desk and a phone. We already have equipment for her to use, so nothing has to be ordered. Can you please ask Steve if he can approve this request? All that needs to be done is an email with Steve's approval to Judy with the referenced request #11385. Thank you.

-----Original Message-----

From: Martin, Judy (Judith) Sent: Wednesday, December 19, 2001 3:16 PM To: Regalado, Clare Subject: FW: Churn approval for request #11385 - THIRD REQUEST

Clare,

This move can not be scheduled until we receive an approval.

Please forward this request to a Vice President or an Officer of the Company.

Thank you,

Judy Martin EPSC 39372

-----Original Message-----

From: Martin, Judy (Judith) Sent: Monday, December 17, 2001 9:56 AM To: Regalado, Clare Subject: Churn approval for request #11385

Clare,

EPSC has been requested that each relocation request submitted is an "essential business" move. When this has been established, it must be approved by a Vice President and/or an Officer of the Company of the requesting department. Your request will be scheduled once approval is received.

Please have the approval sent to Judy Martin.

Thank you for your cooperation in this matter.

Judy Martin EPSC 713-853-9372

Message 5 of 218

What's ahead for California

Sender	richard.shapiro@enron.com
Recipients	['steven.kean@enron.com', 'jeff.dasovich@enron.com', 'james.steffes@enron.com']
File	kean-s/discussion_threads/3103.

FYI- Seabron, as most of you know, is a consultant for us... his thoughts on FERC price cap order. -----
Forwarded by Richard Shapiro/NA/Enron on 04/26/2001 03:14 PM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 04/26/2001 02:41:45 PM To:
<Richard.Shapiro@enron.com> cc:

Subject: What's ahead for California

Rick:

A thought I keep coming back to is that a lot of this has to do with bad "market definition" - always the central problem in economic questions. California has gotten itself in a pickle partially because they have always looked at the market wrong - as California alone when it is really the West. It is like looking at the market for new automobiles "West of the Mississippi" - a pretty meaningless concept as cars are produced on either side of that artificial boundary, and are freely bought and sold across it. When you get the market definition wrong it is almost impossible to make head or tails of any situation - which the Cal ISO and Gray Davis's office have in fact failed to do.

The current proposal will generally fail - the market will just clear outside California. It only acts as a form of price discrimination against the California generators, who will then presumably sue for restraint of interstate commerce. There is no way there are going voluntarily to agree to be "Participating Generators" in the Cal ISO's scheme. So the entire market will become "OOM".

I think if the leadership had not been so abysmal on this there could have been a rational deal between the CA gov't and the generators that would have solved the basic problem, kept the lights on and minimized the economic damage to the California economy and the state's bond rating. But it hasn't happened, and Moody's now ranks California debt at 49th of the 50 states, only notch above Louisiana. This is going to cost California's citizens billions for years to come in higher borrowing costs, even for the normal expenditure of government such as highways and schools. Time for a timeout, and to regroup. Even the old regulatory process at the CPUC wasn't this bad...

Speak to you next week.

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

-----Original Message-----

From: Richard.Shapiro@enron.com [mailto:Richard.Shapiro@enron.com] Sent: Thursday, April 26, 2001 3:22 PM To: Seabron Adamson Subject: Re: Sorry I missed your call

I agree- it's not clear to me whether Cal. squares off with the feds on the RTO issue. All in all , a bad order that will only worsen the situation, not improve things(I'm saying that w/o benefit of order which isn't out yet. Any thoughts?

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 04/26/2001 02:14:35 PM

To: <Richard.Shapiro@enron.com> cc:

Subject: Sorry I missed your call

Rick:

Sorry I missed your call. I had just popped out for a coffee.

I'll just wait until next week before proceeding, after I get some comments from you guys. I should pretty much be around all next week so you can catch me whenever.

I suppose you have been following the FERC California decision pretty closely. How CA gets integrated into a new RTO appears to be the key question. I would be surprised if RTO West even wants them in, given the credit risk issues, etc.

Seab

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www.frontier-economics.com

Message 6 of 218

FW: Meeting Cancelled Today - 2-3:00 P.M.

Sender	j..kean@enron.com
Recipients	['McVicker', 'Leslie; Kim.Budzik@dynegy.com;', 'Maureen; Hiltabrand', 'maureen.mcvicker@enron.com']
File	kean-s/sent_items/586.

-----Original Message-----

From: Sheryl.D.Lara@dynegy.com [mailto:Sheryl.D.Lara@dynegy.com] Sent: Monday, November 19, 2001 11:41 AM To: Kean, Steven J.; Koenig, Mark; Palmer, Mark A. (PR); John.Sousa@dynegy.com; Meg.Nollen@dynegy.com; Keith.Fullenweider@dynegy.com; dafi@dynegy.com; Arthur.J.Shannon@dynegy.com Cc: McVicker, Maureen; Hiltabrand, Leslie; Kim.Budzik@dynegy.com; Sandra.K.Monclova@dynegy.com; Sandra.S.Martinez@dynegy.com Subject: Meeting Cancelled Today - 2-3:00 P.M.

Just wanted to let each of you know that the meeting today has been cancelled due to conflicting schedules. We apologize for the inconvenience.

Sheryl D. Lara Assistant to Meg Nollen Dynegy, Inc. - Investor Relations 1000 Louisiana, Suite 6700 Houston, Texas 77002

----- Forwarded by Sheryl D Lara/HOU/Dynegy on 11/19/01 11:39 AM -----

Sheryl D Lara To: steve.kean@enron.com, 11/19/01 mark.koenig@enron.com, 10:21 AM mark.palmer@enron.com, John Sousa, Meg Nollen/HOU/Dynegy@Dynegy, Keith Fullenweider/HOU/Dynegy@Dynegy, dafi@dynegy.com, Arthur J Shannon/HOU/Dynegy@Dynegy cc: maureen.mcvicker@enron.com, leslie.hiltabrand@enron.com, Kim Budzik/HOU/Dynegy@Dynegy, Sandra K Monclova/HOU/Dynegy@Dynegy, Sandra S Martinez/HOU/Dynegy@Dynegy Subject: Meeting Today - Time Change 2-3:00 P.M.

Hi Everyone:

Just a quick update regarding today's meeting. The topic of discussion at this meeting is: "Near & Long-Term Financial Communications". I am sorry for the miscommunication, my fault!

We looking forward to seeing everyone at the Dynegy offices at 2:00 p.m. The meeting has been moved to Conference Room 6708.

Sheryl D. Lara Assistant to Meg Nollen Dynegy, Inc. - Investor Relations 1000 Louisiana, Suite 6700 Houston, Texas 77002 713-767-6273

----- Forwarded by Sheryl D Lara/HOU/Dynegy on 11/19/01 10:11 AM -----

Sheryl D Lara To: steve.kean@enron.com, 11/16/01 mark.koenig@enron.com, 03:44 PM mark.palmer@enron.com, John Sousa, Meg Nollen/HOU/Dynegy@Dynegy, Keith Fullenweider/HOU/Dynegy@Dynegy, dafi@dynegy.com, Arthur J Shannon/HOU/Dynegy@Dynegy cc: maureen.mcvicker@enron.com, leslie.hiltabrand@enron.com, Kim Budzik/HOU/Dynegy@Dynegy, Sandra K Monclova/HOU/Dynegy@Dynegy, Sandra S Martinez/HOU/Dynegy@Dynegy Subject: Revised Meeting Notice - Time Change 2-3:00 P.M.

**** REVISED MEETING NOTICE **** Please be advised that there will be a meeting held on Monday, November 19, 2001 from 2:00-3:00 p.m. at the Dynegy offices on the 67th floor in the Boardroom. The topic of discussion will be "Near & Long-Term Financial Commitments". The meeting participants are as follows: Mark Palmer - Enron Mark Koenig - Enron Steve Kean - Enron Keith Fullenweider - Dynegy Meg Nollen - Dynegy Debbie Fiorito - Dynegy Art Shannon - Dynegy John Sousa - Dynegy

If you will be unable to attend this meeting, please contact Sheryl Lara at 713-767-6273. Many thanks!

Sheryl D. Lara Assistant to Meg Nollen Dynegy, Inc. - Investor Relations 1000 Louisiana, Suite 6700 Houston, Texas 77002 Ph: 713-767-6273 Fax: 713-767-8288

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contact info	
Sender	michael.trahan@ubspainewebber.com
Recipients	['skean@enron.com', 'mmcvicke@enron.com']
File	kean-s/personal/43.

Steve,

On Friday 7-13, Rocky Emery left UBS PaineWebber. We wanted to advise you of the change and provide you with new contact information for your UBS PaineWebber account. Please call at your earliest convenience.

Michael G. Trahan Account Vice President 713-654-0362 michael.trahan@ubspainewebber.com

David L. Shine Vice President - Investments 713-654-0396 david.shine@ubspainewebber.com

R. Craig Rathjen Senior Vice President - Investments 713-957-7040 robert.rathjen@ubspainewebber.com

UBS PaineWebber Inc. 1111 Bagby Street, Suite 5100 Houston, Texas 77002 800-553-3119 713-654-4723 (fax)

Regards,

Michael

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Message 8 of 218

Relocation Info	
Sender	rick.johnson@enron.com
Recipients	['j.kean@enron.com', 'tim.o'rourke@enron.com']
File	kean-s/bankruptcy/1.

Steve, here is some information that may be helpful for the Employee(s) with the relocation question. Q. Who is eligible for relocation assistance?

A. Employees on an assignment will be provided with relocation assistance in accordance with the repatriation benefits outlined in their assignment letter and/or term sheet with certain modifications for cost saving measures.

Q. Will the relocation benefits contained in my Assignment Letter / Term Sheet be less?

A. Prudential Relocation will be utilizing your Assignment Letter and/or Term Sheet to the extent available with the current Enron situation. Prudential Relocation:

Brooke Breese International Mobility Consultant Prudential Relocation 105 Decker Drive 11th Floor, Crestview Irving, Texas 75062-2211 Direct: 972-657-6414 Toll Free: 1-800-241-6529, ext. 76414 Fax: 972-657-5980
brookbreese@afcc.com <mailto:brookbreese@afcc.com>

How will my relocation costs be handled if I moved recently and I have not yet been reimbursed for all costs incurred?

A. You should submit your Relocation Expense Report to Prudential Relocation as soon as possible. Prudential is now requiring payment from Enron in advance before reimbursement is made to an employee. Enron has made a deposit towards estimated international relocation costs, but all moves in process may not have been captured which may cause delays in processing.

Questions regarding the status of your Relocation Expense reimbursement should be directed to Deborah Kallus of Prudential Relocation in Houston at 713 853 1426 or deborah.kallus@enron.com.

Message 9 of 218

Fwd: Enron Corporation

Sender	steven.kean@enron.com
Recipients	[' james.bannantine@enron.com ', ' diomedes.christodoulou@enron.com ']
File	kean-s/all_documents/1218.

Neither Ken nor Jeff are available. It would probably be better for one of you to speak anyway. Any interest?

----- Forwarded by Steven J Kean/NA/Enron on 08/28/2000 05:42 PM -----

Pankaj Ghemawat <pghemawat@hbs.edu> on 08/16/2000 01:47:29 PM To: skean@enron.com cc:

Subject: Fwd: Enron Corporation

Steve,

Here's the invitation I mentioned.? Thanks for following up on this and my own personal invitation to get somebody to come to class.

Pankaj

X-Sender: esulliv@pop.fas.harvard.edu Date: Fri, 11 Aug 2000 17:44:34 -0400 To: pghemawat@hbs.edu From: Ellen Sullivan <esulliv@fas.harvard.edu> Subject: Enron Corporation

Dear Pankaj,

I enjoyed meeting you last week in BA.? Steve Reifenberg and I are both grateful for your willingness to speak to Ken Lay at Enron on our behalf.?? I have attached a copy of the letter we sent to him, as well as the preliminary program for the October 20 DRCLAS Corporate Partners Program.? When we called to follow up, we were told that it was unlikely that Ken Lay would be able to participate, so we extended the invitation to Jeff Skilling as well.? We would be delighted to have either one speak on the case of Enron at the event.

Thanks again, and please let me know if there is someone in Lay's office with whom I should follow up after you speak with him.

Best, Ellen

 <div>_____</div> <div>Ellen Sullivan</div> <div>Associate Director</div> <div>David Rockefeller Center for Latin American Studies</div> <div>Harvard University</div> <div>61 Kirkland Street</div> <div>Cambridge, MA 02138</div>
 <div>phone: 617.495.4873</div> <div>fax: 617.496.2802</div> <div>e-mail: esulliv@fas.harvard.edu</div> <http://www.fas.harvard.edu/~drclas></blockquote></x-html> - Lay_invite_EMS.doc - Agenda_EMS_8_1.pdf Pankaj Ghemawat Tiampo Professor of Business

Administration Morgan 227 Harvard Business School Soldiers Field Boston MA 02163, USA

Tel: 617-495-6270 Fax: 617-495-0355

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ALLIANCE DIGEST ISSUE 30: November 27, 2001

Sender	alliance@ruf.rice.edu
Recipients	['alliance-l@listserv.rice.edu']
File	kean-s/deleted_items/495.

THE RICE ALLIANCE FOR TECHNOLOGY AND ENTREPRENEURSHIP A Strategic Alliance among the Schools of Engineering, Management, and Natural Sciences at Rice University

DIGEST ISSUE No. 30 -- November 27, 2001 Alliance web site: <http://www.alliance.rice.edu>

WELCOME to the Rice Alliance Digest, an e-newsletter which notifies you of upcoming events and items of interest to subscribers.

REMINDER -- Tomorrow evening:

NOVEMBER 28, 2001 Wednesday, 6 PM to 9 PM Business Thought Leader Speaker Series & Networking Event

Featuring Dr. Arati Prabhakar, who will speak on "New Technological Trends and the Investment Climate for Commercialization: A View from Silicon Valley's Sand Hill Road"

5:15 PM - Registration 6:00 PM - Presentation 7:00 PM - Q&A / Buffet Dinner & Reception

Herring Hall Rice University Campus RSVP: <http://www.alliance.rice.edu/users/> Cost: Free admission for Rice Alliance members / \$35 for non-members

ALSO NOTE:

The Rice Alliance is proud to be a Supporting Organization for the second annual Southwest Biotech Venture Conference and Symposium, which will be held at the Houston Hyatt Regency Hotel in downtown Houston on December 4-5. The event combines a venture educational symposium with an opportunity for linking investors and related financial organizations with select ventures in biotechnology, healthcare services, medical devices, and life sciences.

December 4th is a full-day educational program with presentations by leaders in the Texas biotech and life science industry. December 5th will feature presentations from select ventures to an audience including venture capitalists, corporate investors, angel investors, and related service providers. December 5th will also feature a keynote address by Governor Rick Perry.

To sign up for the event, go to http://www.biosouthwest.com/biosw_reg.asp

The Rice Alliance has arranged for a unique opportunity for our members to attend the kick-off reception only (if you wish) for a special admission price of \$75. To sign up only for the kick-off reception, send your registration information (from the above page, which should include: your name, company, mailing address, phone, fax, and e-mail) to Virginia Rothenflue at virginia@thbi.com -- then you may pay your \$75 via check or credit card (no cash, please) at the door.

We look forward to hosting you!

Remember -- if you have a new business idea which you would like to present, please e-mail us at alliance@rice.edu, or write to us at:

Rice Alliance for Technology and Entrepreneurship Jones Graduate School of Management Rice University - MS 531, 6100 S. Main Street Houston, Texas 77005-1892 USA 713.348.3443 (voice) 713.348.5251 (fax)

TO UNSUBSCRIBE TO THE RICE ALLIANCE DIGEST, send your request to alliance@rice.edu. -- Trish Leggett, Program Coordinator Rice Alliance for Technology & Entrepreneurship Rice University, MS - 531 6100 South Main Street Houston, TX 77005-1892 USA (713) 348-3443 (voice); (713) 348-5251 (fax) Web Site: <http://www.alliance.rice.edu>

*Message 11 of 218***Jimmy Glotfelty's coordinates**

Sender	linda.robertson@enron.com
Recipients	[' steven.kean@enron.com ']
File	kean-s/all_documents/8959.

Jimmy Glotfelty Senior Electric Policy Advisor to Energy Secretary Spencer Abraham US Department of Energy Washington, DC 202-586-7131

Email Notification: Re: Administration's electric restructuring bill, evaluate the feasibility of a national electric grid, help advise the administration on the steps necessary to help solve our western electric crisis, work with Congress, and help craft many other policies that will positively impact the competitive electric industry. This is a once in a lifetime opportunity that I felt I could not pass up. Formerly: Director; Government Affairs Calpine Corporation 700 Milam #800 Houston, TX 77002 Direct: 713-830-8633 Fax: 713-830-8871 Cell: 713-594-8153 jimmyg@calpine.com

*Message 12 of 218***Enron Corporation/Calif Senate Select Committee**

Sender	mlk@pkns.com
Recipients	[' mjacobs@dbsr.com ']
File	kean-s/calendar/untitled/13057.

Thanks for taking my call. You can reach me at Post Kirby Noonan & Sweat LLP, 600 West Broadway, Suite 1100, San Diego, CA 92101--3387, tel-619-557-4402, fax 619-231-4360-, cell-619-985-9792. Thanks.

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*Message 13 of 218***Re: Spoke with Jeff**

Sender	steven.kean@enron.com
Recipients	['=20', ' kevinscott@onlinemailbox.net ']
File	kean-s/calendar/untitled/13003.

I'm glad things are moving forward. I've talked with Dave briefly and will= =20 follow up with him again.

Kevin Scott <kevinscott@onlinemailbox.net> on 07/13/2001 10:14:01 AM Please respond to kevinscott@onlinemailbox.net

To: Steve Kean <skean@enron.com>

cc: =20

Subject: Spoke with Jeff

Steve =20 As planned, I spoke with Jeff this morning. It was a great call. I am=20 really excited about what is ahead. =20 We discussed the =01&title=018 issue. I don=01,t have any problems. We sh= ould go=20 with what is the best way to enter the organization. =20 =20 Jeff said he was going to touch base with Dave this morning to move the=20 process forward. I can=01,t wait for my interviews and to join the team.= =20 =20 Thanks for all of your help. =20 Kevin =20

Contact Information E-mail kevinscott@onlinemailbox.net=20 Phone (213) 926-2626 Fax (707) 516-0019 Traditional Mail PO Box 21074 ? Los Angeles, CA 90021

=20

Message 14 of 218

FW: Jerry Ellig to Join FTC

Sender	j..kean@enron.com
Recipients	['richard.shapiro@enron.com', 'd..steffes@enron.com', 'linda.robertson@enron.com']
File	kean-s/sent_items/252.

Jerry was one of the people from Mercatus conducting a seminar on financial and physical markets for FERC staff
-----Original Message----- From: Bradley, Rob Sent: Wednesday, July 25, 2001 9:42 AM To: Kean, Steven J.; Shapiro, Richard; Alvarez, Ray; Brown, Jeff Cc: Yoho, Lisa Subject: Jerry Ellig to Join FTC

On Monday Jerry will take a leave of absence from the Mercatus Center at George Mason University to join the Federal Trade Commission (FTC) as Deputy Director in the Office of Policy and Planning. In his role Jerry will focus on how government policy inhibites competition. He anticipates looking closely at state electricity policy and testifying and writing policy papers in this regard. (Lisa, he could be of help with some of your issues as well.)

Jerry does not know his new phone number, but he can be reached this week at Mercatus at 703-993-4923. His current work e:mail jellig@gmu.edu should work for the transition, but for insurance also send communications to him at jellig@yahoo.com.

Robert L. Bradley, Jr. Director, Public Policy Analysis Enron Corp. P.O. Box 1188, Room 4736D Houston, Texas 77251-1188

Phone: 713-853-3062 Cell: 713-304-8942 Fax: 713-646-4702

Message 15 of 218

Polciy paper draft

Sender	richard.shapiro@enron.com
Recipients	['steven.kean@enron.com', 'james.steffes@enron.com']
File	kean-s/all_documents/5059.

When do we want to get together to call Seabron w/ feedback? ----- Forwarded by Richard Shapiro/NA/Enron on 05/01/2001 08:34 AM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 04/23/2001 09:30:56 PM To: <James.D.Steffes@enron.com>, <Steven.J.Kean@enron.com>, <Richard.Shapiro@enron.com> cc:

Subject: Polciy paper draft

Jim/Rick/Steve:

Please see the attached draft. I think I have everything in there we discussed. Sorry I this has been slower than planned -as I mentioned before I have been facing a family medical problem.

I will be out of the office for much of the next two days. I can be reached at (617) 513-5904 (cellphone) or via email. I should be back in the office full-time from Thursday a.m.

Cheers

Seabron

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

- 01-04-23 SA Draft policy paper for review.doc

Message 16 of 218

RE: Revised Meeting Notice - Time Change 2-3:00 P.M.

Sender	mark.koenig@enron.com
Recipients	['McVicker', 'sheryl.d.lara@dynegy.com', 'Maureen; Hiltabrand', 'Leslie; Kim.Budzik@dynegy.com; Sandra.K.Moncl...
File	kean-s/deleted_items/344.

Meg - Unfortunately, I am scheduled to be out on Monday, but I will send someone from my group. Do you have an agenda? Let me know if you need anything in advance. You can also call me at home this weekend 281-360-7601, or leave me voicemail at work. Thanks. MEK

-----Original Message-----

From: Sheryl.D.Lara@dynegy.com Sent: Fri 11/16/2001 3:44 PM To: Kean, Steven J.; Koenig, Mark; Palmer, Mark A. (PR); John.Sousa@dynegy.com; Meg.Nollen@dynegy.com; Keith.Fullenweider@dynegy.com; dafi@dynegy.com; Arthur.J.Shannon@dynegy.com Cc: McVicker, Maureen; Hiltabrand, Leslie; Kim.Budzik@dynegy.com; Sandra.K.Monclova@dynegy.com; Sandra.S.Martinez@dynegy.com Subject: Revised Meeting Notice - Time Change 2-3:00 P.M.

**** REVISED MEETING NOTICE **** Please be advised that there will be a meeting held on Monday, November 19, 2001 from 2:00-3:00 p.m. at the Dynegy offices on the 67th floor in the Boardroom. The topic of discussion will be "Near & Long-Term Financial Commitments". The meeting participants are as follows: Mark Palmer - Enron Mark Koenig - Enron Steve Kean - Enron Keith Fullenweider - Dynegy Meg Nollen - Dynegy Debbie Fiorito - Dynegy Art Shannon - Dynegy John Sousa - Dynegy

If you will be unable to attend this meeting, please contact Sheryl Lara at 713-767-6273. Many thanks!

Sheryl D. Lara Assistant to Meg Nollen Dynegy, Inc. - Investor Relations 1000 Louisiana, Suite 6700 Houston, Texas 77002 Ph: 713-767-6273 Fax: 713-767-8288

Message 17 of 218

Confidential	
Sender	steven.kean@enron.com
Recipients	['=20', 'karen.denne@enron.com']
File	kean-s/archiving/untitled/17426.

fyi ----- Forwarded by Steven J Kean/HOU/EES on 07/31/2000 09:= 05=20 AM ----- From: Tanja Murray@ENRON on 07/28/2000 06:25 PM To: Steven J Kean/HOU/EES@EES cc: =20 Subject: Confidential

Below find the proposed message that we intend to send to all US employees= =20 regarding the alleged "gifting clubs." I wanted you to be aware of the=20 Company's position concerning these "gifting clubs" in the event that your= =20 staff was to receive any questions concerning this matter.

Thank you.

Kriste Sullivan EB 4861 Ext. 37557

----- Forwarded by Tanja Murray/Corp/Enron on 07/28/2000 06:19 PM -----

=09Kriste Sullivan =09Sent by: Tanja Murray =0907/28/2000 06:14 PM =09=09=20 =09=09 To: Cindy Olson/Corp/Enron@ENRON, Rob Walls/NA/Enron@Enron =09=09 cc:=20 =09=09 Subject: Confidential

Below find a draft of the All Employee communication regarding "gifting=20 clubs." Please provide me with your comments.

Thank you.

=01&The Company has become aware that Company employees have been solicited= for=20 participation in =01&gifting clubs.=018 These clubs appear to be illegal p= yramid=20 schemes. If you are approached about joining a club but aren=01,t sure if = it=01,s=20 an illegal gifting club, contact the Better Business Bureau. =20

Please be advised that use of the Company=01,s premises without management= =01,s=20 prior approval or use of any of the Company=01,s communication services=20 equipment (i.e. email, fax machines, telephones, etc.) for non-business=20 related ventures is against Company policy.=018

KKS/tmm

Kriste K. Sullivan Enron Corp. Legal 1400 Smith, EB 4861 Houston, TX 77002 (713) 853-7557 (713) 646-5847 Fax KSulliv@Enron.com

This message may contain confidential information that is protected by the= =20 attorney-client and/or work product privileges.

Message 18 of 218

FPSC workshop on hedging and portfolio management next Monday	
Sender	marchris.robinson@enron.com
Recipients	['steven.kean@enron.com', 'janelle.scheuer@enron.com', 'steve.montovano@enron.com', 'susan.landwehr@enron.com']...
File	kean-s/archiving/untitled/4992.

Sue/Janelle:

Steve Kean's pitch to the Florida PSC looks like it opened a "small crack" in the FL IOUs door. I am trying to get Enron a slot on the agenda. I will advise tomorrow.

Marchris ----- Forwarded by Marchris Robinson/NA/Enron on 05/07/2001 04:50 PM -----

"Natalie FUTCH" <natalief@katzlaw.com> 05/07/2001 04:39 PM

To: <Marchris.Robinson@enron.com> cc: Subject: FPSC workshop on hedging and portfolio management next Monday

Marchris:

We'll give you more information as we learn it.

On Friday, May 4, the FPSC issued a notice of a workshop on hedging and portfolio management (procurement of fuel for electric generation and end-use applications); to be held next Monday, 5/14/01, at 1:30 p.m. at the FPSC. Find the notice at this link:

<http://www.psc.state.fl.us/dockets/documents/01/05688-01.html>

Find the agenda at this link (open with wordperfect viewer - let me know if you need me to cut and paste it into an e-mail).

<http://webserv1.electro-net.com/psc/Framer.Cfm?Link=rtowkshp.wpd>

The purpose of this meeting is to have presentations on this issue.

Natalie

Natalie B. Futch, associate Katz, Kutter, Haigler, Alderman, Bryant & Yon, P.A. 106 E. College Avenue, Suite 1200 Tallahassee, FL 32312 (850) 224-9634 (phone) (850) 681-3218 (facsimile) www.katzlaw.com

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Message 19 of 218

Re: Job candidates for Enron

Sender	steven.kean@enron.com
Recipients	['billy.lemmons@enron.com', 'celeste.roberts@enron.com', 'borenste@haas.berkeley.edu']
File	kean-s/calendar/untitled/8002.

Thanks for the note. I am forwarding it on to our analyst and associate recruiting program leaders. We may have already filled the summer spots (we also cut down the number a bit this year to ensure a higher quality experience), but we will be out looking for a large number of permanent hires in the Fall.

Severin Borenstein <borenste@Haas.Berkeley.EDU> 03/31/2001 06:00 PM

To: Steve Kean <skean@enron.com> cc: James Bushnell <jimb@IEOR.Berkeley.EDU> Subject: Job candidates for Enron

Dear Steve:

Jim Bushnell and I are teaching a course called "Energy Market Strategies and Policies" this semester. The course is cross-listed between the Haas School of Business and the Energy & Resources Group at UC Berkeley. The syllabus for the course is attached.

We have 43 graduate students in the course, most pursuing a masters degree in business or energy & resources, though there are also a few PhD students. These are very smart students -- many of whom already have experience in the energy industries -- and we believe the course puts them in a position to immediately contribute to any energy-related organization that they would join.

Many of these students are interested in either summer or permanent employment starting as early as May. If Enron has openings that you would like to advertise to these students, please send me the job description (or the URL for it) and I can forward it to the class list.

Jim and I think this is a very strong class, and many of the students are interested in making a career in either the business or the public policy side of the energy industry. We're hoping to provide the connections to help make sure they find the best job matches possible.

Sincerely, Severin

Severin Borenstein

E.T. Grether Professor of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California 2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508 <http://www.ucei.org>

Email: borenste@haas.berkeley.edu WWW: <http://haas.berkeley.edu/~borenste>

- EnergyMarketsSyllabus.pdf

Message 20 of 218

Shapiro Haber & Urmey Files Class Action on Behalf of Purchasers of

Sender	m..schmidt@enron.com
Recipients	j..kean@enron.com , karen.denne@enron.com , <a href="mailto:pr <.palmer@enron.com">pr <.palmer@enron.com]
File	kean-s/deleted_items/102.

Shapiro Haber & Urmey Files Class Action on Behalf of Purchasers of Enron Corporation Stock (NYSE: ENE) in The Period From July 13, 2001 Through October 16, 2001

10/22/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

BOSTON, Oct. 22 /PRNewswire/ -- The law firm of Shapiro Haber & Urmey LLP has filed a class action suit alleging securities fraud in the United States District Court for the Southern District of Texas (Houston Division), 515 Rusk Ave., Houston, Texas 77002, against Enron Corporation ("Enron") (NYSE: ENE) and certain of its officers and directors. The case was filed on behalf of all purchasers of the common stock of Enron during the period from July 13, 2001 through October 16, 2001, inclusive (the "Class Period"). The complaint alleges that the defendants violated section 10(b) of the Securities Exchange Act of 1934 ("the Exchange Act"), and Rule 10b-5 promulgated thereunder, and that defendants' wrongful conduct artificially inflated the price of Enron common stock during the Class Period. The complaint charges that the defendants misrepresented and concealed material facts concerning the Company's financial transactions with two partnerships established by Enron's Chief Financial Officer, which resulted in substantial losses to Enron and a reduction in shareholders' equity of over \$1 billion. The price of Enron's common stock plummeted over 20% in just three trading days following disclosure of the financial losses resulting from Enron's dealings with these partnerships. Plaintiff seeks to recover damages suffered by class members and is represented by the law firm of Shapiro Haber & Urmey LLP, which has successfully prosecuted numerous securities class actions on behalf of defrauded investors. More information about the firm and its qualifications is available on the firm's website at www.shulaw.com. If you are a member of the class described above, you may wish to join the action. You may move the court to serve as a lead plaintiff no later than December 21, 2001. If you would like a copy of the complaint, would like to discuss joining this action as a lead plaintiff, or would like to inform us that you are a member of the proposed class, please contact Thomas G. Shapiro, Esq. or Liz Hutton, paralegal, Shapiro Haber & Urmey LLP, 75 State Street, Boston, MA 02109, (800) 287-8119, fax at (617) 439-0134, or e-mail at cases@shulaw.com. MAKE YOUR OPINION COUNT - Click Here <http://tbutton.prnewswire.com/prn/11690X66791593>

/CONTACT: Thomas G. Shapiro, Esq. or Liz Hutton, paralegal, Shapiro Haber & Urmey LLP, +1-800-287-8119, cases@shulaw.com/ 16:54 EDT Copyright ? 2000 Dow Jones & Company, Inc. All Rights Reserved.

Message 21 of 218

FW: EIX. PCG: QFs Prepare to File SCE Involuntary Bankruptcy Next

Sender	james.steffes@enron.com
Recipients	['steven.kean@enron.com', 'richard.shapiro@enron.com', 'mark.palmer@enron.com']
File	kean-s/discussion_threads/2741.

----- Forwarded by James D Steffes/NA/Enron on 03/16/2001 07:28 AM -----

Chip Schneider/ENRON@enronXgate 03/16/2001 07:22 AM

To: Rick Buy/ENRON@enronXgate, David Gorte/ENRON@enronXgate, William S Bradford/ENRON@enronXgate, Christopher F Calger/PDX/ECT@ECT, W David Duran/HOU/ECT@ECT, Terry W Donovan/HOU/ECT@ECT, George Schaefer/HPL/Enron@Enron, Greg Blair/Corp/Enron@Enron, James D Steffes/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT cc: Subject: FW: EIX. PCG: QFs Prepare to File SCE Involuntary Bankruptcy Next Week

-----Original Message-----

From: Paul Patterson <Paul_Patterson@xmr3.com>@ENRON
[mailto:IMCEANOTES-Paul+20Patterson+20+3CPaul+5FPatterson+40xmr3+2Ecom+3E+40ENRON@ENRON.com]
Sent: Friday, March 16, 2001 7:11 AM To: Schneider, Chip Subject: EIX. PCG: QFs Prepare to File SCE Involuntary Bankruptcy Next Week

Credit Suisse First Boston Paul Patterson Good morning, ? Yesterday, Coram, a QF, said that it signed a petition to file involuntary bankruptcy against Southern California Edison. Reportedly, the petition is under review by five other renewable QFs. Apparently, certain gas-fired QFs are now forming a second petitioner group. ? We believe that it should be fairly easy for Coram to collect the two other signatures needed to make a petition valid. Whether the petition will actually be filed is unclear since the QFs may only be attempting to expedite a resolution for the utilities and themselves. ? On Wednesday, a federal court allowed Caithness, another QF, to place a lien on an Edison asset, thus giving it a secured claim effective in 90 days. Edison is filing an appeal and an automatic stay of decision. ? The Caithness decision may prompt Edison's other unsecured creditors to seek similar motions. As we previously indicated, we believe that QFs pose the greatest risk of filing involuntary bankruptcy against the utilities because of their dire financial situation. ? Although Governor Davis and the utilities purportedly continue to negotiate a recovery plan, there is no assurance of legislative cooperation. In addition, we expect news of the petition to cause near-term weakness in the utilities' stocks. Therefore, we recommend that investors avoid EIX (\$13.59, Hold) and PCG (\$12.92, Hold), unless they have a high tolerance for risk and volatility.

Please call us with any questions you may have. Regards, Paul Patterson, 212-325-5876 Neil Stein, 212-325-4217 Wen-Wen Chen, 212-538-0223 Emily Lao Chua, 212-325-1982

If you would prefer not to receive further messages from this sender, please click on the following link and confirm your request: Mailto:K-8-62573-654519-2-151-US2-09FC2F8C@xmr3.com You will receive one additional e-mail message confirming your removal.

- ppp031601.pdf

Message 22 of 218

Thoughts on market model development

Sender	james.steffes@enron.com
Recipients	['ron.mcnamara@enron.com', 'joe.hartsoe@enron.com', 'steve.walton@enron.com']
File	kean-s/archiving/untitled/5773.

FYI. Here are some notes from Seabron at bottom.

Jim

----- Forwarded by James D Steffes/NA/Enron on 02/26/2001 08:07 AM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> 02/25/2001 08:52 PM

To: <Richard.Shapiro@enron.com> cc: <James.D.Steffes@enron.com> Subject: Thoughts on market model development

Rick:

As agreed I have put down some thoughts summarizing how to proceed on these issues (see attachment). I have kept the schedule as tight as possible given the urgency in responding publicly. Let me know what you think.

I don't have everyone's email here (I am at home) so perhaps Ginger can circulate it to Steve, Ron, etc. as appropriate.

By the way if you ever want to reach me you can try (617) 513-5904, which is a cellphone that I generally have with me (but very rarely give out the number).

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

-----Original Message-----

From: James.D.Steffes@enron.com [mailto:James.D.Steffes@enron.com] Sent: Tuesday, February 20, 2001 9:24 AM To: Seabron Adamson; Richard.Shapiro@enron.com Subject: Key Issues - Alliance Congestion Mgmt/Real Time Market

Seabron --

I hear that you are coming to Houston to discuss market structure on Friday. Here are some thoughts we put together related to the Alliance / MISO debate for you to consider.

Jim

----- Forwarded by James D Steffes/NA/Enron on 02/20/2001 08:22 AM -----

Jeff Brown To: asettanni@bracepatt.com, DWatkiss@Bracepatt.com, Ron 02/16/2001 McNamara/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Steve 03:12 PM Walton/HOU/ECT@ECT, Christi L Nicolay/HOU/ECT@ECT, Kevin M Presto/HOU/ECT@ECT, Fletcher J Sturm/HOU/ECT@ECT, Edward D Baughman/HOU/ECT@ECT cc: Joe Hartsoe/Corp/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Dave Mangskau/Corp/Enron@ENRON, Janine Migden/NA/Enron@Enron, Kerry Stroup/NA/Enron@Enron Subject: Key Issues - Alliance Congestion Mgmt/Real Time Market

Andrea,

Please incorporate these issues into our initial draft in response to the ARTO's long term congestion management proposal.

Steve/Ron/Christi/Kevin/Fletch/Baughman:

Please take a look at this (only 2 pages) and let me know if you have any questions or concerns.

Thanks - Jeff

(See attached file: Issues_RTMarket&Congestion.doc)

- 01-02-26 SA Memo on Power Markets Analysis.doc

Message 23 of 218

Course for Attorneys

Sender	tlcinc@qwest.net
Recipients	['jvasilia@monarch.papillion.ne.us']
File	kean-s/deleted_items/243.

TOXICOLOGY LABS. INC. 4472 SOUTH 84TH STREET - OMAHA, NE 68127 TEL NO. (402) 935-0401 * FAX NO. 402-935-0401 Web pages: <http://www.toxlabsonmaha.com> OR www.d-tekt.com E-mail: TOXLABS@aol.com or jvasilia@monarch.papillion.ne.us FREMONT OFFICE 727-4604

Dr.John Vasiliades,Ph.D.,DABCC,DABFT DEA # PV0243129

Forensic Toxicologist Lab.Code No. 28L018

September 1, 2001

Dear Ladies and Gentlemen:

This letter is to inform you and your office that we offer forensic laboratory (drug) services and that I will again be available as an expert or consultant in Forensic Toxicology, Urine Drug Testing and Alcohol (DWI) criminal and civil cases in 2001.

My daily rate is \$ 1000 plus expenses for jury trials and \$ 750 plus expenses for non-jury trials. My hourly rate is \$ 200 plus expenses. The initial 5 min consultation is free. I have testified in over 1,000 cases.

Please call me if you have any questions or if you need additional information. TAX ID OR FID 47-0686038.

Sincerely, John Vasiliades, Ph.D. Laboratory Director

Please forward your FAX number and any address change. Thank you. Refunds credited to account only. Obtain Dr. Vasiliades CV at: Web page: <http://www.toxlabsonmaha.com>

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YOU CAN NOW REGISTER ONLINE WITH YOUR CREDIT CARD AT <http://www.toxlabsonmaha.com>

FORENSIC TOXICOLOGY FOR ATTORNEYS 2001 (ALCOHOL AND DRUGS & HOW TO BETTER USE AN EXPERT)
Special Topics- Ecstasy (MDMA) and Meth

November 10, 2001, 9:30 to 5:00PM

A UNIQUE INTENSIVE 1 DAY WORKSHOP AND COURSE IN FORENSIC LABORATORY TOXICOLOGY IN OMAHA,NEBRASKA FEE \$ 250 FOR INFORMATION WRITE OR CALL DR. JOHN VASILIADES,Ph.D.,DABCC,DABFT TOXICOLOGY LABS. INC. 4472 South. 84th St. - OMAHA, NE 68127 TEL NO. (402) 935-0401 * FAX NO. 402-935-04 Web pages:<http://www.toxlabsonmaha.com> OR www.d-tekt.com E-mail: TOXLABS@ aol.com or jvasilia@monarch.papillion.ne.us (Expert Witness and Laboratory Services in Alcohol and Drugs)

FORENSIC TOXICOLOGY FOR ATTORNEYS 2001 NAME _____ TITLE _____

_____ AFFILIATION _____ ADDRESS _____

_____ CITY,STATE,ZIP _____ PHONE _____

_____ FAX _____ Amount enclosed (FEE \$ 250)

\$ _____ I cannot attend at this time would like to attend next session _____ CLE CREDIT AVAILABLE This course has been accredited for 6 hours of continuing legal education by the states of Iowa, Kansas,Idaho, Utah, Nebraska Crime Commission and 7 hours by the states of Colorado and Missouri.Enclosed is the information you or someone from your office requested. Email us if you wish to be dropped from this e-mail list.

Message 24 of 218

RE: AReM/WPTF Comments on Draft Decisions Regarding PX Credit and

Sender	robert.williams@enron.com
Recipients	['susan.mara@enron.com', 'steven.kean@enron.com', 'jeff.dasovich@enron.com', 'james.steffes@enron.com']
File	kean-s/california___investigations/31.

Given the negativity toward Enron at the CPUC, should we not file comments = if these express our position?

-----Original Message-----

From: =09Mara, Susan =20 Sent:=09Friday, June 22, 2001 9:47 AM To:=09Williams, Robert C. Cc:=09Kean, Steven; Dasovich, Jeff; Steffes, James; Kingerski, Harry; Sharp= , Vicki; Curry, Wanda; Kaufman, Paul Subject:=09AReM/WPTF Comments on Draft Decisions Regarding PX Credit and Di= rect Access

Dan Douglass has drafted joint comments for two coalitions in which Enron i= s a member -- Alliance for Retail Energy Markets and Western Power Trading = Forum. Robert, feel free to contact Dan directly with your comments. Let = me know your thoughts as well. I am out of the office at a WPTF meeting. D= an is here as well. If you need to contact me, you can leave me a message o= n my office phone or try my cell (415 -- 902-4108), but I'm not sure the ce= ll is working all the time.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/22/2001 07:35 AM -----

=09"Dan Douglass" <douglass@energyattorney.com> 06/20/2001 10:59 PM =09 T= o: "ARM" <arem@electric.com> cc: Subject: Comments on Draft Decisions Re= garding PX Credit and Direct Access=09

Attached for your review and comment is my first draft of comments to be f= iled on Monday with regard to the draft decisions of ALJ Barnett and Commi= ssioner Bilas. Please review it carefully, as I have thrown in everything= I can think of on a rush basis, and it may require some significant editi= ng. Pay particular attention to Section V dealing with Bilas' request for= parties to discuss alternatives to DA suspension. The draft offers a com= promise to the DWR's concerns, as expressed in the Angelides memo. Also, = notice that Section VI urges the Commission to bifurcate the DA and PX cre= dit issues, acting quickly on the first, if it must, but more leisurely on = the PX credit subject. =20 Finally, I have a suggestion in the form of a question. How would AReM me= mbers feel about making this a joint filing with WPTF? There is cross-mem= bership between the two groups and the same issues would be raised in the = separate filings which I am otherwise prepared to draft. This draft would= requires some modifications so as to refer to the "Joint Parties" as oppo= sed to solely mentioning AReM, and I might add a section dealing more exp= licitly with WPTF's contribution to getting the zero minimum bill stipulati= on signed in the first place. Otherwise, the document would stay much as = it is (subject to your input over the next few days, of course). Please l= et me know what you think asap, as I am already working on a WPTF draft. = Incidentally, I will also be filing comments on behalf of ABAG which will = support the positions taken in the attached document, but I am not proposi= ng that ABAG also be a party to this filing. Thanks for your help! Comm= ents as soon as possible would be very much appreciated! =20 Dan =20 =20 Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502

douglass@energyattorney.com << File: file:///C:/Program Files/Common Files/M= icrosoft Shared/Stationery">
<STYLE>BODY { =09MARGIN-TOP: 25px; FONT-SIZE: 10pt; MARGIN-LEFT: 25px; COLOR: #000000; FO= NT-FAMILY: Arial, Helvetica } P.msoNormal { =09MARGIN-TOP: 0px; FONT-SIZE: 10pt; MARGIN-LEFT: 0px; COLOR: #ffffcc; FONT= -FAMILY: Helvetica, mailto:douglass@energyattorney.com >>=20

=20

- Blank Bkgrd.gif << File: Blank Bkgrd.gif >>=20 - 6-25-01 AReM Comments - Draft 1.doc << File: 6-25-01 AReM Comments - Dra= ft 1.doc >>

Message 25 of 218

RE: EC Changes and Related Matters

| | |
|-------------------|----------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [nels.olson@kornferry.com] |
| File | kean-s/all_documents/814. |

What do you think? ----- Forwarded by Steven J Kean/HOU/EES on 07/25/2000 02:15 PM

Mark Schroeder@ECT 07/25/2000 04:36 AM To: Steven J Kean/HOU/EES@EES, Richard Shapiro/HOU/EES@EES cc: Subject: RE: EC Changes and Related Matters

The fellow from GE, Tim Richards, on this e-mail, is the person I have mentioned to each of you might be a worthwhile candidate for heading the DC office. mcs ----- Forwarded by Mark Schroeder/LON/ECT on 25/07/2000 10:37

Enron Capital & Trade Resources Corp.

From: "Richards, Tim J (CORP)" <Tim.Richards@corporate.ge.com> 25/07/2000 00:09

To: "Joe.Hillings@enron.com" <Joe.Hillings@enron.com>, Peter.Styles@enron.com, don.deline@halliburton.com, cbcapstrat@aol.com, 75361.622@compuserve.com, Chris.Long@enron.com, rcfisher@hillsandco.com cc: Mark.Schroeder@enron.com, John.Fugh@enron.com, Stephen.D.Burns@enron.com, skeep@enron.com

Subject: RE: EC Changes and Related Matters

Joe,

Although I don't have his bio, I've known Herve Joanne for about 10 years. He has served in the EU mission to the WTO as a mid level market access negotiator and in Brussels mostly on industrial goods market access negotiations. His move to Madelin's job is a lateral one from the industrial goods side to the services side of DG-Trade.

In the mid 90s, I worked with Herve quite a bit and found him to be trustworthy and conscientious. He was a pleasure to work with, and although we will miss having Robert in the Services position, Herve is a good replacement.

--- Tim

Timothy J. Richards GE International Law & Policy 1299 Pennsylvania Avenue, NW; 1100W Washington, DC 20004

Phone: 202-637-4407 DialCom: 8* 272-4407 Fax: 202-637-4300 DialCom Fax: 8* 272-4300

-----Original Message-----

From: Joe.Hillings@enron.com [mailto:Joe.Hillings@enron.com] Sent: Monday, July 24, 2000 11:43 AM To: Peter.Styles@enron.com; don.deline@halliburton.com; cbcapstrat@aol.com; 75361.622@compuserve.com; Richards, Tim J (CORP); Chris.Long@enron.com; rcfisher@hillsandco.com Cc: Mark.Schroeder@enron.com; John.Fugh@enron.com; Stephen.D.Burns@enron.com; skeep@enron.com Subject: EC Changes and Related Matters

Bob Vastine reports that Robert Madellin will be moving from the Services portfolio this fall to Agriculture and some other high sounding responsibility. He is being succeeded by Herve Jouanneau with Michel Servoz as number 2. Does anyone have biographical information on Herve Jouanneau???

Andrew Buxton who heads the European Services Network will be here for meetings with CSI and ISACs this week and also in NYC with CSI and Japanese counterparts. Bob told me that Vivendi is the only energy interest involved as members of Andrew's group and they have expressed no interest in liberalized energy services. This would seem to be an opportunity for the UK electricity association to advise him of their interests and possibly the drilling people.

During the ISAC 13 meeting last week, USTR Peter Collins reported that the WTO Working Party Dealing With China's accession had expressed concern with the recent negotiation in which the Chinese won a series of exemptions and in the case of energy services and possibly e-commerce there are price controls. We were told that a number of law firms in

Washington are opposing any USTR acceptance of this provision and Bob Vastine informed ISAC 13 members should they have a view on price controls.

Trade Ministers will meet in September and are likely to ratify the China accession regardless of the WTO Working Group issues. You need to let us know if Enron should consider filing a statement regarding price controls for energy services and e-commerce services.

Joe

Message 26 of 218

FW: Energy Policy Conference, Sept 27

| | |
|------------|--|
| Sender | jean.ryall@enron.com |
| Recipients | ['j..kean@enron.com', 'john.shelk@enron.com', 'linda.robertson@enron.com'] |
| File | kean-s/texas/27. |

John, The email below addresses you question regarding Barton Energy Texas Roundtable. Please call if you need anything else - 512-320-5957....Jean

-----Original Message-----

From: COLLEEN BENEFIELD [mailto:COLLEEN.BENEFIELD@house.state.tx.us] Sent: Friday, September 14, 2001 4:56 PM To: crpatton@aep.com; texas66@aol.com; scott@cectexas.org; aoneacre@dallaschamber.org; cindy@eden.com; bmoore@enron.com; Russo, Gavin; Ryall, Jean; jmccoll@entergy.com; lsandid@entergy.com; esmall@jw.com; oswaldb@kochind.com; cindy.mccauley@lyondell.com; kmagruder@newpower.com; robtmcfa@onr.com; Julie_Moore@oxy.com; scott_a_miller@reliantenergy.com; stephanie_newell@reliantenergy.com; schriver@texas-ec.org; pmarshall@tnpe.com; cnewton@tpca.org; Linda.Sickels@trin.net; bsebree@txoga.org; cmorphew@txoga.org; rlooney@txoga.org; cseidlits@txu.com; mmalone@txu.com; tom.sellers@usa.conoco.com Subject: Important Energy Policy Conference, Sept 27

PLEASE SHARE THIS INFORMATION WITH YOUR COLLEAGUES AND MEMBERS. WE HAVE ASSEMBLED A FANTASTIC GROUP OF SPEAKERS, INCLUDING ASSIT. SECRETARY GARMAN FROM DEPT. OF ENERGY. WE WOULD LIKE A GREAT SHOWING OF THE TEXAS ENERGY BUSINESS COMMUNITY AND INTRESTED INDIVIDUALS.

Texas' Role in the National Energy Policy presented by Texas Conservative Forum

Thursday, September 27, 2001 2 p.m. to 6:30 p.m. River Place Country Club 4207 River Place Blvd Austin, TX 78730
Hors d'oeuvres reception following.

On September 27, Texas Conservative Forum, a non-profit organization run by Congressman Joe Barton and State Representative Ray Allen, will host a conference targeting the role Texas will play in the new national energy strategy as outlined in the President's National Energy Policy Development Group report, as well as emerging deregulation issues nationwide and in Texas.

In recent months, California's power shortages and rising fuel and energy costs nationwide have kept Americans guessing about the future of our country's energy policy. As the Bush Administration works to formulate a new energy strategy for America, what impact should Texans expect? What are some positive contributions Texas can make, and what specific challenges, if any, face Texans in the developing national policy? This conference intends to address these and related questions.

The conference will showcase a wide variety of panelists, including state and federal lawmakers, agency representatives, and industry and research experts. The conference should be of interest to Texas energy producers, researchers, and members of the business community, as well as industry leaders from around the nation.

As of September 14, confirmed speakers include Kurt Yeager, President and CEO of Electric Power Research Institute; John Anderson, Executive Director of Electricity Consumers Resource Council; Randy Eminger, South Region Vice President of the Center for Energy and Economic Development; Todd Onderdonk, Senior Energy Advisor for ExxonMobil; Diana Knox, Central Region Senior Vice President of Calpine Corporation; Rick Walker, Director, Renewable Energy Business Development, American Electric Power; Dave Garman, Assistant Secretary for Energy Efficiency, U.S. Department of Energy; Jimmy Glotfelty, Senior Energy Advisor, U.S. Department of Energy; U.S. Congressman Joe Barton, U.S. Congressman Ralph Hall; Texas Railroad Commissioner Charles Matthews; and Texas Senator J.E. "Buster" Brown.

Conference Fees

Conference fees are \$125 per person, which includes an hors d'oeuvres reception following the event. Texas Conservative Forum is a 501 (c) (3) non-profit organization. All donations and conference fees are tax deductible.

Registration

You may register for the fall 2001 conference online at www.texasconservativeforum.org <<http://www.texasconservativeforum.org>>, or by phone to (512) 322-9069.

Golfing at River Place will be available for conference participants in the morning prior to the event. Please call TCF staff at (512) 322-9069 for (512) 914-4000 if you are interested in reserving a tee time or for more information regarding the conference.

Message 27 of 218

Pipeline Safety bill NOT included in final legislation

| | |
|------------|--|
| Sender | jeffrey.keeler@enron.com |
| Recipients | ['steven.kean@enron.com', 'phil.lowry@enron.com', 'michael.terraso@enron.com', 'stanley.horton@enron.com', 'jo...] |
| File | kean-s/archiving/untitled/6517. |

While there were some attempts late last week to attach the Senate pipeline safety bill to final appropriations package before Congress adjourned, the legislation was not included.

While Senator John McCain (R-AZ) requested that the measure not be included in any spending bills, House and Senate Republicans at the negotiating table over the Labor-HHS bill did propose inclusion of the pipeline safety bill. However, House Democrats -- in particular, Rep. David Obey (D-WI) and Jim Oberstar (D-MN) -- voiced strong objections, so the bill was not included.

Jeffrey Keeler Director, Environmental Strategies Enron 1775 Eye Street, N.W. Suite 800 Washington, D.C. 20006 (202) 466-9157 - phone (202) 331-4717 - fax (888) 502-6856 or 5026856@skytel.com - pager

Message 28 of 218

Calif Dereg Initiative

| | |
|------------|---------------------------------------|
| Sender | mikeb@baselice.com |
| Recipients | ['klay@enron.com', 'skean@enron.com'] |
| File | kean-s/calendar/untitled/7024. |

Happy New Year and thanks again for your support on the Arena Prop.

A consulting group that I have worked with over the last 10 years in California tells me there may be an initiative in 2002 (March or November) to undo electric deregulation there. This group is Woodward & McDowell. They specialize in propositions.

In 2000, Baselice & Associates polled in their success efforts to defeat Prop 25 (march) and pass Prop 35 (nov). I highly recommend that any coalition formed to defeat a proposition in California contact Woodward & McDowell. Call me if you would like to know more about them, or just call Dave Fogarty at 650-340-0470.

Mike

MICHAEL BASELICE Baselice & Associates, Inc. 4131 Spicewood Springs Road Suite O-2 Austin, TX 78759 Phone: (512) 345-9720 Fax: (512) 345-9740 email: mikeb@baselice.com

Message 29 of 218

Outline of policy level paper

| | |
|------------|--|
| Sender | seabron.adamson@frontier-economics.com |
| Recipients | ['steven.j.kean@enron.com', 'james.d.steffes@enron.com'] |
| File | kean-s/all_documents/5597. |

Please see attached. Have a good weekend.

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

- 01-03-09-SA Draft outline for principles paper.doc

Message 30 of 218

Re: May 22-23, 2001 Forum Presentation

| | |
|------------|--------------------------------|
| Sender | maureen.mcvicker@enron.com |
| Recipients | ['cbadar@carbon.cudenver.edu'] |
| File | kean-s/sent/1286. |

Dear Christine:

Unfortunately, Steve has been out of the country call week. He will return to the office tomorrow. Let me get back with you early tomorrow regarding the presentation.

If you need to contact me, please call me at 713-853-1808.

Maureen McVicker Executive Assistants

Christine Velez Badar <cbadar@carbon.cudenver.edu> on 05/17/2001 02:25:29 PM To: Steven.J.Kean@enron.com cc:

Subject: May 22-23, 2001 Forum Presentation

Dear Mr. Kean,

Heidi Van Genderen asked me to send you a reminder notice. We will be loading all the power point presentations onto 1 laptop. If you could please send me your presentation by friday morning (5/18), it would be greatly appreciated.

Christine Velez Badar The Centers at University of Colorado-Denver 1445 Market St., Suite 380 Denver, CO 80202
phone: 303.820.5674 fax: 303.820.5656 email: cbadar@carbon.cudenver.edu

Message 31 of 218

| Policy paper | |
|--------------|--|
| Sender | seabron.adamson@frontiereconomics.com |
| Recipients | ['sabine.schnittger@frontier-economics.com', 'richard.shapiro@enron.com', 'steven.j.kean@enron.com'] |
| File | kean-s/discussion_threads/7146. |

We have re-drafted various sections of this to incorporate Steve's comments. So I think we are finally there.

What's next??

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

- 01-07-07-SA Draft policy paper - revised.doc

Message 32 of 218

| Re: Spoke with Jeff | |
|---------------------|----------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['kevinscott@onlinemailbox.net'] |
| File | kean-s/sent_items/195. |

I'm glad things are moving forward. I've talked with Dave briefly and will follow up with him again.

Kevin Scott <kevinscott@onlinemailbox.net> on 07/13/2001 10:14:01 AM Please respond to kevinscott@onlinemailbox.net

To: Steve Kean <skean@enron.com>

cc:

Subject: Spoke with Jeff

Steve

As planned, I spoke with Jeff this morning. It was a great call. I am really excited about what is ahead.

We discussed the "title" issue. I don't have any problems. We should go with what is the best way to enter the organization.

Jeff said he was going to touch base with Dave this morning to move the process forward. I can't wait for my interviews and to join the team.

Thanks for all of your help.

Kevin

Contact Information E-mail kevin.scott@onlinemailbox.net Phone (213) 926-2626 Fax (707) 516-0019 Traditional Mail PO Box 21074 ? Los Angeles, CA 90021

Message 33 of 218

Near & Long-Term Financial Commitments

| | |
|------------|---|
| Sender | sheryl.d.lara@dynegy.com |
| Recipients | ['j..kean@enron.com', 'mark.koenig@enron.com', 'maureen.mcvicker@enron.com', 'pr <.palmer@enron.com'] |
| File | kean-s/deleted_items/337. |

** MEETING NOTICE ** Please be advised that there will be a meeting held on Monday, November 19, 2001 from 1:00 - 2:30 p.m. at the Dynegy offices on the 67th floor in the Boardroom. The topic of discussion will be "Near & Long-Term Financial Commitments". The meeting participants are as follows: Mark Palmer - Enron Mark Koenig - Enron Steve Kean - Enron Keith Fullenweider - Dynegy Meg Nollen - Dynegy Debbie Fiorito - Dynegy Art Shannon - Dynegy John Sousa - Dynegy

If you will be unable to attend this meeting, please contact Sheryl Lara at 713-767-6273. Many thanks!

Sheryl D. Lara Assistant to Meg Nollen Dynegy, Inc. - Investor Relations 1000 Louisiana, Suite 6700 Houston, Texas 77002 Ph: 713-767-6273 Fax: 713-767-8288

Message 34 of 218

Re: Thank You

| | |
|------------|---|
| Sender | steven.kean@enron.com |
| Recipients | ['Kelshaw', 'tim.richards@corporate.ge.com', 'Lisbeth\'' <Lisbeth.Kelshaw@kornferry.com'] |
| File | kean-s/calendar/untitled/921. |

Tim

I enjoyed meeting with you too. As I mentioned, I thought your answers were thoughtful, well stated, and accurate. In our line of work it helps to triangulate using others' insights and I found yours particularly useful.

"Richards, Tim J (CORP)" <Tim.Richards@corporate.ge.com> on 08/02/2000 09:01:46 AM To: "'rshapiro@enron.com'" <rshapiro@enron.com>, "'skean@enron.com'" <skean@enron.com> cc: "'Kelshaw, Lisbeth'" <Lisbeth.Kelshaw@kornferry.com> Subject: Thank You

Dear Steve and Rick,

Thank you very much for inviting me to Houston yesterday to discuss Enron's Federal Government Affairs position. Your vision of the role for the Enron Washington office fits closely with my views on what a best-in-class Washington operation should offer, and it was helpful to learn more about Enron and its business units. Enron is clearly an exciting place to work, and the fact that public policy is so vital to the company's future makes the Washington position particularly attractive.

It was a real pleasure to meet you yesterday, and I look forward to hearing from you again.

Sincerely,

Tim Richards

Timothy J. Richards GE International Law & Policy 1299 Pennsylvania Avenue, NW; 1100W Washington, DC 20004

Phone: 202-637-4407 Home: 202-882-3385 Fax: 202-637-4300

Message 35 of 218

Re: Pew Center ad - Ken Lay Quote

| | |
|------------|------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['jeffrey.keeler@enron.com'] |
| File | kean-s/sent/454. |

I would drop the second sentence (it's a bit convoluted). I would also like to look at what else the ad says -- ie how are the quotes introduced, what other quotes will be used, etc.

Jeffrey Keeler 10/30/2000 09:54 AM

To: Steven J Kean/NA/Enron@Enron cc: Michael Terraso/OTS/Enron@ENRON, Mark Palmer/Corp/Enron@ENRON
Subject: Pew Center ad - Ken Lay Quote

Steve:

The Pew Center on Climate Change is planning an advertisement to run in a special supplement to the Washington Post and International Herald Tribune around the time of COP 6 climate treaty meetings in the Hague in November, and they would like to include a quote from Ken Lay. A similar quote was included a Pew Washington Post ad that ran in April 2000.

I've revised it a bit to read: "Enron supports market-based initiatives that create efficient, cost-effective and environmentally sound energy systems. As a company, we use our global networks to provide innovative solutions that help the world meet its energy needs while reducing greenhouse gas emissions."

Unfortunately, they have given me very short notice and would like an answer by COB today. If you could let me know sometime today if this is OK to run, I'd appreciate it.

Thanks,

Jeff

Jeffrey Keeler Director, Environmental Strategies Enron 1775 Eye Street, N.W. Suite 800 Washington, D.C. 20006 (202) 466-9157 phone (202) 331-4717 fax (800) 502-6856 pager

Message 36 of 218

Government Affairs - The Americas March 30 Department Meeting

| | |
|------------|---|
| Sender | ginger.dernehl@enron.com |
| Recipients | ['pamela.lesh@enron.com', 'us@enron.com', 'carol.castanos@enron.com', 'connie.cassady@enron.com', 'southern.gr...'] |
| File | kean-s/all_documents/364. |

The Woodlands, TX here we come!!!!!! I hope everyone is ready for the next Government Affairs - The Americas department meeting. The meeting is scheduled for Thursday, March 30 at 9:00am and should conclude by 4:00pm. For those staying over night, I will be putting a rooming list together and will need to know your plans for attending this meeting by, Friday, March 3. I know this is somewhat short notice but I'd like to get this finalized sooner, rather than later, so your co-operation in this matter will be greatly appreciated. The location of the meeting will be:

The Woodlands Resort 2301 North Millbend Drive The Woodlands, TX 77380 Phone# 281-367-1100 Guest Fax# 281-364-6274

The Woodlands Resort provides transportation service to and from the airport. The shuttle service operates every hour on the hour from 6:00am - 10:00pm. Please let me know what your travel arrangements are and I will forward it to the transportation department. Once I have forwarded all of the transportation requests to them, any changes that need to be made will need to be made directly with the transportation desk at 281-364-6256.

Attached is a draft agenda for the meeting (Pamela Lesh and Lance Schuler, please note the time of your presentations. Also, please let me know what your audio visual needs will be and I will make sure it is available).

Thanks and please don't hesitate to call me with questions.

gngr

Message 37 of 218

RE: Moving foward at a good clip

| | |
|-------------------|----------------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['kevinscott@onlinemailbox.net'] |
| File | kean-s/sent_items/244. |

Call at 5:00 today (3:00 your time), if you can.

-----Original Message-----

From: Kevin Scott <kevinscott@onlinemailbox.net>@ENRON
[mailto:IMCEANOTES-Kevin+20Scott+20+3Ckevinscott+40onlinemailbox+2Enet+3E+40ENRON@ENRON.com] Sent:
Friday, July 20, 2001 12:59 PM To: Steve Kean Cc: Skilling, Jeff Subject: Moving foward at a good clip

Steve

Good news. As you indicated would happen, Kalen Pieper called me mid-week. We had a very good conversation about EES and Dave Delainey's leadership. She explored my views about doing business with government. Shortly thereafter, Dave's office called to invite me to Houston on Thursday July 26.

Kay Chapman explained that Dave's schedule would keep him out of pocket until August 16. In order to move forward, Janet Dietrich will be meeting with me when I go to Houston next Thursday. (I must confess that after all the great things I have heard about the man, I do look forward to meeting Dave himself.)

Is there a time next week that I can speak with you by phone to fine-tune my thinking / preparation for Thursday's meeting with Janet?

Thank you for your all of your help. I am pleased and appreciative that things are moving forward at a good clip.

Kevin

Contact Information E-mail kevinscott@onlinemailbox.net Phone (213) 926-2626 Fax (707) 516-0019 Traditional Mail PO Box 21074 ?Los Angeles, CA 90021

Message 38 of 218

Special Election PA 9

| | |
|------------|--------------------------------|
| Sender | alfano@bipac.org |
| Recipients | [] |
| File | kean-s/calendar/untitled/7950. |

BIPAC endorses candidate for Special Election PA 9

Pennsylvania 9 Special Election - May 15, 2001 - Representative Bud Shuster (R) - resigned

Candidates: Bill Shuster (R) - son of incumbent, auto dealer Scott Conklin (D) - county commissioner from Centre County

It is time for PACs to gear up and take notice of the special election being held in PA 9.

Bill Shuster's pro-business stance results directly from his numerous years of insight into the business world. For the past decade he has owned a small business in his district. Prior to owning his own automobile dealership, he spent years immersed in the auto industry. He worked for a supplier in Michigan for a number of years, and he also served as regional manager for Goodyear in the Washington metro area.

In his BIPAC candidate interview, Mr. Shuster proved that he was very knowledgeable of the issues that are most important to the business industry. His stance on health care, trade issues, market issues, environmental regulation, and tax reform all were cohesive to the objectives business hopes to accomplish in the 107th Congress.

Despite the fact that this should be a landslide win with a Republican running in a Republican district, you will more than likely see a very competitive race. There is a weakened Republican base due to competing factions within the state Republican Party.

Bill Shuster for Congress Committee www.shuster2001.com 227 Allegheny Street, PO Box 27 Hollidaysburg, PA 16648-0272 Telephone: 1-888-221-2455 or 814-696-0225 Fax: 814-696-0272

Message 39 of 218

Re: Memo on policy paper conclusions and staff call

| | |
|------------|--|
| Sender | richard.shapiro@enron.com |
| Recipients | ['steven.kean@enron.com', 'james.steffes@enron.com'] |
| File | kean-s/market_structure/13. |

FYI

"Seabron Adamson" <seabron.adamson@frontiereconomics.com> on 05/21/2001 09:19:19 AM Please respond to <seabron.adamson@frontier-economics.com> To: <Richard.Shapiro@enron.com> cc:

Subject: Memo on policy paper conclusions and staff call

Rick:

Please find attached a short memo regarding last week's call with Jim and the Enron RTO team. It also has some thoughts on what we might cover with Steve K. at 2:00 p.m. CDT today.

Some other time I would like to have a quick chat about how we move to the next step with the RTOs. It strikes me that there has been a real absence of clear-headed thinking in the stakeholder chin-wagging sessions. If FERC will not impose a single design - on an abbreviated timeframe - is there another way to add some economic logic into the equation?

Speak to you later...

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

- 01-05-21 SA Memo to Rick Shapiro on RTO conference call.doc

Message 40 of 218

Re: Enron PAC Contribution

| | |
|------------|--|
| Sender | maureen.mcvicker@enron.com |
| Recipients | ['carolyn.cooney@enron.com', 'cynthia.sandherr@enron.com', 'joe.hillings@enron.com'] |
| File | kean-s/all_documents/17437. |

Response from Steve Kean:

Ken will be cosponsoring the event and asked us to do a PAC contribution. I think your points are most valid and we'll reduce to \$2,000.

Joe Hillings 10/24/2000 03:07 PM

To: Steven J Kean/NA/Enron@Enron cc: Richard Shapiro/NA/Enron@Enron, Cynthia Sandherr/Corp/Enron@ENRON, Carolyn Cooney/Corp/Enron@ENRON Subject: Enron PAC Contribution

Joe Hillings Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006 202-466-9145 202-828-3372 (fax) email: jhillin@enron.com

Steve: I understand that you are considering a \$3,500 Enron PAC contribution to Congresswoman Shiela Jackson Lee. Chris and Citigroup co-hosted an event for Shiela last August in Washington which raised \$17,000. Additionally, Enron PAC contributed \$1,500 for her primary race (she had no race) and \$1,000 for the general election. Her opposition is nominal. We have also handled various personal requests for her such as tickets to Enron Field.

She has been helpful on several issues this year such as H1-B Visa and was in India with President Clinton at which she spoke to the Power Minister in a helpful way. Ken Lay and others jawboned her to get her vote in favor of PNTR for China although I think she was bargaining with everyone as she frequently does. Chris Long has developed a good relationship with Shiela but she seldom seeks us out and I think her "delayed" position on PNTR for China was unbecoming a representative from Houston. Houston will gain from PNTR for China.

I would recommend a maximum of \$2,000 to go along with our recommendation that she be more attentive to our positions on leading issues.

Joe

Message 41 of 218

greenspan weighs in (finally!)

| | |
|------------|---|
| Sender | cynthia.sandherr@enron.com |
| Recipients | ['steven.kean@enron.com', 'richard.shapiro@enron.com', 'mark.palmer@enron.com'] |
| File | kean-s/federal_legislation/11. |

Could tank the whole US economy!

DJ Greenspan Cites Concern About Electric Sector Investment Dow Jones International News Service -- July 20, 2000
[Return to Headlines]

WASHINGTON (Dow Jones)--Federal Reserve Board Chairman Alan Greenspan told Congress Thursday he is concerned that disincentives for investment in the electricity sector will destabilize the overall U.S. economy.

"The propensity to build new electric power facilities is being disincentivized," Greenspan said.

"I'm worried about the instability that that creates within the economy and the difficulties that might emerge as a consequence of that," the Fed chairman said in response to a query by Sen. Charles Schumer, D-N.Y.

"It is an issue we need to address," Greenspan said.

U.S. utilities have failed to make needed investments in generation plants and transmission lines over the last decade in the face of regulatory uncertainty posed by state and federal deregulation efforts.

Energy Secretary Bill Richardson has been touring the country in recent months, warning that the problem is contributing to power supply shortages in summer months, when hot weather sends electricity demand - and prices - soaring.

Richardson says Congress needs to enact a comprehensive bill restructuring the \$215 billion electric industry to end the uncertainty and give the sector renewed incentive to make needed investments. By Bryan Lee;Dow Jones Newswires;202-862-6647, bryan.lee@dowjones.com

(END) Dow Jones Newswires 20-07-00

1948GMT

Kim S. Martin Vice President Fleishman-Hillard Inc. 1615 L Street NW, Suite 1000 Washington, DC 20036 (202) 828-8827
fax:(202) 293-8105 martinki@fleishman.com

Message 42 of 218

UPDATED Qwest press release

| | |
|------------|---|
| Sender | karen.denne@enron.com |
| Recipients | ['steven.kean@enron.com', 'mark.koenig@enron.com', 'mark.palmer@enron.com'] |
| File | kean-s/all_documents/308. |

FYI, the attached press release announcing a fiber exchange is scheduled to be issued tomorrow by Qwest, however EBS is not named in the release (due to sensitivities with the pending USWest deal). Under the terms of the exchange, we gave them access on our Denver-to-Dallas route and we received New Orleans to Jacksonville via Tallahassee; Jacksonville to Charlotte; and Tallahassee to Louisville via Atlanta and Nashville.

If you have any questions, please contact me.

Thanks. kd ----- Forwarded by Karen Denne/Corp/Enron on 02/10/2000 05:06 PM -----

Kris Caldwell@ENRON COMMUNICATIONS 02/10/2000 04:46 PM To: Karen Denne/Corp/Enron@ENRON cc:

Subject: UPDATED Qwest press release

Karen, Here's the Qwest release that I just left word on your voicemail about. While it doesn't mention Enron, the 1000 mile route spoken to was acquired in a fiber exchange with Enron. Let's discuss. thx,

Kris Caldwell Enron Communications, Inc. Public Relations Manager (503) 886-0269

----- Forwarded by Kris Caldwell/Enron Communications on 02/10/00 02:35 PM

Matt.Barkett@qwest.com 02/10/00 08:18 AM

To: Kris Caldwell/Enron Communications@Enron Communications cc: Subject: UPDATED Qwest press release

Kris- Attached is the latest Qwest release, with the changes I mentioned last night. I will call you later to discuss, but the bottom line for us is that we have to disclose this information in writing prior to our analyst meeting next week, and Friday is now our only window. As before, there are no references to Enron. Thanks- Matt

<<Qwest fiber expansion.doc>>

Matt Barkett Qwest Media Relations 555 17th Street, 7th Floor Denver, CO 80202 303-992-2085 phone 303-992-1164 fax

- Qwest fiber expansion.doc

Message 43 of 218

Revised draft attributes paper

| | |
|------------|--|
| Sender | richard.shapiro@enron.com |
| Recipients | ['steven.kean@enron.com', 'maureen.mcvicker@enron.com', 'james.steffes@enron.com'] |
| File | kean-s/discussion_threads/2613. |

Can we review over weekend- I'll ask Maureen to schedule an hour for the 3 of us on Monday. -----

Forwarded by Richard Shapiro/NA/Enron on 03/02/2001 07:39 AM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 03/01/2001 05:42:09 PM To:
<James.D.Steffes@enron.com>, <Richard.Shapiro@enron.com> cc:

Subject: Revised draft attributes paper

Please see attached.

We have tried to develop five basic market objectives, show why these critical given Enron's strategic position, and describe some of the market attributes that follow from the positions. I think these attributes will lead directly to (at least our) proposed "ideal" RTO structure.

We can cut down some of the background discussion if you wish to circulate it to any other audiences within the company. But I wanted you guys to have a sense of where we are coming from with respect to some of the conclusions.

Unless instructed otherwise I will continue to circulate documents only to the two of you, and you can forward to others as you see fit.

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

- 01-03-01 SA Draft paper on market objectives and attributes.doc

Message 44 of 218

Major Energy Themes in Ken Lay Speeches

| | |
|------------|---|
| Sender | rob.bradley@enron.com |
| Recipients | ['karen.denne@enron.com', 'janel.guerrero@enron.com', 'mark.palmer@enron.com', 'michael.terraso@enron.com'] |
| File | kean-s/archiving/untitled/8745. |

Janel:

In response to your request, here are some of the key themes that Ken is using that should be kept in mind in our advertising and other external efforts. Let me know if there are other themes that we should be thinking about.

- 1) energy is the "master resource." 1.6 billion people don't have modern energy such as electricity, and the rest of the world needs increasing amounts of power in the IT age where bits are electrons and many new applications of power are emerging. Reliability requirements are also way up in the IT age (more "9s" of reliability).
- 2) Infrastructure must expand to meet growing demand or price spikes can occur. Price spikes lead to emergency fixes that are more costly and more polluting than if infrastructure was added in a more timely way. For example, in California the lack of modern new gas-fired capacity has forced the state to run its older, more polluting gas plants more.
- 3) Electricity is a very volatile commodity--risk management tools are needed to meet customer expectations and avoid situations creating political opportunism and strife between buyers and sellers.
- 4) The short run answer to shortages is real time pricing to bring demand down to meet available supply in the peak periods.
- 5) Price controls create shortages and require further government involvement to ration supply.
- 6) Natural gas is the fuel of choice for new power generation capacity for economic and environmental reasons. The resource base is robust, and gas (and LNG) could even over time displace much or all of the coal capacity of the United States. This may be required as part of a climate change policy. However, the "NIMBY" problem could hurt gas more than coal in meeting the future needs of the country.

Robert L. Bradley, Jr. Director, Public Policy Analysis Enron Corp. P.O. Box 1188, Room 4736D Houston, Texas 77251-1188

Phone: 713-853-3062 Cell: 713-304-8942 Fax: 713-646-4702

Message 45 of 218

Re: Ext Accountability subcommittee meeting information

| | |
|------------|-----------------------------|
| Sender | maureen.mcvicker@enron.com |
| Recipients | ['melissa.jones@enron.com'] |
| File | kean-s/all_documents/5621. |

Steve Kean is in town on Mon. March 12th, but I have several meetings already booked. Let me know the time and I will let you know his availability.

Thanks.

Maureen McVicker 3-1808

Melissa Jones 03/07/2001 02:28 PM

To: Stephen Barth/Enron Communications@Enron Communications, Steven J Kean/NA/Enron@Enron, Jimmy Mogal/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Miguel Padron/NA/Enron@ENRON, Mark Schroeder/LON/ECT@ECT cc: Catherine McKalip-Thompson/Enron Communications@Enron Communications Subject: Ext Accountability subcommittee meeting information

I am trying to coordinate calendars for the purpose of scheduling the External Accountability Subcommittee Meeting. The tentative date that we are looking at is next Monday, March 12th. If you could get back to me at your convenience, or have your assistants do so, I would greatly appreciate it. I can be reached via email, or by telephone in Houston @ (713) 853-7960.

Regards, Melissa Jones Sr. Admin. Asst. ----- Forwarded by Melissa Jones/NA/Enron on 03/07/2001 02:22 PM -----

Catherine McKalip-Thompson @ ENRON COMMUNICATIONS on 03/02/2001 12:21:12 PM To: Melissa Jones/NA/Enron@ENRON cc:

Subject: Ext Accountability subcommittee meeting information

Melissa, I sent Jean and draft agenda and workplan framework on the 28th, and so she'll probably want to send out some additional meeting information once we have the date/time confirmed. But in the interests of scheduling the meeting with everyone's busy schedules, I appreciate you starting the process with next Friday March 9th before 1pm or so (to accommodate Mark in London).

The following people are on the subcommittee and should be invited: Steve Barth, EBS Steve Kean, Enron Corp Jimmy Mogal, Enron India Miguel Padron, Enron South America Mark Schroeder Enron Europe

Thanks! Call me if you need anything further. I think I will be in Houston next Wed- Friday (but possibly may be here Tuesday also). Catherine

Catherine McKalip-Thompson Manager, Environmental Responsibility Enron Corp. 101 California Street, Suite 1950 San Francisco, CA 94111 Tel: 415.782.7842 Fax: 415.782.7854

Message 46 of 218

Re: Two Requests re: May 22-23 Forum

| | |
|------------|-----------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['hvg@carbon.cudenver.edu'] |
| File | kean-s/all_documents/5121. |

I will need an LCD projector and a computer (or connections for my computer) so that I can show the presentation. Thanks.

"Heidi VanGenderen" <hvg@carbon.cudenver.edu> on 04/24/2001 04:16:43 PM Please respond to <hvg@carbon.cudenver.edu> To: <hvg@carbon.cudenver.edu> cc:

Subject: Two Requests re: May 22-23 Forum

Greetings:

Thank you for joining us for the May 22-23, 2001 Forum on Securing the Energy Future of the Western United States here in Denver. If you require any audio visual aids for your presentations (overhead projector, LCD, etc.), please respond to this e-mail ASAP. Please remember that you will be asked to remain within the time limits outlined in the memo to speakers/discussants from Marshall Kaplan and David Olsen.

We are compiling a series of articles on western state power problems and possible options to overcome problems for distribution to all Forum participants.

We welcome your submission of any recent article or articles, or their citations and/or web page references, that you have found interesting and useful. These might address subjects such as power challenges; alternate policies with respect to supply and demand management; financing power related infrastructure; use of innovative technology with respect to energy management and efficiency; or the convergence of power, environmental and carbon emission reduction policies.

If you have an article or articles to submit for inclusion in the Forum Notebook, please convey it electronically by responding to this e-mail, or fax or mail it as noted in the signature concluding this message by no later than May 4th.

If you are intending to write out your remarks to the Forum, we would also welcome receiving those in advance of the Forum for inclusion in the materials provided to participants.

Please feel free to contact us with any questions or comments.

Thanks for your attention to these requests. We look forward to seeing you at the Forum on May 22nd.

Sincerely,

Heidi VanGenderen, Senior Associate Wirth Chair in Environmental and Community Development Policy Institute for Policy Research and Implementation University of Colorado-Denver 1445 Market Street, Suite 350 Denver, CO 80202-1727 Tel - 303-820-5676 Fax - 303-534-8774

Marshall Kaplan Tel - 303-820-5605

Message 47 of 218

Two Requests re: May 22-23 Forum

| | |
|------------|---------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['maureen.mcvicker@enron.com'] |
| File | kean-s/archiving/untitled/5119. |

I already responded to this. Print for my meeting file. ----- Forwarded by Steven J Kean/NA/Enron on 04/25/2001 07:54 AM -----

"Heidi VanGenderen" <hvg@carbon.cudenver.edu> on 04/24/2001 04:16:43 PM Please respond to <hvg@carbon.cudenver.edu> To: <hvg@carbon.cudenver.edu> cc:

Subject: Two Requests re: May 22-23 Forum

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Marshall Kaplan Tel - 303-820-5605

Message 48 of 218

DOE-NARUC North American Summit announces new speakers and an

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [jeff.brown@enron.com] |
| File | kean-s/archiving/untitled/418. |

----- Forwarded by Steven J Kean/NA/Enron on 11/12/2000 02:21 PM -----

"North American Summit Team" <ibarreto@caem.org> 11/10/2000 03:34 PM Please respond to ibarreto

To: "Energy Restructuring Stakeholders" <ibarreto@caem.org> cc: Subject: DOE-NARUC North American Summit announces new speakers and an online bulletin board

[[MAPI 1.0 storage : 5435 in winmail.dat]]

NARUC and DOE are the hosting the North American Summit on Harmonizing Business Practices in Energy Restructuring in Dallas, Texas, on November 29 to December 1. This email is an update on recent developments in the Summit.

Newly confirmed speakers include Commissioner Linda Breathitt, Federal Energy Regulatory Commission; Rep. Joe Barton (R-Texas), chairman of the House Energy and Power Subcommittee; Phil Sharp, Lecturer in Public Policy, Kennedy School of Government, Harvard University; Kurt Yaeger, president and CEO, Electric Power Research Institute; Bob Anderson, commissioner, Montana Public Service Commission; Karen O'Neill, vice president for new markets, GreenMountain.com; Steve Ward, public advocate, Maine Attorney General's office; Donato Eassay, vice president, securities research and economics, Merrill Lynch; Rick Rumbarger, president and CEO, PowerTrust.com; Kathleen Magruder, Vice President, Government Affairs, The New Power Company (a joint venture of IBM, Enron, and AOL)

We have established a bulletin board for the Summit. You can access the bulletin board through the following link: <http://www.energymarkets.org/cgi-bin/Ultimate.cgi?action=intro>. The Forums in this board will permit you to ask questions or raise issues for the speakers on each of the panels at the Summit.

You can register for the Summit at <http://www.energymarkets.org/registration.htm>.

Information on reserving a room at the Adams Mark is at http://www.energymarkets.org/city_site.htm.

Please forward this email to colleagues who may be interested in the subject of the Summit.

Thanks!

Isabel Barreto North American Summit Coordinator Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 Voicemail and Fax: (703) 234-3373 E-mail: ibarreto@caem.org
<http://www.caem.org>

Thanks!

Isabel Barreto North American Summit Coordinator Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 Voicemail and Fax: (703) 234-3373 E-mail: ibarreto@caem.org

<http://www.caem.org>

- winmail.dat

Message 49 of 218

FERC course outline

| | |
|------------|---------------------|
| Sender | sdudley@gmu.edu |
| Recipients | ['skean@enron.com'] |
| File | kean-s/ferc/603. |

Please respond to Susan Dudley Here's the outline we sent to FERC yesterday. I had sent the following e-mail last week to Dan Larcamp and Ellen Schall (OGC) of FERC.

Dan - I am a senior research fellow at the Mercatus Center at George Mason University. I recently taught a course to FERC staff on energy derivatives, and based on that and discussions with others, think you might benefit from a broader course to help FERC staff and commissioners understand prices and energy markets, particularly the relationship between cash or spot markets, and financial markets (including derivatives). We at the Mercatus Center are in a unique position to serve as a resource to the Commission and staff on economic/financial issues. We are a nonprofit, research, education, outreach organization, and, as part of our mission are organized to work with the administration on different regulatory and market issues. We would offer the course at no charge. We have in mind a team of experts in energy markets with unique experiences and perspectives. Prof. Bill Albrecht, of Iowa State University is a former commissioner at the Commodity Futures Trading Commission. He was there in the aftermath of the Crash of '87, during the Gulf War and other market crises, and has a valuable understanding of the issues FERC is facing now, with respect to the influence of trading and derivative markets on energy prices. Jerry Ellig, Ph.D., is a senior research fellow at Mercatus and has done extensive research and teaching on market infrastructure issues, particularly in energy markets. Prof. Vernon Smith, who has recently joined the faculty of GMU and the Mercatus Center, is known as the father of experimental economics. You may be familiar with his sophisticated economic "experiments," which offer hands on experience with energy markets, including transmission constraints, etc. and allow participants and researchers to test market reactions to different rules, events, etc. I am a former CFTC economist, and write and teach courses on risk and risk management in energy markets.

Professor Albrecht will be in the area on July 25-26. Two 3-hour sessions on those days (starting in the afternoon after your Commission meeting on the 25th) would provide a strong introduction to these issues. We could then talk about whether future courses or workshops would be valuable. I will call you tomorrow to discuss this idea.

Susan E. Dudley, Senior Research Fellow, Regulatory Studies Program, Mercatus Center, George Mason University 3401 North Fairfax Drive, Suite 450, Arlington, VA 22201-4433. 703-993-4934 (o) 703-995-4835 (fax) 703-754-0304 (h) www.mercatus.org - FERC course outline 7-16.doc

Message 50 of 218

FERC course outline

| | |
|------------|--------------------------|
| Sender | sdudley@gmu.edu |
| Recipients | ['skean@enron.com'] |
| File | kean-s/attachments/1920. |

Here's the outline we sent to FERC yesterday.? I had sent the following=20 e-mail last week to Dan Larcamp and Ellen Schall (OGC) of FERC. ? ?=20

Dan =01) I am a senior research fellow at the Mercatus Center at George Ma= son=20 University.? I recently taught a course to FERC staff on energy derivative= s,=20 and based on that and discussions with others, think you might benefit

from a broader course to help FERC staff and commissioners understand prices and energy markets, particularly the relationship between cash or spot markets and financial markets (including derivatives).

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We have in mind a team of experts in energy markets with unique experience and perspectives.

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?

?

Susan E. Dudley, Senior Research Fellow, Regulatory Studies Program, Mercatus Center, George Mason University?

3401 North Fairfax Drive, Suite 450, Arlington, VA 22201-4433. 703-993-4934 (o) 703-995-4835 (fax) 703-754-0304 (h)

www.mercatus.org - FERC course outline 7-16.doc

Message 51 of 218

Fwd: confidentiality agreement & document protocol

| | |
|------------|---|
| Sender | mlk@pkns.com |
| Recipients | ['breasoner@gibbs-bruns.com', 'richard.b.sanders@enron.com', 'mmolland@brobeck.com', 'skean@enron.com'] |
| File | kean-s/caliornia_investigations/37. |

Just got this. She is taking a harder line that Sen Dunn did yesterday. I'll wait to hear from them on the nonwaiver agreement. I'll find out what happened at today's meeting of the generators and Sen Dunn

The information contained in this e-mail message and any accompanying documents is subject to the attorney-client privilege and/or the attorney work product rule and is confidential business information intended only for the use of the individual or entity named above. If the reader of this message is not the intended recipient or representative of the recipient, you are hereby notified that any dissemination of this communication is strictly prohibited. If you have received this communication in error, please notify the Systems Administrator at admin@pkns.com and immediately delete this message from your system. Received: from lmail2.lc.ca.gov by PKNS.COM; Tue, 17 Jul 2001 16:07:58 -0700 Received: from CONVERSION-DAEMON by lmail2.lc.ca.gov (PMDF V5.2-27 #40821) id <0GGN005014BBA4@lmail2.lc.ca.gov> for MLK@PKNS.com; Tue, 17 Jul 2001 16:09:17 -0700 (PDT) Received: from senmsx05.senate.ca.gov

([165.107.183.35]) by lmail2.lc.ca.gov (PMDF V5.2-27 #40821) with ESMTP id <0GGN0077T49WUK@lmail2.lc.ca.gov> for MLK@PKNS.com; Tue, 17 Jul 2001 16:08:21 -0700 (PDT) Received: by senmsx05.senate.ca.gov with Internet Mail Service (5.5.2653.19) id <KRL3JH4D>; Tue, 17 Jul 2001 16:04:26 -0700 Content-return: allowed Date: Tue, 17 Jul 2001 16:09:56 -0700 From: "Montgomery, Alexandra" <Alexandra.Montgomery@sen.ca.gov> Subject: confidentiality agreement & document protocol To: "MLK@PKNS.com" <MLK@PKNS.com> Cc: "Paschal, Ronda" <Ronda.Paschal@sen.ca.gov>, "Drivon, Laurence" <Laurence.Drivon@sen.ca.gov>, "ldrivon@drivonandtabak.com" <ldrivon@drivonandtabak.com> Message-id: <A9680A8ACC43D511A3A200508BAF06665C5E81@senmsx04.senate.ca.gov> MIME-version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-type: MULTIPART/MIXED; BOUNDARY="Boundary_(ID_BR8uwvpTv7M4z4zxH8f6Lg)"

Mike,

Attached are the Select Committee's Confidentiality Agreement and Document Depository Protocol. As Senator Dunn reiterated a number of times during the hearing and meeting with you, the three conditions for compliance are that Enron sign the attached confidentiality agreement, sign the attached document depository protocol and deposit into the depository documents responsive to the Select Committee's priority list of 16 document categories. These 3 conditions remain the same. The Select Committee does not agree to enter into a "protective order." The attached confidentiality agreement is intended to be just that and not "an outline for a proposed protective order."

The Senator and Larry Drivon will review your proposed nonwaiver agreement and get back to you on that after they have had a chance to do so.

Should you wish to discuss this further, please feel free to call Larry Drivon at (916) 445-5831.

Alexandra (916) 445-5831

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<<Conf Agrmnt _Generic_July 17.doc>>

- DOCUMENT REPOSITORY PROTOCOL GENERIC blank sign.doc - Conf Agrmnt _Generic_July 17.doc

Message 52 of 218

Fwd: confidentiality agreement & document protocol

| | |
|------------|---|
| Sender | mlk@pkns.com |
| Recipients | ['breasoner@gibbs-bruns.com', 'richard.b.sanders@enron.com', 'mmolland@brobeck.com', 'skean@enron.com'] |
| File | kean-s/discussion_threads/7214. |

Just got this. She is taking a harder line that Sen Dunn did yesterday. I'll wait to hear from them on the nonwaiver agreement. I'll find out what happened at today's meeting of the generators and Sen Dunn

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agreement & document protocol To: ""MLK@PKNS.com"" <MLK@PKNS.com> Cc: "Paschal, Ronda" <Ronda.Paschal@sen.ca.gov>, "Drivon, Laurence" <Laurence.Drivon@sen.ca.gov>, ""ldrivon@drivonandtabak.com"" <ldrivon@drivonandtabak.com> Message-id: <A9680A8ACC43D511A3A200508BAF06665C5E81@senmsx04.senate.ca.gov> MIME-version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-type: MULTIPART/MIXED; BOUNDARY="Boundary_(ID_BR8uwvpTv7M4z4zxH8f6Lg)"

Mike,

Attached are the Select Committee's Confidentiality Agreement and Document Depository Protocol. As Senator Dunn reiterated a number of times during the hearing and meeting with you, the three conditions for compliance are that Enron sign the attached confidentiality agreement, sign the attached document depository protocol and deposit into the depository documents responsive to the Select Committee's priority list of 16 document categories. These 3 conditions remain the same. The Select Committee does not agree to enter into a "protective order." The attached confidentiality agreement is intended to be just that and not "an outline for a proposed protective order."

The Senator and Larry Drivon will review your proposed nonwaiver agreement and get back to you on that after they have had a chance to do so.

Should you wish to discuss this further, please feel free to call Larry Drivon at (916) 445-5831.

Alexandra (916) 445-5831

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Message 53 of 218

Re: First Draft of eTransMart FAQ's

| | |
|------------|--|
| Sender | janine.migden@enron.com |
| Recipients | [damon.harvey@enron.com, 'thane.twiggs@enron.com', 'charles.yeung@enron.com', 'christi.nicolay@enron.com'] |
| File | kean-s/calendar/untitled/1872. |

Thane, I think the doc that was prepared needs to be more user friendly and explain better what is intended. For example, what is shadowing. What do want with ancillary services? Should all ancillary services be deregulated and available at market based rates or should they be available at the suppliers option based on a tariff rate, etc. We should not assume that the reader understands what we want. Thanks. Janine

Thane Twiggs@ENRON_DEVELOPMENT 11/08/2000 03:13 PM

To: Charles Yeung/HOU/ECT@ECT@EES, Christi L Nicolay/HOU/ECT@ECT@EES, Janice R Moore/HOU/ECT@ECT@EES, Joe Hartsoe/Corp/Enron@ENRON@EES, Mary Hain/HOU/ECT@ECT@EES, Richard Shapiro/HOU/EES@EES, Ron McNamara/NA/Enron@Enron@EES, Sarah Novosel/Corp/Enron@ENRON@EES, Steve Walton/HOU/ECT@ECT@EES, Tom Delaney/Corp/Enron@ENRON@EES, Steven J Kean/NA/Enron@Enron, Thresa A Allen/HOU/ECT@ECT, Edward D Baughman/HOU/ECT@ECT, Oscar Dalton/HOU/ECT@ECT, Patrick Hanse/HOU/ECT@ECT, Gary Justice/NA/Enron@Enron, Mike E Kelly/NA/Enron@Enron, Jeff King/Corp/Enron@Enron, Matt Lorenz/HOU/ECT@ECT, Dave Mangskau/Corp/Enron@ENRON, David Portz/HOU/ECT@ECT, Doug Sewell/HOU/ECT@ECT, Kerry Stroup/DUB/EES@EES, Ron Tapscott/HOU/ECT@ECT, Lloyd Will/HOU/ECT@ECT, Christi L Nicolay/HOU/ECT@ECT, Jeff Brown/HOU/EES@EES, James D Steffes/HOU/EES@EES, Damon Harvey/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Janine Migden/NA/Enron@Enron cc: Subject: First Draft of eTransMart FAQ's

Please see the note below. EtransMart is the consortium's name for E-trans and they are putting together the FAQ's for their website. If you have any comments feel free to send them to me and I will forward them to Dave. ----- Forwarded by Thane Twiggs/ENRON_DEVELOPMENT on 11/08/2000 03:04 PM -----

"Dave Perrino" <dperrino@apx.com> 11/08/2000 02:47 PM Please respond to dperrino

To: <Jeff.Brown@enron.com>, <david.sun@alstom.esca.com>, <dfoley@apx.com>, <jchapman@apx.com>, <jd.hammerly@alstom.esca.com>, <jeflory@calpx.com>, <mheinrich@apx.com>, <norris.peterson@alstom.esca.com>, <randy.berry@alstom.esca.com>, <rbjohnson@calpx.com>, <rday@apx.com>, <rpseide@calpx.com>, <rsamuelson@apx.com>, <trevor.alvey@alstom.esca.com>, <Thane.Twiggs@enron.com> cc: <James.D.Steffes@enron.com>, <Susan.M.Landwehr@enron.com>, <jmigden@enron.com>, <Lloyd.Will@enron.com>, <Steve.Walton@enron.com>, <nmathur@apx.com>, <lfisher@apx.com> Subject: First Draft of eTransMart FAQ's

To All,

Mike Heinrich has asked me to make a first draft of some FAQ's for our collaborative's web site. I have taken a shot at several questions. I would appreciate if you could review the attached document and add/modify it as you see fit. Once you've made your additions and/or deletions, please send it back to me by this Sunday (November 12) so that I may incorporate all the suggestions and send out a "final" draft for the groups approval prior to our posting this information on the web site.

If you have any questions feel free to send me questions via email and I will respond as soon as I return from vacation on Sunday.

Kind Regards,

Dave

David F. Perrino Automated Power Exchange Grid Management Services Director Market Development - West 5201 Great America Parkway, Suite 522 Santa Clara, CA 95054 Voice: 408.517.2146 Mobile: 650.906.5020 Fax: 408.517.2985 Visit us at: <http://www.apx.com>

- eTransMart Frequently Asked Questions.doc

Message 54 of 218

The Renaissance of NUCLEAR POWER

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<<http://www.cbiglobalenergy.com/email/images/andy.gif>> Keynote Address

<<http://www.cbiglobalenergy.com/email/images/mcneill.gif>> Featured Presentation "Nuclear's New Day -- How Today's Top Performance is Opening a Bright Future"

C. Randy Hutchinson, Senior Vice President, Nuclear Business Development, Entergy Nuclear "The Pebble-Bed-Modular-Reactor -- Opportunities, Risks and Rewards"

Corbin A. McNeill, Jr., Chairman and Co-Chief Executive Officer, Exelon Corporation Highlights

How the price of natural gas will affect the future of nuclear power
The impact of restructuring and deregulation on the nuclear industry
Competing with forward costs of non-nuclear generated electricity
Achieve the most efficiency with your renewal process
Review advanced reactor technologies
Manage specific nuclear business risks - Commercial plans to deploy GE's advanced nuclear plant
Know the impact of web technology on cost saving and operational performance - A survey of 23 U.S. nuclear power plants
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CNN Headline News Story

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| Sender | richard.shapiro@enron.com |
| Recipients | ['steven.kean@enron.com', 'Ginger Dernehl/NA/Enron@Enron', 'james.steffes@enron.com'] |
| File | kean-s/archiving/untitled/1046. |

----- Forwarded by Richard Shapiro/HOU/EES on 09/07/2000

05:34 PM -----

Ann M Schmidt@ENRON 09/07/2000 01:04 PM

To: Richard Shapiro/HOU/EES@EES, Mark Palmer/Corp/Enron@ENRO cc: Ginger Dernehl/NA/Enron@Enron Subject: CNN Headline News Story

Rick,

Below is the transcript of the story you asked about this morning. I have a video copy of it as well that you can view upon your return. Thanks, Ann ----- Forwarded by Ann M Schmidt/Corp/Enron on 09/07/2000 12:58 PM

"Dave Vigil" <dvigil@vidmon.com> on 09/07/2000 11:00:21 AM Please respond to <dvigil@vidmon.com> To: <aschmid@enron.com> cc:

Subject: Video Monitoring Services of America, L.P. (VMS)

BROADCAST TRANSCRIPT Video Monitoring Services of America, Inc. 10260 Westheimer Houston, TX 77042 (713) 789-1635 (713) 789-0980 (FAX)

Date September 07, 2000 Time 08:00 AM - 08:30 AM Station CNN Headline News Location Network Program Headline News

Jacque Reid, anchor: To save money, consumers are finding ways to cut down on costly electricity bills. Greg Clarking reports on how to get better rates using the Internet. Greg Clarking reporting: Helene Baldizzone, a New York City artist, was growing increasingly concerned about rising electricity costs, so she signed up with start-up electricity retailer SmartEnergy.com. Helene Baldizzone (SmartEnergy.com Customer): I thought, OK, well, let's try somebody else because the bills had been going up little by little every month with ConEdison. So I thought, well, I have nothing to lose at this point. Clarking: Baldizzone is happy with SmartEnergy where she has locked in a rate of 8.3 cents per kilowatt hour. She was paying as much as 13.3 cents per kilowatt hour before switching. SmartEnergy says its goal is to let consumers take advantage of the sometimes confusing options created by deregulation of the energy industry. Gautam Chandra (President/CEO, SmartEnergy.com): What we are doing is taking that confusion away by being the agents for the customer in terms of looking at the best prices, locking in the best prices for them. Clarking: SmartEnergy, currently available in New York City, will be available in all twenty-four deregulated states within the next few months. There are a number of electricity suppliers in each of the deregulated states and consumers can save a lot of money by doing a little research. Rick Cowles (Energyland.com): Don't sit back and just hang in there and wait and see what's going to happen a year or two down the road because you're going to find that electric rates have definitely changed in a year or two and it may not be to your advantage. Clarking: To find out what energy options are available in your area, you can call your state's public utility commission or click on to Energyland.com for a complete list of energy suppliers and their rates. Cowles: Right now, consumers are kind of in a unique position where they do have the ability to go in and see some immediate savings. Baldizzone: It's easy. But I like especially saving the money. It's better in my pocket. Clarking: That's Your Money. Greg Clarking, CNN, New York.

###

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CBI's 2nd Annual - Electric Distribution Reliability

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and revenue

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| DOE Meetings | |
|--------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['michael.miller@enron.com', 'linda.robertson@enron.com', 'shelley.corman@enron.com', 'james.steffes@enron.com...] |
| File | kean-s/calendar/untitled/7547. |

Shelley and Jim, who should follow up? ----- Forwarded by Steven J Kean/NA/Enron on 02/20/2001 01:07 PM -----

Michael L Miller 02/20/2001 11:41 AM

To: Steven J Kean/NA/Enron@Enron cc: Subject: DOE Meetings

Steve,

This meeting was initiated by one of our contacts at the DOE (with whom we have a dialogue relating to energy technology). Some of Dr. Boyce's (do you know this guy) topics we can clearly cover, others are a little bit outside what Principal Investments does on a day to day basis.

Could you give me some guidance about who should attend this meeting? Should you be there? Where I really need help is on the topic of Natural Gas Infrastructure Reliability.

Please call if you have any questions.

Michael Miller ----- Forwarded by Michael L Miller/NA/Enron on 02/20/2001 11:19 AM -----

Boyce Consultancy <boyceturbopower@attglobal.net> on 02/20/2001 12:55:12 PM To: Michael L Miller
<Michael.L.Miller@enron.com> cc:

Subject: DOE Meetings

Dear Mr. Miller:

It was a pleasure speaking to you and discussing the upcoming meetings with DOE.

The US Department of Energy, want to meet with ENRON Executives to discuss some of the potential of various Energy Programs that are being considered by the Office of Strategic Center for Natural Gas, and with Abbie Layne Product Manager-Advanced Heat Engines.

Mr. Anderson Product Manager Natural Gas Infrastructure Reliability Would like to discuss some of the following topics:

Expected increases in the use of natural gas and projected availability of this fuel.

? Any special issues associated with distributed generation that could be addressed with new technologies;

? Concerns about the current price and availability of natural gas causing on new gas-fired power initiatives;

? Interdependence issues between gas and electric power;

? Any specific natural gas infrastructure issues facing these companies;

? The most important issue concerning natural gas reliability;

? Leadership in R&D;

? Future technology needs; and

? The NETL role in technology development to meet future industry needs.

Mark Williams Product Manager Fuel Cells Would like to discuss some of the following topics:

Fuel Cell Distributed Generation (DG) benefits.

? DG deployment allows critical industry to stay at current location even if local grid is unstable and unreliable;

? DG deployment obviates need for R&D investment;

? Fuel cell DG deployment means being able to site power with no air permitting required;

? High fuel cell efficiency reduces operating costs for fuel, which is important where gas is expensive. Additionally, high efficiency utilization frees up natural gas for use at other critical locations;

? Use of zero or low emission fuel cell technology in environmentally constrained areas permits continued use of other high emitting generating plants, thus increasing the overall power available; ? Fuel cell DG deployment puts the highest quality power in the system increasing grid reliability and stability; and

? Fuel cell attributes also enhance grid reliability through lower harmonics, variability control, and voltage control.

Abbie Layne Product Manager- Advanced Heat Engines. Would like to discuss some of the following topics:

New developments in Gas Turbines

Increasing Reliability and Maintainability of Gas Turbines

Combined Cycle Power Plants Increasing Efficiency

Hybrid Power Systems

Condition Monitoring Systems.

This meeting would be for about 3-4 hours at ENRON's facilities. The meetings arranged for March 6 morning..

A dinner for the DOE is planned at our home at the Huntingdon 2121 Kirby Drive, for March 7, 2001 at 7:00 pm, and you and your spouse, and other executives from ENRON are invited.

I am looking forward to meeting with you.

With best regards,

Dr. Meherwan P. Boyce, P.E. THE BOYCE CONSULTANCY 2121 KIRBY DRIVE, 28N HOUSTON, TX. 77019 USA
PHONE: 713-807-0888 FAX: 713-807-0088 MOBILE-USA: 713-306-9776 MOBILE-EUROPE & ASIA: 44-467-207-600
E-mail: boyceturbopower@attglobal.net Web Site: www.boyceconsultancy.com

Message 59 of 218

TVA Press Release on Generation Plans

| | |
|------------|--|
| Sender | christi.nicolay@enron.com |
| Recipients | ['cynthia.sandherr@enron.com', 'joe.hartsoe@enron.com', 'steven.kean@enron.com'] |
| File | kean-s/all_documents/540. |

FYI ----- Forwarded by Christi L Nicolay/HOU/ECT on 04/24/2000 10:33 AM -----

Ben F Jacoby 04/23/2000 10:54 AM Sent by: Ben Jacoby To: Christi L Nicolay/HOU/ECT@ECT cc: Subject: TVA Press Release on Generation Plans

Thought you might be interested in the press release below.

Ben ----- Forwarded by Ben Jacoby/HOU/ECT on 04/23/2000 08:59 AM

"Gary Hasty" <ghasty@pd-engineers.com> on 04/22/2000 08:37:16 AM Please respond to <ghasty@pd-engineers.com>
To: "Ben Jacoby (E-mail)" <ben.f.jacoby@enron.com> cc: Subject: TVA Press Release on Generation Plans

This item appeared in The Times & Free Press on Saturday, April 22, 2000. Thought you might be interested in it.

Gas Turbines Help Meet New Power Peaks for TVA

By DAVE FLESSNER Business Editor

The Tennessee Valley Authority hasn't started building any new coal or nuclear power plants in more than 25 years.

But the federal utility is still adding to its power to meet the growing demand for electricity.

In each of the next three years, TVA is adding eight gas-fired turbines to help meet ever-higher electricity peaks in the summer months.

The new units won't run most of the time, unlike the base-load plants erected during the first half-century of TVA's history. But TVA is still spending more than \$700 million for all of the new plants and contracting to spend more money buying power from other producers in the Tennessee Valley. "Our summer peaks are growing from 2 to 3 percent a year and we need these units to meet our power demand," said TVA spokesman Gil Francis. "These are the most reliable and best-cost option for us at this time." With an extra 600 megawatts of capacity from eight of the gas- or oil-fired turbines this summer, TVA officials insist they are ready for an expected record-breaking demand for electricity later this year.

"We don't control the weather," TVA Senior Vice President Greg Vincent told agency directors earlier this week. "A real extreme weather event could cause us problems, and a lot of other people problems. But outside of that, we have taken every measure we can." TVA consumers demanded a record 28,295 megawatts last July 30 when temperatures across the valley averaged 96 degrees. TVA projects the demand will be up 2 to 3 percent this year because of the growing number of homes, businesses and air conditioners in its 7-state service territory.

TVA is adding four gas turbines at both its Gallatin and Johnsonville fossil plants in Tennessee. The turbines will cost about \$200 million and give TVA a total of 28. The agency will build another eight units next summer, and its board on Wednesday approved a \$246.8 million contract with General Electric for another 680 megawatts of peaking power from eight more units. Those units, equipped to burn either coal or oil, are scheduled to come on line in June 2002. "There's a long waiting period for these units, so you've got to get in line to get them ready when you need it," Mr. Francis said.

But the scheduling and cost for the peaking units is far less than building a major power plant. The Watts Bar Nuclear Power Plant, which TVA began in 1972, wasn't completed until 1996. The Unit 1 reactor alone cost \$6 billion to complete. To pare its \$27 billion debt, TVA's board adopted a 10-year plan three years ago to limit new borrowings and to turn to other suppliers or peaking units to meet future energy growth. Next year, TVA also has contracted to begin buying up to 440 megawatts of power from the Red Hills Power Project, a privately owned, lignite-powered plant in Mississippi.

TVA has a backup plan this summer to buy up to \$100 million in electricity from outside its system if needed to ensure it has a cushion of about 16 percent, Mr. Vincent said. Drought conditions that could have limited power generation from TVA's 29 hydro units eased some with early April rains. However, valley rainfall still stands about 11/2 inches below normal for the year.

Gary L. Hasty 57 White Plains Drive, Suite 200 Jackson, TN 38305 (901) 664-0209 Office (901) 660-2631 Fax (901) 267-6672 Cellular ghasty@pd-engineers.com

Message 60 of 218

Material on PX purchasing and contracting for California Senate

| | |
|------------|--|
| Sender | seabron.adamson@frontier-economics.com |
| Recipients | ['jeff.dasovich@enron.com', 'david.parquet@enron.com', 'james.d.steffes@enron.com', 'elizabeth.linnell@enron.c...] |
| File | kean-s/senate_testimony_re_california/8. |

Please see attached brief note on the above.

Material on the market manipulation question will be ready within an hour or so.

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Friday, January 26, 2001 8:26 PM To: Elizabeth.Linnell@enron.com Cc: Alan.Comnes@enron.com; David.Parquet@enron.com; James.D.Steffes@enron.com; John.Neslage@enron.com; Margaret.Carson@enron.com; Mary.Schoen@enron.com; mday@gmsr.com; Richard.B.Sanders@enron.com; Sandra.McCubbin@enron.com; seabron.adamson@frontier-economics.com; Steve.Walton@enron.com; Steven.J.Kean@enron.com; Susan.J.Mara@enron.com Subject: Re: Urgent - Steve Kean to testify at Senate hearing, need info

One note: recall that with respect to market manipulation, one of the most common accusations focused on the problems caused by the PX manipulation the utilities engaged in thanks to their monopsony (demand-side bidding) market power.

Jeff

Elizabeth Linnell To: Mary Schoen/NA/Enron@Enron, David Parquet/SF/ECT@ECT, Richard B 01/26/2001 Sanders/HOU/ECT@ECT, John 12:24 PM Neslage/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Margaret Carson/Corp/Enron@ENRON,

seabron.adamson@frontier-economics.com, Susan J Mara/NA/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, Sandra McCubbin/SFO/EES@EES, Steve Walton/HOU/ECT@ECT, Alan Comnes/PDX/ECT@ECT, mday@gmssr.com cc: Steven J Kean/NA/Enron@Enron, James D Steffes/NA/Enron@Enron Subject: Urgent - Steve Kean to testify at Senate hearing, need info

Steve Kean will be testifying at the Senate Energy Committee's hearing on Wednesday regarding California. Steve and Jim Steffes asked me to contact you for the following information. I've listed specific requests for several people, but am copying many more of you for your input as well. Anything you can provide by sometime on Monday will be appreciated!

Dave Parquet - Siting of new power plants in California. Any insight you can provide regarding the rules, the current climate, what would fix the current situation, etc.

Richard Sanders - Steve thinks he might be asked about whether the market was manipulated. Please provide information on whether this was the case and who the participants likely were. What's the current climate regarding sanctions, etc.?

Mary Schoen - Any information you can provide relating to air emission issues in California, and specific details for our recommendations regarding air emissions.

Steve Walton - The status on RTO West, Desert Star, Cal ISO and general information on RO development.

Sue Mara - Specific ordering language requiring the utilities to buy only from the PX. Was it required through legislation or the CPUC, and what exactly does it mean. Who was involved in formulating the language? Information on block forward markets.

Alan Comnes - A copy of the CDWR response and anything they might have available regarding long term proposals from the government.

Dan Allegretti - We have the e-mail Jim sent regarding the UI deal. Please provide more specifics on the deal, and information regarding portfolio management approach.

Thanks for your help!

- 01-01-26 SA Memo on PX purchasing and forwards contracting.doc

Message 61 of 218

Arena and Electric Dereg.

| | |
|------------|---|
| Sender | steven.kean@enron.com |
| Recipients | ['sandra.mccubbin@enron.com', 'mark.palmer@enron.com', 'jeff.dasovich@enron.com'] |
| File | kean-s/archiving/untitled/444. |

Just FYI. These guys did a great job on the polling here, but I can't speak to their other qualifications or their California ties. ----- Forwarded by Steven J Kean/NA/Enron on 11/09/2000 12:13 PM -----

"Michael D. Baselice" <mikeb@baselice.com> 11/09/2000 09:03 AM Please respond to "mikeb@baselice.com"

To: "Ken Lay (E-mail)" <klay@enron.com>, "Steve Kean (E-mail)" <skean@enron.com> cc: Subject: Arena and Electric Dereg.

1. Thank you for all your support on the Arena Proposition. 2. The following article reminded me to pass along a note about a PR/PA firm in California who Baselice & Associates worked with this year in passing Prop 35 (a contracting out initiative). The firm is a full service firm named Woodward & McDowell. They have been active in California legislative and initiative battles for some 20 years and I highly recommend them if Enron is in search of support with the electric deregulation fight out there. Dick Woodward or Dave Fogarty can be reached at 650-340-0470.

If you have any questions, please call.

Mike

MICHAEL BASELICE Baselite & Associates, Inc. 4131 Spicewood Springs Road Suite O-2 Austin, TX 78759 Phone: (512) 345-9720 Fax: (512) 345-9740 email: mikeb@baselite.com

November 8, 2000 Calif Regulators, Grid Oper In Turf War Over Generation By JASON LEOPOLD Of DOW JONES NEWSWIRE LOS ANGELES-California's electricity regulators and power-grid operator are locked in a turf war over who has the authority to order new power plant construction next summer to ensure the state has enough juice on hand when demand soars. The California Public Utilities Commission says it can bring emergency power on line at a fraction of the cost that the Independent System Operator is expected to pay independent power producers for the same service. Under its plan, PG&E Corp. (PCG) unit Pacific Gas & Electric Co., Edison International's (EIX) Southern California Edison unit and Sempra Energy's (SRE) San Diego Gas & Electric Co. were ordered to submit documents by the end of November stating whether they can build and operate "peaking" plants by June 1. The utilities weren't immediately available to comment. On the other hand, the ISO - which is on the verge of signing contracts for 440 peaking units with between 20 and 91 megawatts of electricity - says the commission's meddling could endanger any chance of additional resources coming on line in time. "Any further interference on the state level could destroy the plan altogether," said an ISO source close to the issue. "There is no guarantee the utilities will be able to pull this off by next summer. And if the whole project is scrapped, you can expect there will be blackouts." Interference by federal regulators has already cost the ISO two participants and nearly 600 megawatts in its peaking program. Calpine Corp. (CPN) and Enron (ENE) initially agreed to build peaking plants for the ISO next summer, but withdrew their offers after the Federal Energy Regulatory Commission proposed capping the clearing price for California's wholesale electricity market at \$150 a megawatt-hour. The ISO, which operates one of the state's wholesale power markets and manages most of the high-voltage transmission grid, has already solicited and received bids from merchant generators for 1,800 megawatts of new peaking power for next summer. Burned by the summer's power crisis and facing an 8,000-MW shortfall next summer, the ISO put out a request for bids in August. The ISO's board voted Oct. 30 to enter into the contracts, which it estimated would cost about \$250 million a year for three years. The state's Electricity Oversight Board, which oversees the performance of the ISO, and the Public Utilities Commission protested the decision on the grounds that the contracts were too expensive. The commission is also questioning whether there is even a need for peaking power next summer and, if there is, whether the ISO should handle the solicitation. "The question also arises as to whether the ISO - which is empowered only to operate the state's transmission system and which does not represent the state or its consumers - is the appropriate organization to plan, solicit and pay for the construction of new power plants across the state," the commission wrote in its Nov. 2 order. In the end, the decision is up to state regulators. If utilities can come up with a cheaper alternative and if the regulators determine that additional generation is needed by next summer, then they will follow through with the utilities proposal.

Message 62 of 218

ERCOT Protocols

| | |
|------------|--|
| Sender | james.steffes@enron.com |
| Recipients | ['ron.mcnamara@enron.com', 'steven.kean@enron.com', 'richard.shapiro@enron.com'] |
| File | kean-s/market_structure/29. |

Note from Hogan on his views of ERCOT.

Jim

----- Forwarded by James D Steffes/NA/Enron on 02/20/2001 08:29 AM -----

William Hogan <william_hogan@harvard.edu> 02/16/2001 10:16 AM

To: pat.wood@puc.state.tx.us, judy.walsh@puc.state.tx.us, brett.perlman@puc.state.tx.us cc: keith.rogas@ouc.state.tx.us Subject: ERCOT Protocols

February 16, 2001 Public Utility Commission of Texas Sent via email

Commissioners,

Once again, I thank you for the courtesy of including me in yesterday's PUCT workshop on the ERCOT protocols. It has been my experience that such open discussion of market design issues, with full pursuit of any problematic features, is essential in achieving a successful electricity market. Unfortunately, the subject is complex and the details matter. It is not possible to anticipate every problem, but the evidence shows that ignoring obvious problems in the hope that the rules can be easily adapted has not been a successful strategy. This makes what you are doing all the more important.

On reflection after the workshop, I am more concerned about the argument that emerged about the role of the ISO. In many instances, to explain away problems of the type identified by Shmuel Oren, an argument was made that some administrative rule along with discretionary choices of the ISO would counteract perverse incentives created by the pricing system. If this argument were correct, it would seem to place a substantial burden on the ISO to undo what the pricing incentives have done. When faced with such conditions in California and elsewhere, the ISO developed a more and more intrusive role in what became less and less of a market. To make this unhappy practice part of the official design, to the point that the ISO is expected to ignore the information in schedules and do what is right, would seem to be especially problematic. At a minimum, it would make the ISO responsible for any difficulties that develop, without giving the ISO the market tools to avoid the problems.

Commissioner Wood asked at what point how a coordinated spot market would differ from the ERCOT protocols. We pursued the most important feature--eliminating the balanced schedule requirement--but did not have time to pursue all the other details. The presentation I handed out contains a summary of the key features on page 20. After the workshop, I received an email with a recent presentation by John Chandley, a colleague of mine, that addresses the issues of market design with a focus on California. As I indicated in Austin, there are important differences between ERCOT and California, but on the matter of wholesale market design there is a great deal in common, such as requiring balanced schedules, relying on congestion zones, applying different treatment for different kinds of congestion, using ad hoc pricing rules, and so on. John's summary of the recommended reforms for California would apply in large part to the ERCOT protocols. I have attached a copy of this presentation for your information.

I remain both impressed with all that you have accomplished to date, and worried that fundamental assumptions in the market design will recreate problems that we have seen elsewhere. My recommendation to adopt a coordinated spot market more like PJM won't solve all problems, but it would go a long way. Whatever the difficulty now, it will be much harder to fix these problems later. Furthermore, the coordinated spot market role for the ISO is much more robust. If the simplifying assumptions of the ERCOT protocols are true (which I doubt), the coordinated spot market will end up looking much like the zonal model with a few constraints and easy bilateral trading. But if the ERCOT assumptions are wrong, the ERCOT protocols will face serious problems and the coordinated spot market would be a solution. Furthermore, we now know from experience that the coordinated spot market is neither more complicated nor more expensive than the alternatives. The sooner you make a commitment in Texas to adopt this successful market design, the better.

I offer these further remarks as I did my comments yesterday, in the hope that you succeed. I would be happy to discuss these matters further, as you decide.

Best Regards,

William W. Hogan 79 John F. Kennedy Street Cambridge, MA 02138

p.s. I do not have the mailing list for the workshop participants, but I have sent a copy of this email to Keith Rogas of the PUCT and I assume he can forward to the participant list.

William W. Hogan John F. Kennedy School of Government Harvard University 79 John F. Kennedy Street Cambridge, MA 02138 617-495-1317 (o) 617-495-1635 (f) william_hogan@harvard.edu <http://ksgwww.harvard.edu/people/whogan>

- puct0216.doc - Infocast - SanDiego Power Crisis 2-13-01.ppt

Message 63 of 218

Re: Possible Harvard Business School event

| | |
|-------------------|---|
| Sender | steven.kean@enron.com |
| Recipients | ['wsahlman@hbs.edu', 'dsull@hbs.edu', 'pmarshall@hbs.edu', 'skean@enron.com'] |
| File | kean-s/calendar/untitled/1804. |

I am very interested in pursuing this and I believe Enron presents an ideal case study for the purposes you outlined. I am copying Christie Patrick on this message and asking her to coordinate this for us. Christie has worked on other case studies and will be very helpful in navigating Enron for you.

Don Sull <dsull@hbs.edu> 11/03/2000 10:46 AM

To: skean@enron.com cc: pmarschall@hbs.edu, wsahlman@hbs.edu Subject: Possible Harvard Business School event

Steve,

Wanted to thank you again for reviewing the strategy as simple rules article. It is forthcoming in the next Harvard Business Review and will send you some reprints once the magazine hits the newsstands.

Also wanted to gauge your interest in a possible even at the Harvard Business School in April 2001. We are currently finalizing our plans for the Entrepreneurial Manager--a first year course on entrepreneurship taken by all 1,000 of our MBA students. As part of the course, we will feature an entrepreneurial company as the capstone class in the course. Last year we featured Intuit, taught an Intuit case study and hosted Scott Cook who spoke to the entire MBA class. The session was a huge success--the highest rated class in our course and had a lasting impact on how our students think about entrepreneurship. We were wondering whether you and your colleagues might be interested in being our featured company this year.

If you decided to proceed, we would first write a case study focused on the process of creating new ventures within Enron. The case would probably consist of three portions: an overview of the Enron corporation, an in-depth description of one or two ventures successfully formed in the past, and a profile of someone currently attempting to start a new venture within Enron. In preparing the case, we would draw heavily on existing case studies, articles, and book chapters profiling Enron to avoid duplicating effort. We would then supplement our desk research by interviewing approximately 15-20 Enron employees, including top management team members (especially Ken Lay and Jeff Skilling), some folks involved in past ventures, and the people currently attempting to start a new venture. Each interview would take approximately 60 minutes. We could probably complete the bulk of the interviews in a two to three day visit to Enron, supplemented by telephone interviews. The ideal timing for these interviews from our perspective would be the last week of November or the first few weeks of December. We would then return to Boston, write a draft of the case and then submit that to you for review and clearance in January. We could then make any last minute changes before distributing the case to the students for the April discussion.

In addition to writing the case study, we would like to invite a group of Enron executives to HBS when we discuss the case in April. The ideal date would be the 27th of April, but we could schedule the Enron day the 23rd, 24th or 25th if the 27th were impossible for you. Last year Intuit sent along six folks--some junior, some senior--each of whom sat in at least one of our class discussions. In addition, Scott Cook spoke to the entire MBA class. We would like to follow the same format this year, so it would be super if either Jeff or Ken (or in the best of all worlds, both!) could speak to the MBAs as a whole. With Intuit last year, we kicked off at about 8:30 and wrapped everything up by approximately 1:00. We would shoot for roughly similar timing this year.

Many of our students equate entrepreneurship with start-ups, and this day is designed to show them that it is possible (although extremely difficult) for large companies to be entrepreneurial. As such, you and your colleagues would be providing an invaluable service to our students, and we would be deeply grateful for your contribution. The event might also have some direct benefits to Enron in terms of increased profile among our students. If you were interested, we could also explore opportunities to leverage this event to further increase Enron's profile as a leader of the New Economy. We might, for instance, bundle the case study with a teaching note and edited video as a module on "entrepreneurship in large companies" and distribute it to other business schools through Harvard Business School press. My colleagues and I would

be most grateful for your cooperation and would be happy to explore ways that you might increase your return on the time invested.

Please let me know if this opportunity might be of interest to you and your colleagues and how you would like to proceed. I very much look forward to hearing from you.

Don

Donald N. Sull South Hall 211 Harvard Business School Boston, MA USA 02163 dsull@hbs.edu telephone: 617 496 7179 fax: 617 495-3817 home page: <http://www.people.hbs.edu/dsull/bio.html> assistant: Maurie SuDock (617 495-6473)

Message 64 of 218

EPA Mercury Determination

| | |
|------------|--|
| Sender | jeffrey.keeler@enron.com |
| Recipients | ['steven.kean@enron.com', 'kevin.mcgowan@enron.com', 'daniel.reck@enron.com', 'michael.terraso@enron.com', 'ge...] |
| File | kean-s/calendar/untitled/6822. |

EPA's Mercury determination was released today. It can be accessed at www.epa.gov/mercury

It will likely take some time for EPA to develop these regulations -- the time frame is proposed rule by 2003 and final rule by 2004 -- but this is a significant step in that it now formally puts mercury on the radar screen for power generators, in terms of planning for emissions controls.

It is a positive step that EPA included in its determination an intent to develop "flexible" compliance measures -- i.e. trading -- for mercury. It also means that mercury will most likely be included in any efforts to develop "multi-pollutant" legislation in the next Congress.

Please call me if you have any questions.

THURSDAY, DEC. 14, 2000

EPA DECIDES MERCURY EMISSIONS FROM POWER PLANTS MUST BE REDUCED

To protect public health and the environment, EPA Administrator Carol M. Browner today announced that the Clinton Administration will require reductions, for the first time ever, of harmful mercury emissions from coal-fired power plants -- the largest source of such emissions in America. After extensive study, EPA determined mercury emissions from power plants pose significant hazards to public health and must be reduced. The agency will propose regulations by 2003 and issue final rules by 2004.

"Mercury from power plants settles over waterways, polluting rivers and lakes, and contaminating fish. Exposure to mercury poses real risks to public health, especially to children and developing fetuses," Browner said. "The greatest source of mercury emissions is power plants, and they have never been required to control these emissions before now. Today's decision to address this problem marks a major step forward in the Clinton Administration's ongoing efforts to protect public health and the environment."

Exposure to mercury has been associated with both neurological and developmental damage in humans. The developing fetus is the most sensitive to mercury's effects, which include damage to nervous system development. People are exposed to mercury primarily through eating fish that have been contaminated when mercury from power plants and other sources is deposited to water bodies. Once mercury enters water, biological processes can transform it into methylmercury, a highly toxic form of mercury that builds up in animal and human tissues. EPA recommends that subsistence fisherman, pregnant women, and others should always heed state fishing advisories.

Under the Clean Air Act, EPA is required to study toxic air pollution from power plants in order to determine if additional regulations are necessary in order to protect public health. EPA reported its study to Congress in February 1998. That

study concluded that of all toxic pollution examined, mercury posed the greatest concern to public health. An earlier study concluded that the largest source of human-made mercury pollution in America was coal-fired power plants.

After completion of the study, the Clean Air Act required EPA to determine whether to proceed with the development of regulations. Today, EPA is announcing that it has affirmatively decided that mercury air emissions from power plants should be regulated, because mercury poses the greatest hazards to public health.

EPA will propose regulations by December 2003 and will begin developing those regulations shortly. Industry, the public, and state, local and tribal governments will have an opportunity to participate in the process. Then, EPA will issue final regulations by December 2004.

The Clinton Administration already has taken a number of aggressive actions to reduce mercury air pollution, including significantly reducing allowable emissions from municipal waste combustors, medical waste incinerators and hazardous waste combustors. When fully implemented in 2005, the existing rules will reduce total human-caused mercury emissions by nearly 50 percent from 1990 levels nationwide.

On November 11, 2000 President Clinton called for a dramatic new approach to reduce air pollution from America's power plants. The President highlighted the benefits of adopting a combined strategy to address all of the major pollutants emitted by power plants, including mercury, sulfur dioxide, nitrogen oxides and carbon dioxide. A comprehensive strategy that addresses all of these pollutants together will provide more certainty and flexibility to industry, making it the most cost-effective way to control the emissions that threaten public health and the environment. As the Clean Air Act requires, the regulatory process to control mercury will proceed under current law. However, at the same time, the Administration encourages the Executive Branch and the Congress to work toward legislating a comprehensive four pollutant approach, which will benefit the public health, the environment, and the economy.

Today's decision will appear soon in the Federal Register, but is accessible immediately on EPA's mercury web site at: www.epa.gov/mercury Also, today EPA is posting, on its website, mercury emissions from every coal-fired power plant in the country. This is consistent with EPA's strong commitment to provide citizens with information about pollution in their communities.

Jeffrey Keeler Director, Environmental Strategies Enron 1775 Eye Street, N.W. Suite 800 Washington, D.C. 20006 (202) 466-9157 - phone (202) 331-4717 - fax (888) 502-6856 or 5026856@skytel.com - pager

Message 65 of 218

Reset Password per your request

| | |
|------------|---|
| Sender | kkenyan@intellibridge.com |
| Recipients | ['hbean@intellibridge.com', 'skean@enron.com', 'david@intellibridge.com'] |
| File | kean-s/internet_sites/99. |

Steve:

Per your request, we've reset your password to "password". Your user id to Enron Forum remains your email address which we have as 'skean@enron.com'. Anecdotes from participants and the evaluation forms we have received thus far show that Enron's initiative in hosting 'US Energy Policy at a Crossroad' was very well received. Enjoyed working with you at the October event and look forward to the next one. Let me know if you need anything further.

Kind regards,

Kelley R. Kenyan Senior Vice President, Corporate Programs Intellibridge Corporation 3307 M. St. NW, Suite 200 Washington, DC 20007 Tel: 202 298 6300 x256 Fax: 202 298 6276

Message 66 of 218

Re: Conf Call on Mon., May 14

| | |
|------------|---------------------------------|
| Sender | sryan@aesc.com |
| Recipients | [steven.j.kean@enron.com] |
| File | kean-s/archiving/untitled/4920. |

Hi Steve -

I won't be able to make the call on Monday.

I'd be happy to volunteer not to be on the negotiating team. It sounds like there's no shortage of people who want to be on the committee.

My big issue is default service. This industry needs real customers and the only way to get real customers is to get rid of default service. Starting with big customers, along the lines of the core/non-core gas model, is the best way to go. The only way to sell this, however, is to get the big customers to agree it's a good idea.

J. Stuart Ryan AES Pacific Suite 3300 100 Pine Street San Francisco, CA 94111

office: 415 395 7887 mobile: 415 608 0080

Message 67 of 218

Trading pattern Affidavit Filed in SE RTO Dockets

| | |
|------------|--|
| Sender | l.nicolay@enron.com |
| Recipients | [janel.guerrero@enron.com', 'rogers.herndon@enron.com', 'm..presto@enron.com', 'd..steffes@enron.com', 'lloyd... |
| File | kean-s/rto/132. |

Attached is the affidavit filed in the SE RTO to show that natural trading patterns encompass the entire SE, including FL (SPP in Midwest or SE).

-----Original Message-----

From: Andrea Settanni Sent: Mon 8/27/2001 1:55 PM To: Nicolay, Christi L.; jcashin@epsa.org; jcardell@tca-us.com Cc: Cindy Engelbrecht Subject: Affidavit Filed in SE RTO Dockets - As Filed Versions

Attached is the motion to supplement the record, affidavit of Dr. Cardell, and exhibits that were filed in the SE RTO dockets on Friday, August 24, 2001.

Andrea M. Settanni Bracewell & Patterson, L.L.P. 2000 K Street, N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-7631 (phone) (202) 857-2128 (fax) asettanni@bracepatt.com

Message 68 of 218

may we meet with you on Friday?

| | |
|------------|---------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [maureen.mcvicker@enron.com] |
| File | kean-s/discussion_threads/1835. |

calendar and respond ----- Forwarded by Steven J Kean/NA/Enron on 12/12/2000 07:06 PM -----

Catherine McKalip-Thompson@ENRON COMMUNICATIONS 12/12/2000 03:08 PM

To: Steven J Kean/NA/Enron@ENRON cc: Lauren Goldblatt/NY/ECT@ECT, Kelly Kimberly/Enron Communications@Enron Communications, Maureen McVicker/NA/Enron@ENRON Subject: may we meet with you on Friday?

Steve, To follow up from Kelly's presentation to the Board today on Corporate Responsibility, we would like to meet with you to get answers to a few questions of protocol and future plans. Would you have any time this Friday morning to meet? Thanks, Catherine

Catherine McKalip-Thompson Manager, Environmental Responsibility Enron Corp. 101 California Street, Suite 1950 San Francisco, CA 94111 Tel: 415.782.7842 Fax: 415.782.7854

Message 69 of 218

FW:

| | |
|-------------------|-----------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['john.sherriff@enron.com'] |
| File | kean-s/sent_items/94. |

I believe I sent this to you earlier. Pankaj is a Harvard Bus School professor who sits on our advisory council. He is putting together a program (in Barcelona, I believe) and would like an Enron executive to present. I said I would try to find someone from Enron Europe and gave him your name. Would you mind getting in touch with Pankaj?

-----Original Message-----

From: Pankaj Ghemawat [mailto:pghemawat@hbs.edu] Sent: Saturday, September 29, 2001 2:42 AM To: Kean, Steven J. Subject:

Steve,

Any luck finding anybody from Enron to come and talk on October 18 at the HBS/IESE executive program I mentioned to you? Thanks for your help.

Pankaj Pankaj Ghemawat Tiampo Professor of Business Administration Morgan 227 Harvard Business School Soldiers Field Boston MA 02163, USA

Tel: 617-495-6270 Fax: 617-495-0355

Message 70 of 218

RE: Future Continental Golfing events,

| | |
|-------------------|--|
| Sender | j..kean@enron.com |
| Recipients | ['lagler@enron.com', 'mlagle@coair.com'] |
| File | kean-s/sent_items/580. |

Thanks for the inquiry; I appreciate the interest very much. But I am not interested in participating.

-----Original Message-----

From: Lagler, Mark [mailto:mlagle@coair.com] Sent: Thursday, November 15, 2001 10:57 AM To: Kean, Steven J. Subject: Future Continental Golfing events,

Mr. Kean:

I am contacting you on behalf of Susan Henson at Continental Airlines. We are attempting to put in place a data base for future golfing events. If you would please provide us with your Golfing handicap and Shirt size. If you have any questions, please do not hesitate in contacting me at the number below.

Regards,

Mark Lagler Manager, Sales and Service Continental Airlines, Inc. National Corporate Sales 1600 Smith Street, 16th Flr., HQSNC Houston, TX 77002 USA Tel.: 713-324-2060 Fax.: 713-324-5273 email: mlagle@coair.com <<Mark Lagler (E-mail).vcf>>

Message 71 of 218

Re: The Nixon Center, December 6 Formal Dinner Honoring AIG's Hank

| | |
|------------|--------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [joe.hillings@enron.com] |
| File | kean-s/sent/469. |

Did Ken ask us to sponsor it or just consider it? I'm wondering what if anything we gain from such an investment, but I have an open mind on it.

Joe Hillings 10/30/2000 08:35 AM

To: Steven J Kean/NA/Enron@Enron cc: Carolyn Cooney/Corp/Enron@ENRON, Lora Sullivan/Corp/Enron@ENRON
Subject: The Nixon Center, December 6 Formal Dinner Honoring AIG's Hank Greenbert, Wash. D.C.

Joe Hillings Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006 202-466-9145 202-828-3372 (fax) email: jhillin@enron.com

Steve: Reference is made to the letter Ken Lay forwarded to you asking Enron to support the dinner at which The Nixon Center will present to AIG CEO Hank Greenbert their annual architect of Peace Award. I would recommend that Enron sponsor a table at the rate of \$10,000. Linda and I could co-host the table and invite others as our guests. Please review and advise. Joe

Message 72 of 218

Re: Conf Call on Mon., May 14

| | |
|------------|------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [maureen.mcvicker@enron.com] |
| File | kean-s/all_documents/4866. |

----- Forwarded by Steven J Kean/NA/Enron on 05/16/2001

02:32 AM -----

"Stuart Ryan" <sryan@aesc.com> on 05/11/2001 06:10:19 PM To: Steven.J.Kean@enron.com cc:

Subject: Re: Conf Call on Mon., May 14

Hi Steve -

I won't be able to make the call on Monday.

I'd be happy to volunteer not to be on the negotiating team. It sounds like there's no shortage of people who want to be on the committee.

My big issue is default service. This industry needs real customers and the only way to get real customers is to get rid of default service. Starting with big customers, along the lines of the core/non-core gas model, is the best way to go. The only way to sell this, however, is to get the big customers to agree it's a good idea.

J. Stuart Ryan AES Pacific Suite 3300 100 Pine Street San Francisco, CA 94111

office: 415 395 7887 mobile: 415 608 0080

Message 73 of 218

FW: Good Morning

| | |
|------------|--|
| Sender | j..kean@enron.com |
| Recipients | ['cindy.olson@enron.com', 'david.oxley@enron.com'] |
| File | kean-s/sent_items/2. |

fyi ... anybody we can recommend? -----Original Message----- From: Mike Nielsen [mailto:miken@thorit.com] Sent: Tuesday, December 18, 2001 3:46 PM To: Kean, Steven J. Subject: Good Morning

Good Morning,

My name is Mike Nielsen and I work for a Consulting firm in Phoenix Arizona called Thor, Inc. I have a favor to ask. I have a client in Phoenix who is looking for a Forward Trader(Dealing with Electricity, Natural Gas, and SO2 trading). Extremely stable department, presently a dozen people and have not had any turnover in 5+ years. Position is full-time with a very nice base 20% bonus and one of the best benefits packages I have ever seen.

Do you know who I might contact at Enron if any of the people who were recently laid off, had this skill set?

Thanks for your help and have a great day, Mike Nielsen Senior Associate Thor, Inc. 3030 N Central #1408 Phoenix, AZ 85012 (p)602-230-1035 (f)602-230-1066

Message 74 of 218

Summary of External Subcommittee Meetings

| | |
|------------|--|
| Sender | catherine.mckalip-thompson@enron.com |
| Recipients | ['kelly.kimberly@enron.com', 'jimmy.mogal@enron.com', 'mark.schroeder@enron.com', 'jean.mrha@enron.com'] |
| File | kean-s/corporate_responsibility/2. |

Attached is a summary of the last two meetings of the External Accountability Subcommittee meetings. Included is the draft work plan - please review the work plan and convey any comments to Jean and copy me. Also, you have committed to giving me your stakeholder lists by tomorrow, Friday 3/30 for the Stakeholder Perception survey. If you have any questions or difficulties with this, please call me.

Also, we have added a new section on the EHS/Corporate Responsibility intranet site with "news and information" on corporate responsibility-related topics. The home page is: <http://ehs.corp.enron.com> and once you pass the animation, etc. you can click on "Corporate Responsibility" for specific information and materials. Suggestions for content is always welcome!

Thank you for your participation and efforts, Catherine

Catherine McKalip-Thompson Manager, Environmental Responsibility Enron Corp. 101 California Street, Suite 1950 San Francisco, CA 94111 Tel: 415.782.7842 Fax: 415.782.7854

Message 75 of 218

Wind Disclosure Schedule Information

| | |
|-------------------|--|
| Sender | preilly@velaw.com |
| Recipients | ['lance.schuler-legal@enron.com', 'jdilg@velaw.com', 'sbarber@velaw.com', 'wjoor@velaw.com', 'william.e.@enron...] |
| File | kean-s/calendar/untitled/889. |

Attached are electronic versions of wind's draft Schedules 5.08(a), 5.11(b) and 7.02(d). Note: these will be consolidated with the rest of wind's disclosure schedules, which were distributed to you last night.

Patricia F. Reilly Vinson & Elkins L.L.P. 3700 Trammell Crow Center 2001 Ross Avenue Dallas, Texas 75201 Telephone: (214) 220-7801 Facsimile: (214) 999-7801 preilly@velaw.com

+++++

CONFIDENTIALITY NOTICE

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- Dallas_394757_2.DOC

Message 76 of 218

FW: ALLIANCE PROTEST AS FILED 9/17/2001 - RT01-88-005, ET. AL.

| | |
|-------------------|--|
| Sender | donna.fulton@enron.com |
| Recipients | ['daniel.allegretti@enron.com', 'susan.lindberg@enron.com', 'j..kean@enron.com', 'richard.shapiro@enron.com', ...] |
| File | kean-s/rto/163. |

This is the pleading that we filed yesterday in the Midwest proceedings - both Alliance RTO and Midwest ISO as well as National Grid. We ask the FERC to take immediate action giving specific guidance on the RTO structure based on the SE mediation report by the ALJ (governance, stakeholder process and congestion management using LMP). After such guidance we suggest that the order require a collaborative process of all parties to work out the details.

-----Original Message-----

From: Andrea Settanni [mailto:asettanni@bracepatt.com] Sent: Monday, September 17, 2001 6:58 PM To: Nicolay, Christi L.; Fulton, Donna; Stroup, Kerry; Noske, Linda J.; Roan, Michael; Novosel, Sarah Cc: Steffes, James D. Subject: ALLIANCE PROTEST AS FILED 9/17/2001 - RT01-88-005, ET. AL.

Attached is the protest as filed (minus any spacing errors, which occurred only due to the conversion to Word to send to you).

Andrea M. Settanni Bracewell & Patterson, L.L.P. 2000 K Street, N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-7631 (phone) (202) 857-2128 (fax) asettanni@bracepatt.com

Message 77 of 218

Your Memo Re Working Group Progress

| | |
|------------|--|
| Sender | joe.hillings@enron.com |
| Recipients | ['steven.kean@enron.com', 'maureen.mcvicker@enron.com', 'linda.robertson@enron.com'] |
| File | kean-s/calendar/untitled/1999. |

Joe Hillings Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006 202-466-9145 202-828-3372 (fax) email: jhillin@enron.com

Steve: We had an outstanding kidk off meeting in Houston and then two additional meetings of declining participation. We have copied the Enron WTO Working Group on various e-mails but other than Geneen Migden and of course Rick Shapiro in his supervisory role have had no input except from Chris and Steve. Steve has been communicating directly with EBS on the growing e-commerce and audio visual aspects of the WTO services negotiation launch which we are anticipating in the spring. We now have concerns in the financial services area (trading) which may be emerging. I copied our Washington group this morning on a confidential ISAC 13 document I received yesterday which Bob Fisher recommended that we examine closely regarding financial services.

I think a WTO task force continues to have merit but perhaps should be staffed by people from EBS, Enron's financial services people, perhaps a Tom Briggs and chaired by Linda if you see the growing aspects of our work on WTO services. We also need the help of our trade professional Bob Fisher.

Message 78 of 218

FW: Protocol for Handling Suspicious Packages

| | |
|------------|--|
| Sender | marchris.robinson@enron.com |
| Recipients | ['steve.montovano@enron.com', 'j..kean@enron.com'] |
| File | kean-s/deleted_items/138. |

Steve:

If we don't have a policy on this issue, we may want to institute one.

Marchris -----Original Message----- From: Sheryl Robinson [mailto:slrobinson@krollworldwide.com] Sent: Tuesday, October 16, 2001 2:55 PM To: Robinson, Marchris Subject: Protocol for Handling Suspicious Packages

Dear Clients and Friends:

In the wake of the incidents of Anthrax exposure in Florida, New York and Nevada, it is incumbent on all of us to take whatever measures we can to protect our employees and to alert the appropriate authorities when warranted.

In Kroll's efforts to guide our friends and clients through these evolving events, we are attaching a protocol developed by one of our offices for identifying and handling suspicious packages. Please feel free to forward this protocol to any of your own colleagues, clients and friends.

If there is anything we can do to assist you, please do not hesitate to contact me.

Sincerely,

Sheryl L. Robinson Managing Director Kroll Associates 1000 Vermont Avenue, N.W. Washington, D.C. 20005 tel: 202-371-1651 fax: 202-659-9546 slrobinson@krollworldwide.com <mailto:slrobinson@krollworldwide.com> www.krollworldwide.com <http://www.krollworldwide.com>

Message 79 of 218

Re: Polaroid agreement

| | |
|------------|------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['kelly.kimberly@enron.com'] |
| File | kean-s/all_documents/1550. |

sounds good, but i couldn't open the file. could you send hard copy

Kelly Kimberly@ENRON COMMUNICATIONS 10/10/2000 11:41 PM

To: Michael Terraso/OTS/Enron@ENRON, Lauren Goldblatt/NY/ECT@ECT, Steven J Kean/NA/Enron@ENRON cc:

Subject: Polaroid agreement

Wow! We are making a little progress, it looks like!

(Steve, when Mike and I met with Francis for the first time he told us we had to agree that we'd never use WWF's name related to this initiative if they participated with EES)

----- Forwarded by Kelly Kimberly/Enron Communications on 10/10/00 11:26 PM

GRANT@wwfus.org 10/10/00 07:59 AM

To: kkimber@ei.enron.com, Michael.Terraso@enron.com cc: (bcc: Kelly Kimberly/Enron Communications) Subject: Polaroid agreement

Thought you might be interested in the latest climate savers partner. There is a press conference with Senator Kerry today in Boston announcing the deal. We added in Enron. F.

<<WWF Climate Savers Press Release.doc>>

Francis A. Grant-Suttie Director, Private Sector Initiatives World Wildlife Fund 1250 Twenty-Fourth St., NW Washington, DC 20037-1132 phone: (202) 778-9718 fax: (202) 861-8378 e-mail: francis.grant-suttie@wwfus.org

Message 80 of 218

Re: Ashcroft Senate Campaign Request

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['joe.hillings@enron.com'] |
| File | kean-s/calendar/untitled/1614. |

If you can cover it I would say yes. It's a key race and we have been close to Ashcroft for years. Let's make sure he knows we gave it.... we need to follow up with him. Last time I talked to him he basically recited the utilities' position on electric restructuring. Let's make it clear that we want to talk right after the election.

Joe Hillings 10/16/2000 04:41 PM

To: Steven J Kean/NA/Enron@Enron cc: Richard Shapiro/NA/Enron@Enron, Cynthia Sandherr/Corp/Enron@ENRON, Carolyn Cooney/Corp/Enron@ENRON Subject: Ashcroft Senate Campaign Request

Joe Hillings Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006 202-466-9145 202-828-3372 (fax) email: jhillin@enron.com

We have received a request from the Ashcroft Senate campaign for \$10,000 in soft money. This is the race where Governor Carnahan is the challenger. Enron PAC has contributed \$10,000 and Enron has also contributed \$15,000 soft money in this campaign to Senator Ashcroft. Ken Lay has been personally interested in the Ashcroft campaign. Our polling information is that Ashcroft is currently leading 43 to 38 with an undecided of 19 percent.

Do we want to make a further soft money contriubtion of \$10,000?

Joe

Message 81 of 218

RE: Enron's List for Fortune Survey

| | |
|------------|--------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['mary.clark@enron.com'] |
| File | kean-s/sent_items/520. |

Please make sure these individuals know that they have been designated.

-----Original Message-----

From: Clark, Mary Sent: Tuesday, October 30, 2001 3:35 PM To: 'tiffany_mortellito@haygroup.com' Cc: Kean, Steven J.; Rieker, Paula Subject: Enron's List for Fortune Survey

Tiffany, this the list of executives and directors who should receive a copy of Fortune's Most Admired Companies survey. To assure that these individuals get the survey, we ask that you send all the surveys to us and we will distribute them. This is especially important when dealing with our board members. Call me if you have any questions, and thanks for working with us on this.

My address is: Mary Clark Director, Internal Communications Enron 1400 Smith Street, EB4704C Houston, Texas 77002

Enron Executives Richard A. Causey David Delainey James V. Derrick Janet R. Dietrich Mark A. Frevert Stan Horton Steven J. Kean Mark E. Koenig Kenneth L. Lay L. Greg Whalley

Board Members Norman P. Blake, Jr. Wendy L. Gramm John H. Duncan Charles A. LeMaistre Robert K. Jaedicke Frank Savage Herbert S. Winokur, Jr.

Mary E. Clark Director, Internal Communications Phone: 713-853-7325 Fax: 713-853-6790 e-mail: mary.clark@enron.com

Message 82 of 218

DATE CONFIRMATION - Emissions Strategy Meeting....

| | |
|------------|---|
| Sender | lisa.jacobson@enron.com |
| Recipients | ['lisa.jacobson@enron.com', 'kevin.mcgowan@enron.com', 'daniel.reck@enron.com'] |
| File | kean-s/archiving/untitled/4982. |

DATE CONFIRMATION - May 18 (9:30 am - 3:00 pm)

The Environmental Strategies Group will convene an "Emissions Strategy Meeting" on Friday, May 18 to discuss global emissions issues -- such as air quality regulation, climate change and U.S. multipollutant legislation -- and explore some of the potential business opportunities for Enron commercial groups.

WHEN: Friday, May 18 TIME: 9:30 am - 3:00 pm - lunch will be provided WHERE: Enron Building (Room TBC)

A video conference is being organized to enable broad participation from the London office.

The primary objectives of the session are to 1) provide you with the latest information on emissions regulation, markets, and Enron's advocacy efforts worldwide and 2) receive feedback on your commercial interests and input on policy options so that we may develop the best business and policy strategies for Enron in both the short and long term. We invite you or a member of your group to participate in this important strategic discussion.

An agenda is forthcoming. If you have any questions or suggestions in advance of the meeting, please do not hesitate to contact me or Jeff Keeler.

We look forward to your participation.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 83 of 218

Compulsory Sales

| | |
|------------|--|
| Sender | james.steffes@enron.com |
| Recipients | ['travis.mccullough@enron.com', 'vicki.sharp@enron.com'] |
| File | kean-s/calendar/untitled/7174. |

FYI. Attached please find a legal cite that indicates that the federal government would be the guarantor of the sales under the DOE order. I have no idea if this is correct.

Jim

----- Forwarded by James D Steffes/NA/Enron on 01/24/2001 11:14 AM -----

Rob Bradley 01/24/2001 11:05 AM

To: James D Steffes/NA/Enron@Enron cc: Subject: Compulsory Sales

FYI--legal cite for the right lawyer.

- Rob

----- Forwarded by Rob Bradley/Corp/Enron on 01/24/2001 11:04 AM -----

Jim DeLong <JDeLong@cei.org> Sent by: owner-fme-roundtable@perc.org 01/24/2001 10:52 AM

To: "'Tollroads@aol.com'" <Tollroads@aol.com>, lynns@reason.org, fme-roundtable@perc.org cc: Subject: Compulsory Sales

PSamuels wrote: "It seems outrageous that anyone in this country can be commanded to supply a product against their will, against their better commercial judgment, to utilities that have no known way to pay their bills etc. What is the constitutional basis for such orders, I wonder?"

I do not doubt that the government can order the utilities to keep supplying electricity, but I think the federal government is now the guarantor of payment. See the Supreme Court's 1996 decision in the Winstar case.

James V. DeLong Senior Fellow -- Project on Technology & Innovation Competitive Enterprise Institute 1001 Connecticut Ave., NW Washington, DC 20036 (202) 331-1010 TEL (202) 331-0640 FAX jdelong@cei.org www.cei.org

Message 84 of 218

Bush Administration and Climate Change...

| | |
|------------|--|
| Sender | lisa.jacobson@enron.com |
| Recipients | ['linda.robertson@enron.com', 'pat.shortridge@enron.com', 'michael.terraso@enron.com', 'jeff.keeler@enron.com']... |
| File | kean-s/greenhouse_gas_business/7. |

I met with a contact at the Department of State Global Affairs division today. While much was up in the air given last week's events, here is some information on where things stand for now:

1) The U.N. and Morocco intend to hold the next set of climate change negotiations (COP-7) as planned in late October. Under Secretary of State for Global Affairs Paula Dobriansky is scheduled to attend, but that could change.

2) If the negotiations go forward, the U.S. will not seek to delay action by the other nations, but will engage to protect U.S. interests (consistent with their approach in Bonn in July);

3) Jim Connaughton, head of the White House's Counsel on Environmental Quality, has taken the staff lead on developing the Bush Administration's alternative. While Connaughton has expressed confidence that he can put a plan together (timeline uncertain -- but aiming for COP-7), some feel that is ambitious given the political divide on this issue within the Administration, and especially given the current focus on security and a response to the terrorist attacks last week. With regard to COP-7 timing, I would agree on both counts.

I will work with Pat and Jeff on follow-up with CEQ to get up to speed on their current thinking and offer our expertise as appropriate.

Please let me know if you have any questions or comments.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 85 of 218

Re: Sun Microsystems

| | |
|------------|--|
| Sender | jeff.dasovich@enron.com |
| Recipients | ['karen.denne@enron.com', 'janel.guerrero@enron.com', 'jkradin@marathon-com.com', 'james.steffes@enron.com'] |
| File | kean-s/discussion_threads/6450. |

FYI. Lauren Ipsen at Cisco told me that she forwarded our package of letters, etc. to the AEA.

Best, Jeff

Karen Denne 04/04/2001 05:17 PM

To: Janel Guerrero/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron, jkradin@marathon-com.com, syamane@marathon-com.com, Steven J Kean/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron cc: Karen Denne/Corp/Enron@ENRON Subject: Sun Microsystems

Ken Lay put a call in today to Scott McNealy. His office called back to find out what specific bill included direct access. When I called back, they put me in touch with Mavis Toscano, who's in Sun Microsystems' state and local government affairs office. She's Scott's point person on public policy, and she's been working on the energy issue. Mavis had done some checking and no one had heard anything about direct access.

Sun is active in three main trade associations: the Chamber, the American Electronics Association (AEA) and Technet. None of those organizations said their members were asking for direct access, but Mavis promised to put calls in to them and get direct access on the radar screen. Although she said they're not inclined to send letters, Mavis said she'd make some calls into the legislators, specifically Bowen.

Contact info:

Mavis Toscano 901 San Antonio Road MS PAL 01-554 Palo Alto, CA 94303 650-336-7115 650-336-0835 - fax
mavis.toscano@sun.com

Message 86 of 218

| The Barton Bill | |
|-----------------|--|
| Sender | carin.nersesian@enron.com |
| Recipients | ['steven.kean@enron.com', 'maureen.mcvicker@enron.com', 'lora.sullivan@enron.com', 'tom.briggs@enron.com', 'li...] |
| File | kean-s/calendar/untitled/8279. |

Steve,

Here is a summary and copy of the Congressman Barton's Electricity Emergency Relief bill per your request.

The Republicans on the House Energy and Air Quality Subcommittee, led by Congressman Barton, have drafted legislation containing short term, emergency measures to alleviate the crises in the Western States comprising the Western Systems Coordinating Council. Such measures include a mandatory connection policy for distributed generation, mobilizing the Federal Emergency Management Agency (FEMA) and compelling the formation of a Western region RTO.

Barton plans introduce the bill at the end of April. The bill is intended as a political response to Democrats and the State of California. Little in the bill could be implemented by this summer and few of the provisions would have any beneficial impact on supply or demand. Thus, there is an open question within the White House whether pursuit of the Barton bill is the correct political tactic. The belief among the industry is that it is going nowhere and it has already served its limited purpose of responding to Democratic demands for action. Although a final decision on its inclusion has not been made, Enron has been initially successful in including its demand buy down proposal in the Barton bill.

- Electricity Emergency Relief Act.PDF - section by section introduced.doc

Carin Nersesian Legislative Coordinator Enron Corp. 1775 Eye St. NW, Suite 800 Washington, DC 20006 202-466-9144 (ph.) 202-828-3372 (fax)

Message 87 of 218

| An Energy Company That Knows How to Deal With Government | |
|--|----------------------------------|
| Sender | mark.palmer@enron.com |
| Recipients | ['=20', 'steven.kean@enron.com'] |
| File | kean-s/calendar/untitled/12781. |

You're mentioned, glowingly, in this. It works on real player just fine.

Mark ----- Forwarded by Mark Palmer/Corp/Enron on 06/12/2001 01:18 PM -----

=09James D Steffes =0906/12/2001 01:00 PM =09=09=20 =09=09 To: Mark Palmer/Corp/Enron@ENRON, Karen Denne/Corp/Enron@ENRON =09=09 cc:=20 =09=09 Subject: An Energy Company That Knows How to Deal With Government

FYI.

Jim ----- Forwarded by James D Steffes/NA/Enron on 06/12/2001= =20 12:59 PM -----

"Jerry Bowyer" <jerrybowyer@home.com> on 06/12/2001 11:14:09 AM To: <jerrybowyer@home.com> cc: =20

Subject: An Energy Company That Knows How to Deal With Government

Harvard Business School=01,s Michael Watkins says that among large companie= s,=20 Enron is the best at dealing with government, on WPTT radio. =20 The interview can be heard by clicking on one of the links below. =20 Winning the Influence Game: <http://www.jerrybowyer.com/audio.php?id=3D145> f= or=20 RealPlayer, 5=20 minutes. Winning the Influence Game: <http://www.jerrybowyer.com/audio.php?id=3D146> f= or=20 Windows Media Player =20 Feel free to share

this information with anyone on your list, or anyone who= =20 may be interested. =20 To listen to other Jerry Bowyer interviews from The Jerry Bowyer Program,= =20 Pennsylvania Newsmakers or Focus on the Issues visit=20 www.jerrybowyer.com/audio.php.=20 =20 Thanks for listening. =20 =20 Jerry Bowyer The Jerry Bowyer Program on WPTT radio in Pittsburgh, 1360am Pennsylvania Newsmakers around the state on broadcast and cable television Focus on the Issues on Cornerstone Television 412.771.2282 phone 412.771.2363 fax jerrybowyer@home.com=20 =20

Message 88 of 218

Execution Excellence - CatalystOne

| | |
|------------|--|
| Sender | bmiller@catalystone.com |
| Recipients | ['user.baxter@enron.com', 'j..kean@enron.com'] |
| File | kean-s/deleted_items/128. |

Cliff,

In reviewing recent news tied to Enron it struck me that CatalystOne may have some relevancy to your role as Chief Strategic Officer.

In brief, CatalystOne has a unique "Execution Excellence" (e2) solution that enables organizations to implement and manage their strategic initiatives through a web based platform. Our e2 portal helps corporations operate more efficiently by not only providing real-time visibility across all business units, but also enabling them to define and link processes and objectives down to the individual level. e2 is an enterprise-wide solution that can: drive alignment across operating units; enhance and foster accountability; create a culture of collaboration via cross-functional communications; increase visibility to mission critical strategic objectives; and drastically improve the execution speed of projects.

We're confident we can deliver value immediately and are prepared to offer you our solution gratis for 60 days. Large organizations tend to spend millions of dollars on IT without any true realizable benefits, they tend to ignore those strategic solutions that can be of greatest benefit to their employees, customers, and shareholders - CatalystOne will get you on the road to Execution Excellence.

I would like to give you a personal introduction to Execution Excellence and detail how it can be of great value to Enron. Please reach me directly in Washington DC on (202) 352-6960.

Thank you in advance for your reply.

Very best,

Brooks

Brooks A. Miller Director CatalystOne, Inc. 225 Franklin Street, Suite 2600 Boston, MA 02110 Tel 202.352.6960
bmiller@catalystone.com

_____ www.catalystone.com _____

Message 89 of 218

Story on American Companies in Europe

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['jackie.gentle@enron.com'] |
| File | kean-s/discussion_threads/1666. |

If we are interested in doing this, the interviewee should probably be from EEL ----- Forwarded by Steven J Kean/NA/Enron on 11/16/2000 06:10 AM -----

Christian Schmollinger <cschmollinger@energyintel.com> 11/14/2000 10:00 AM

To: "skean@enron.com" <skean@enron.com> cc: Subject: Story on American Companies in Europe

Dear Mr. Kean,

Hello, I am Christian Schmollinger, a reporter with Natural Gas Week. I'm not sure if you remember but we met at the press briefing that Mr. Skilling held at the National Press Building at the end of the summer here in Washington to discuss the California electricity markets. I am contacting you today in the hopes that I might be able to speak with you or someone else from Enron for a story I am working on for this week's issue concerning American natural gas marketers moving into Europe. I was hoping I could interview someone with the company before Thursday so that I could write the story before my Friday deadline. For the story, I am basically looking to do background, i.e. How is the European market different from the American market? Will the network business model translate well there? What kind of regulatory pitfalls do the companies' face? Will a liquid natural gas market develop in Europe? If so, what kind of timeline are we talking about? What is Enron's position and take on the whole European market? I would appreciate any time or guidance you might be able to give me on this subject. If you have any questions or comments please don't hesitate to call. Once again, thanks for your time.

Sincerely, Christian Schmollinger Staff Reporter, Natural Gas Week 1401 New York Ave., NW Suite 500 Washington, DC 20005 Ph. 202-662-0726 Fax 202-347-8089

Message 90 of 218

Greenhouse Gas Market and Pricing.....

| | |
|------------|--|
| Sender | lisa.jacobson@enron.com |
| Recipients | ['jeff.keeler@enron.com', 'j..kean@enron.com', 'michael.terraso@enron.com', 'linda.robertson@enron.com'] |
| File | kean-s/environmental_issues/211. |

I have compiled the following memo for commercial and regulatory groups to provide information on the potential international greenhouse gas emissions trading market. It also discusses factors that impact current prices for greenhouse gas emissions transactions and identifies future market influences.

Given current regulatory uncertainty and the patchwork of greenhouse gas emissions initiatives, a liquid market with a clearly defined commodity is likely several years (or more) away. However, given the growing interest in compliance hedging, opportunities to package and sell verifiable greenhouse gas emissions reductions could increase in the near future. Further, with the launch of the U.K. emissions trading program and rule development for the EU trading program expected next year, it is likely that the definition of a verifiable greenhouse gas emission credit will become more clear.

Given the range and varying circumstances under which current greenhouse gas emissions transactions are occurring, Enron business groups should begin to capture (define ownership and package) internal greenhouse gas reductions, look for opportunities to integrate greenhouse gas emissions concerns into existing risk management products and, Enron assets that are significant greenhouse gas emissions sources, should assess and manage exposures.

Environmental Strategies Group will convene a commercially oriented greenhouse gas strategy discussion on Tuesday morning, November 20 (EB 8C1) to explore these opportunities across business groups.

Please contact me with questions, comments, or suggestions for further analysis.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 91 of 218

| Enron cases | |
|-------------|--|
| Sender | christie.patrick@enron.com |
| Recipients | ['john.sherriff@enron.com', 'steven.kean@enron.com', 'lauren.urquhart@enron.com', 'mark.palmer@enron.com'] |
| File | kean-s/all_documents/5619. |

Hi Lauren and John!

Timely request on your part for the "final" draft of the Harvard cases. I just finished working with the authors (Chris Bartlett and Meg Wozny) this past weekend, editing the last drafts. _Please see the attachments below.

The Enron OnLine Case will be taught by HBS Professor Don Sull on April 26th, to 5 different sections of Harvard MBA students. I met with Don last weekend. We discussed having an Enron rep in each class to hear the discussions and offer perspective , as may be requested.

The classes will be taught in the morning. Following, Jeff Skilling will address ALL sections over the lunch hour. In essence, it's "Enron day" at Harvard Business School.

John, any chance you'll be in the States to participate?

Thanks for your participation!

--Christie. ----- Forwarded by Christie Patrick/HOU/ECT on 03/08/2001 07:46 AM -----

Meg Wozny <mwozny@hbs.edu> 03/07/2001 11:06 AM

To: Christie.Patrick@enron.com cc: Subject: Enron cases

Hi Christie,

I'm enclosing the two Enron case drafts, which incorporate your suggestions. Sorry it took me so long, but we were totally snowed in in Wellesley. (This morning, my neighbor took pity on me and came over with his snow blower and cleared my driveway!) I hope the final section in the general case, Passing the Baton, meets your approval.

I wanted to thank you for all your help with this project. At some point, I'll send you our multimedia case, with links to Ken, Jeff and Louise video clips, for your approval.

Hope you were able get out of New England before the storm hit. Best, Meg

- 301064.doc - 301085.doc

Meg Glinska Wozny Research Associate Harvard Business School Gallatin Lounge C Soldiers Field Boston, MA 02163

voicemail: (617) 496-0802 facsimile: (617) 496-6943 email: mwozny@hbs.edu

Message 92 of 218

| Electricity Deregulation Report Card | |
|--------------------------------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['maureen.mcvicker@enron.com'] |
| File | kean-s/sent/357. |

I think I confirmed for this already, but could you check and put on my calendar and put this in the meeting file. -----

Forwarded by Steven J Kean/NA/Enron on 09/27/2000 05:36 PM -----

Sherri Sera 09/05/2000 10:07 AM

To: Steven J Kean/NA/Enron@Enron cc: Ginger Dernehl/NA/Enron@Enron Subject: Electricity Deregulation Report Card

Steve, I spoke with Ginger about your availability to deliver a keynote address at a Maguire Energy Institute conference on "Electricity Deregulation Report Card" on November 1. Jeff is on this board, and they asked us if we could enlist Ken Lay to deliver this keynote. Ken is scheduled to be at a board meeting in Washington this date, so is not available. I suggested that you may be a suitable replacement, and they are very interested in the prospect of your participation.

The link below is to the website for this conference, and the keynote would be delivered from 1:00p-1:30p, immediately following the luncheon. Please let me know if you are available and willing to deliver this keynote; I would appreciate a response today if possible.

Thanks, SRS ----- Forwarded by Sherri Sera/Corp/Enron on 09/05/2000 09:49 AM -----

"Mesch, Allen" <amesch@mail.cox.smu.edu> on 09/05/2000 09:34:25 AM To: "Jeffrey K. Skilling (E-mail)" <jskilli@enron.com> cc:

Subject: Electricity Deregulation Report Card

Sherri,

The link to the Maguire Energy Institute's "Electricity Deregulation Report Card" is
<http://maguireenergy.cox.smu.edu/programs/fallconf.html>

Thanks for your help.

Allen Mesch Director Maguire Energy Institute Edwin L. Cox School of Business Southern Methodist University PO Box 750333 Dallas, TX 75275-0333

Phone: 214-768-3692 Fax: 214-768-4099 E-mail: amesch@mail.cox.smu.edu Internet Site:
<http://maguireenergy.cox.smu.edu>

Message 93 of 218

Re: Project Granite - Status of DOJ Investigation

| | |
|------------|--|
| Sender | richard.shapiro@enron.com |
| Recipients | ['steven.kean@enron.com', 'sarah.novosel@enron.com'] |
| File | kean-s/calendar/untitled/565. |

Good news.

Sarah Novosel@ECT 05/01/2000 10:39 AM To: Richard Shapiro/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON cc:
Subject: Re: Project Granite - Status of DOJ Investigation

Rick and Joe:

Please see the email below from our DOJ counsel at V&E. Hopefully the DOJ matter will be settled by mid-week. I'll keep you both posted.

Sarah

"Imus, Neil W." <nimus@velaw.com> on 05/01/2000 09:54:44 AM To: "Ann E. Ballard (E-mail)" <aballar@enron.com>, "Sarah Novosel (E-mail)" <snovose@enron.com>, "Jay Dudley (E-mail)" <jay_dudley@pgn.com>, "Wenner, Adam" <awenner@velaw.com> cc:

Subject: Project Granite - Status of DOJ Investigation

Ann, Sarah, Jay and Adam:

I spoke with Brian Mohr at Skadden this morning. He said that when he spoke to Jade at the end of last week about her investigation, she said that her recommendation had gone up the line to the front office, that she did not need any additional information and that unless her superiors wanted additional information, that she did not expect to need

anything more from us.

I think this means that Jade will likely just let the 30 day waiting period expire unless someone up the line from her raises questions or issues (which it doesn't seem as if she expects). Furthering this interpretation is that fact that, according to Brian, Jade is out of the office this week, so it would be difficult for her to begin drafting a second request.

Brian said he is supposed to talk to Jade on a conference call later today about another matter, and he will see if she will provide any more definitive information. However, assuming she just lets the HSR waiting period expire, we will be cleared to close (from an antitrust perspective) at midnight on May 3rd.

Neil

Neil W. Imus Vinson & Elkins L.L.P. 1455 Pennsylvania Ave. N.W. #700 Washington, D.C. 20004-1008 Phone: 202-639-6675 Fax: 202-639-6604 e-mail: nimus@velaw.com

Message 94 of 218

EMISSIONS STRATEGY MEETING

| | |
|------------|--|
| Sender | lisa.jacobson@enron.com |
| Recipients | ['steven.kean@enron.com', 'stacey.bolton@enron.com', 'michael.terraso@enron.com', 'mary.schoen@enron.com'] |
| File | kean-s/archiving/untitled/4763. |

Dear Steve,

Thanks for stopping by last week's Emissions Strategy Meeting. As you requested, I have attached the presentations from the meeting, as well as an agenda and participant list.

The forum was well received by participants -- many found the policy updates and information exchange elements very useful. Several commercial groups expressed interest in continuing to discuss and share information on NOx, SO2 and carbon/greenhouse gas markets as they evolve.

We also spent considerable time discussing U.S. "multipollutant" regulatory strategies, and received good commercial feedback on the proposals we have been circulating in Washington. From our perspective, the meeting was a success from a strategic standpoint, giving our group the needed commercial feedback to proceed with advocacy strategies and deliver information that is most useful to their businesses.

Key Outcomes:

? Participants from commercial groups -- EES, EGMs, ENA, and Enron Europe -- expressed interest in competitive intelligence and policy updates on emissions issues.

? Commercial groups asked that Environmental Strategies, perhaps quarterly, bring a group together to be briefed on the policy landscape and environmental drivers for Enron markets. (Not likely to be a large meeting, but a conference call)

? Development of a list-serve or intranet site was suggested to facilitate communication among the participants. We are already working on a intranet site for delivery of information/intelligence, but will work to add elements where commercial groups can share information about business ideas or possible deals.

Please see the attached participant list, agenda and presentations for more information. Feel free to call me or Jeff if you have any questions.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

*Message 95 of 218***FW: Energy Forum****Sender** steven.kean@enron.com**Recipients** ['janet.dietrich@enron.com']**File** kean-s/sent_items/198.

See last point: MIT would like to talk to us about energy procurement and management. Could you put someone in touch with them? ----- Forwarded by Steven J Kean/NA/Enron on 07/14/2001 03:51 PM ----- From: Margaret Allen on 07/13/2001 02:59 PM

To: skean@enron.com, Mark Palmer/Enron@EnronXGate, Dennis Vegas/Enron@EnronXGate

cc:

Subject: FW: Energy Forum

FYI -- He also responded back to Intellibridge accepting participation in the Steering Committee. What a nice guy!

-----Original Message-----

From: Paul Joskow <pjoskow@MIT.EDU>@ENRON

[mailto:IMCEANOTES-Paul+20Joskow+20+3Cpjoskow+40MIT+2EEDU+3E+40ENRON@ENRON.com] Sent: Friday, July 13, 2001 1:41 PM To: Skilling, Jeff Subject: Energy Forum

Dear Jeff,

Thank you for inviting me to participate in the energy policy forum event in Washington, DC on October 3-4. Ordinarily, I would be happy to participate. However, my wife is scheduled to have hip surgery (#2) on October 1. Judging from the last time she went through this I will have to stay around until she is out of the hospital and settled back at home. Accordingly, I am not planning any travel before October 10. Too bad.

On another matter, can you ask someone in your energy services company to get in touch with me? I would like to set something up with MIT's executive VP in charge of the business side of running MIT, including energy purchases and management. We have a 22 MW cogenerator, buy gas and electricity at wholesale and use lots of heating and cooling on an ever growing campus with 8,000 students, as many employees, many computer facilities and laboratories. I'm sure that we can do it more efficiently and I have been encouraging the management to look for opportunities to out-source some or all of these activities. I would like to put them in touch with someone at Enron.

Thanks

Paul

Professor Paul L. Joskow Elizabeth and James Killian Professor of Economics and Management and Director, MIT Center for Energy and Environmental Policy Research E52-280B MIT Cambridge, MA 02142-1347

phone: 617-253-6664 fax: 617-258-7070 pjoskow@mit.edu <http://web.mit.edu/pjoskow/www/>

*Message 96 of 218***FW: Energy Forum****Sender** steven.kean@enron.com**Recipients** ['janet.dietrich@enron.com']**File** kean-s/discussion_threads/7203.

See last point: MIT would like to talk to us about energy procurement and management. Could you put someone in touch with them? ----- Forwarded by Steven J Kean/NA/Enron on 07/14/2001 03:51 PM ----- From:

Margaret Allen on 07/13/2001 02:59 PM

To: skean@enron.com, Mark Palmer/Enron@EnronXGate, Dennis Vegas/Enron@EnronXGate

cc:

Subject: FW: Energy Forum

FYI -- He also responded back to Intellibridge accepting participation in the Steering Committee. What a nice guy!

-----Original Message-----

From: Paul Joskow <pjoskow@MIT.EDU>@ENRON

[mailto:IMCEANOTES-Paul+20Joskow+20+3Cpjoskow+40MIT+2EEDU+3E+40ENRON@ENRON.com] Sent: Friday, July 13, 2001 1:41 PM To: Skilling, Jeff Subject: Energy Forum

Dear Jeff,

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On another matter, can you ask someone in your energy services company to get in touch with me? I would like to set something up with MIT's executive VP in charge of the business side of running MIT, including energy purchases and management. We have a 22 MW cogenerator, buy gas and electricity at wholesale and use lots of heating and cooling on an ever growing campus with 8,000 students, as many employees, many computer facilities and laboratories. I'm sure that we can do it more efficiently and I have been encouraging the management to look for opportunities to out-source some or all of these activities. I would like to put them in touch with someone at Enron.

Thanks

Paul

Professor Paul L. Joskow Elizabeth and James Killian Professor of Economics and Management and Director, MIT Center for Energy and Environmental Policy Research E52-280B MIT Cambridge, MA 02142-1347

phone: 617-253-6664 fax: 617-258-7070 pjoskow@mit.edu <http://web.mit.edu/pjoskow/www/>

Message 97 of 218

meeting

| | |
|------------|---------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['steven.kean@enron.com'] |
| File | kean-s/discussion_threads/1132. |

----- Forwarded by Steven J Kean/NA/Enron on 09/13/2000

08:20 AM -----

Michael A Sadler <msadler@ksu.edu> on 07/27/2000 03:49:00 PM To: skean@enron.com cc:

Subject: meeting

Dear Steven:

Just to refresh your memory ... we met in June to discuss future job prospects at Enron. At that time, you had offered to get me in touch with someone in the Finance Division (?) at Enron to discuss similar topics. I am sorry to bother you with matters such as this, but I am still very interested in a position with Enron and would like to follow through on this offer, if you are still willing. As an aside, another contact gave me the name of Rob Bradley and suggested that I get in touch with him. I don't know if that is who you had in mind, or not.

I am moving my wife to Houston next week, and will be available to meet any time from Friday, August 4 until Thursday, August 10. After that, I leave for a conference in Seattle, but will back in Houston for one day on Thursday, August 17th.

As for my timetable (which at the time you had told me to keep you apprised of), I will continue in my position at K-State for the Fall semester. After that, I'm a free man. I have a couple of academic offers for temporary positions in the Spring, one at Rice and one at UT-Austin. The latter is very appealing, but would require my absence from home during the weeks. As such, I am still wide open beginning in January.

In spite of the fact that I awoke at 3:30AM in order to get to the airport the day that I met Jim Steffes and you, I got a lot out of our meeting. I was very impressed with Enron and what you had to say, and am hopeful about future prospects with the company. I remain very interested in a future position at Enron, and perhaps in Public and Government Affairs (I hope I have that right).

Thank you for everything. I hope that you had a nice vacation.

Sincerely,

Mike Sadler

***** *

Michael A. Sadler Assistant Professor Department of Economics Kansas State University 320 Waters Hall Manhattan, KS 66506

(785) 532-4574 (785) 532-6919 (fax)

msadler@ksu.edu <http://www.ksu.edu/economics/msadler/>

Message 98 of 218

Re: my work situation

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['schuler@rice.edu'] |
| File | kean-s/calendar/untitled/8324. |

This is an issue we have long struggled with. We have conducted several comprehensive reviews in the past and on an ongoing basis we go through a resource allocation process which enables subjective criteria to be considered in the prioritization and resource allocation process. I think the project is a good idea. Your sources would be John, Jim Steffes, and Rick Shapiro (for the RCR, or resource commitment process).

Doug Schuler <schuler@rice.edu> on 05/01/2001 10:59:10 AM To: skean@enron.com cc:

Subject: my work situation

Dear Steve, Jim, and Rick: I just wanted to give you a quick update on my situation at Rice and to inquire as to a future project with your group at Enron.

First, I apologize for my prolonged recent absences. I have had two long-standing academic projects: one was due 4/19 (it was on "final review" - a paper about corporate political strategy - and just was accepted for publication at our top academic journal) and another is due 5/31. The 5/31 paper was commissioned long ago but is a key paper in a June conference (topic is methods to study corporate political activities and the public affairs function). In order to get it done properly, I need to forego any work at Enron until later in the month.

A project of interest to me at Enron - and I hope one that you also have interest - is assessing the effectiveness of governmental affairs. John told me that he conducted such a study for the group last year. One of the methodological challenges is to calculate the benefits that government affairs brings - especially in a system where, for example, on the legislative side, much of the "work" of government affairs is to block legislation at very early stages. I suspect that govt. affairs needs to justify its existence for internal budgets at Enron and thus the benefits of the function are important to

quantify. I'd like to review any of the previous work and make suggestions as necessary.

At some point, let me know how you would like to proceed.

Otherwise, I hope all is well with you all.

Cordially,

Doug

Doug Schuler Rice University Jesse H. Jones Graduate School of Management P.O. Box 1892 Houston, TX 77251-1892
(713) 285-5472 tel. (713) 285-5251 fax. schuler@rice.edu

Message 99 of 218

Nigeria Contract support

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | [sherri.sera@enron.com, 'sean.long@enron.com'] |
| File | kean-s/all_documents/5719. |

Sean - is this anything we need to follow up on? ----- Forwarded by Steven J Kean/NA/Enron on 02/28/2001 02:26 PM -----

Sherri Sera 02/28/2001 01:58 PM

To: Mark Frevert/NA/Enron, Steven J Kean/NA/Enron@Enron cc: Nicki Daw/NA/Enron, Maureen
McVicker/NA/Enron@Enron Subject: Nigeria Contract support

Mark and Steve, sorry to bother you with this, but I'm at a loss. This guy (Jim Cofield) called me on my cell phone last night about 7:00 p.m. to get my e-mail address. He asked that I take a look at his e-mail in the morning and route it to the appropriate person within Enron.

The ".jpg" files below have no information in them, but the ".doc" file is a 14 page document with numerous correspondence from Mary Beth Cahill, former director in the White House Office for Public Liaison, to Mr. Cofield regarding a trip to Nigeria that he supposedly accompanied President Clinton on several months ago; followed by a number of "proprietary information documents" that mean absolutely nothing to me; followed by an overview of Nigeria's electrical power situation; etc....The best I can tell, they are trying to get Enron to bid on some project in Nigeria.

Since this e-mail is copied to the Vice President of the United States in addition to several ambassadors, I thought it might need attention. If you can figure it out, please let me know how to proceed. Thanks, SRS ----- Forwarded by Sherri Sera/Corp/Enron on 02/28/2001 01:44 PM -----

"Jim Cofield" <jcofield@home.com> on 02/27/2001 07:06:11 PM To: "Sherri Sera" <sherri.sera@enron.com> cc: "Richard Cheney" <vice.president@whitehouse.gov>, "Ambassador Dele Cole" <bedeos2000@yahoo.com>, "Ambassador Jibril Aminu" <bedeos2000@yahoo.com>, "Ambassador Li Zhaoxing" <webmaster@china-embassy.org>

Subject: Nigeria Contract support

[IMAGE]

?

?

Jim E. Cofield

World Headquarters

Cofield Building

1016-22nd Street, Suite 200-500

Newport News, VA 23607-5316??????

Telephone? 757 223-0843

Fax: 757 223-0844

jcofield@home.com (email)

WebSite: <http://cofield.my.treeway.com>

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? - image001.jpg - image002.jpg - image001.jpg - image002.jpg - Nigeria-Best8.doc

Message 100 of 218

Re: Thanks & Questions

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['richard.shapiro@enron.com', 'chase.untermeyer@compaq.com'] |
| File | kean-s/calendar/untitled/1241. |

I enjoyed talking with you the other day and am happy to answer your questions: both the Texas position and the Washington DC position report to Rick Shapiro. From a government affairs standpoint, I've divided the world between Rick's group (the Americas) and Mark Schroeder's group (Europe and Asia). Both Rick and Mark report to me.

Joe Allen continues as part of the Texas legislative team, working for the head of that group (formerly Kathleen Magruder).

Terry Thorn has taken a commercial position in Enron and no longer works on government affairs issues for the company (except to the extent we call on various executives to help from time-to-time).

"Untermeyer, Chase" <Chase.Untermeyer@COMPAQ.com> on 08/31/2000 04:53:09 PM To: "'skean@enron.com'" <skean@enron.com> cc:

Subject: Thanks & Questions

STEVE: I very much appreciate your call the day before yesterday and your asking if I would like to compete to succeed Joe Hillings as head of Enron's Washington office. Although until that moment I hadn't thought of returning to Washington except to serve again in national office, I would be pleased to talk further about this opportunity with you or your recruiter.

In recalling our conversation, I realize that twice you asked if I had any questions, and if I had been quick to take advantage of your offer, I would have asked how government relations are handled at Enron. To whom does Joe Hillings report: to you or to Terry Thorne? You mentioned a woman who currently has responsibility for government relations in Texas and some neighboring states but is leaving for another job at Enron; to whom does she report? Then there is Joe Allen, whom I have known since our days in the Legislature; doesn't he (also) handle Texas affairs?

I am sorry I didn't ask you all this on Tuesday. Whatever the answers, it's clear that government relations are much more central to the work of Enron than at Compaq, which is why it would be a very exciting place to work. Thanks again for your call, your courtesy, and your indulgence with this tardy line of questioning. With best wishes, CHASE.

CHASE UNTERMEYER Director of Government Affairs Compaq Computer Corporation P.O. Box 692000-110706
Houston, Texas 77269-2000 Tel: (281) 518-1093 Fax: (281) 518-1106 chase.untermeyer@compaq.com

Message 101 of 218

FW: DJ Concerned Energy Cos Make Few Changes In Enron Dealings

| | |
|-------------------|--|
| Sender | mark.koenig@enron.com |
| Recipients | ['j..kean@enron.com', 'paula.rieker@enron.com', 'pr <.palmer@enron.com'] |
| File | kean-s/deleted_items/278. |

-----Original Message-----

From: Lindauer, Jason [mailto:Jason.Lindauer@tfn.com] Sent: Thursday, October 25, 2001 1:18 PM Subject: DJ Concerned Energy Cos Make Few Changes In Enron Dealings

10/25 2:13P (DJ) =DJ Concerned Energy Cos Make Few Changes In Enron Dealings Story 8322 (CPN, DUK, DYN, EIX, ENE, MIR, PCG, REI, RRI, SRE, WMB, I/ELC...) By Mark Golden, Kristen McNamara, Jon Kamp and John Edmiston Of DOW JONES NEWSWIRES

NEW YORK (Dow Jones)--Energy trading companies have concerns about the credit quality of troubled Enron Corp. (ENE), but they have made almost no changes in policies concerning the top trader of North American power and gas, the companies said Thursday. The concerns have arisen because Enron, which accounts for about a quarter

of the trade in the country's power and gas markets, has seen its share price fall by a third this week due to uncertainties about its extremely complex financial structure. Moody's has put Enron's credit on watch for possible downgrade, and some of the company's debt is trading like junk bonds in the secondary market this week. "We have made no changes to our credit policy concerning Enron," said John

Sousa, chief spokesmann for Dynegy Inc. (DYN). "It's business as usual." Williams Cos. (WMB) spokesman Jim Gipson said that his company, too, has made no changes and has no concerns about Enron's credit. Another Top 10 power and gas trading company, Aquila (ILA), has also left Enron credit unchanged.

Other companies expressed concern, though they've taken little if any action. "Like everyone else in the marketplace, we're proceeding with caution," said Lora Kinner, director of credit for Tractebel Energy Marketing, the North American subsidiary of the Belgian company Tractebel S.A. Kinner said the company is just looking for more information and doesn't expect to make any drastic changes.

(MORE) DOW JONES NEWS 10-25-01 02:13 PM Additional Codes (I/GAS, I/PIP, I/UES, I/UEW, I/XISL, N/DJN, N/DJWI, N/BON, N/CNW, N/COB, N/DJRT, N/DRV, N/HIY, N/LNG, N/PET, N/SNEW, N/WEI, M/ENE, M/MMMR, M/UTI, P/DGA, P/DUT, R/CA, R/GA, R/NAPW, R/NC, R/NME, R/OK, R/PRM, R/TX, R/US, R/USC, R/USS, R/USW)

Jason M. Lindauer Director Thomson Financial/Carson 156 W. 56th Street, 6th Fl. New York, NY 10019 P: (212) 707-0680 F: (212) 707-0501 jason.lindauer@tfn.com www.thomsonfinancialcarson.com

Message 102 of 218

Utilities, Electric: Deregulation: Byers fines will boost renewable

| | |
|-------------------|---|
| Sender | miyung.buster@enron.com |
| Recipients | ['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com'] |
| File | kean-s/heat_wave/61. |

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/09/2000 10:23 AM

djcustomclips@djinteractive.com 10/05/2000 08:12 PM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: Byers fines will boost renewable energy

Byers fines will boost renewable energy TERRY MACALISTER AND PAUL BROWN ? 10/05/2000 The Guardian
Copyright (C) 2000 The Guardian; Source: World Reporter (TM)

Electricity companies will face hefty fines for failing to meet environmental targets under proposals to be outlined today by the industry secretary, Stephen Byers.

He will delight the green lobby by ruling out waste incineration from his definition of "renewables" and by putting the emphasis on new forms of energy such as wind power.

An early consultation document suggested a "buyout" fee of 2p per kilowatt-hour for those who failed to buy 5% of their supplies from renewable sources by 2003 and 10% by 2010. Well-placed sources say Mr Byers has privately accepted the need to charge a "buyout" fee of 3p per kilowatt hour, which will anger the electricity companies but please the renewable industry.

"We anticipate this will kickstart our sector, lead to over pounds 5bn worth of capital investment and create thousands of jobs," said one executive from a renewable energy company.

Big companies such as National Wind Power, a division of Innogy (formerly National Power) and PowerGen Renewables will be among the beneficiaries.

Stephen Tindale, chief policy adviser to Greenpeace UK, said dropping incineration would put the government "back on the right trajectory after a series of disappointments". But the green lobby admits that further financial help might be needed and say electricity companies will pass on some of their extra costs to consumers.

The Department of Environment has had a target of 10% of electricity from renewables by 2010 for more than two years as part of the government's manifesto pledge to reduce carbon dioxide emissions by 20% by the same date. But deregulation has forced the price of electricity down, helping gas-fired power stations but penalising the less competitive renewable sector.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 95

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 103 of 218

Call Center E-Journal Web site <http://www.callcenterejournal.com>

| | |
|------------|--------------------------|
| Sender | ascentgr@pineland.net |
| Recipients | [ckk@ascentgroup.com] |
| File | kean-s/deleted_items/44. |

The Ascent Group, publisher of the Call Center E-Journal, announces the latest issue is now available on its new interactive web site -- www.callcenterejournal.com. The web site provides access to a database of call center best practices, company profiles, vendor directories, call center news, and recent contact center announcements and initiatives. CCE-J is a quarterly electronic journal designed to provide call center managers from all industries with actionable ideas and proven enhancement techniques.

Subscribers receive quarterly issues of the journal and gain access to the web site to:

? Search call center best practices database. ? Review call center profiles and statistics. ? Research vendors and call center technologies, services, and products. ? Review and download current and past issues of CCE-J. ? Review and download other contact center articles and research. ? Keep up with call center news, announcements, and initiatives.

CCE-J features in-depth interviews and original research that provide a perspective unlike any other publication. Articles are written to demonstrate best practices and key business strategies to call center managers. Each issue contains original research and insight with absolutely no advertising.

This issue's cover article features Knight Ridder's Regional Call Centers. Find out how Knight Ridder has pursued technology to maximize efficiencies and increased agent retention through peer monitoring, competency-based training, and restructured compensation.

Another article features Telvista, formerly CompUSA, which has integrated quality monitoring efforts with an e-learning product from Witness Systems. Agents scoring below threshold on call monitoring areas receive the appropriate e-learning modules at their desktops.

We also feature a profile of Precision Response Corporation, the nation's second largest outbound teleservices company. Find out how PRC hires and retains agents and stays ahead of the technology curve to provide superior service for clients.

CCE-J subscribers include "best in class" call center operations like HSN, Microsoft, Bell Canada, Chase Bank, Duke Power, New York Times, and AAA. Subscribe by phone or fax with your credit card or use our secure order form at www.callcenterejournal.com.

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We hope you'll take advantage of this exciting opportunity.

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Christine K. Kozlosky Vice President, Ascent Group, Inc. 1584 Cowford Bridge Road Kite, GA 31049 USA (478) 469-3950; (478) 469-3776 (fax) <http://www.ascentgroup.com> <http://www.e-csq.com> <http://www.callcenterejournal.com>

Message 104 of 218

FW: OFCCP

| | |
|------------|--|
| Sender | michelle.cash@enron.com |
| Recipients | [james.derrick@enron.com, 'kriste.sullivan@enron.com', 'sharon.butcher@enron.com', 'cindy.olson@enron.com', ...] |
| File | kean-s/ofccp_audit/12. |

As I mentioned in my voice mail, Carl Jordan obtained some promising news about the Busch letter from OFCCP. Below is a more detailed summary of the information I highlighted in the voice mail.

Let me know if you have any questions. I am working on scheduling a meeting on Wednesday.

Michelle

-----Original Message-----

From: "Jordan, Carl" <cjordan@velaw.com>@ENRON [mailto:IMCEANOTES+22Jordan+2C+20Carl+22+20+3Ccjordan+40velaw+2Ecom+3E+40ENRON@ENRON.com]=20 Sent: 09Thursday, August 30, 2001 2:20 PM To: Cash, Michelle Subject: 09OFCCP

ATTORNEY / CLIENT PRIVILEGED COMMUNICATION =20 Michelle, this summarizes what I have learned thus far about possible circumstances of the Busch letter. =20 John Tysse at EEAC indicated that the new leadership at DOL and at OFCCP is very business oriented. The new OFCCP director is Charles James; he was the EEO manager at Bell Atlantic. However, he is new in the job, of course, and has not had any opportunity to review enforcement policy issues. = Thus, Tysse is not aware of any policy shifts to date, nor is he aware of any volume mailing of the kind of letter Enron received. Tysse is hearing that DOL and OFCCP leadership will probably take a cautious (i.e., deliberate) approach to changes so as not to unnecessarily provoke outbursts from Congress or advocacy groups. But the word is that policy reevaluations will occur. (This includes the EEO survey, which Felicia asked about this morning, although Tysse speculated that the survey issue might be politically charged to drop altogether; perhaps it will be reworked to be

mor= e manageable.) While there has been no indication of a formal enforcement= policy shift as to Dubray cases, Tysee said he is aware of another ongoing case where the national office appeared to be pulling the strings, even = though the region was still handling dialogue with the contractor. =20 Len Bierman, the former career Deputy Director at OFCCP who is now a consu= ltant, said about the same thing as Tysse as to the new DOL and OFCCP lead= ership being sensitive to issues that concern business and the fact that t= hey have not been in place long enough to effect changes yet. (There is n= ot yet an Asst. SOL for Employment Standards.) He is not aware of any pus= h to clear out Dubray cases pending in the national office. However, he k= nows Busch well from their agency days and does not believe he is strongly= committed to the Dubray methodology because he understands its deficienci= es. His guess is that the letter may signal a desire by the national offi= ce to find a way to get your case off their docket. =20 I have sent an email (you are blind copied) to some folks at law firms aro= und the country to see if they know of similar letters being sent. I will= keep you advised. Best regards. =20 W. Carl Jordan Vinson & Elkins L.L.P. 1001 Fannin 2300 First City Tower Houston, Texas 77002 (713) 758-2258 (713) 615-5334-fax

Message 105 of 218

New CERA Study - "New Realities/New Risks: North American Power &

| | |
|------------|---------------------------|
| Sender | nhernandez@cera.com |
| Recipients | ['skean@enron.com'] |
| File | kean-s/deleted_items/350. |

Mr. Steve Kean Executive VP & Chief of Staff Enron Corp.

Dear Mr. Kean:

Powerful new forces are transforming the North American gas and power industry, bringing considerable volatility and uncertainty to investment and strategy. Questions relating to prices, security, geopolitics, the global economy, and environmental concerns are forcing reconsideration of basic assumptions and plans.

To address these questions and concerns, Cambridge Energy Research Associates (CERA) announces a timely new multiclient study, "New Realities, New Risks: North American Power and Gas 2020."

In an online interview CERA Senior Director Lawrence J. Makovich presents a brief overview of major issues to be addressed in the study. To hear more information about the study, please access the interview on our website at <http://www.cera.com/mc?c=62750&p=1044>.

Using CERA's scenario planning methodology, "New Realities, New Risks" will present plausible alternate paths to the future of power and gas markets in North America over the next 20 years. The Study will provide useful tools for evaluating corporate strategies and investments as well as an integrated assessment of gas and power market analyses.

The study will address key issues including *What levels of gas and power prices are sustainable? *How will the current wave of power plant and gas pipeline infrastructure development shift North American energy dynamics? *What opportunities, risks and challenges face those involved in the industry? *How will technological developments affect future gas and power markets? *Will the role of government expand or contract in the energy industry? *What will be the cost and value of increased energy security? *Who will be the winners and losers in each scenario?

For complete details of the study, including deliverables and proposed study content, please visit our website at <http://www.cera.com/offerings/details/1,1504,CID2299,00.html>.

In the traditional CERA format, the study will start with a kick-off workshop. Exclusively hosted for study participants(*), the kick-off workshop will take place in early January at a location to be announced.

To obtain your confidential study prospectus, please contact Noelle Hernandez-Bullrich at nhernandez@cera.com or via phone at +1 617 498 9148. You may also contact Ron Kapavik at rkapavik@cera.com or via phone at +1 617 441 2629 with any specific questions you have about the study.

Thank you for your consideration, and we look forward to your participation in this study.

Sincerely,

Noelle Hernandez-Bullrich Associate, North American Energy

(*) Special discount for enrollment in the Study prior to December 31st.

***** Our relationship with you is very important to us. Should you prefer not to receive e-mail notifications from CERA, please send a reply to this message with "DoNotEmail" as the subject line of your message. (mailto:info@cera.com?subject=DoNotEmail) *****

Message 106 of 218

Transmission Language

| | |
|------------|--|
| Sender | awenner@velaw.com |
| Recipients | ['dwatkiss@bracepatt.com', 'steven.kean@enron.com', 'csandhe@enron.com'] |
| File | kean-s/all_documents/639. |

Steve -- I received your note that you had received Dan's comments. I thought it made sense, in any case, to pass on a few comments; Dan probably had the same thoughts, but just in case here they are:

Section 2(a): the parenthetical "including the transmission of electric energy in interstate commerce that is sold at retail", while technically a correct fix, is still a little troubling. Just as everyone is someone's native load customer, all electricity is ultimately sold "at retail." Nonetheless, this hasn't stopped FERC from concluding that it lacks jurisdiction over the transmission component of bundled retail service. The possibility that this ambiguity could be exploited would be avoided by using the "transmission component of bundled retail service" language, and including separate definitions of bundled and unbundled retail service (rather than "quick and dirty" approach in new section 205(g)).

This approach would also get rid of the possible ambiguity in new section 205(g)(1)(A), which requires the filing of a schedule for the "transmission of electric energy... that is separate from the rates...applicable to the sale of electric energy and to local distribution." It is not abundantly clear that the filed rate schedule must be for the transmission component of unbundled retail service, although that seems to be the intent of the drafters.

Section 205(g) uses the "not unduly discriminatory or preferential basis" standard. That language, as with the existing Federal Power Act language, can be interpreted as permitting native load service to maintain its priority status in all situations, on the basis that it is not "undue" discrimination to favor those who paid for the system or the other usual defenses of this approach. Language similar to that we have worked on previously, which makes it absolutely clear that no native load preference is permitted, would eliminate this possible result.

Similarly, it would be useful, in section 205(g)(5), to make it clear that the transmission of bundled service must be reserved and scheduled on exactly the same basis as unbundled service; as written, this provision might be interpreted as not so requiring.

If Enron accepts the preference for "firm wholesale and retail customers" in Section 205(g)(6), it should revise the language to make it clear that this is a "one-time" preference, and that, with respect to future service, transmission customers are to be placed on equal footing. This might be done by including a specific cut-off, such as "Any such rule shall cease to be applicable no later than one year after the date such rule takes effect."

Section 2(f) permits transmission rates to be capped at the rate set by the State commission. This approach leaves open the option for States which have, or which, as part of the establishment of retail competition, to set transmission rates at a higher than cost-justified level, and to subsidize the sale price of their owned generation or purchased power from that subsidy. Such an approach would put marketers at a severe disadvantage. I suggest including a prohibition against such subsidization.

Adam Wenner Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008 (202) 639-6533 (202) 639-6604 (fax) awenner@velaw.com

Message 107 of 218

Enron case study

| | |
|------------|---|
| Sender | christie.patrick@enron.com |
| Recipients | ['jeff.skilling@enron.com', 'steven.kean@enron.com', 'mark.palmer@enron.com', 'mwozny@hbs.edu'] |
| File | kean-s/archiving/untitled/466. |

Mark and Steve,

I'm forwarding this "FYI".....Chris's work looks great! I'll coordinate the filming they're interested in. I may suggest they use Beth Steir, as our people know her and she knows our system--I'll discuss this with Chris.

With further regard to Harvard, I'm working with two other big initiatives with various faculty there, and trying to coordinate "Harvard with Harvard"---that is, trying to keep all Harvard's faculty pursuing Enron projects, in each other's respective "loops"..I've also been trying to keep Pankaj Ghemawat in these loops out of respect to his position on Enron's Advisory Committee.

Thanks!

--Christie. ----- Forwarded by Christie Patrick/HOU/ECT on 11/08/2000 09:29 AM -----

Christopher Bartlett <cbartlett@hbs.edu> on 11/08/2000 08:59:56 AM To: christie.patrick@enron.com cc: jeff.skilling@enron.com, mwozny@hbs.edu Subject: Enron case study

Dear Christie:

First I wanted to thank you belatedly for the excellent organization you provided in setting up our meetings in Houston a couple of weeks ago. The information we got was right on target and Meg and I came back with full notebooks and bulging heads. It was a very useful and productive trip from our point of view, and we very much appreciated your very professional organization of the process.

Having worked on the drafts over the last couple of weeks, we have come to the conclusion that the material is just too rich to fit into a single case. In dividing our story into two parts, we focused our first case on the transformational story that unfolded during the 1990s, not only on the strategic changes occurring within the company but also on the organizational and managerial redesign that supported and drove those new directions. The second case will encapsulate some of that company background, but will focus in more detail on the way in which the new Enron environment sparked the Enron Online innovation. I have used this approach a couple of times previously, focusing on entrepreneurship at 3M and on human resource management at Microsoft, and for your information I will forward copies of those two-part cases as models of what we are working towards.

The other thing I wanted to update you on was our plans to make these cases as interactive as possible. Given Enron's transition into the "new economy" and particularly the focus of the Enron Online case, we feel it is very important to develop these cases in a multimedia manner. This means that we will try to provide links to video material, Websites, streamed interviews, etc. wherever they can support the development of the story line. The videos you sent us following our last visit are a very good starting point, but we should probably try to schedule videotaped interviews with Jeff Skilling, Ken Lay, and Louise Packard for sometime in the near future -- certainly before Christmas.

Thanks again for all your help and support in getting us this far. Our hope is that we can get some drafts to you over the next couple of weeks for your review and input. Meanwhile, Meg will be contacting you to see if we can set up a day for the videotaped interviews. We are greatly looking forward to completing our work on this very exciting project.

Yours sincerely, Chris Bartlett - 395017.doc - 300004.doc - 301002.doc Christopher A. Bartlett Harvard Business School
Morgan 465 Soldiers Field Boston, MA 02163 U.S.A. phone: 617-495-6308; fax: 617-496-5271 e-mail: cbartlett@hbs.edu

Message 108 of 218

USTR Press Release on China WTO

| | |
|-------------------|--|
| Sender | chris.long@enron.com |
| Recipients | ['kenneth.lay@enron.com', 'joseph.sutton@enron.com', 'lora.sullivan@enron.com', 'rebecca.mcdonald@enron.com', ...] |
| File | kean-s/all_documents/171. |

Finally - We have a China WTO agreement. Congress must now vote on permanent Normal Trade Relations (NTR) with China. We will follow closely and report.

OFFICE OF THE UNITED STATES TRADE REPRESENTATIVE Executive Office of the President Washington, D.C.
20508

USTR Press Releases are available on the USTR home page at www.ustr.gov. They are also available through the USTR Fax Retrieval System at 202-395-4809.

For Immediate Release Contact: Thomas Tripp November 15, 1999 Helaine Klasky Amy Stilwell (202) 395-3230

U.S., CHINA SIGN HISTORIC TRADE AGREEMENT

BEIJING, November 15, 1999 U.S. Trade Representative Charlene Barshefsky and National Economic Council Director Gene Sperling today announced the successful completion of bilateral talks on China's accession to the World Trade Organization.

Ambassador Barshefsky and Mr. Sperling issued a joint statement that said, "We are glad that after thirteen years of negotiation, China and the United States have agreed upon a strong, commercially viable WTO agreement for China. This historic agreement is a win for American export-related jobs, for Chinese economic reform, for our global trading system and for the long-term U.S. - China relationship."

Outline of the Agreement

This agreement provides significant access for U.S. agriculture, industrial products and services. China will reduce both tariff and non-tariff barriers to industrial goods and farm products. The agreement contains strong provisions to address import surges and unfair trade practices. China has agreed to take specific actions to ensure fair treatment for businesses operating in China. These include limits on technology transfer requirements, offsets and export performance requirements.

Some specific examples from the agreement include:

China will cut duties from an overall average of 22.1% to 17%. China will make even greater reductions on agricultural items of particular interest to the United States. China will establish large and increasing tariff-rate quotas for wheat, corn, rice and cotton with a substantial share reserved for private trade. State trading for soy oil will be phased out. China will eliminate export subsidies. American companies can provide auto financing. New access for U.S. companies, including banks, insurance companies and telecommunications businesses. Distribution rights for U.S. exporters. Improved access for computer services, business consulting, accounting, advertising, and financial information services. Increased imports of foreign films, on a revenue-sharing basis, to at least twenty films per year.

In textiles, the U.S. and China agreed on appropriate measures to avoid market disruptions during and after the phase out of current quotas.

Next Steps

This agreement represents a crucial step in China's WTO accession process. Several important steps remain ahead. First China must conclude bilateral negotiations with a number of other WTO members, including the European Union. Multilateral negotiations on China's accession protocol must also be finished. China must then complete its own domestic procedures for accession.

In response to the commitments contained in the agreement signed today, President Clinton will work with other WTO member countries to gain China's entry as soon as possible and will seek from Congress the approval of permanent Normal Trade Relations (NTR).

Message 109 of 218

Re: FW: Jim Bannantine on eSpeak - March 23

| | |
|------------|---|
| Sender | steven.kean@enron.com |
| Recipients | ['j.metts@enron.com', 'kelly.kimberly@enron.com'] |
| File | kean-s/archiving/untitled/1917. |

Kelly raised this concern too. The system is set up so that questions do not appear unless we let them -- i.e. we can screen questions and answer only those we choose. Even with that feature, though, I think we should skip this one (or just reschedule for a later date). I'll contact Jim by separate e-mail.

J Mark Metts@ENRON 03/21/2000 04:29 AM To: Steven J Kean/HOU/EES@EES cc: Subject: FW: Jim Bannantine on eSpeak - March 23

Can we get this killed or redirected? This seems very dangerous. ----- Forwarded by J Mark Metts/NA/Enron on 03/21/2000 04:28 AM -----

"Joor, William E., III" <wjoor@velaw.com> on 03/20/2000 05:39:54 PM To: "Metts, Mark (Enron)" <mmetis@enron.com> cc: Subject: FW: Jim Bannantine on eSpeak - March 23

I'm afraid I have to concur with Boyd.

William E. Joor III Vinson & Elkins L.L.P. 3600 First City Tower 1001 Fannin Houston, Texas 77002-6760 Tel: 713-758-2582 Fax: 713-615-5201 wjoor@velaw.com

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-----Original Message-----

From: Carano, Boyd (Enron) Sent: Monday, March 20, 2000 9:07 AM To: Joor, William E., III Subject: Jim Bannantine on eSpeak - March 23

FYI. I gotta tell you that under the circumstances the timing of this event just amazes me.

Hope all is well.

Boyd ----- Forwarded by Boyd Carano/ENRON_DEVELOPMENT on 03/20/2000 06:10 PM -----

Julie Ramos 03/20/2000 06:02 PM

To: Sao Paulo Brazil - Office Staff, Rio de Janeiro Brazil - Office Staff, Buenos Aires Argentina - Office Staff, Salvador Brazil - Office Staff, Enron South America - Houston Staff, Santa Cruz Bolivia - Office Staff, Cuiaba Brazil - Office Staff cc: Sarah Palmer Subject: Jim Bannantine on eSpeak - March 23

(Embedded image moved to file: pic13277.pcx) The eThink Team

Join Jim Bannantine, on eSpeak, Thursday, March 23 at 11:00 am (Houston); 2:00 pm (Buenos Aires and Sao Paulo), and 1:00 pm (Cuiaba and Santa Cruz) to learn more about Enron's current South America Strategy.

Jim will be holding an "open-mike" forum so you can ask him questions and share your ideas and opinions.

If you prefer you can pre-submit your questions at eSpeak right now at the following address ethink.enron.com ! Please keep your questions short and simple! this will increase the opportunity for your question to be answered.

eThink: Invest Your Mind

Venham conversar com Jim Bannantine no eSpeak, Quinta-feira, dia 23 de março, às 11:00 horas (Houston); 14:00 horas (Buenos Aires e São Paulo) e 13:00 horas (Bolívia) para ficar melhor informado sobre a estratégia atual da Enron América do Sul.

Jim estará comandando um "bate-papo on line" e você poderá fazer perguntas e compartilhar suas ideias e opiniões. Você pode, também, fazer suas perguntas desde que acessando o seguinte endereço ethink.enron.com. Por favor, elabore perguntas curtas e diretas. Isto aumentará a possibilidade de sua pergunta ser respondida.

eThink: Invest Your Mind

- pic13277.pcx

Message 110 of 218

FW: NoCal March 20 Draft

| | |
|------------|--|
| Sender | jdilg@velaw.com |
| Recipients | ['William E.', 'III'; Alastair.maxwell@msdw.com ; 'Joor', ' skean@enron.com '] |
| File | kean-s/archiving/untitled/1913. |

Steve the attached and two other e-mails to follow contain the most recent draft of the NoCal IM. The SoCal IM should have a revised draft out tomorrow. We are working with local counsel to develop a summary of the regulatory framework affecting each asset and are having some difficulty with response time. Does anyone in your group have an existing summary of the regulatory framework in any of our target jurisdictions? Thanks Joe

-----Original Message-----

From: Joor, William E., III Sent: Tuesday, March 21, 2000 11:28 AM To: Dilg, Joe Subject: FW: NoCal March 20 Draft

William E. Joor III Vinson & Elkins L.L.P. 3600 First City Tower 1001 Fannin Houston, Texas 77002-6760 Tel: 713-758-2582 Fax: 713-615-5201 wjoor@velaw.com

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-----Original Message-----

From: Michael Linn Miller [<mailto:Michael.Linn.Miller@enron.com>] Sent: Monday, March 20, 2000 6:41 PM To: J Mark Metts; Taylor, Mitchell (Enron); Amit Walia; Ceci Torn; fstable@ei.enron.com; Sayre, C. Frank (Enron); fleite@enron.com; Lewis, Jim C. (Enron); Young, Randy (Enron); Christodoulou, Diomendes (Enron) Cc: Joor, William E., III; Alastair.maxwell@msdw.com; Martin.arias@msdw.com; ramzi.nassar@msdw.com Subject: NoCal March 20 Draft

Attached is the first of several pieces of the NoCal second draft. The numbers attached are from the previous draft and do not represent our most recent model runs. We spent all of Friday, Saturday and part of Sunday reviewing numbers and are still updating and finalizing models as well as matching facts and figures presented in the text to those assumed in the models. We are going to spend the first half of this week finishing (hopefully) the modelling process and putting together MD&A's for each investment.

This draft would have gone out yesterday, but we heard from the SoCal team in London that the format of each asset description had changed and wanted to at least try to conform the NoCal draft to the altered format. This is still in process at the writing of this E-Mail so that - in the interest of time - we decided to get the text of the asset descriptions out now. We understand that the new format is really just a reordering of the sections of each asset description so conforming NoCal to SoCal should be fairly straightforward.

The intro Regional Strategy piece is being rewritten by Frank Sayre/Frank Stabler and myself and will be circulated on Wednesday or Thursday.

In the interest of those who have to download in remote locations, I am sending the NoCal draft in multiple pieces. A bound hard copy will be available tomorrow in Houston - let me know if you need one.

I would request comments back no later than Friday morning (Houston time), so that we can get them worked into the document over the weekend and have a fighting chance of being ready to send the document early next week.

Many thanks,

MLM ----- Forwarded by Michael Linn Miller/ENRON_DEVELOPMENT on 03/20/2000 06:38 PM

Ramzi.Nassar@msdw.com on 03/20/2000 03:13:35 PM

To: michael.l.miller@enron.com cc:

Subject: NoCal March 20 Draft - Cover Page, Table of Contents, C/A, and Tabs

(See attached file: #143929 v1 - Nocal IM TOC - March 20.doc)

This document includes the structure into which all the following emails will be inserted. Each email corresponds to one of the sections in the Table of Contents.

(See attached file: #143929 v1 - Nocal IM TOC - March 20.doc)

- #143929 v1 - Nocal IM TOC - March 20.doc

Message 111 of 218

| WH Climate Change Task Force | |
|------------------------------|---|
| Sender | lisa.jacobson@enron.com |
| Recipients | ['steven.kean@enron.com', 'linda.robertson@enron.com', 'jeffrey.keeler@enron.com', 'michael.terrasso@enron.com']... |
| File | kean-s/attachments/1622. |

To: Mike Terraso =20 cc: Jeff Keeler Steve Kean Linda Robertson Catherine McKalip-Thompson

From: Lisa Jacobson

Re: White House Climate Change Task Force

Date: April 16, 2001

Per your request, here is some preliminary information on the=20 Administration's climate change task force. First, there is a White House= =20 climate change task force and it has met at least twice already. It is=20 coordinated by the Domestic Policy Council and the National Economic=20 Council. Emphasis during the first meetings has been on procedure, education=20 and review of the key issues.

The task force facilitates the Administration=01,s ongoing "cabinet level= =20 review" on climate change policy. They are aiming for as high a level of= =20 participation as possible, but acting and deputy assistant secretaries have= =20 also been attending. White House staff is being very tight-lipped about the= e=20 task force discussions due to political sensitivities and fears of media=20 leaks. =20 =20 The task force will solicit input from outside stakeholders (scientists,=20

industry and environmental groups), but as I understand it, participation on the task force is limited to government officials.

The task force is set to meet frequently - possibly weekly - over the next six weeks. I have heard different descriptions of its objectives. Some have said its goal is to develop broad principles, procedures and a strategy in preparation for the resumed international negotiations in Bonn, Germany this July (COP-6 II). Others suggest that the White House intends to release a specific proposal on climate change, with domestic and international components, as early as next month.

On the domestic front, Enron has been providing input to the Administration on our creative ideas for a multi-pollutant air emissions strategy for the power generation sector. We have been invited to provide input on international proposals, with a preferred timeline of this week.

At this stage, each task force meeting is dedicated to covering a different topic (i.e., science, economic impacts, role of technology, etc.). The meetings tend to have an educational angle, as many participants are not familiar with these specific and technical issues. The task force has not yet delved into analysis of the market-based mechanisms (emissions trading or project-based options to reduce greenhouse gas emissions) or other issues related to the United Nations Framework Convention on Climate Change/Kyoto Protocol negotiations.

Enron has an excellent relationship with John Howard, the task force coordinator from the Domestic Policy Council. Jeff and I plan to meet with Bob McNally, the National Economic Council coordinator, tomorrow.

Jeff and I also would like to talk with you about strategy and recommendations for the White House on international proposals. It would be valuable for Enron to weigh in supporting:

? Action to reduce greenhouse gas emissions even in the absence of scientific certainty on climate change ? Continued U.S. engagement in international efforts to reduce greenhouse gas emissions ? Flexibility for industry to meet emission reduction goals ? Market-based approaches to reduce greenhouse gas emissions - like emissions trading - that allow reductions to occur at lower costs to consumers, governments and businesses ? Cooperation with developing countries to ensure their participation in a treaty to reduce greenhouse gas emissions - however, developed countries should be encouraged to take action now and work towards solutions

These bullets are consistent with Enron's current position statement.

I will work to confirm whether the task force has non-government members and how industry and, more specifically, Ken Lay and Enron could participate and provide input.

Please let me know if you have any questions.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 112 of 218

Internet Report on Andre LeGallo Departure

| | |
|------------|---|
| Sender | edward.grubb@control-risks.com |
| Recipients | ['steven.j.kean@enron.com', 'bill.donovan@enron.com'] |
| File | kean-s/calendar/untitled/393. |

Dear Steve and Bill,

In case you have not already seen it, I thought you might be interested in the recent posting on a French website of an announcement of Andre LeGallo's departure from Enron and some commentary about the company's purported links to the CIA and the US political establishment.

This website can be accessed at www.intelligenceonline.com. It is believed to be published by French persons with close connections to the French security services and also, reportedly, to Israeli intelligence. The website includes free content (of which this report was a part) and premium content available on a subscription basis only. The Andre LeGallo posting could reflect the purely detached academic/professional interest of the publishing entity. It is also worth considering that it would be a convenient document for one of your competitors to pass on to a foreign government with whom you might be negotiating, particularly if that government had elements or constituencies sensitive to the perception of links to U.S. intelligence.

Please let me know if you would like any further information on this matter.

Best regards

Edward

(INTELLIGENCE NEWSLETTER #376 - 17/02/2000) UNITED STATES : Enron Loses Intelligence Star The U.S. gas and electricity utility Enron has parted ways with Andre Le Gallo who was in charge of dealing with the group's most sensitive cases. A former CIA official known for his extreme discretion, Le Gallo quit the Houston-based company in January to open his own business intelligence firm, AJL Global Risks Solutions. His recent departure was known to only a few North American consultants. In his job as Enron's vice president for security, Le Gallo had worked behind the scenes on all of the difficult cases facing the group that required maximum confidentiality. Some believe his career with Enron served to underline the close links that reportedly exist between the company and the CIA. The first claims to that effect were made in the early 1990s when Kenneth Lay, founder and president of Enron appeared as a major financial backer of then-U.S. president George Bush. It was said Enron won favors from the American intelligence community, with the White House's blessings. One instance supposedly occurred in June, 1992 in India when Enron's local affiliate Dabhol Power Company won the right to operate on huge gas resources at Maharashtra near Bombay, in highly controversial circumstances. At the time, Indian political leaders suspected the American ambassador in New Delhi, Franck Wisner, of having asked the CIA station chief in the Indian capital to ensure Enron won the contract. A few years later, on Dec. 15, 1997, the same Franck Wisner was named a director of Enron Gas & Oil Co. In a further example of ambiguous links, the State Department is accused of also backing Enron in 1993 in negotiations for a contract to restore oil wells on the Shuaiba field in Kuwait that had been damaged during the Gulf War. Enron got the contract even though its bid was less advantageous than a lower bid submitted by Germany's Deutsche Babcock. The existence of ties between the former Bush administration and Enron can be seen in a new light in view of the coming presidential campaign in the U.S. According to a report by the Federal Election Commission, Bush's son --George W. Bush-- has already used an aircraft owned by the Enron company seven times since he began his race for the presidency.

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Edward Grubb <http://www.crg.com> phone: +1 (703) 893 0083 ext. 203 fax: +1 (703) 893 1836 email: Edward.Grubb@control-risks.com

This e-mail contains privileged and confidential information intended for the use of the addressees named above. If you are not the intended recipient of this e-mail, you are hereby notified that you must not disseminate it, copy it or take any action in respect of any information contained in it. If you have received this e-mail in error, please notify the sender immediately by e-mail and immediately destroy this e-mail and its attachments.

Message 113 of 218

Re: Illinois Appellate Court Affirms Affiliate Transaction Rules

| | |
|-------------------|--|
| Sender | susan.landwehr@enron.com |
| Recipients | ['lara.leibman@enron.com', 'john.neslage@enron.com', 'janine.migden@enron.com', 'harry.kingerski@enron.com', '...] |
| File | kean-s/attachments/2035. |

Lara--well, we finally won a battle in Illinois, but it took us going to the appellate court to do it! Lara, I know that you've been out of this area for quite awhile, but thanks for your help with the Piper Marbury Rudnick firm on preparing and editing the arguments before the court.

John/Jim/Harry--I am wondering if this decision can be added to our accomplishment list that you are working on. This case is very old (I think we argued it over a year ago). Have we been able to monetize this type of affiliate rule in the past or is this one of the items that are somewhat intangible, but get included anyway? ----- Forwarded by Susan M Landwehr/HOU/EES on 09/10/2000 05:23 PM -----

Roy Boston 09/08/2000 11:25 AM To: "Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com> @ ENRON cc: Janine Migden, Susan Landwehr, mharada@enron.com, Adam Cooper Subject: Re: Illinois Appellate Court Affirms Affiliate Transaction Rules

Chris and David -- Great news and even greater results for the team. The ICC should look long and hard at this opinion when they consider what approach to take towards gas affiliated interest rules. Some commissioners want to issue very limited rules for gas -- this opinion clearly indicates that limits are necessary.

"Townsend, Christopher J. - CHI" <chris.townsend@piperrudnick.com> on 09/08/2000 11:07:58 AM To: "Susan_M_Landwehr@enron.com" <Susan_M_Landwehr@enron.com>, "RBoston@enron.com" <RBoston@enron.com> cc: "lleibma@ect.enron.com" <lleibma@ect.enron.com>, "Montana, James S., Jr. - CHI" <James.Montana@piperrudnick.com>, "Fein, David I. - CHI" <david.fein@piperrudnick.com>, "Skey, Christopher N. - CHI" <christopher.skey@piperrudnick.com> Subject: Illinois Appellate Court Affirms Affiliate Transaction Rules

We received word today that the Fifth District of the Illinois Appellate Court issued its Opinion affirming the Illinois Commerce Commission's order adopting final rules to implement the affiliate transactions rules. The Court found that the ban on joint advertising and marketing was an appropriate restriction upon commercial speech. After conducting the required four-part test to determine the appropriateness of the ban on commercial speech, the Court concluded that the ban passed constitutional muster. The Court sided with Enron, concluding that "joint marketing could lead to discrimination between affiliates and unaffiliated ARES because of customer confusion and the creation of entry barriers." The Court also rejected assertions from Ameren and Illinois Power that some of the rules illegally regulate "competitive services" and that other rules are arbitrary and capricious or not supported by substantial evidence. The Appellate Court seemed to appreciate the importance of the affiliate rules, concluding that "these rules are necessary to accomplish the General Assembly's goal of providing a competitive market for the provision of electric service. Without these rules, utilities would be able to provide their affiliates with competitive advantages that are not available to the unaffiliated ARES, thereby defeating the nondiscrimination between affiliated and unaffiliated ARES that the Customer Choice Law seeks to accomplish." In short, Enron obtained a complete and total victory in the Appellate Court. Attached is a link to the Court's Opinion. Enron is now 2-0 in the Illinois Appellate Courts, having recently received a decision affirming the Commission's order that revised Illinois Power Company's Rate RTP (Real Time Pricing). As always, if you have any questions or comments, please do not hesitate to contact us. <<Illinois Power Co. v. Commerce Comm'n, No. 5-98-0808.url>> <http://www.state.il.us/court/2000/5980808.htm> Christopher J. Townsend Piper Marbury Rudnick & Wolfe 203 N. LaSalle Street Chicago, IL 60601 (312) 368-4039 (direct line) (312) 630-6300 (direct fax) christopher.townsend@piperrudnick.com

The e-mail address and domain name of the sender changed on November 1, 1999. Please update your records.

The information contained in this communication may be confidential, is intended only for the use of the recipient named above, and may be legally privileged. If the reader of this message is not the intended recipient, you are hereby notified that any dissemination, distribution, or copying of this communication, or any of its contents, is strictly prohibited. If you have received this communication in error, please re-send this communication to the sender and delete the original

message and any copy of it from your computer system. Thank you.

For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com/>

- Illinois Power Co. v. Commerce Comm'n, No. 5-98-0808.url

Message 114 of 218

RE: McCain, Lieberman Urge GHG Reductions - White House to "Likely"

| | |
|------------|-----------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['lisa.jacobson@enron.com'] |
| File | kean-s/sent_items/333. |

Please send me the latest version of our multi-pollutant and cap and trade proposals

-----Original Message-----

From: Jacobson, Lisa Sent: Monday, August 06, 2001 1:39 PM To: Keeler, Jeffrey; Robertson, Linda; Terraso, Michael; Kean, Steven J. Cc: Shortridge, Pat; Schoen, Mary; Bolton, Stacey; Mainzer, Elliot; Lei, Wayne; Howley, Elizabeth; Mitchell, Heather; Woods, Trevor; Landwehr, Susan M.; Nicolay, Christi L.; McKalip-Thompson, Catherine; Profir, Diana; Styles, Peter; Badger, Dan; Devlin, Brendan; Bauer, Kate; Grant, Fiona; McClellan, George; Massey II, John; McGowan, Kevin; Schroeder, Mark; Steffes, James D.; Migden, Janine; 'Philip Davies/LON/ECT@ENRON'; 'Alfredo Huertas/LON/ECT@ENRON'; Duvauchelle, Antoine; Bradley, Rob; Boyd, Hap; Brodbeck, Kelly; Schmidt, Ann M.; Nersesian, Carin; Stram, Bruce; Moses, Edwin; Stringer, Alan; Eghneim, Gus; Dindarova, Nailia; Dadson, Aleck; Worthen, Susan; Norton, Dennis; Fuller, Daniel; Van, Henry; Redshaw, Louis; Boddy, Michael; Meyer, Vance; Palmer, Mark A. (PR); Thorn, Terence H.; Taylor, Michael E; Burns, Stephen; Long, Chris; Shapiro, Richard; Shelk, John Subject: McCain, Lieberman Urge GHG Reductions - White House to "Likely" Offer Alternative by COP-7

Before leaving for the August congressional recess, Senator John McCain (R-AZ) and Senator Joseph Lieberman (D-CT) made a joint statement on the Senate floor calling for an economy-wide cap and trade program to reduce greenhouse gas emissions. Please see the attached copy of their floor statements. They laid out a timeframe for consultation with stakeholders, including U.S. industry, and development of legislation this fall. This follows a series of legislative activity in the Senate since the conclusion of the international climate change negotiations in Bonn, Germany in July. At the talks, without the support and direct participation of the U.S., nations agreed to continue to develop the rules for the Kyoto Protocol with a target date for ratification by 2002. Other Senate activity includes: Committee approval of climate change legislation sponsored by Senator Robert Byrd (D-W.Virginia) and Senator Ted Stevens (R-AL). The bill would require development of a U.S. climate change response strategy with a long-term goal of stabilizing greenhouse gas emissions in the U.S. The strategy would seek ways to mitigate emissions and promote technology innovation, climate adaptation research and efforts to resolve scientific and economic uncertainties. It would authorize spending of \$4.9 billion over 10 years. Passage of a non-binding resolution in the Senate Foreign Relations committee calling for the U.S. to engage in the climate change negotiations. Introduction of legislation by Senator Frank Murkowski (R-AL), Senator Chuck Hagel (R-NE), Senator Larry Craig (R-ID) and others that provide for tax incentives for energy efficiency and clean energy technologies, increased research on climate science and government coordination on climate change. Introduction of legislation by Senator Sam Brownback (R-KS) and Senator Ron Wyden (D-OR) to enable reporting and provide credit for land management and sequestration under a national climate change program. Upcoming Administration and Congressional Activity Despite statements made last week by EPA Administrator Christine Whitman and National Security Advisory Condoleezza Rice, White House Chief of Staff Andrew Card said yesterday that the Bush Administration would likely have an alternative climate change proposal for consideration at the next negotiations in Morocco in late-October. A key issue remains whether the Bush Administration will support mandatory programs to reduce greenhouse gas emissions, like a domestic cap and trade system. In March, President Bush said he would not support mandatory regulation of carbon dioxide emissions at power plants. As recent events suggest, consideration of mandatory programs and emissions trading, including regulation of carbon, will be on the Senate agenda this fall. Approaches to reduce greenhouse gas emissions will be considered through hearings and committee consideration of climate change legislation, multipollutant proposals and

New Source Review reform. Enron's Advocacy Enron will continue to promote its multipollutant proposal as a model for a domestic cap and trade program -- that could also provide a framework to address carbon emissions. We will also offer our expertise on emissions trading and risk management to the Administration and Congress as they consider options to address climate change. I will keep you posted on the status and movement on these legislative proposals. Please feel free to contact me with questions about any of these proposals. Please see links to several related news stories below:

Aide: Bush Warming Plan Likely Card Is 'Optimistic' Kyoto Alternative Will Be Ready by Fall

<http://www.washingtonpost.com/wp-dyn/articles/A35811-2001Aug5.html> McCain, Lieberman Urge Greenhouse Gas Curbs
Senators Press Bush on Global Warming <http://www.washingtonpost.com/wp-dyn/articles/A29163-2001Aug3.html> << File: liebmccain.statements.doc >>

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 115 of 218

Analysis of Bonn Agreement on Kyoto Protocol "political issues"

| | |
|------------|--|
| Sender | lisa.jacobson@enron.com |
| Recipients | ['stacey.bolton@enron.com', 'linda.robertson@enron.com', 'pat.shortridge@enron.com', 'jeffrey.keeler@enron.com...] |
| File | kean-s/environmental_issues/215. |

Agreement was reached on Monday, July 23 on several key political issues related to the Kyoto Protocol. Delegates at the Bonn climate change negotiations are expected to work through Saturday to develop additional decisions that will "incorporate and give full effect" to the agreement. It is likely that adoption of some (or all) of these decisions will be pushed to the next set of negotiations in Morocco this fall.

Despite the media attention, there is a long and complex road ahead to a ratified treaty. The major outcome of Bonn is that the road is still being traveled. The agreement only covered a subset of key political issues. Further, developed countries want the U.S. on board and this leaves room for the Bush Administration to offer an alternative -- though the window of opportunity could close shortly. Please see links to several editorials below.

Impact on Enron Even though the U.S. did not adopt this agreement and the Bush Administration will not support the Kyoto Protocol, its impact on Enron as well as other multinationals is unclear. The Kyoto Protocol negotiations have been driven by governments and impose mandatory emissions reduction targets on developed country governments that are Parties to the Protocol. However, industry will have a role in complying with emissions reduction obligations.

While the European Union has promoted "harmonized policies and measures" throughout this process, the Protocol leaves decisions on implementation of treaty obligations to domestic governments (that are Parties to the agreement). Presently, U.S. companies with operations in countries that are Parties to the Protocol -- and have obligations under the Protocol -- could face different standards, new greenhouse gas emissions regulations, domestic carbon taxes, among other options. It is too early to tell how these issues will impact competitiveness or whether they will be interpreted as non-tariff trade barriers.

Further, only Parties to the Protocol can utilize the market-based mechanisms under the Protocol (emissions trading, and project-mechanisms in developing countries through the Clean Development Mechanism, and project based mechanisms in other developed countries through Joint Implementation). Because the details are not yet worked out, it is unclear whether Enron would be able to participate in mechanisms or trading through offices in other countries outside the U.S. It will be important that the U.S. develop linkages with the market-based mechanisms to enhance a global market for greenhouse gas emissions credits and lower compliance costs for firms with obligations.

The agreement also increased the amount of carbon sinks that can be counted toward meeting a Party's emission reduction target in the first budget period (2008-2012). The U.S. was set aside 28 million Mt C/yr in the event that it joins in at a later date. Increased carbon accounting has the effect of lowering the burden of the emissions reduction target in the first budget period. Of note, at the last set of negotiations in The Hague last November, the U.S. was close to receiving

over 60 Mt C/yr. This could contribute to more costly and burdensome reductions in the future for U.S. firms (as the U.S. could have a more stringent target to meet).

Key Provisions of the Political Agreement

Please see a summary of major elements of the Bonn agreement below. I have also included a detailed summary provided by the Pew Center on Global Climate Change.

MARKET BASED MECHANISMS

Emissions Trading No quantitative limits on the use of the market-based mechanisms (emissions trading, CDM or JI). The EU retreated on this point. No levy imposed on transactions. Developing countries had championed levies as a source of financial assistance. Seller liability would apply to transactions, with a commitment period reserve of either 90% of a Parties total budget (more attractive for net buyers) or the equivalent of five times its last national inventory (more attractive for net sellers). This allows Russia to sell its "hot air" credits.

Clean Development Mechanism and JI Nuclear power projects are not permitted under the CDM or JI Afforestation and reforestation are the only eligible sequestration projects under the CDM Small project "fast track" window in the CDM for renewable energy projects <15 MW, for efficiency and other projects equivalent to less than 15 GWh per year, and for new emitting projects that reduce emissions and with emissions of less than 15,000 tons per year.

COMPLIANCE

If parties are found in non-compliance, their compliance amount for the second commitment period is increased, they must formulate an action plan, and they are not permitted to participate in emissions trading. This language is not legally binding, but political pressure to enforce the treaty obligations was likely to be the biggest driver for now. The legally binding nature of the compliance regime will be revisited at the first meeting of the Parties to the Protocol (this would occur when and if it enters in to force).

Recent Editorials

Please see the attached links to editorials from USA Today, The Washington Post, The New York Time and The Wall Street Journal.

<http://www.usatoday.com/news/comment/2001-07-25-nceditf.htm>

<http://www.washingtonpost.com/wp-dyn/articles/A52395-2001Jul25.html>

<http://www.nytimes.com/2001/07/24/opinion/24TUE1.html>

<http://www.techcentralstation.com/NewsDesk.asp?FormMode=MainTerminalArticles&ID=77> (Wall Street Journal)

Please feel free to contact me with any questions.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 116 of 218

Env. Spend - 2000

| | |
|------------|--|
| Sender | shelley.johnson@enron.com |
| Recipients | ['daniel.coleman@enron.com', 'steven.kean@enron.com', 'susan.worthen@enron.com'] |
| File | kean-s/all_documents/5272. |

The attachment includes the list of environmental companies provided to me, and companies with "enviro" in the name. The total spend equals \$40,817,587. You may find the separate business units spend under each company line. I included "other companies" in a separate tab for your observation. These companies may have similiar names (ex. agra and agra earth & environmental). Please advise. This involves an extra \$3 M. In another separate tab, are companies that I could not find. Please let me know if you have any more information on these companies.

Please call if you have any questions. Thank you.

Best regards,

Shelley Johnson

Business Analyst Global Strategic Sourcing 713-345-6528 333 Clay Street 1116d Houston, TX 77251
shelley.johnson@enron.com

Message 117 of 218

PEP Quick Reference Guide and Follow-up PRC Training

| | |
|------------|---------------------------------|
| Sender | ruth.brown@enron.com |
| Recipients | ['all.ees@enron.com'] |
| File | kean-s/calendar/untitled/17423. |

The following message is from Ray Bennett, Vice President, Human Resources:

The PEP Quick Reference Guide is attached for your reference.

The Human Resources Department will be conducting training classes on the mid-year performance management process for those employees who were unable to attend a floor meeting or would like more detailed information regarding the PEP system. Meetings will be held at the Doubletree Hotel in the Granger A room at the following times:

Tuesday, May 16th, 2000 Wednesday, May 17th, 2000

9:00am - 10:00am 9:00am - 10:00am 2:00pm - 3:00pm 2:00pm - 3:00pm

If you have any questions or need assistance, please call the PEP Help Desk:

Houston: 713-853-4777, option 4 Europe: 44 207783-4040, option 4

or email your questions to: perfmgmt@enron.com

For further information, contact your HR representative.

Message 118 of 218

Conference Call to discuss E-Trans Roll-Out

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['maureen.mcvicker@enron.com'] |
| File | kean-s/archiving/untitled/792. |

calendar ----- Forwarded by Steven J Kean/NA/Enron on 10/09/2000 03:31 PM -----

Marcia A Linton 10/09/2000 10:40 AM

To: James D Steffes/NA/Enron@Enron, Sarah Novosel/Corp/Enron@ENRON, Christi L Nicolay/HOU/ECT@ECT, Joe Hartsoe/Corp/Enron@ENRON, Thane Twiggs/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Steve Walton/HOU/ECT@ECT cc: Richard Shapiro/NA/Enron@Enron, Steven J Kean/NA/Enron@Enron, Joe Hartsoe/Corp/Enron@ENRON, Jeff Brown/NA/Enron@Enron Subject: Conference Call to discuss E-Trans Roll-Out

A conference call has been set up from 9:30 - 10:30 am Wednesday, October 11 to discuss the roll-out plan for project E-Trans. The call in number is 888-476-3762, Host Code (for Jeff only) is 319346, Participant Code (for everyone else) is 697588. Conference room EB-47C1 in Houston has been reserved for this call.

If you have any questions regarding this call, please give me a call at Ext. 33226.

Thanks, Marcia

Message 119 of 218

Re: Thank you for taking time out of your schedule to speak at Rice

| | |
|-------------------|----------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['john.baker@daniel.com'] |
| File | kean-s/all_documents/1957. |

Thanks, I enjoyed it too and would be happy to do it again.

John Baker <John.Baker@daniel.com> 11/15/2000 07:47 AM

To: "skean@enron.com" <skean@enron.com> cc: "Christie_Patrick@enron.com" <Christie_Patrick@enron.com>
Subject: Thank you for taking time out of your schedule to speak at Rice

Steven,

Thank you for visiting with my class at Rice last night. They thoroughly enjoyed your talk -- after you left for the evening, we had a good discussion on topics that you had raised. My apologies again for the room mix up; somehow between myself, the university, and my secretary, the classroom assignment changed several times and the update did not get to you.

Next year, if your schedule permits, perhaps you would consider a return engagement. I would certainly enjoy having you back.

Regards, John

John A. Baker Director of Information Technology Fisher-Rosemount / Daniel (A Division of Emerson Electric) 9753 Pine Lake Drive Houston, TX 77055 713-827-3328 John.Baker@daniel.com

Message 120 of 218

FW: Main menu mock

| | |
|-------------------|---------------------------|
| Sender | traci.warner@enron.com |
| Recipients | ['steven.kean@enron.com'] |
| File | kean-s/houston/1. |

Steve -

Just wanted to let you know things are progressing nicely on the Houston Video. Mark Palmer's group have given me support on the video copy and Beth Stier has stayed in contact with the video company to ensure quality for us.

I will set up some time to go over the mock up with you later this week.

Hope all is well with you.

Traci

-----Original Message-----

From: Tara Osborn [mailto:tara@nion-is.com] Sent: Wednesday, April 04, 2001 6:11 PM To: twarner@enron.com Subject: Main menu mock

Traci,

Good morning. I have worked up a "mock" for the main menu for the Houston Project we are working on. This will come onto the screen after the video, you will use it to navigate to your custom page.

If you could please take a look at the mock at this link:<http://www.nionis.com/houston/index.htm>

Please let me know your feedback.

Thank you, Tara

Tara Osborn Multimedia Developer NION Interactive Solutions 1301 Capital of Texas Highway Suite B-310 Austin, Texas 78746 (512) 306-1442 ext. 106

Message 121 of 218

Background Information for Lay/Fox Meeting

| | |
|------------|--|
| Sender | karen.denne@enron.com |
| Recipients | ['steven.kean@enron.com', 'ricardo.charvel@enron.com', 'mark.palmer@enron.com', 'cindy.derecskey@enron.com'] |
| File | kean-s/calendar/untitled/936. |

Ricardo -- Per your request, here is some general information about Enron that should be helpful in providing background materials for the Lay/Fox meeting. I've attached the corporate fact sheet, second quarter earnings analyst presentation, EBS profile and recent news articles about Enron. Please let me know if you need additional information.

Thanks. Karen 713-853-9757

http://www.businessweek.com/2000/00_30/b3691034.htm?scriptFramed

<http://www.fortune.com/fortune/2000/08/14/pre.html>

<http://www.fortune.com/fortune/technology/2000/01/24/eco.html>

<http://www.fortune.com/fortune/fortune500/enr.html>

<http://www.forbes.com/forbes/00/0724/6517145a3.htm>

http://www.businessweek.com/common_frames/bws.htm?http://www.businessweek.com/2000/00_20/b3681075.htm

http://www.businessweek.com/common_frames/bws.htm?http://www.businessweek.com/ebiz/0007/0713skilling.htm

<http://www.business2.com/content/magazine/indepth/2000/06/01/11888>

<http://www.forbes.com/tool/html/00/jul/0720/mu4.htm>

http://cbs.marketwatch.com/archive/20000410/news/current/diligence.htx?source=htx/http2_mw

<http://eeshou-etv02.ees.enron.com/moneyline/moneyline.ram>

Message 122 of 218

EEl's Workshop...New Speakers and Presentations Added...CheckIt

| | |
|------------|--------------------------------------|
| Sender | gcroom@eei.org |
| Recipients | ['undisclosed-recipients@enron.com'] |
| File | kean-s/deleted_items/354. |

Edison Electric Institute present: Summer of 2001: Lessons Learned For A Brighter Future

New Presentations and Speakers Added !

December 5-6, 2001 EEI's Office, Washington, DC

EEI's Marketing/Services Resource Workshop is the place for you to learn about the latest energy happenings affecting commodity sales, non-commodity sales, new products and services, e-commerce, load management/demand response, energy efficiency, customer relationships, marketing strategy and market communication and advertising.

This workshop will focus on the challenges of marketing and communicating to customers about energy efficiency, demand responsiveness, peak loads, rising prices and power emergencies. Also, unique to this workshop will be "hot off the press" information about federal decisions and activities that could affect how you do business.

Registration Form and Agenda available online at: <http://www.eei.org/resources/meetings/011205.htm>

Questions? Please contact Gail Croom at: 202-508-5548

Gail A. Croom Energy Services Edison Electric Institute 701 Pennsylvania Ave., NW Washington, D.C. 20004-2696
Phone: 202/508-5548 Fax: 202/508-5038 E-mail: gcroom@eei.org

Message 123 of 218

PUBLIC OPINION STRATEGIES - Enron Executive Summary

| | |
|------------|---|
| Sender | cindy.derecskey@enron.com |
| Recipients | ['steven.kean@enron.com', 'karen.denne@enron.com', 'richard.shapiro@enron.com'] |
| File | kean-s/california/303. |

----- Forwarded by Cindy Derecskey/Corp/Enron on 03/13/2001 04:10 PM -----

"Nicole Fink" <nicole@pos.org> 03/13/2001 04:06 PM

To: mpalmer@enron.com, janel.Guerrero@enron.com, david Lugar <DLugar@QuinnGillespie.com>, aameece@qgadc.com cc: rSCHRIEFER@aol.com, bill McInturff <bill@pos.org>, matt Jason <matt@pos.org> Subject: Enron Executive Summary

Enron Team:

Attached please find an executive summary from the California statewide survey. We will do the full presentation of the survey findings on Friday's conference call (call in information will be sent to you shortly).

Please give me a call or send an email with any questions or comments. Thanks.

Nicole Fink Public Opinion Strategies (703) 836-7655 nicole@pos.org

The following section of this message contains a file attachment prepared for transmission using the Internet MIME message format. If you are using Pegasus Mail, or any another MIME-compliant system, you should be able to save it or view it from within your mailer. If you cannot, please ask your system administrator for assistance.

----- File information ----- File: exec summary.PDF Date: 13 Mar 2001, 16:33 Size: 18951 bytes. Type: Unknown

- exec summary.PDF

Message 124 of 218

Reliability Paper

| | |
|------------|--|
| Sender | eric@ehirst.com |
| Recipients | [' eric@ehirst.com '] |
| File | kean-s/calendar/untitled/611. |

Dear Colleague,

Earlier this month, the Edison Electric Institute published a paper I wrote on Bulk-Power Reliability: Potential Problems and Possible Solutions. Although aimed at the general reader, I hope you'll find the paper interesting. It is available on the Publications page of my website: www.EHirst.com.

The key problems I identify include:

Declining generation reserve margins,

Declining transmission capacity relative to load, leading to

Increasing transmission congestion, and

Growing number and complexity of bulk-power transactions.

The primary solutions I discuss include:

Federal legislation to (1) extend FERC authority over the entire bulk-power industry for reliability and (2) oversee a single North American reliability organization that sets mandatory standards;

Large regional transmission organizations;

Decide who decides where and when to build new transmission lines, with regional solutions? likely better than local ones; and?

Expand demand-side participation in energy and ancillary-service markets.

Please let me know if you have any comments on the paper.

Eric

Eric Hirst Consulting in Electric-Industry Restructuring 106 Capital Circle Oak Ridge, TN 37830 865-482-5470 (phone & fax)??? Eric@EHirst.com <http://www.EHirst.com/>

Message 125 of 218

FW: order cybercitysoftware-5260 from Cyber City Software

| | |
|------------|------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['kean@rice.edu'] |
| File | kean-s/sent_items/265. |

Let Maggie know. I love you. -----Original Message----- From: Cyber City Software [<mailto:sales@cybercitysoftware.com>]
Sent: Sunday, August 12, 2001 6:11 PM To: steven kean Subject: order cybercitysoftware-5260 from Cyber City Software

Most orders are shipped within 48 hours from the time that the order is received so your order should arrive to you within 4-7 days if you are in the United States (there is no way to determine the travel time of any package outside of the U.S.)

If your package has not reached you within 4-7 days plesae contact us at sales@cybercitysoftware.com and ask. Thank you.

You can always see your order by going to

<http://order.store.yahoo.com/OS/stat?cybercitysoftware+5260+7d2510cab6a148dcb2fb>

Date Sun Aug 12 16:10:51 PDT 2001 Ship to steven kean 3631 meadowlake houston TX 77027 US United States
713-621-6559 Bill to Same Where did you hear about us? E-Mail skean@enron.com (emailed) Via USPS or UPS for orders over 3 lbs. Payment MasterCard

Name Code Qty Each Options

Dogz 4 C769 1 11.99 Subtotal 11.99 Shipping 4.99 Tax 0.00 Total 16.98

Message 126 of 218

Meeting on November 10, 2000

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['maureen.mcvicker@enron.com'] |
| File | kean-s/all_documents/1918. |

per our discussion. Want to schedule a tour and want to make sure that Marchris is avail (let Rick and Montovano know)
----- Forwarded by Steven J Kean/NA/Enron on 11/13/2000 09:26 AM -----

Naomi Olson <NOlso@annislaw.com> 11/09/2000 04:58 PM

To: "'skean@enron.com'" <skean@enron.com> cc: "'mmcvicke@enron.com'" <mmcvicke@enron.com>, Stephen Mitchell <SMITC@annislaw.com> Subject: Meeting on November 10, 2000

Mr. Mitchell will not be able to attend the meetings in Texas on November 10, 2000 that were scheduled earlier this week. He is assisting the National Republican Party in resolving the issues that have arisen in several counties here in Florida and has been asked to attend to those matters again on Friday, November 10, so that the election process can be completed. Mr. Mitchell's assistant (Naomi) will call you on Monday, November 13th, to reschedule this meeting. Thank you for your attention to this matter and we apologize for any inconvenience this may cause. Naomi Olson, assistant to Stephen J. Mitchell This email is for the sole use of the intended recipient(s) and may contain confidential and privileged information. Any unauthorized review, use, disclosure or distribution of this email or its contents is strictly prohibited. If you are not intended recipient, please contact the sender by reply email and destroy the original and all copies of the original message. Annis, Mitchell, Cockey, Edwards & Roehn, P.A. 201 North Franklin Street, Suite 2200 Tampa, Florida 33602 (813) 229-3321

Message 127 of 218

Memo on DOE Emergency Authority

| | |
|------------|---|
| Sender | sarah.novosel@enron.com |
| Recipients | ['steven.kean@enron.com', 'richard.shapiro@enron.com', 'john.shelk@enron.com', 'linda.robertson@enron.com'] |
| File | kean-s/bush/13. |

Rick and Steve:

Per Rick's request, attached is the memorandum prepared by V&E last summer regarding possible emergency action DOE could take on open access issues.

As Rick and I discussed this morning, we are trying to assess what authority DOE has, and what authority it would need, to enable it to take emergency action this summer if things start to go badly. I will be working with Linda and John Shelk here in Washington on this issue. We will let you know what we come up with.

Sarah

----- Forwarded by Sarah Novosel/Corp/Enron on 04/30/2001 10:28 AM -----

"Bobbish, Donna J." <dbobbish@velaw.com> 04/30/2001 09:43 AM

To: "'snovose@enron.com'" <snovose@enron.com> cc: Subject: Requested Memorandum

Sarah: Adam indicated that you wanted this memo sent again. Please let me know if you need anything more. Donna

Donna J. Bobbish Of Counsel Vinson & Elkins 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008 (202) 639-6618

+++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You <<interim emergency approaches.DOC>>

- interim emergency approaches.DOC

Message 128 of 218

UK Technology Forum

| | |
|------------|------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['kelly.kimberly@enron.com'] |
| File | kean-s/attachments/2060. |

Any interest? ----- Forwarded by Steven J Kean/NA/Enron on 01/21/2001 03:26 PM -----

Brian Medd-Sygrove <Brian.Medd-Sygrove@houston.mail.fco.gov.uk> 01/19/2001 12:11 PM

To: "skean@enron.com" <skean@enron.com> cc: Subject: UK Technology Forum

Dear Steven,

You have very kindly directed us in the right direction before.

Derek (Goodwin) has asked me to contact you. Derek is organizing a UK Technology Forum on behalf of the Houston British Consulate General & Invest.UK offices to be held in Houston in March. The purpose of which is to foster & strengthen links between the technology-driven communities of Houston & the UK. BT will showcase the leading-edge technology infrastructure in the UK and a British Consulate General/Invest.UK speaker will outline of the resources available to facilitate business expansion to the UK.

The Forum will take the form of a breakfast & include the welcome & introduction of a keynote speaker and a panel of 3 other speakers from Houston based technology companies that have set-up an operation in the UK. The panelists will give a brief overview of the why's & wherefor's behind their decision to locate in the UK. The Forum will conclude with a moderated Q&A session.

As Houston is a fast growing high-tech city, especially in the energy sector, Derek has asked if you can refer him to the right person within Enron with whom he can speak regarding Enron's possible involvement in the Forum.

We'd appreciate any help you can give.

Sincerely,

Brian Medd-Sygrove Vice Consul (Investment) Invest.UK British Consulate General 1000 Louisiana, Suite 1900 Houston Texas 77002 713 659 6275 Ext 42

- EXCHANGE(SE).RA-ATT

Message 129 of 218

Another FERC related PRESS RELEASE

| | |
|------------|--|
| Sender | joseph.alamo@enron.com |
| Recipients | ['susan.mara@enron.com', 'maureen.mcvicker@enron.com', 'sandra.mccubbin@enron.com', 'ginger.dernehl@enron.com']... |
| File | kean-s/calendar/untitled/1801. |

FOR IMMEDIATE RELEASE November 1, 2000 CONTACT: PG&E News Department (415) 973-5930 77 Beale Street, San Francisco CA 94105

Pacific Gas and Electric Company Welcomes FERC Report San Francisco - Pacific Gas and Electric Company issued the following statement on the report issued by the Federal Energy Regulatory Commission (FERC) today: "Pacific Gas and Electric Company is pleased that FERC has used its authority to give California many of the tools we need to fix the wholesale electricity markets in this state. We agree with Chairman Hoecker and other FERC commissioners that this report is a sound beginning to the process of repairing the marketplace, but that more actions will need to be taken, at both the state and federal level, before the goal of a working, competitive energy market can be realized in California. "The new bid framework the Commission ordered represents a creative attempt to fix the market and moderate prices, while still allowing competition to evolve. Our hope is that this new framework will be successful in moderating electricity prices. "While the report does not find evidence of market power abuse in California this summer, FERC does provide for potential refunds, should abuse be discovered, effective as of the beginning of October 2000. "We are very pleased with the opportunity the Commission has given us to review and comment upon this report, and look forward to providing our comments on November 9, and throughout this proceeding." The FERC action comes one day after Pacific Gas and Electric Company made an unprecedented \$790 million payment to the Power Exchange for wholesale electricity costs for the single month of August 2000. "The wholesale electric market in California is clearly broken," said Gordon R. Smith, president and chief executive officer of Pacific Gas and Electric Company. "We cannot continue to borrow money to pay excessive wholesale power prices, which will hit our customers sooner or later. We welcome thoughtful intervention to repair the market." # # #

Message 130 of 218

Can you help me?

| | |
|------------|---------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['george.wasaff@enron.com'] |
| File | kean-s/calendar/untitled/12920. |

----- Forwarded by Steven J Kean/NA/Enron on 07/06/2001

07:40 AM -----

steve.knight@businesslayers.com on 06/25/2001 12:57:25 PM To: Steven J Kean/NA/Enron@Enron cc:

Subject: Can you help me?

I am looking for some help in identifying the right person(s) at: Enron Corp., for an introduction of our software solution. Steven, if you could take a moment and point me to the appropriate contact I would greatly appreciate it.

Summary of eProvisioning:

eProvisioning radically improves people's Time-To-Productivity by transforming the disparate activities that allocate IT resources to people into a secure and automatic process. Once provisioned, these resources remain digitally connected to each person as they move through the business cycle and are dynamically updated as necessary. At the appropriate time, they are systematically, securely and automatically removed.

Organizations that employ eProvisioning gain a competitive edge and access complete security by ensuring that people are kept productive from day one, and are prevented from becoming counterproductive beyond the day they leave. In addition, by aligning their IT infrastructure with business priorities, organizations can effectively manage change across the extended enterprise, and better respond to emerging market requirements.

eProvision Day One provides business and IT executives with the ability to quickly identify bottlenecks and maintain accountability of the eProvisioning process through comprehensive reporting and tracking capabilities. As business relationships between organizations expand, Business Layers technology provides the framework for integration and interoperability between eProvisioning partners - suppliers and service providers, devices and applications - which are the digital foundations of the Internet economy.

Please, if you could give me a few minutes of your valuable time or guide me to the right person to describe the significant benefits of what we offer."

Web Site: <http://www.businesslayers.com>

Demo-Site: <http://demo.businesslayers.com> User: blayers Pass: blayers

Thank you for your time.

Steve Knight SC Regional Sales Manager Business Layers, Inc. 817-490-0170

Message 131 of 218

Re: FW: Follow up -- Council of Energy Advisors

| | |
|------------|-------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [sherri.sera@enron.com] |
| File | kean-s/sent_items/224. |

I doubt that this is worth the trouble (i.e. running it through a conflict of interest check, ensuring no liability for actions taken on the advice, etc).

From: Sherri Sera/ENRON@enronXgate on 06/21/2001 10:13 AM To: Steven J Kean/NA/Enron@Enron cc: Joannie Williamson/ENRON@enronXgate

Subject: FW: Follow up -- Council of Energy Advisors

Steve, we have no record of receiving the original invitation, but is this anything you would recommend? Please advise.
Thanks, SRS

-----Original Message-----

From: <mobrien@glgroup.com>@ENRON
[mailto:IMCEANOTES--+3Cmobrien+40glgroup+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, June 21, 2001 10:07 AM To: sreinar@enron.com Subject: Follow up -- Council of Energy Advisors

Dear Jeffrey,

I would like to follow up on the email regarding a personal invitation to join the Council of Energy Advisors that I recently sent you.

I wanted to see if there are any additional questions I can answer. To reiterate, the Council is an organization of top engineers, corporate representatives, and energy experts that we pay (e.g. \$250/hr) to consult via phone and email for our client base of more than 90 investment managers.

I feel that your background and expertise would be an asset to the Council. Please feel free to register online at <http://www.thecouncils.com/peapp.asp?copaid=75344579&invid=56> (just a quick 5-minute form). Also, you can learn more about our work at www.thecouncils.com.

Thanks for your consideration, I look forward to working with you. Again, please contact me anytime if if you have any remaining questions.

Best regards, Matt

Matthew O'Brien Gerson Lehrman Group Council of Energy Advisors 11 E. 44th St., 11th floor New York, NY 10017 (212) 838-6900 ext. 265

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Message 132 of 218

Re: FW: Follow up -- Council of Energy Advisors

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['sherri.sera@enron.com', 'Joannie Williamson/ENRON@enronXgate'] |
| File | kean-s/all_documents/8853. |

I doubt that this is worth the trouble (i.e. running it through a conflict of interest check, ensuring no liability for actions taken on the advice, etc).

From: Sherri Sera/ENRON@enronXgate on 06/21/2001 10:13 AM To: Steven J Kean/NA/Enron@Enron cc: Joannie Williamson/ENRON@enronXgate

Subject: FW: Follow up -- Council of Energy Advisors

Steve, we have no record of receiving the original invitation, but is this anything you would recommend? Please advise.
Thanks, SRS

-----Original Message-----

From: <mobrien@glgroup.com>@ENRON
[mailto:IMCEANOTES-+3Cmobrien+40glgroup+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, June 21, 2001 10:07 AM To: sreinar@enron.com Subject: Follow up -- Council of Energy Advisors

Dear Jeffrey,

I would like to follow up on the email regarding a personal invitation to join the Council of Energy Advisors that I recently sent you.

I wanted to see if there are any additional questions I can answer. To reiterate, the Council is an organization of top engineers, corporate representatives, and energy experts that we pay(e.g. \$250/hr) to consult via phone and email for our client base of more than 90 investment managers.

I feel that your background and expertise would be an asset to the Council. Please feel free to register online at <http://www.thecouncils.com/peapp.asp?copaid=75344579&invid=56> (just a quick 5-minute form). Also, you can learn more about our work at www.thecouncils.com.

Thanks for your consideration, I look forward to working with you. Again, please contact me anytime if if you have any remaining questions.

Best regards, Matt

Matthew O'Brien Gerson Lehrman Group Council of Energy Advisors 11 E. 44th St., 11th floor New York, NY 10017 (212) 838-6900 ext. 265

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Message 133 of 218

FW: Financial Times article

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | [chris.long@enron.com', 'mark.metts@enron.com', 'linda.robertson@enron.com'] |
| File | kean-s/sent/1457. |

Mark also forwarded a voicemail from Doty. Doty goes into great length about his discussions with Gramm (both of them) and professes to have not only a good relationship but also the support of the Senator. At this point, any reason not to get the letter prepared for Ken's signature? ----- Forwarded by Steven J Kean/NA/Enron on 04/02/2001 09:49 AM -----

Mark Metts/Enron@EnronXGate 04/02/2001 08:10 AM

To: Steven J Kean/NA/Enron@Enron, Linda Robertson/NA/Enron@ENRON, Chris Long/Corp/Enron@ENRON cc:
Subject: FW: Financial Times article

As a follow-up to Chris's question about Jim Doty and Wendy Gramm.

-----Original Message-----

From: james.doty@bakerbotts.com@ENRON

[mailto:IMCEANOTES-james+2Edoty+40bakerbotts+2Ecom+40ENRON@ENRON.com] Sent: Monday, April 02, 2001 7:51 AM To: mmetts@enron.com Subject: FW: Financial Times article

Mark: This is the article I mentioned in my voice mail. For the record, I have said early and often, that the inter-agency disputes among the financial regulatory agencies (which the Administration of George H.W. Bush inherited and did not create, by the way), are unacceptable and must be avoided. The Dems, of course, love to get this sort of thing going, as it enables them to hold hearings on the need for further legislation to re-regulate. The fact that this President's father came to the White House in the denouement of a multi-billion dollar savings and loan crisis which he did not create is also usually forgotten.

As I said in my voicemail and as the attached article confirms, I think there is no substance to the rumor that Sen. Gramm would be opposed to my nomination. As one of the few who contributed generously to his own Presidential Exploratory Committee in 1995-6, I think I stand in pretty well with the Senator and we would work well together. After our last meeting, I think he would feel the same way.

-----Original Message----- From: Jordan, Jon Sent: Monday, March 12, 2001 1:13 PM To: Doty, James Subject: Financial Times article Jim: As you may already have read, below is an article that was published in the Financial Times today mentioning your prospects. <http://news.ft.com/ft/gx.cgi/ftc?pagename=View&c=Article&cid=FT3JC7587KC&live=true&useoverride=IXLZHNNP94C> I have heard that internally, the Staff is all pushing for you. Jon B. Jordan Baker Botts L.L.P. The Warner 1299 Pennsylvania Ave., N.W. Washington, D.C. 20004-2400 202-639-7743 (direct) jon.jordan@bakerbotts.com

Message 134 of 218

FW: Enron's Secrets Revealed

| | |
|------------|---|
| Sender | j..kean@enron.com |
| Recipients | ['john.sherriff@enron.com', 'john.brindle@enron.com'] |
| File | kean-s/sent_items/302. |

I believe we have this already. John B could you send a copy to John S. -----Original Message----- From: Sherriff, John
Sent: Thursday, August 23, 2001 12:13 AM To: Kean, Steven J. Subject: FW: Enron's Secrets Revealed

This is not cheap but we might want to get at least one copy to see what they are saying?

John How has Enron achieved success in the changing market landscape?

Enron's Secrets Revealed

Global Change Associates is pleased to announce the publication of a new corporate profile entitled, "Enron 2001: An Inside View". This objective study takes an insider's look at Enron, specifically, how the firm operates and the keys to its success. Much of the information provided comes from first hand accounts and covers areas such as:

The firm's structure and operations The recruitment and training of new employees How Enron empowers and compensates its employees The keys to structuring Enron type "risk free" transactions How to negotiate with Enron Why Enron occasionally forgives counterparty obligations Is the Enron model right for your organization?

Enron 2001: An Inside View is a unique publication. It provides valuable insight into the firm's operations and analyzes its successes and failures. For those firms dealing directly with Enron, or thinking about adopting some of Enron's business practices, it is an invaluable, must have tool.

This innovative study is available for purchase at \$995.00.

Special Bonus: Purchase this report before August 31, 2001 through Energy Central and you will receive a six-month individual subscription to the Daily Electric Power News for free. Already a subscriber? Not a problem, you will receive a six-month extension on your current individual subscription.

Purchase Electronic Version <http://www.energycentral.com/sections/research/section_cart_interface.cfm?id=100459>

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Review Table of Contents <http://www.energycentral.com/sections/research/research_gca_toc.cfm> Purchase via facsimile <http://www.energycentral.com/sections/research/report_gcafaxorder.cfm>

For more information on this product please contact Mark Johnson at 800.459.2233 or via email at mark.johnson@energycentral.com <<mailto:mark.johnson@energycentral.com>>

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<http://www.energycentral.com/global/email_track.cfm?id=10007>

Message 135 of 218

Final California Polling Results - Raw Data

| | |
|------------|--|
| Sender | mark.palmer@enron.com |
| Recipients | ['karen.denne@enron.com', 'richard.shapiro@enron.com', 'janel.guerrero@enron.com'] |
| File | kean-s/attachments/459. |

Group,

Here's the raw data from the California poll. Great news, here. As you can see by the progression of the numbers, by slightly changing the message, we went from getting killed by the Davis plan to actually breaking even with it and even beating it significantly.

Some takeaways:

1. By using the right words, a competing/alternate plan to the governor's will win in the polls. 2. Education is at least as important as electricity. 3. The thought of wiping out the budget surplus by spending it on the grid, rather than schools and hospitals, tilts the scales in our favor. 4. Finally, by broadening the demand buy-down program to "consumers," we win the argument by a wide margin.

Next steps:

Take a look at the results. Pay special attention to how the words matter, especially on the questions where our results improved as we altered the message. By late Monday, we'll have the crosstabs. We won't have the full analysis and presentation until Friday, though, so I don't think we should share the poll with anybody until then. We could use a few of the numbers in the business letter and with VERY good friends in the Assembly.

The key questions are 19, 21, 24, 45 (look at how a change in wording changed the results), 46 (another example of better wording yielding better results, especially on the March 8 poll), 49, 50, 51 (in particular, March 7-8 poll).

See you on the call.

Mark

----- Forwarded by Mark Palmer/Corp/Enron on 03/09/2001 01:53 PM -----

"Nicole Fink" <nicole@pos.org> 03/09/2001 09:15 AM

To: Mpalmer@enron.com, RSCHRIEFER@aol.com, aameece@qgadc.com cc: Matt Jason <matt@pos.org>, Bill McInturff <bill@pos.org> Subject: Final California Results

Enron Team:

Attached please find the interview schedule with the overall results from the California statewide survey. Please give us a call if you have any questions. Thanks.

Nicole Fink Public Opinion Strategies (703) 836-7655 nicole@pos.org

The following section of this message contains a file attachment prepared for transmission using the Internet MIME message format. If you are using Pegasus Mail, or any another MIME-compliant system, you should be able to save it or view it from within your mailer. If you cannot, please ask your system administrator for assistance.

---- File information ----- File: ENRON CA Statewide Interview Schedule.wpd Date: 9 Mar 2001, 10:09 Size: 132204 bytes. Type: WordPerfect

- ENRON CA Statewide Interview Schedule.wpd The following section of this message contains a file attachment prepared for transmission using the Internet MIME message format. If you are using Pegasus Mail, or any another MIME-compliant system, you should be able to save it or view it from within your mailer. If you cannot, please ask your system administrator for assistance.

---- File information ----- File: Schedule.PDF Date: 9 Mar 2001, 10:14 Size: 58861 bytes. Type: Unknown

- Schedule.PDF

Message 136 of 218

Re: Conversation with Wanda Curry

| | |
|-------------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['Mary Joyce/Enron@EnronXGate', 'michelle.cash@enron.com'] |
| File | kean-s/calendar/untitled/8616. |

Yes. Mary will discuss with you.

Michelle Cash @ ECT 05/24/2001 04:35 PM

To: Steven J Kean/NA/Enron@ENRON cc: Mary Joyce/Enron@EnronXGate

Subject: Re: Conversation with Wanda Curry

Did we offer her a contract in any of the scenarios?

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

Steven J Kean@ENRON 05/23/2001 06:40 PM

To: Michelle Cash/HOU/ECT@ECT, Mary Joyce/Enron@EnronXGate cc: Subject: Conversation with Wanda Curry

Today, Mary Joyce and I met with Wanda Curry. I realize that there is some concern that Wanda is a litigation threat, so for the purposes of soliciting legal advice and in anticipation of litigation, I am forwarding my recollection of today's meeting to you:

Wanda remains very emotional about what she perceives as "unfair and discriminatory" treatment. When I asked her what she meant specifically (and did she intend those terms to have their legal meaning), she said that she did not intend the legal meaning of those terms; rather, she, on a "personal" level, felt that the company should have treated her better. She mentioned specifically: that no one ever called to explain in detail why she had not been further promoted at Enron or given more responsibility at Enron, that she viewed the job in Sally Beck's organization as unsatisfactory (because Sally should be treated as a peer, not a superior), and that she felt as though she did not have the support of upper management of the company. I described several options for her: Take the job she was offered in Sally Beck's organization; Take the job in Rick Buy's organization (I said I would have to talk to Rick again) Take severance under the standard package; Take severance as a "business reorg" but consult with Enron for a period. At first she seemed most interested in the fourth option (although she wasn't particularly happy about any of the alternatives), but at the end of the discussion expressed interest in the second option. A large part of the conversation involved discussion of Wanda's complaints about how she had been treated. Most of Wanda's concerns focussed on jobs she did not get, or jobs she felt were taken from her, reduced scope of control, and the fact that she felt that her supervisors did not communicate with her sufficiently prior to or subsequent to making their decisions about job assignments. I suggested that there were likely two sides to the story and that most of the problem was insufficient communication or perhaps some insensitivity. I also pointed out that in all my conversations I heard good things about her performance and had no indication that anyone had treated her unfairly. Wanda did complain about many things, but never once complained about her pay at Enron.

Mary, these are my recollections from today. Do you have anything to add?

Message 137 of 218

FW: 512374 Kelso, M (krs)

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['kathryn.schultea@enron.com'] |
| File | kean-s/sent_items/630. |

OK with you? ----- Forwarded by Steven J Kean/NA/Enron on 07/18/2001 07:36 AM -----
From: Diane Taylor/ENRON@enronXgate on 07/16/2001 07:02 AM

To: Steven J Kean/NA/Enron@Enron

cc:

Subject: FW: 512374 Kelso, M (krs)

Can you please approve the following security requests? This employee is transferring to the Payroll department and this is the security that she will need to perform her job.

Please let me know if you have any questions.

Thanks, Diane

-----Original Message-----

From: Shirley, Kim On Behalf Of SAP Security Sent: Friday, July 13, 2001 2:27 PM To: Taylor, Diane Subject: 512374 Kelso, M (krs)

Diane,

Renee Kelso is requesting access to the below role(s) and its pending your approval. Please email your response to SAP Security. If you have any questions, please let me know.

HUMAN RESOURCES - PAYROLL (PAYROLL PERSONNEL ONLY): 1. Add HR Processing Payroll 2. Add HR Processing Payroll Taxes 3. Add HR Tax Administration

User's Current Access: HR View Payroll and Time Information - CORPORATE HR Benefits View - CORPORATE HR Basic Data View for HR Master Data - Enterprise Master Data Administrator - Enterprise HR Organizational Management - Enterprise HR ESS Employee - Enterprise Standard end user profile for basis and printing

Thank you, Kim Shirley ISC SAP Security

Kelso@mailman.enron.com; Michelle <renee.kelso on 07/11/2001 11:49:08 AM To: Website:SAP Security Request <sap.security@enron.com> cc:

Subject: 512374 Michelle Kelso SAP Security Request Form

The following request information was recently submitted...

REQUESTOR INFORMATION:

Business Unit: CORP Cost Center: 100013 Company Code: 0011 Business Unit for Roles: CORP SAP ID: 501234

GENERAL INFORMATION:

Supervisor: Shawn Simon Supervisor Telephone Number: 713-345-7618 Employee Name (Last,First,M): Kelso, Michelle
Employee Location: EB1658b Employee Telephone Number: 39650 Employee Email Address: renee.kelso@enron.com
Job Title: HR Admin SAP User Type: Enron Employee

Business Reason: We need this asap.

Renee will be processing taxes in the Payroll Department. These access will give her the information to perform her job function.

VIEWER ROLES: No roles in this area were selected.

FINANCIAL ACCOUNTING ROLES: No roles in this area were selected.

PROJECT SYSTEM ROLES: No roles in this area were selected.

JOINT VENTURE ROLES: No roles in this area were selected.

MATERIALS MANAGEMENT / PURCHASING ROLES: No roles in this area were selected.

CENTRALIZED ROLES (LIMITED TO SPECIFIC PERSONNEL): No roles in this area were selected.

HUMAN RESOURCES (HR PERSONNEL ONLY): No roles in this area were selected.

HUMAN RESOURCES - TIMEKEEPERS: No roles in this area were selected.

HUMAN RESOURCES - BENEFITS (BENEFITS PERSONNEL ONLY): No roles in this area were selected.

HUMAN RESOURCES - PAYROLL (PAYROLL PERSONNEL ONLY): 1. Add HR Processing Payroll 2. Add HR Processing Payroll Taxes 3. Add HR Tax Administration

<Embedded Picture (Device Independent Bitmap)>

Message 138 of 218

Re: PRC cluster descriptors - draft

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['steven.kean@enron.com', 'david.oxley@enron.com', 'gina.corteselli@enron.com', 'cindy.olson@enron.com'] |
| File | kean-s/all_documents/17434. |

I think this is a fine attempt, but I continue to believe that a pure relative ranking offers the most flexibility and is more like the way the process works in practice. A separate list of desired behaviors, criteria etc can be used to guide discussion but I believe the ranking itself should remain purely relative.

Gina Corteselli 09/14/2000 06:04 PM To: Cindy Olson/Corp/Enron@ENRON, David Oxley/HOU/ECT@ECT, Steven J Kean/NA/Enron@Enron cc: Michelle Cash/HOU/ECT@ECT

Subject: PRC cluster descriptors - draft

All;

Aattached are a draft of the PRC cluster descriptors which we discussed several weeks back. I has sent a first draft to Michelle and Dick, and both had some suggestions which I have tried to incorporate. I am still awaiting Dick and Michelle's impressions of the below, but also look forward to your impressions and input. Likewise I would appreciate your input on whether or not we need to change the ratings on the feedback forms to numerical ratings 1-5 to mimic the clusters. look forward to hearing from you, Many thanks, Gina ----- Forwarded by Gina Corteselli/Corp/Enron on 09/14/2000 05:54 PM -----

Gina Corteselli 09/14/2000 05:03 PM To: dick@jeannerett.com cc: Michelle Cash/HOU/ECT@ECT

Subject: descriptors again

Dick; here is another try at the descriptors. I tried to apply the information you provided and to describe qualities of an employee's performance . I'm not sure whether this is any better, but would appreciate your input. What I am finding most challenging writing descriptors which are interchangeable with all levels and job groups within the company. The behaviors these describe and measure need to be general in nature so that they can apply to a VP and an admin assistant, as well as to all four Peer Groups within Enron.

Likewise, I would appreciate your thoughts on the necessity/value of changing the feedback forms to reflect the same numerical ratings. presently the feedback forms use the same descriptors as the cluster (i.e. Superior - Issues). In your

opinion should these also be 1-5 ratings with one = to highest and 5= to lowest in scale? I look forward to hearing your thoughts and impressions. You may either e-mail me or call me on 713 345-3377. Many thanks in advance, Gina

***** 1 = Relative to

his/her peers, this employee is a visionary who identifies new ideas and methods, inspires and motivates others by example, embodies Enron's vision and values, and demonstrates a mastery of the business and technical skills necessary to excel in his/her position.

2 = Relative to his/her peers this employee drives change, demonstrates vision and values, displays resourcefulness when faced with unexpected challenges, and comprehends and effectively uses the business and technical skills required to perform his/her job.

3 = Relative to his/her peers this employee supports innovation and improvement, understands Enron's vision and values, and continues to develop the core skills and business/technical skills necessary to satisfy the requirements of his/her position.

4 = Relative to his/her peers this employee accepts change, demonstrates some independent thinking and can apply resources and business and technical skills to adequately perform his/her job.

5 = Relative to his/her peers this employee has difficulty accepting change, lacks resourcefulness, offers minimal contribution and does not demonstrate the skills or knowledge to fulfill the responsibilities of the position This employee must make changes or termination is likely.

Message 139 of 218

Re: Project Summer/Desert Lightning:Regulatory Transfer Issues

| | |
|------------|--|
| Sender | bill.gathmann@enron.com |
| Recipients | ['james.bannantine@enron.com', 'ananda.mukerji@enron.com', 'david.haug@enron.com', 'richard.shapiro@enron.com']... |
| File | kean-s/project_summer/2. |

Richard,

Since the only approvals we need on the "regulatory side" are from FIPB and RBI and relate to the Dabhol transaction, I suggest the Ananda Mukerji be the point person for these.

To: David Haug/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, James M Bannantine/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Diomedes Christodoulou/SA/Enron@Enron, James L Noles/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Rebecca McDonald/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Richard Leibert/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: J Mark Metts/NA/Enron@Enron@ECT, Mitchell Taylor/Corp/Enron@ENRON, Steven J Kean/HOU/EES@EES, Joseph W Sutton/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Bill Gathmann/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Cheryl Lipshutz/HOU/ECT@ECT, Mark Schroeder/LON/ECT@ECT

Subject: Project Summer/Desert Lightning:Regulatory Transfer Issues

As the individual responsible within Enron Corp. for coordinating the analysis of regulatory transfer restriction issues in the above-referenced project, I wanted to give each of you a brief update, but more importantly, ask for your help in ensuring, as we move closer to the signing date, that we are fully coordinated on these issues and are prepared to act in a consistent and coordinated fashion across the regions as quickly as possible.

Over the last several weeks, the regional general counsel offices, V&E (Bill Weiland), Skadden and myself have been talking to local counsel across the regions to make sure that we fully understand all of the regulatory transfer issues and that we also fully understand the implications of the regulatory transfer restrictions in the context of the "ABC" deal

structure. We have now largely completed that process and the conclusions reached during that process have been memorialized in various documents, including the "ABC Matrix" that many, if not all of you, have seen. All that is remaining is confirmation on a South Korean competition agency issue and the completion of the analysis relative to the Wind assets in Europe regarding EU competition agency issues. Those two items should be completed by early next week. We have also recently begun the process of preparing documents that will be necessary for the approval of the transfer of Elektro in Brazil...which brings me to the second issue, coordination and preparation.

Having reached a critical juncture with the completion of virtually all of the regulatory analysis, the next step is to plan for the announcement of the transaction...more specifically, ensuring that regulatory/governmental communication assignments for both pre and post announcement are fully agreed upon and understood by all... and that the process of drafting the necessary requests for regulatory approval documents is agreed upon and begun as soon as possible. To ensure that this all happens in a timely manner and with quality, I would like to request that one individual from each operating region and company be assigned as the point person so that I can have a single individual within each operating unit to go to that has the authority to put together the comprehensive regulatory transfer plan and the responsibility for assuring the execution of the plan, both during the periods of time leading up to signing and announcement and during the transition period leading up to closing. I would respectfully ask that the names of these individuals be communicated to me by close of business Wednesday, August 16, 2000 to provide us sufficient time to address the work that lies before us. I have taken the liberty of listing my suggestions for the responsible individuals (where I have suggestions) for the respective operating regions/companies, but these are only suggestions and I will defer to your choices. Thank you for your assistance and if you have any questions, feel free to contact me at extension 33407 in Houston or by pager at 888-740-9949.

Enron South America Jose Bestard Enron Wind Eric B. Newell India Jane Wilson Apachi Mike Dahlke CALME ?

Message 140 of 218

RE: Enron Opportunities in the US

| | |
|------------|---|
| Sender | stevenson@aperc.ieej.or.jp |
| Recipients | ['Mark.Schroeder@enron.com', 'steven.j.kean@enron.com'] |
| File | kean-s/archiving/untitled/17430. |

Dear Mr Kean,

Thank you for your reply. Ultimately I intend to return to Australia, and I regularly monitor the on-going developments taking place in the Australian power market (as well as the converging natural gas market). I will endeavour to contact Mark next week and hopefully discuss Enron's activities in Australia and areas in which I may be able to contribute.

As I mentioned in my previous email, I am also hopeful of gaining further experience in international energy markets, particularly the US. I think my experience and contacts among Asia Pacific countries, and the skills I've developed, can be applied to the North American market and that I could offer a very positive contribution to Enron either on the regulatory or commercial side.

As I am being married in the US this July, and am able to obtain an appropriate (non-expat) working visa, I would be very interested in suitable opportunities with Enron either in Houston or other parts of the US. Do you believe that I am being realistic in pursuing opportunities in the US market or should I rather concentrate on the Australian market?

Thank you again for your assistance in this matter.

Yours sincerely,

Alastair L. Stevenson Energy Economist (Australia) Asia Pacific Energy Research Centre (APERC)

-----Original Message-----

From: Steven.J.Kean@enron.com [mailto:Steven.J.Kean@enron.com] Sent: Friday, April 14, 2000 10:08 PM To: stevenson@aperc.ieej.or.jp Cc: Mark.Schroeder@enron.com Subject: Re: Enron Opportunities in the US

Thanks for your message. Do you have any interest in returning to Australia? We have significant activity in the power markets there and may need some additional (nonexpat) support. If you are interested, the person you would need to speak with is Mark Schroeder (44-207-783-6664), or you can send me an e-mail reply and I will be sure he gets it. Mark will be out next week, but will return the following week.

"Alastair L. Stevenson" <stevenson@aperc.ieej.or.jp> on 04/14/2000 03:03:56 AM

To: "Steve Kean" <skean@enron.com> cc: Subject: Enron Opportunities in the US

Dear Mr Kean,

I am writing to you following a suggestion from Edith Terry (in Enron's DC office) that I introduce myself to you with respect to prospective employment with Enron. I will be permanently relocating to the United States just prior to my marriage in Michigan this July and am looking to continue my career in the energy sector. In particular, I have a strong interest in the energy revolution taking place in the US, both on the commercial and regulatory side and I would enjoy working for organisations, such as Enron, that are leading this revolution. Edith suggested that you may be in a good position to suggest opportunities within Enron for which I may be suitable.

I am currently based in Tokyo as the Australian energy representative to the Asia Pacific Energy Research Centre (APERC), where I have developed a strong knowledge of the Asia Pacific energy market. In this position I have been closely involved in the development of the APEC Energy Demand and Supply Outlook, as well as ongoing research in the fields of energy efficiency, natural gas development and energy pricing. Moreover, as part of my work with APERC I have maintained a close contact with APEC Energy Working Group activities, including the APEC Energy Business Network.

Prior to my appointment at APERC, I worked at the Australian Bureau of Agricultural and Resource Economics (ABARE) in Canberra. During my term at ABARE, I was closely involved in the development of the economic research underlying Australia's position for the Kyoto climate change conference, and also in the analysis of APEC (Asia Pacific) energy markets.

For your information, I have enclosed a brief resume which summarises my background qualifications and experience. Knowing that you have a busy schedule I would be most grateful for any advice or assistance you are able to offer.

Yours sincerely,

Alastair L. Stevenson Energy Economist (Australia) Asia Pacific Energy Research Centre (APERC)

encl.

(See attached file: Alastair Stevenson Resume.PDF)

Message 141 of 218

Energy Issues Pt. 2

| | |
|------------|--|
| Sender | miyung.buster@enron.com |
| Recipients | ['lynnette.barnes@enron.com', 'ann.schmidt@enron.com', 'bryan.seyfried@enron.com', 'dg27@pacbell.net'] |
| File | kean-s/calendar/untitled/8122. |

** I inadvertently left this article out of the first distribution of=20 articles.

This story appeared on <http://www.individual.com> April 10, 2001

[B] FULL/ Calpine confident PG&E will repay past-due power sales --Calpine= =20 has \$267 mln accounts receivable with PG&E --Calpine has \$68 mln note r <>

Chicago, April 4 (BridgeNews) - Calpine Corp. said it is confident that Pacific Gas & Electric Co. will repay its past-due receivables for power=20 sold to it by Calpine. Calpine said it has \$267 million in accounts receivable with PG&E, as well as a \$68 million receivable note that is not yet due.=20 PG&E must cure its outstanding defaults

and pay its outstanding balances in order to continue working with Calpine through its bankruptcy proceedings.

--Blue Derkin, BridgeNews

* * *

The following is the text of today's announcement, with emphasis added by BridgeNews. BridgeStation users will find links to company data at the end:

PG&E Bankruptcy Will Not Affect Calpine's Commitment to California Power Market /FROM PR NEWSWIRE
SAN FRANCISCO 415-543-7800/

TO BUSINESS AND ENERGY EDITORS:

PG&E Bankruptcy Will Not Affect Calpine's Commitment to California

Power Market

SAN JOSE, Calif., April 9 /PRNewswire/ -- In response to Pacific Gas and Electric Company's (PG&E) April 6th Chapter 11 filing, Calpine Corporation (NYSE: CPN), the San Jose, Calif.-based independent power company, stated it is confident that PG&E, through a successful reorganization, will be able to pay Calpine's Qualifying Facility (QF) subsidiaries for all past due power sales, in addition to electricity deliveries made on a going-forward basis.

CALPINE'S QF SUBSIDIARIES SELL POWER TO PG&E UNDER THE TERMS OF LONG-TERM QF CONTRACTS AT ELEVEN FACILITIES, REPRESENTING NEARLY 600 MEGAWATTS OF ELECTRICITY FOR NORTHERN CALIFORNIA POWER CUSTOMERS. AS OF MARCH 31, 2001, CALPINE HAS RECORDED APPROXIMATELY \$267 MILLION IN ACCOUNTS RECEIVABLE WITH PG&E, PLUS A \$68 MILLION NOTE RECEIVABLE NOT YET DUE AND PAYABLE. THE COMPANY'S REMAINING CALIFORNIA OPERATIONS, TOTALING APPROXIMATELY

700 MEGAWATTS OF CAPACITY, PROVIDE ELECTRICITY TO MUNICIPALITIES AND OTHER CREDITWORTHY THIRD PARTIES.

CALPINE'S QF FACILITIES ARE PART OF A 9,000-MEGAWATT QF SUPPLY THAT PROVIDE CALIFORNIA CUSTOMERS WITH A LONG-TERM SOURCE OF ELECTRICITY AT PRICES SIGNIFICANTLY BELOW CURRENT WHOLESALE PRICES. THIS CRITICAL POWER SUPPLY REPRESENTS APPROXIMATELY 33 PERCENT OF THE STATE'S POWER DEMAND. WITHOUT THESE CONTRACTS IN PLACE FOR THIS SUMMER, CALIFORNIA FACES THE PROSPECT OF MORE BLACKOUTS AND HUNDREDS OF MILLIONS OF DOLLARS IN INCREASED COSTS.

FOR THESE QF CONTRACTS TO CONTINUE, PG&E MUST ASSUME THE CONTRACTS IN THE BANKRUPTCY PROCEEDINGS. IN ORDER TO ASSUME THESE CONTRACTS, PG&E WILL BE REQUIRED TO CURE ALL OUTSTANDING DEFAULTS, INCLUDING PAYING ALL PAST DUE AMOUNTS. IF PG&E FAILS TO ASSUME THE CONTRACTS, CALPINE'S QF SUBSIDIARIES WILL BE ABLE TO SELL POWER ON THE OPEN MARKET AND SEEK DAMAGES FROM PG&E FOR BREACH OF CONTRACT THROUGH THE BANKRUPTCY CLAIMS RESOLUTION PROCESS.

"As the state's leading developer of new electric generating facilities, Calpine remains committed to providing innovative solutions for California's

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Message 142 of 218

FW: PGE Bankruptcy motions

| | |
|------------|--|
| Sender | james.steffes@enron.com |
| Recipients | ['susan.mara@enron.com', 'steven.kean@enron.com', 'jeff.dasovich@enron.com'] |
| File | kean-s/calendar/untitled/8100. |

FYI. Today's update.

----- Forwarded by James D Steffes/NA/Enron on 04/09/2001

05:55 PM ----- From: Michael Tribolet/ENRON@enronXgate on 04/09/2001 05:25 PM To: Vicki Sharp/HOU/EES@EES, Mike D Smith/HOU/EES@EES, Travis McCullough/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Greg Whalley/HOU/ECT@ECT, John J Lavorato/ENRON@enronXgate, Susan J Mara/NA/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron cc:

Subject: FW: PGE Bankruptcy motions

fyi -----Original Message----- From: "JOHN G KLAUBERG" <JKLAUBER@LLGM.COM>@ENRON [mailto:IMCEANOTES+22JOHN+20G+20KLAUBERG+22+20+3CJKLAUBER+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Monday, April 09, 2001 5:01 PM To: Tribolet, Michael Cc: CARL A. EKLUND; JAMES L. HUEMOELLER Subject: Fwd: PGE

Michael: as you know, one of my SF bankruptcy partners, Ben Young, attended the PG&E hearing today. Here is a quick synopsis. Could you please distribute as appropriate. John

This e-mail, including attachments, contains information that is confidential and may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

Content-Transfer-Encoding: quoted-printable Date: Mon, 09 Apr 2001 15:46:25 -0400 From: "BENNETT G. YOUNG" <BYOUNG@LLGM.COM> To: ceklund@llgm.com, "JOHN G KLAUBERG" <JKLAUBER@LLGM.COM>, "JAMES L. HUEMOELLER" <JLHUEMOE@LLGM.COM> Subject: PGE MIME-Version: 1.0 Content-Type: text/plain; charset="us-ascii" Content-Disposition: inline

I attended the hearings on PGE's two cash collateral motions today. Both were granted on an interim basis. The court set a final hearing for May 9 at 9:30 am. PGE is to file its pleadings by April 20 and any opposition is due by May 4.

The bondholder cash collateral motion was heard first. There was no opposition and the bond trustee (Bank of New York) consented to the relief. BONY and PGE are working on a final cash collateral stipulation.

Next was the gas supplier motion. PGE mentioned in its presentation that the basis of the pre-petition agreement was the waiver of termination rights in the event of bankruptcy by the suppliers in return for a security interest in the receivables. Jim Lopes, PGE's lawyer, mentioned that he had learned a great deal about Bankruptcy Code section 556 in the last few months. Judge Montali nodded his head at that comment. Montali also asked whether PGE conceded that 556 applied. Lopes answered that he did not concede that it applied, but he was "very concerned."

I asked whether the post-petition security interest was available to suppliers that were not parties to the pre-petition agreements. The Court said that was up to PGE; Lopes said they were willing to talk about it, but they did not want to grant

liens to all of their creditors and hoped creditors would rely on their administrative claims, which PGE believes will be paid in the ordinary course. Procedurally, the Court said it would not authorize any new security interests on the basis of the interim order resulting from today's hearing. Instead, that would have to be the subject of a separate motion with notice, and perhaps could be taken up at the final hearing. PGE also indicated that it is filing today a lawsuit against the CPUC seeking a TRO regarding a deadline of April 11 for the filing of certain advice letters. A hearing is tentatively scheduled on the TRO for 3 pm tomorrow, April 10.

There was also discussion of various administrative matters, like scheduling hearings, entering a case management order, etc.

A representative of a consumer group, the Coalition for Public Power, read a statement asking Judge Montali to rollback rates and to force PGE's parent to pay the utility's debts. The Judge let them speak, but made it clear that it was not an action item, and seemed generally to ignore them.

The courtroom was packed with attorneys, journalists and members of the public. After the hearing, the reporters all descended upon the attorneys for PGE and the CPUC. The courtroom is in an office building in SF's financial district; there were probably ten TV cameras set up on the sidewalk as well as several protesters carrying signs.

Please call me if you have any questions.

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

Message 143 of 218

FW: Marlys Palumbo

| | |
|------------|-------------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['michael.terraso@enron.com'] |
| File | kean-s/sent_items/330. |

-----Original Message-----

From: Derrick Jr., James Sent: Monday, July 30, 2001 3:43 PM To: Kean, Steven J.; FOWLER, PEGGY; Nichols, Douglas
Subject: FW: Marlys Palumbo

Steve, Peggy, and Doug: FYI re Region 10/EPA administrator candidate. Please let me know how you wish me to respond. Thank you. Jim -----Original Message----- From: Harris, Stephanie J Sent: Monday, July 30, 2001 1:51 PM To: Derrick Jr., James Subject: FW: Marlys Palumbo

JVD, this came in on my e-mail while I was gone and I didn't know if Bill had forwarded it to you. Thanks, S

-----Original Message-----

From: Parker Folse <pfolse@SusmanGodfrey.com>@ENRON
[mailto:IMCEANOTES-Parker+20Folse+20+3Cpfolse+40SusmanGodfrey+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, July 26, 2001 2:17 PM To: 'sharris2@enron.com' Subject: Marlys Palumbo

Dear Jim:

I have a good friend here in Seattle named Ralph Palumbo, who is one of the attorneys with whom we prosecuted the antitrust case against Microsoft that we settled last year. His wife Marlys, whom I also know well, is a candidate for appointment as the administrator of Region 10 of the Environmental Protection Agency, which encompasses Washington, Oregon, Idaho, and Alaska. I know that you are busy as hell, but I wanted to set out below some information about Marlys and about the status of her efforts to win this appointment, and then ask whether Enron might be interested in supporting her candidacy by putting in a good word at the White House.

Marlys received her law degree from Seattle University in 1982. She then spent four years as a commercial litigation associate at Bogle & Gates in Seattle. From 1986-89 she was general counsel of Sabey Corporation (a diversified real

estate development holding company). From 1989-1997 she was vice president and general counsel of Philip Environmental Inc. (formerly Burlington Environmental), which was a publicly traded \$500 million waste management and environmental engineering and remediation company with operations in the U.S. and Canada. In 1997 that company merged with two other public companies to form Philip Services Corporation. From the date of the merger through the present, Marlys has been Senior VP, Law, of Philip Services Corp., which is a \$2 billion company that provides integrated industrial and metals recovery services to commercial and industrial customers in North America and Europe. For the last several years, Marlys has worked out of the Philip Services corporate offices in Houston.

Marlys has in-depth expertise on environmental legal and scientific issues, coupled with senior management experience in the business world. She would bring to the table a unique ability to effect a change of direction in EPA Region 10 because she has worked effectively with this Region and other Regions for two decades. Implementing White House policies in Region 10 will require the Administrator to work with a staff of long-term professional civil servants who themselves have extensive legal and scientific expertise. The Administrator must win their respect and must have the personal skills to manage a large organization and lead it in new directions. Marlys has the experience, the skills, and the personal qualities that would well-suit her to doing all of those things.

Her candidacy is being supported by former EPA Administrator Bill Ruckelshaus, by other former senior EPA and Justice Department officials, and by business and industry leaders in the Northwest, including CEOs or other senior executives of Boeing, Weyerhaeuser, PACCAR, Puget Sound Energy, Simpson Investments/Simpson Timber Co., Plum Creek Timber Group, Delta Airlines, Burlington Northern, Air Cargo Management Group; FMC Corp., Fluke Capital Management, and Sabey Corp.

My understanding is that the appointment will be made based on recommendations from Republican Representatives and Senators from the four states encompassed by Region 10, and key people in both the EPA and the White House. Washington has no Republican Senators, but Republican Congresswoman Jennifer Dunn has recommended Marlys to the White House.

I have known Marlys since shortly after moving to Seattle in 1995. She is an extremely bright, charming, and capable person, and I have a lot of respect for her. If you think Enron would be willing to consider helping her candidacy, I know that she would be eager to meet or talk with you or others at Enron, and I can provide the names of the relevant contact people at EPA and the White House.

I am not asking that you do anything as a favor to me, but only if it would serve Enron's interests to do so. Of course, this issue may be completely outside the realm of those interests, and if so, I apologize for taking up your time. I hope all is well with you and Carrin, and look forward to seeing both of you again soon.

Parker

Parker C. Folse III Susman Godfrey L.L.P. 1201 Third Avenue, Suite 3090 Seattle, WA 98101 (206) 516-3880

Message 144 of 218

The Emery Financial Group

| | |
|------------|------------------------|
| Sender | hemery@firstunion1.com |
| Recipients | ['skean@enron.com'] |
| File | kean-s/personal/122. |

Dear Mr. Kean,

We are excited to announce the formation of the Emery Financial Group of First Union Securities. Effective this morning, based on a wide array of issues, we have resigned from UBS PaineWebber. We have a strong desire to continue the relationship that we have established with you. We are currently in the process of contacting you by phone. Please feel free to contact us at your convenience to discuss why we feel that this change will provide a mutual benefit for both yourself, and to the Emery Financial Group in terms of the service it will allow us to provide for you. Following is a list of our new phone numbers:

Rocky Emery: 713-853-2401 Pat Dowd: 713-853-2403 Hank Emery: 713-853-2407 Toby Pullig: 713-853-2383 Vince Weir: 713-853-2384 Julie Haviland: 713-853-2386 Caye Taylor: 713-853-2366 Ana Hilario: 713-853-2385

We look forward to hearing from you!

Sincerely,

The Emery Financial Group:

Message 145 of 218

| The Emery Financial Group | |
|---------------------------|------------------------|
| Sender | hemery@firstunion1.com |
| Recipients | ['skean@enron.com'] |
| File | kean-s/personal/44. |

Dear Mr. Kean,

We are excited to announce the formation of the Emery Financial Group of First Union Securities. Effective this morning, based on a wide array of issues, we have resigned from UBS PaineWebber. We have a strong desire to continue the relationship that we have established with you. We are currently in the process of contacting you by phone. Please feel free to contact us at your convenience to discuss why we feel that this change will provide a mutual benefit for both yourself, and to the Emery Financial Group in terms of the service it will allow us to provide for you. Following is a list of our new phone numbers:

Rocky Emery: 713-853-2401 Pat Dowd: 713-853-2403 Hank Emery: 713-853-2407 Toby Pullig: 713-853-2383 Vince Weir: 713-853-2384 Julie Haviland: 713-853-2386 Caye Taylor: 713-853-2366 Ana Hilario: 713-853-2385

We look forward to hearing from you!

Sincerely,

The Emery Financial Group:

Message 146 of 218

| Special Report- for your review and comments | |
|--|-------------------------|
| Sender | nhernandez@cera.com |
| Recipients | ['skean@enron.com'] |
| File | kean-s/california/1986. |

Dear Steve,

CERA occasionally produces research directed to a particular set of issues, and seeks client feedback prior to the finalization of certain research Reports. As one of our valued clients most directly involved with these issues, we welcome your comments and candid observations on the attached report titled "Short Circuit: Will the California Energy Crisis Derail the State's Economy?". This report, being produced with the involvement of UCLA's Anderson Forecast contains interesting and compelling conclusions about the long-term energy solutions for California and Western North America, and their related long-term economic effects. We look forward to your comments and observations, and we strongly request that no part of this report be reproduced or furnished to the media in any form. Please kindly direct your comments to Mike Zenker in Oakland. Mike Zenker /Office (510) 874-4375/cell (617) 877-1846/home (925) 274-1866/mzenker@cera.com Do not hesitate to contact me if you have questions. Ron Kapavik (617) 441-2629 or (936) 931-1416 cell (713) 857-3038

- UCLA_Power.pdf

Message 147 of 218

Re: Corporate Watch article

| | |
|------------|--|
| Sender | michael.terraso@enron.com |
| Recipients | ['steven.kean@enron.com', 'karen.denne@enron.com', 'maureen.mcvicker@enron.com'] |
| File | kean-s/discussion_threads/762. |

Steve,

I contacted Cheryl Dawson the environmental manager at Enron Methanol regarding the Corporate Watch article. As you can see below in Cheryl's response the emissions reported to EPA under the Toxic Release Inventory (TRI) rules have decreased significantly since the 1997 report developed by Environmental Defense. Additionally, Cheryl related to me that Enron Methanol was a participant in Clean Texas 200, an effort to reduce the amount of waste being generated annually by 50% by the year 2000. Enron Methanol did achieve this goal, and has gone from a large quantity waste generator to a conditionally exempt small quantity generator. This is due to the beneficial use by the Enron MTBE plant of the mixed alcohol by-product from the Methanol plant. In 1998, MTBE plant began using the mixed alcohols in their process stream. That is certainly a success story and is reflected in the reduced n-butyl alcohol TRI entry seen in Cheryl's note below.

----- Forwarded by Michael Terraso/OTS/Enron on 08/01/2000

01:49 PM -----

Cheryl Dawson 08/01/2000 01:32 PM To: Michael Terraso/OTS/Enron@ENRON cc:

Subject: Re: Corporate Watch article

Yes, I have seen the Defense Fund's propaganda. Here is the breakdown: (all shown in pounds) 1997 1998 1999

methanol (air releases) 173352 179519 89616 methanol (disposal off-site) 87351 57191 2742

ammonia (air releases) 2720 2720 2720 ammonia (treated off-site) 5168 4788 4788

formaldehyde (air releases only) 98300 81380 69984

n-butyl alcohol (off-site disposal only) 155266 945 42

The numbers the Scorecard used in the "1997 TRI Pollution Release Sorted by Health Effect" section are various combinations of methanol + formaldehyde + ammonia. Unfortunately they've not said anything that isn't true. It is all in presentation and effective combination. We have done much better this year in comparison but for the methanol and formaldehyde the release amounts are reduced due in part to better calculation methods and a different AP-42 for formaldehyde. And, by the way, the formaldehyde is strictly from the combustion of natural gas in the engines. We will, of course, have to address the engines for NOx but I don't know that the retrofit will affect the formaldehyde. Anyway, hope this helps. We are getting better and certainly are aware and doing what we can.

Message 148 of 218

RE: documents for May 24 conference call

| | |
|------------|---|
| Sender | jgibbons@pollutionprobe.org |
| Recipients | ['yolanda@ccemtl.org', 'Yolanda Clegg', 'stomasky@aep.com', 'cgsmith2@aep.com'] |
| File | kean-s/nacec/1. |

Yolanda:

Please find attached my comments on the documents that you sent to me yesterday.

Jack

Jack Gibbons Chair Ontario Clean Air Alliance 625 Church St., Suite 402 Toronto, Ontario M4Y 2G1

Tel: 416-926-1907 ext 240 Fax: 416-926-1601

-----Original Message-----

From: Yolanda Clegg [mailto:yolanda@ccemtl.org] Sent: Wednesday, May 23, 2001 4:37 PM To: cgsmith2@aep.com; stomasky@aep.com; aescofet@alesco.com.mx; Pberle@audubon.org; rkelter@citizensutilityboard.org; skean@enron.com; Elizabeth.moler@exeloncorp.com; Erika.pichardo@ge.mmc.ge.com; tom.rawls@greenmountain.com; philip_sharp@Harvard.edu; Klimpt.Jean-Etienne@hydro.qc.ca; rdrouin@mccarthy.ca; rcavanagh@nrdc.org; Jack Gibbons; pmulas@servidor.unam.mx; alesco@sisisa.podernet.com.mx; Bob_Page@transalta.com; deansoffice.law@utoronto.ca; ron.daniels@utoronto.ca; Scenergy@web.net Cc: Yolanda Clegg Subject: documents for May 24 conference call

Dear Advisory Board Member,

Thank you for your continued support of NACECs Initiative "Environmental Challenges and Opportunities of the Evolving Continental Electricity Market".

Please find attached the following documents for your review and to be further discussed during the conference call Thursday May 24 at 3:00 EST.

1) an Interim Note for the Secretariat report 2) a draft recommendations checklist (for initial discussion) 3) a list of the advisory board members and bios (please note that we have shortened some of the bios, if you have yet to submit a bio please send a copy to yolanda@ccemtl.org)

Items to be discussed during conference call: I) Secretariat update - progress, expert report, symposium II) Process and approach for developing guidelines/recommendations III) Initial discussion of guidelines/recommendations IV) 2nd Advisory Board meeting date and venue

Details of the conference call:

Participants from Canada and the United States should dial: 1-877-633-5353 (toll free)

Participants from Mexico should dial: 0-1-800-123-0200 and ask the operator to charge this telephone call to the telephone number: (1-514) 868-2558

then enter the following Code: 023405#

If there is any problem with the communication during the call please dial *0 (Conference call reference: C799250)

On behalf of my colleagues at NACEC, Sincerely,

Yolanda Clegg

Yolanda Clegg, M.Sc. Environment, Economy and Trade Program North American Commission for Environmental Cooperation 393 rue St-Jacques Ouest, bureau 200 Montreal Quebec CANADA H2Y 1N9

tel: 514-350-4368 fax: 514-350-4314 yolanda@ccemtl.org

<http://www.cec.org>

- NACEC may 24, 2001.doc

Message 149 of 218

RICE - IMPORTANT

| | |
|-------------------|--|
| Sender | kristin.gandy@enron.com |
| Recipients | ['alhamd.alkhayat@enron.com', 'abhijeet.naik@enron.com', 'andrew.miles@enron.com'] |
| File | kean-s/calendar/untitled/7724. |

IMPORTANT!

A little bird told me that 3 out of the 4 candidates Enron has extended offers to for the summer are wavering. The competition is between Enron and either consulting or investment companies.

Please take 10 -15 minutes to contact each candidate (via phone or email) so they will have the opportunity to get acquainted with other Enron employees. Candidate cultivation is very important in helping a candidate decide between two different firms.

If you do not feel comfortable answering any of the candidates questions feel free to direct them my way.

Candidate Name Contact # Email Address

1. Michael Finger 713-520-6882 mjfinger@rice.edu
2. Jebb Hutton 713-874-1558 jhutton@rice.edu
3. Jeff Wolfe 281-343-7694 jjwolfe@rice.edu
4. Josh Webber 713-862-5288 weber@rice.edu

Regards,

Kristin Gandy Associate Recruiter 713-345-3214

Message 150 of 218

Conference Call Confirmation

| | |
|-------------------|--|
| Sender | joseph.alamo@enron.com |
| Recipients | ['steven.kean@enron.com', 'maureen.mcvicker@enron.com', 'jeff.dasovich@enron.com', 'lacorte@haas.berkeley.edu']... |
| File | kean-s/archiving/untitled/4969. |

SK - I have this on your schedule. mm

Okay, folks let's try this again!

This conference call has been re-scheduled as follows:

Please consider this notice & confirmation of a conference call, per Jeff Dasovich and Steve Kean, with Laura Tyson and Marybeth Shubert, Berkeley Business School, as noted below:

Date: Thursday, May 10th Time: 2:30 PM PDT/4:30 PM Central Call-in No.: 1-888-296-1938 Code No.: 529952 Jeff only (as host): 850022

Thanks in advance for your participation,

Joseph Alamo Sr. Administrative Assistant Government Affairs - The Americas San Francisco CA

----- Forwarded by Joseph Alamo/NA/Enron on 05/09/2001 02:51

PM -----

Joseph Alamo 05/08/2001 05:44 PM

To: Jeff Dasovich/NA/Enron, Steven J Kean/NA/Enron@Enron, schub@socrates.berkeley.edu cc: Maureen McVicker/NA/Enron

Subject: Conference Call Confirmation

Please consider this notice & confirmation of a conference call, per Jeff Dasovich and Steve Kean, with Laura Tyson and Marybeth Shubert, Berkeley Business School, as noted below:

Date: Wednesday, May 8th Time: 1:30 PM PDT/3:30 PM Central Call-in: 1-888-476-3752 Code No.: 735045 Jeff only (as host): 780468

Thanks in advance for your participation,

Joseph Alamo Sr. Administrative Assistant Government Affairs - The Americas San Francisco CA (415) 782-7841

Marybeth Schubert <schub@socrates.berkeley.edu> on 05/08/2001 06:25:37 PM To: joseph.alamo@enron.com cc:

Subject: conference call with Steve Cain and Jeff Dasovitch

Joseph:

Laura Tyson and I will be available for a conference call with Steve Cain and Jeff Dasovitch tomorrow afternoon at 1:30 pacific. Dean Tyson will be at the Westin William Penn Hotel: 412-281-7100. I will be at 505-820-6721. I'd appreciate it if you would coordinate details with Jeff. Marybeth

Message 151 of 218

25% Discount For Power2001

| | |
|------------|----------------------|
| Sender | power@wbresearch.com |
| Recipients | ['skean@enron.com'] |
| File | kean-s/inbox/31. |

TO: SKEAN@ENRON.COM

Join your colleagues and competitors on October 31st, 2001 in Scottsdale, Arizona, for POWER2001 USA and ensure that you hear the latest news and developments within North America's power generation markets.

As an Energy Argus Subscriber you are entitled to a 25% discount to attend Power2001. Register online today at <<http://www.wbresearch.com/power2001az/>> or call us at 1-800-882-8684 or 1-973-256-0211: Mention Product Code EM18E to receive a 25% discount to attend Power2001

You will hear from over 25 case studies (not sales pitches!) delivered by senior industry leaders from North America's largest power developers and marketers. Hear success stories and lessons learned as your colleagues and competitors offer their latest experiences in confronting risks and opportunities in today's evolving power markets. These are just some of the North American industry leaders you will hear from at the event

DUKE ENERGY NORTH AMERICA: Jim Donnell, President and CEO FEDERAL REGULATORY ENERGY COMMISSION: Linda Breathitt, Commissioner WILLIAMS GAS PIPELINE: Cuba Wadlington, Jr., President and CEO INTERGEN NORTH AMERICA: West Griffin, CFO CALPINE NATURAL GAS: Bill Berilgen, President MIRANT: David Rozier, SVP and CEO, Mirant Americas Southern Region EL PASO NORTH AMERICA: Larry Kellerman, Senior Managing Director DYNEGY: Peter Esposito, VP and Regulatory Counsel CALPINE: Tayeb Tahir, Managing Director ONTARIO POWER GENERATION: Wayne Bingham, Executive Vice President and Chief Financial Officer RELIANT ENERGY: John Meyer, VP, Asset Commercialization NRG ENERGY: Nazar Massouh, Executive Director, Finance & Acquisitions INTERGEN LATIN AMERICA: John Foster, SVP, InterGen Latin America

<<http://www.wbresearch.com/power2001az/>>

You will meet with more than 150 senior power industry developers and advisors for the most in-depth look at NA power markets available to you. The main conference will be preceded by a one-day US Regional Summit that will focus on the latest regulatory and transmission developments in California, Midwest, East, Texas, New York and the Southeast . You will hear from market leaders and insiders, such as Duke Energy, Reliant Energy, and Mirant, who will give you their perspectives on the types of opportunities and obstacles you should expect to encounter in each region. You will also be able to continue to network with other senior industry leaders at the post-conference Golf Tournament.

Register online today at <<http://www.wbresearch.com/power2001az/>> or call us at 1-800-882-8684 or 1-973-256-0211: Mention Product Code EM18E to receive a 25% discount to attend. Make sure you secure your place at this event today.

If you are interested in sponsorship or exhibition opportunities contact: Chet Silverman at (212) 417-9182 or email csilverman@wbresearch.com

Message 152 of 218

Re: WTO Strategy Conf. Call: Confirmation

| | |
|------------|--|
| Sender | lora.sullivan@enron.com |
| Recipients | [' chris.long@enron.com ', ' ginger.dernehl@enron.com ', ' joe.hillings@enron.com ', ' james.steffes@enron.com '] |
| File | kean-s/calendar/untitled/349. |

Ginger:

In preparation for the WTO Strategy Conference Call on Monday, February 28, 2000 Joe Hillings thought the attached would be helpful to the participants.

If there is any additional material Rick would like Joe to distribute, please let us know.

Thanks.

Lora Sullivan 202-466-9142

To: Joe Hillings/Corp/Enron@ENRON, James D Steffes/HOU/EES@EES, Chris Long/Corp/Enron@ENRON, Mark Schroeder/LON/ECT@ECT, John Hardy/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Steven J Kean/HOU/EES@EES cc: Lora Sullivan/Corp/Enron@ENRON, Marcia A Linton/HOU/EES@EES, Amy Fabian/Corp/Enron@Enron, Sharon Killey/LON/ECT@ECT, Helen Rizzo/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Maureen McVicker/HOU/EES@EES

Subject: WTO Strategy Conf. Call: Confirmation

The call mentioned above has been scheduled. Please see below.

Date: Monday, February 28

Time: 8:00am cst/9:00am est/2:00pm London

Numbers: 1-800-283-1805 (Domestic) 703-736-7385 (Int'l)

Duration of the call should be 1 1/2hrs. Thanks and please call if you have any questions.

gngr ----- Forwarded by Ginger Dernehl/HOU/EES on 02/22/2000 03:00 PM -----

Enron Energy Services

From: Ginger Dernehl 02/22/2000 11:30 AM Phone No: 713 853-7751

To: Joe Hillings/Corp/Enron@ENRON, James D Steffes/HOU/EES@EES, Chris Long/Corp/Enron@ENRON, Mark Schroeder/LON/ECT@ECT, John Hardy/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Steven J Kean/HOU/EES@EES cc: Lora Sullivan/Corp/Enron@ENRON, Marcia A Linton/HOU/EES@EES, Amy Fabian/Corp/Enron@Enron, Sharon Killey/LON/ECT@ECT, Helen

Rizzo/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Maureen McVicker/HOU/EES@EES Subject: WTO Strategy Conf. Call:URGENT REPLY NEEDED

Please let me know if the time below will work on your calendars for the above mentioned meeting.

Monday, February 28, 8-9:30am cst/9:00-10:30am est/or 2-3:30pm London

Please respond at your earliest convenience.

Helen Rizzo * - Rick would like John to attend if these times will work into his schedule.

Thanks and please call if you have any questions.

gngr

Enron Energy Services

From: Ginger Dernehl @ EES 18/02/2000 16:04 Phone No: 713 853-7751

To: Joe Hillings/Corp/Enron@ENRON, James D Steffes/HOU/EES@EES, Chris Long/Corp/Enron@ENRON, Mark Schroeder/LON/ECT@ECT, John Hardy/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Steven J Kean/HOU/EES@EES cc: Lora Sullivan/Corp/Enron@ENRON, Marcia A Linton/HOU/EES@EES, Amy Fabian/Corp/Enron@Enron, Amber Keenan/LON/ECT@ECT, Helen Rizzo/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Maureen McVicker/HOU/EES@EES

Subject: WTO Strategy:URGENT REPLY NEEDED

Rick would like to hold a conference call regarding the above subject. In checking with Rick's, Steve's & Mark Schroeders schedules the times below would work best for their calendars and Thursday the 24th is the date with the most possibilities. Please let me know if any and all of these times would work for you to attend. Thanks and please call if you have any questions.

gngr

Thursday, February 24 Anytime after 11:00am cst/12:00pm est/4:00pm London

Message 153 of 218

RE: Enron Management Conference - Home Video Project

| | |
|------------|---|
| Sender | j..kean@enron.com |
| Recipients | ['terrie.james@enron.com', 'cindy.olson@enron.com'] |
| File | kean-s/sent_items/65. |

I'm not sure I would give a list of topics (I'd hate to see what would come of the PRC video!). Perhaps we should just suggest a general theme which would be consistent with the forward-looking thrust of the conference -- e.g. a challenge we currently face or will have to overcome to get where we want to go.

-----Original Message-----

From: James, Terrie Sent: Tuesday, September 18, 2001 5:34 PM To: Kean, Steven J.; Olson, Cindy Subject: FW: Enron Management Conference - Home Video Project

Steve and Cindy,

Below is the message I'm intending to send out to the business units about the Management Conference "Home Video" project. I wanted to be sure you were both comfortable with the direction I'm providing and the topics being proposed. (Of course, I'm allowing the businesses to generate their own as well.)

As for who is to receive the "challenge," here's a potential list: Enron Corp.: Rick Causey, Andy Fastow, Mark Frevert, Steve Kean, Mark Koenig, Ken Lay, Greg Whalley EES: Dave Delainey, Janet Dietrich ETS: Stan Horton, Dan McCarty

Industrial Markets: Jeff McMahon, Ray Bowen Enron Europe: John Sherriff, Michael Brown Enron Broadband: Jim Fallon, Rich DiMichelle Enron Americas: John Lavorato, Louise Kitchen Global Markets: Mike McConnell, Jeff Shankman Enron Net Works: Greg Piper, Sally Beck

(I also intend to cc the memo to all the communication people: Mark Palmer, Gina Taylor, Kal Shah, Eric Thode, Beth Tilney, John Ambler, and me.)

Let me know if you have any changes or comments. To allow plenty of time to produce these videos, I hope to get this memo out later this week.

-----Original Message-----

From: James, Terrie Sent: Thursday, September 13, 2001 5:35 PM To: James, Terrie; Clark, Mary Subject: Enron Management Conference - Home Video Project

The Enron Management Conference will be held Wednesday through Friday, November 14-16, 2001, at the Westin La Cantera Resort in San Antonio. While the business agenda is still being finalized, there is one thing that is certain ... we want to inject some humor into the event. The past year has been eventful, and at times challenging, for Enron and its employees. However, it's not in Enron's corporate fabric to focus on the past. Instead, we want to look ahead, and even poke fun and laugh at ourselves. The Management Conference will provide a platform for just that.

We want to challenge each of the business units to develop and submit a humorous "Home Video" to be presented at the Management Conference. The video can address any Enron-related topic that your business unit chooses. Some ideas include: Accounting Procedures Cost Cutting Deal Making Innovation Management Changes PRC Public Relations Reorganizations Stock Price Trading/Traders

There are a few rules to follow. 1.) The videos should be no more than five minutes long. 2.) Business units should spend as little as possible on the videos, and no more than \$10,000. Innovision Communications (Beth Stier) has agreed to work with any business unit to help them create an original, inexpensive video. Innovision can be contacted at 713-446-4424. 3.) The videos should be fun, but not disparaging. They should adhere to Enron's values of respect, integrity, communication and excellence. 4.) By Monday, October 15, business units need to notify me of their intentions to submit a video. To avoid duplication, business units will also need to identify a topic they intend to address. 5.) To ensure inclusion in the Management Conference agenda, videos need to be submitted to me by Friday, November 9. 6.) Awards will be granted for creativity and humor. The first annual, and soon-to-be-coveted, "Enny" will also be awarded for "Best Overall Video."

If you have any questions about the "Home Video" project, please contact myself or Mary Clark. Good luck and happy filming!

Terrie James ph. 713-853-7727 terrie.james@enron.com

Mary Clark ph. 713-853-7325 mary.clark@enron.com

Terrie James Senior Director, Public Relations Enron Broadband Services (ph) 713.853.7727 (fax) 713.646.3248
terrie.james@enron.com

Message 154 of 218

Maternity Leave

| | |
|------------|--|
| Sender | elizabeth.linnell@enron.com |
| Recipients | [' lynnette.barnes@enron.com ', ' linda.lawrence@enron.com '] |
| File | kean-s/contact_list/1. |

FYI - Today will be my last full day in the office. I plan to work at least partial days from home until the baby arrives, monitoring e-mail and working on a few ongoing projects, and will be reachable at the numbers listed below. Once I head for the hospital I'll change my voicemail to indicate that I'm out of service for a while, and will reference the people who will

be responsible for the various activities in my group.

Home phone: 281-528-6606 Home fax: 281-288-0277 Pager: 888-740-9948 Cell: 713-417-9188

Unless something happens between now and then, I plan to be on Steve's staff call on Friday morning at 9:30, and will hold a Info/Admin staff call on Friday morning at 11:00. (Clerical staff don't need to be on that call.) (Gus - Please set up this conference call.)

Thanks!

Message 155 of 218

Volunteer Information

| | |
|------------|--|
| Sender | misha.siegel@enron.com |
| Recipients | ['steven.kean@enron.com', 'elyse.kalmans@enron.com'] |
| File | kean-s/discussion_threads/1803. |

Hi Steve,

It was great meeting with you the other day and I feel like the community involvement opportunities we discussed may be a very good fit! As a follow-up to our discussion, I have listed below a few organizations where you and your daughters could volunteer together. I am more than happy to set up any meetings or gather additional information. Regarding the opportunity to join the board of Girls, Inc., I will gladly call Phyllis Faykus-Dutton, the Executive Director, to set up a meeting between the two of you or simply to find out any other details. Please let me know if I can be of further assistance.

Thanks, Misha 3-7682

Volunteer Opportunities: Texas Children's - Contact: Zelly Tourais 832-824-2251 Ronald McDonald House - Contact: Anganette Blewer 713-795-3582 Sunshine Kids - Contact: Sonya Villarreal 713-524-1264 Herman Children's Hospital - Contact: Marsha Weiss 713-704-4141

Message 156 of 218

RICE - IMPORTANT

| | |
|------------|--|
| Sender | kristin.gandy@enron.com |
| Recipients | ['alhamd.alkhayat@enron.com', 'abhijeet.naik@enron.com', 'andrew.miles@enron.com'] |
| File | kean-s/all_documents/5638. |

IMPORTANT!

There is no need to contact Jebb Hutton - he just declined our summer offer via phone with me.

A little bird told me that 3 out of the 4 candidates Enron has extended offers to for the summer are wavering. The competition is between Enron and either consulting or investment companies.

Please take 10 -15 minutes to contact each candidate (via phone or email) so they will have the opportunity to get acquainted with other Enron employees. Candidate cultivation is very important in helping a candidate decide between two different firms.

If you do not feel comfortable answering any of the candidates questions feel free to direct them my way.

Candidate Name Contact # Email Address

1. Michael Finger 713-520-6882 mjfinger@rice.edu
2. Jeff Wolfe 281-343-7694 jjwolfe@rice.edu

3. Josh Webber 713-862-5288 weber@rice.edu

Regards,

Kristin Gandy Associate Recruiter 713-345-3214

Message 157 of 218

Gary Hamel's slide set

| | |
|------------|--|
| Sender | kathy.mcmahon@enron.com |
| Recipients | ['terrie.james@enron.com', 'andrew.fastow@enron.com', 'steven.kean@enron.com'] |
| File | kean-s/attachments/307. |

SENT ON BEHALF OF TERRIE JAMES.

Kathy McMahon Enron Broadband Services Public Relations 713-853-6232

----- Forwarded by Kathy McMahon/Enron Communications on 12/06/00 10:08 AM

Terrie James 12/06/00 05:08 AM

To: Steve Kean cc: Kathy McMahon, Marge Nadasky Subject: Gary Hamel's slide set

Steve,

I apologize for the delay. We just got the presentation. Hope it helps.

Terrie James Sr. Director, Corporate Communication Enron Broadband Services 713-853-7727 (phone) 713-646-8887 (fax) terrie_james@enron.net ----- Forwarded by Terrie James/Enron Communications on 12/06/00 05:05 AM

greim@strategos.com 12/05/00 01:43 PM

To: Terrie James/Enron Communications@Enron Communications cc: Subject: Gary Hamel's slide set

Hello Terrie,

I understand you were hoping to get a copy of Gary Hamel's Powerpoint slide presentation. It is attached.

Our apologies that it took so long!

Best to you, Grace 650.851.2095

Message 158 of 218

Impact Weather Alert - Condition Yellow

| | |
|------------|---|
| Sender | console.security@enron.com |
| Recipients | ['jenny.rub@enron.com', 'martin.bucknell@enron.com', 'lance.jameson@enron.com'] |
| File | kean-s/deleted_items/474. |

Wackenhut Security -- Enron ph#: 713-853-5361 or 713-853-5360 fax#: 713-646-2407

----- Forwarded by Security Console/EPSC/HOU/ECT on 11/26/2001 03:20 PM -----

Impact Weather <impact@univ-wea.com> 11/26/2001 02:57 PM Please respond to Impact Weather To: security.console@enron.com, ken.berryman@enron.com, christal.hattaway@enron.com, doug.blake@enron.com, randy.lord@enron.com cc: Subject: Impact Weather Alert - Condition Yellow

IMPACT WEATHER

Latest Severe Weather Alert For: Enron Property and Services Corp. - Houston, TX Condition Yellow Severe Thunderstorms Issued: 2:54 PM CST Monday, November 26, 2001. Valid: 03:00 PM CST Monday to 08:00 PM CST Monday Lightning Frequent Hail 0.25 to 0.75 inch possible Tornadoes Isolated tornadoes possible Wind Wind gusts of 50 to 60 mph Discussion: There is the potential for severe thunderstorms to develop over much of southeast Texas and southwest Louisiana through the remainder of the afternoon. Currently, numerous showers and scattered thunderstorms extend from northwest Louisiana toward Houston. This activity is moving very slowly to the east. Frequent lightning, hail and strong wind gusts are likely in severe storms. Isolated tornadoes could also form quickly from these storms. Meteorologist: D. Breher

Call us toll-free at 1-877-792-3225 if you have any questions about this weather alert.

Impact Weather's Phased Alert System are qualified with a color condition status. The condition color will vary according to the severity and immediacy of the threat, and the confidence that the forecaster has that the severe weather will directly affect a given area.

Message 159 of 218

Tax Review of California Assembly Bill No. 128

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['tim.belden@enron.com', 'Edward Coats/ENRON@enronXgate', 'paul.kaufman@enron.com', 'Gavin Russo/ENRON@enronXg...] |
| File | kean-s/sent/1342. |

fyi ----- Forwarded by Steven J Kean/NA/Enron on 05/10/2001 09:13 AM ----- From: Matthew F Gockerman/ENRON@enronXgate on 05/09/2001 03:01 PM To: Steven J Kean/NA/Enron@Enron, Greg Whalley/HOU/ECT@ECT, Wes Colwell/ENRON@enronXgate, Jeff Dasovich/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron cc: Edward Coats/ENRON@enronXgate, Gavin Russo/ENRON@enronXgate, Stephen H Douglas/ENRON@enronXgate, Jeff Blumenthal/ENRON@enronXgate, Susan Musch/ENRON@enronXgate, Christian Yoder/ENRON@enronXgate

Subject: Tax Review of California Assembly Bill No. 128

Attached please find a Tax Review of California Assembly Bill No. 128 ("AB 128X"). The Tax Review sets out the practical implication (increased cost to purchasers) and constitutional deficiencies of AB 128X.

The third paragraph of the Tax Review details the mathematical computation of the tax and the resulting purchaser price increase. The computation sales price, \$300/MWh, reflects the SP15 (Southern California) weighted average index price (\$302.88), rounded to the nearest hundred, as reported in Megawatt Daily's May 8th MarketReport. However, it may be more effective to present the mathematical computation with a price closer to the proposed base price of \$60/MWh. We are available to assist in presenting the computation utilizing whichever numbers you deem appropriate.

The California Senate has passed SB 1X, Windfall Profits Tax on Electric Generators. We will forward a similar memorandum addressing SB 1X.

We are available to address questions and/or comments. Thanks.

Ed Coats - 713.853.6369 Steve Douglas - 713.853.0938 Gavin Russo - 713.853.6296 Matt Gockerman - 713.853.3979

Message 160 of 218

documents for May 24 conference call

| | |
|------------|--|
| Sender | yolanda@ccemtl.org |
| Recipients | ['yolanda@ccemtl.org', 'aescofet@alesco.com.mx', 'stomasky@aep.com', 'cgsmith2@aep.com'] |
| File | kean-s/nacec/3. |

Dear Advisory Board Member,

Thank you for your continued support of NACECs Initiative "Environmental Challenges and Opportunities of the Evolving Continental Electricity Market".

Please find attached the following documents for your review and to be further discussed during the conference call Thursday May 24 at 3:00 EST.

1) an Interim Note for the Secretariat report 2) a draft recommendations checklist (for initial discussion) 3) a list of the advisory board members and bios (please note that we have shortened some of the bios, if you have yet to submit a bio please send a copy to yolanda@ccemtl.org)

Items to be discussed during conference call: I) Secretariat update - progress, expert report, symposium II) Process and approach for developing guidelines/recommendations III) Initial discussion of guidelines/recommendations IV) 2nd Advisory Board meeting date and venue

Details of the conference call:

Participants from Canada and the United States should dial: 1-877-633-5353 (toll free)

Participants from Mexico should dial: 0-1-800-123-0200 and ask the operator to charge this telephone call to the telephone number: (1-514) 868-2558

then enter the following Code: 023405#

If there is any problem with the communication during the call please dial *0 (Conference call reference: C799250)

On behalf of my colleagues at NACEC, Sincerely,

Yolanda Clegg

Yolanda Clegg, M.Sc. Environment, Economy and Trade Program North American Commission for Environmental Cooperation 393 rue St-Jacques Ouest, bureau 200 Montreal Quebec CANADA H2Y 1N9

tel: 514-350-4368 fax: 514-350-4314 yolanda@ccemtl.org

<http://www.cec.org>

- Interim Note.doc - Recommendations checklist.doc - Members and Bios.doc

Message 161 of 218

nan

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['michael.terraso@enron.com'] |
| File | kean-s/archiving/untitled/240. |

what do you think ----- Forwarded by Steven J Kean/NA/Enron on 11/30/2000 07:47 AM -----

J Paul Oxeer@AZURIX 11/29/2000 12:15 PM

To: Steven J Kean/NA/Enron@Enron cc: Miguel Padron/NA/Enron@ENRON, Richard Shapiro/NA/Enron@Enron, Jose Bestard/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject:

Steve,

Thanks for your courtesy this morning, and recommendations for further contacts. (By copy of this transmission I'm sending my resume' on to Rick, Jose' and Miguel, as you suggested.) Much of the work I've done in the last fifteen years has been involved government affairs, in one way or another. Either I was dealing with state and federal regulatory agencies in the US, working on political campaigns in Florida and Texas, or negotiating with international governments preparing for purchase of utility concessions. All while developing strategy, building and organizing teams to execute the work, and seeing to it that the job got done.

Three documents are attached. I suggest this order to read them: #1 "JPO Res Addendum" gives you a view looking forward (where I'll go, what I can do) as all resumes should. #2 "JPO Res Exec Summ" gives you a view looking back (where I've been, what I've done) as all resumes would. #3 "JPO Res Full CV" gives detail on specific assignments and projects (essentially an expanded version of #2).

Hope the holidays are joyous and safe for all.

Best regards,

J. Paul

J. Paul Ozer Vice President, International Development, Azurix Corp.

E-Mail: joxer@azurix.com or jpaul0907@yahoo.com

TEL: 713-646-8304 FAX: 713-646-9620 MOB: 713-858-5508 ADM: 713-646-7297 Shelly Schoenfelder

"Yes, there are two paths you can go by, but in the long run there's still time to change the road you're on." -- R. Plant

Message 162 of 218

Calif State Controller: General Fund Surplus Cut Down by 60% for

| | |
|------------|---|
| Sender | susan.mara@enron.com |
| Recipients | ['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com'] |
| File | kean-s/all_documents/5472. |

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/21/2001 12:01 PM -----

smara@enron.com Sent by: "Report mailer problems to <http://www.quicken.com/support>" <nobody@nowhere.com> 03/21/2001 11:55 AM Please respond to smara

To: undisclosed-recipients;; cc: Subject: Calif State Controller:General Fund Surplus Dn To

I thought you might find this story interesting.

----- Article -----

Wednesday, March 21, 2001 02:21 PM

<!--TEXT-->

LOS ANGELES (Dow Jones)--California State Controller Kathleen Connell Wednesday said the state's general fund surplus has dropped to \$3.2 billion from \$8.5 billion in January, mostly because of electricity purchases made by the state's Department of Water Resources, a press release said.

Connell also denied Gov. Gray Davis' request to transfer an additional \$5.6 billion from the general fund to the Special Fund for Economic Uncertainties, the release said.

Connell noted that, given the rapid depletion of the general fund on power purchases, the state would need to borrow \$2.4 billion in order to transfer the \$5.6 billion from the general fund to the special fund.

"We started this year with a generous budget surplus. The energy crisis has taken much of that away, and this transfer on top of the electricity purchases would put the fund at risk," Connell said.

Connell called on Davis to ensure that the CDWR completes by the end of May 2001 the revenue bond sales that will be used to buy power and repay the general fund.

She also asked that the CDWR notify her of all power purchases made and contracts negotiated thus far and requested that she be told within 7 days of any purchases and contracts negotiated in the future.

Connell also said she wanted to be told within 24 hours of any power buys that exceed \$55 million and asked that the Department of Finance be directed to prepare new general fund cash flow estimates for the next 30 and 60 days, and for the end of the fiscal year.

The state's Department of Water Resources has been buying power since January in lieu of Edison International (EIX) utility Southern California Edison and PG&E Corp (PCG) utility Pacific Gas and Electric Co, because suppliers refused to sell to the nearly-bankrupt utilities.

-By Jessica Berthold; Dow Jones Newswires; 323-658-3872; jessicaberthold@dowjones.com

Gov. Davis' office said, in response to Connell's comments, that the state budget was solid and the economy remained strong.

"We will be getting the money back we've paid for energy and it should have no significant effect on the state's finances from the Wall Street perspective," said Davis press secretary Steve Maviglio.

-By Jessica Berthold; Dow Jones Newswires; 323-658-3872; jessicaberthold@dowjones.com

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Message 163 of 218

Fw: Tagging issue at NERC Security Subcommittee tomorrow

| | |
|------------|--------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['Steven Kean'] |
| File | kean-s/attachments/1696. |

----- Forwarded by Steven J Kean/NA/Enron on 09/26/2000 04:20 PM -----

"Duncan Kincheloe" <dkincheloe@mpua.org> 09/26/2000 10:22 AM

To: <skean@enron.com> cc: Subject: Fw: Tagging issue at NERC Security Subcommittee tomorrow

Steve, ? I sent the below to you this morning at an apparently outdated email address.? Your secretary was kind enough to update me so I'm forwarding it again. ? Duncan Kincheloe General Manager and CEO Missouri Public Utility Alliance 573-445-3279 Fax 573-445-0680 ----- Original Message ----- From: Duncan Kincheloe To: Steven Kean Sent: Tuesday, September 26, 2000 10:01 AM Subject: Tagging issue at NERC Security Subcommittee tomorrow

Steve,

I haven't been in touch since the DOE Reliability Task Force and hope this email address through Elizabeth is still the way to reach you.? Incidentally, I was with Sue Tierney at a NARUC conference yesterday and we've started a new pool to wager when Congress will get this issue dealt with. Want in?

Perhaps you remember that while we were serving on the Task Force I moved to EPRI to direct their government relations.? Last year I moved back to Missouri to run the municipals' state joint action agency, which is why I'm writing.? Part of our activity is operating a 19 city power pool (MoPEP) that has a three year supply contract of up to 40 mWh/hr with Enron.? We've had some difficulties with delivery since a change in tagging was made in June. ? The issue and a proposed solution is explained in the attached three page "bullet statement" that we've just submitted to the new NERC Security Subcommittee that meets tomorrow.? Based on his discussions with NERC staff, with a Mike Curry with Enron and other affected utilities, my chief operating officer for MoPEP is optimistic about prospects for this resolution.? I would like to make sure of Enron's support.? I'm told that Dick Ingersoll will be at the subcommittee meeting for Enron, and I know Dick from SPP meetings when I was on the Missouri Commission but don't have contact information on him now.? I'd be very grateful if you could pass along a nod of benign interest in this.

We'd greatly appreciate Enron's support for the proposed resolution of the tagging issue at the NERC Subcommittee tomorrow, mainly because it should avoid what might otherwise be a messy contract dispute, at FERC or elsewhere, between our organizations.? Without getting into the details, my understanding of the issue under the energy purchase agreement has to do with whether the change in NERC tagging that was required on June 1 (the date when MoPEP started taking certain control area services from Western Resources) affects Enron's obligation under the agreement to deliver energy to the Associated Electric Cooperative transmission system.? MoPEP's view is that Enron's obligations are unaffected, but some at Enron apparently have had a different view.? Our belief is that the proposal that will be presented to the Security Subcommittee will resolve the tagging matter such that both Enron and MoPEP would regard any potential dispute on this issue as moot.

Sorry for such short notice, but this resolution and taking it to the subcommittee came out of discussions in Atlanta Friday.

Thanks for your consideration, Steve.? Hope all is well with you.

Duncan Kincheloe General Manager and CEO Missouri Public Utility Alliance 573-445-3279 Fax 573-445-0680 - MoPEP Tagging.doc

Message 164 of 218

FW: (MDY) MOODY'S PLACES ALL L-T DEBT OF ENRON CORP ON REV FOR

| | |
|------------|--|
| Sender | karen.denne@enron.com |
| Recipients | [tim.despain@enron.com', 'j..kean@enron.com', 'pr <.palmer@enron.com'] |
| File | kean-s/pr_crisis_management/33. |

-----Original Message-----

From: "ANDREW PRATT, BLOOMBERG/ NEWSROOM:" <APRATT@bloomberg.net>@ENRON Sent: Monday, October 29, 2001 9:25 AM To: Denne, Karen Subject: (MDY) MOODY'S PLACES ALL L-T DEBT OF ENRON CORP ON REV FOR

this is moody's release

MOODY'S PLACES ALL L-T DEBT OF ENRON CORP ON REV FOR POSS DWN 2001-10-29 10:06 (New York)

New York New York John Diaz Stephen G. Moore Managing Director VP - Senior Credit Officer Corporate Finance
Corporate Finance Moody's Investors Service Moody's Investors Service JOURNALISTS: (215) 967-6233
JOURNALISTS: (215) 967-6233 SUBSCRIBERS: (215) 967-6233 SUBSCRIBERS: (215) 967-6233

MOODY'S PLACES ALL LONG TERM DEBT OBLIGATIONS OF ENRON CORP ON REVIEW FOR DOWNGRADE;
SENIOR UNSECURED AT Baa1

Approximately \$ 13 Billion of Debt Securities Affected.

New York, October 29, 2001 -- Moody's Investors Service placed all the long term debt obligations of Enron on review for downgrade following the announcement by Enron of significant write-downs and charges, reflecting substantially reduced valuations in several of its businesses. These actions affect Enron's broadband operations, its merchant portfolio and the Azurix water company holdings. The company's Prime-2 rating for commercial paper is confirmed.

Moody's has previously commented on the challenges impacting a number of Enron's businesses but the magnitude of the announced charges will reduce Enron's equity base and increase nominal financial leverage to somewhat over 50.0% while slashing earnings. The company's previously announced sale of Portland General, however, will result in cash proceeds approximating \$1.8 billion which management is earmarking for debt reduction. In addition, the sale will remove approximately \$1 billion of debt obligations from Enron's balance sheet. Moody's notes that, while this transaction will go a long way to help restore Enron's balance sheet, it requires regulatory approval and is likely to take up to a year to complete.

In its review, Moody's will focus on Enron's strategic direction and in particular on the earnings and cash flow outlook for its core gas and power wholesale businesses. We will also review management's progress in dealing with problem areas such as its exposure to the California energy markets and its Dhabol project in India. In addition, Moody's will analyze further restructuring efforts and the potential for further asset write-downs as well as for future asset sales that can generate cash for debt reduction.

Debt securities under review include:

Guaranteed Senior NotesA3

Senior UnsecuredBaa1

Senior Secured or Conv./Exch. Sr. Sec. Shelf(P)A3 / (P)Baa1 / (P)Baa3

Senior SubordinatedBaa2

Guaranteed Cum. Trust PreferredBaa2

Guaranteed Trust PreferredBaa2

Senior Subordinated Shelf(P)Baa2

Cum. Guaranteed Preferred StockBaa3

Cum. Guaranteed Preferred Stock Shelf(P)Baa3

Also impacted by the review will be the following issues:

Marlin Water TrustBaa1

Osprey Trust (I & II)Baa2

European Power Limited Company (Margaux)Ba2

Enron Credit Linked Notes Trust (I & II)(Yosemite)Baa1

Enron is one of the world's largest energy companies with approximately \$63.4 billion in energy assets. The company produces electricity and transports natural gas, develops, constructs and operates energy facilities, and markets and delivers physical commodities and financial and risk management services. It is headquartered in Houston, Texas.

end -0- (MDY) Oct/29/2001 15:06 GMT

Message 165 of 218

Elections Insight June 7, 2000 Vol. 28 Number 9

| | |
|------------|--------------------|
| Sender | gizicki@bipac.org |
| Recipients | [] |
| File | kean-s/reports/11. |

IN THIS ISSUE: Getting Rid of What Doesn't Work

Sounding Like a Broken Record Greg Casey has said this for almost a year, but circumstances are making him do it again. Business needs to get high-tech with their grassroots activity. The time is now!

http://www.bipac.org/supporters/subscription/BiweeklyEIS/6_00_2TakingtheLead.html

Getting New Spin for a New Era Bernadette Budde gives her advice to campaigns on what works and what doesn't when making their case for business support. http://www.bipac.org/supporters/subscription/BiweeklyEIS/6_00_2BAB.html

Still At The Heart of GOP Control It has been six years since the GOP took control of Congress. Who is left from that historic class? Do they need help in the upcoming election? What are their main issues?

http://www.bipac.org/supporters/subscription/BiweeklyEIS/6_00_2Freshman.html

Party Squabbles in Safe Seats In the latest round of primaries, many of the winners are all but assured seats in the next Congress. The real fight was in the primary. Find out who won and who lost.

http://www.bipac.org/supporters/subscription/BiweeklyEIS/6_00_2Primaries.htm

Late Filings Reveal Limited Targets Filings in Alaska, Arizona, Colorado, Kansas and Wyoming are discussed.

http://www.bipac.org/supporters/subscription/BiweeklyEIS/6_00_2Filings.html

Project 2000: You've Got Mail Create and send your customized Project 2000 Voting Records to neighbors, coworkers and colleagues. http://www.bipac.org/supporters/subscription/BiweeklyEIS/6_00_2P2K.html

DON'T MISS THE EVENT OF THE SUMMER!! Chairperson Maria Little (UPS) and the BIPAC PAC Council request the pleasure of your company at the PAC Council Kick-off Reception June 28, 2000 4:30-6:00 p.m. The University Club 1135 16th Street, N.W. Washington, DC Please come and see the new products and services BIPAC's PAC Council has to offer you! From online fundraising, expert PAC advice and revitalization tools to grassroots and corporate communications tools and ideas--the new BIPAC has it all. . .this is one stop shopping at its best. Join us on the 28th to see what the PAC Council can do for you and please bring a friend. Win a Free BIPAC Membership or a free ticket to next year's Adam Smith Dinner! Win a free membership to Fundraisingevents.com site through December 31, 2000! Win a FREE data set from LDS of the names and addresses of the delegates and alternates to the National Conventions (a \$995 value!) Win a FREE "Fat Cat" CD from Aristotle and see who gives the big money! Please R.S.V.P. to Aimee Malenfant by June 19th (202) 833-1880 or malenfant@bipac.org

Don't forget to sign up for BIPAC's Political Briefing Series. The next Washington Briefing is July 21st at the University Club. For more information, call Christina Kendall 202-833-1880 or email her at kendall@bipac.org

[<mailto:kendall@bipac.org>](mailto:kendall@bipac.org) The next PAC Workshop is July 20th at the BIPAC office. For more information please contact Aimee Malenfant at 202-833-1880 or malenfant@bipac.org [<mailto:malenfant@bipac.org>](mailto:malenfant@bipac.org)

Adam Smith Commemorative Coins are Still Available!! Contact Deb Flavin or Heather Ireland for details. These solid silver coins were the hit of the dinner. Get your own, Rep. Cass Ballenger, Dick Cheney, and Earle Williams coins. Supplies are limited. (202) 833-1880 or ireland@bipac.org.

Subscribe/Unsubscribe to Elections Insight Starting April 2000, BIPAC brings you Elections Insight and all of the political information you have come to expect and trust, electronically, twice a month. Those subscribers who have been receiving the EIS monthly magazine will continue to receive EIS in its new form (a hard copy edition) twice monthly. If you wish to learn more about any of the races mentioned, comprehensive analysis is available on the BIPAC website (www.bipac.org) [<http://www.bipac.org>](http://www.bipac.org) in the candidate database.

To let us know what you think of the new Elections Insight-Online Edition email Adrienne Gizicki at Gizicki@bipac.org <mailto:Gizicki@bipac.org>

To add another person from your organization to the mailing list or to unsubscribe simply email Jeanne Payne at payne@bipac.org <mailto:payne@bipac.org>. Thank You!

Message 166 of 218

GRS ElectricGasOil Alert [02/29/2000]

| | |
|------------|---------------------------|
| Sender | grsinc@erols.com |
| Recipients | [] |
| File | kean-s/all_documents/362. |

ELECTRIC / HYDRO REPORT

New York State Reliability Council, ER00-1671-000 -- [2/22/00] Revisions to the Installed Capacity Requirement for the New York Control Area for the Capability Year beginning on May 1, 2000 and ending April 30, 2001.

North American Electric Reliability Council, ER00-1666-000 -- [2/22/00] Revision of NERC's Transmission Loading Relief Procedures.

The United Illuminating Company, EC00-58-000 -- [2/24/00] Application for authority to implement UI's proposed holding company structure and the resulting disposition of facilities pursuant to the corporate reorganization.

NATURAL GAS / OIL Report:

Petal Gas Storage, L.L.C., CP00-59-001 -- [2/18/00] Amended application to eliminate the transportation facilities and associated environmental review considerations associated with Petal's December 28 application by seeking authority to construct storage-related facilities on, and adjacent to, the Petal salt dome storage plant and to expand Petal's current interconnection with Tennessee Gas Pipeline Company's 500 line.

National Fuel Gas Supply Corporation, CP00-91-000 -- [2/22/00] Application for authorization to replace National Fuel's Lines S-1 and AM-60; for the abandonment in place of Line L; and the relocation, modification or abandonment of certain appurtenant stations in Warren, McKean and Elk Counties, Pennsylvania. National Fuel also seeks to add approximately 360 hp of compression at its Roystone Compression Station in Warren County. National Fuel states that the proposed facilities would enable the provision of additional firm transportation service to its affiliated local distribution company, National Fuel Gas Distribution Corporation.

CNG Transmission Corporation, CP00-92-000 -- [2/22/00] Application for necessary authorizations to allow CNG to plug and abandon Bridgeport Storage Well 9081 and associated facilities, and drill up to five new replacement storage wells, necessitated by the proposed construction of the Bridgeport Bypass project by the West Virginia Department of Transportation.

Honeoye Storage Corporation, CP00-93-000, CP00-94-000, CP00-95-000 -- [2/22/00] Applications for abandonment of service to Providence Gas Company; certificate authority to expand Honeoye's storage facilities in Ontario County, NY; and blanket certificate authority to offer open access service at market based rates.

Kinder Morgan Interstate Gas Transmission, GT00-19-000 -- [2/25/00] Revision to entire FERC Gas Tariff to reflect a name change from K N Interstate Gas Transmission Co. to Kinder Morgan Interstate Gas Transmission.

[To request a copy of any of the above listed filings, please call 202-255-4771 or toll-free, 1-800-664-8477; or e-mail rgadsden@grsenergy.com]

The GRS EGO Alert (electric, gas, oil) e-mail notification is a free courtesy service of Gadsden Research Services, Inc., Washington's regulatory research specialists. Periodically (generally once or twice weekly), GRS will broadcast the EGO Alert with descriptions of major FERC issuances or filings such as rulemakings, policy statements, mergers, new rate

filings, major rate changes, and certificate filings.

GRS can provide hardcopies of any of the above listed items at nominal charges; for document requests or estimates of charges, please reply to rgadsden@grsenergy.com or call 202.255.4771 (toll free, 1.800.664.8477).

For a mailed copy of the GRS brochure of services and rates for FERC, SEC, DOE and other federal agency research, please e-mail your street address to brochure@grsenergy.com.

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Send suggestions on how the EGO Alert can better serve the energy community to EGOalert@grsenergy.com. - att1.htm

Message 167 of 218

From Assemblyman John Campbell's Laptop To Yours, 7/13/01

| | |
|------------|---|
| Sender | susan.mara@enron.com |
| Recipients | ['richard.shapiro@enron.com', 'karen.denne@enron.com', 'mark.palmer@enron.com'] |
| File | kean-s/california_campaign/1. |

This legislator is very bright and articulate -- he obviously "gets it"

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/13/2001 03:54 PM -----

Peter Bray@NEWPOWER 07/13/2001 09:40 AM

To: susan.j.mara@enron.com cc: Subject: From Assemblyman John Campbell's Laptop To Yours, 7/13/01

Y'all could have an ally in John Campbell, to the extent you want to work the Sacramento leagues... Peter

----- Forwarded by Peter Bray/HOU/NewPower on 07/13/01 09:38 AM -----

"Cowen, Jennifer" <Jennifer.Cowen@asm.ca.gov> 07/13/01 09:19 AM

To: cc: Subject: From Assemblyman John Campbell's Laptop To Yours, 7/13/01

Campbell's Capitol Communications

Weekly Report July 13, 2001

Governor's myths

We have known for some time that Gray Davis is a much better fundraiser and political spin doctor than he is a Governor, but lately he is taking the spin way too far. He is so desperate to find villains with whom he can deflect focus from his own record that he continues to ignore facts. Here is my effort to set the record straight on several of the Governor's, and his lackeys, recent pronouncements on energy and the budget. Energy: MYTH: "All Texans are evil" His spokesman said, "Anywhere they wear cowboy hats, they probably have handkerchiefs across their face because they are robbing us blind." Why he said it: George Bush is from Texas and is a convenient scapegoat. FACT: Only 2 of the 12 largest energy suppliers to California are from Texas and they provide only 9% of the state's energy use.

MYTH: "Private power generators charged California the most" Governor Davis said, "What's going on here, pure and simple, is unconscionable price-gouging by the big energy producers." Why he said it: Polls show that it is easier to blame power generators for the energy crisis than anyone else. FACT: The private company power generators charged substantially lower prices over the last few months for energy than the public agencies. In fact, documents recently released reveal that Enron and Mirant averaged \$181 and \$225 per megawatt while LADWP and Sacramento Municipal averaged \$292 and \$330 for energy sold to the state during the first quarter of this year.

MYTH: "Power companies manipulated prices" Governor Davis said, "Their testimony could be the "smoking gun" that demonstrates there was improper manipulation of California's electricity market." Why he said it: another way to say, "its not my fault, its their fault" FACT: Duke energy shut its plant down because it was ordered to, in order to balance the grid, by the California ISO, an entity overseen entirely by Davis appointees. Budget: MYTH: "Republicans want to cut education spending" A lead education appointee said, "We feel very strongly that agreeing to that would put us in a position where children would lose." Why it was said: he needs to think of something to justify his tax increase. FACT: Republicans have never proposed cuts in education out of the current budget. We have instead proposed reducing pork, entirely new or expanded programs, and cutting funded but vacant bureaucratic positions.

MYTH: "The \$1.2 billion sales tax increase is not a tax increase" The Governor said, "They've just invented this argument about a tax increase. It's just nonsense. It's not a tax increase." Why he said it: he wants to maintain the illusion of being a fiscal conservative FACT: One year ago, when the sales tax was cut, Davis had a news conference announcing "This tax decrease will benefit every Californian. It will put even more of our prosperity in the hands of those who created it in the first place - the taxpayers of this State." Now, when the same tax goes up, it is not a tax increase? I will let you figure out for yourself whether or not these myths are indeed myths -- I only hope that you won't be using the Governor's statements for your facts.

Until next week, that's all for this week.

John Campbell

Feel free to forward this e-mail to a friend!

If you wish to be taken off this e-mail list, please notify me. Jennifer Cowen, District Director Assemblyman John Campbell, 70th District 949.863.7070 949.863.9337 fax

Message 168 of 218

Duke release and news conference

| | |
|------------|--|
| Sender | peggy.mahoney@enron.com |
| Recipients | ['steven.kean@enron.com', 'mark.palmer@enron.com', 'karen.williams@enron.com'] |
| File | kean-s/heat_wave/242. |

Duke is holding a news conference at 3pm Central Time. Call in number is below.

Duke Energy Offers Governor Davis Solutions to California's Power Supply Shortfall

Committing to Deliver 3,000 Megawatts of New Supply to California And a Five-Year Fixed Price Supply Contract

HOUSTON AND MOSS LANDING, Calif., July 31 /PRNewswire/ -- Duke Energy North America (DENA) today offered to California Governor Gray Davis specific solutions to address the state's electricity supply shortage proposing to deliver 3,000 megawatts of new supply through the construction of generation facilities. In addition, DENA proposed a five-year, fixed-price supply contract to incumbent utilities to address the immediate concern with volatile electricity prices.

"California's high electricity prices during peak-demand periods result from insufficient supply to meet the demand," said Jim Donnell, president and chief executive officer of DENA. "In the past ten years, no significant new power generation facilities have been built in California. During the same period, peak demand has risen more than 10,000 megawatts. This combination has caused the state's reserve margin to fall to less than 2 percent, which necessarily results in higher prices and abnormal volatility." Under current procedures, it takes in excess of four years to deliver new power generation in California. To add substantial incremental generating capacity to California, DENA proposed Governor Davis use his existing authority under the California Emergency Services Act to streamline the permitting process to facilitate the rapid construction of environmentally friendly generation by 2001. DENA also asked the governor to use his current authority to allow California utilities to enter into bilateral contracts with energy providers, so they could better manage their exposure to high energy prices. To help solve the state's supply shortfall, DENA said it remained committed to adding substantial generation in California. Within two months and upon receiving final regulatory approvals, the company will begin construction on 1,000 megawatts at its Moss Landing facility. The expansion of the current 1,478-megawatt facility will be

in commercial operation by summer 2002. And, with an expedited permitting process, DENA could deploy its available resources to construct an additional 500 megawatts for commercial operation in 2001 and 1,500 megawatts for 2002. To address the concern associated with the high energy prices experienced this year, DENA offered to provide up to 2,000 megawatts of electricity to the incumbent utilities at \$50 per megawatt-hour for a five-year period beginning Sept. 1, 2000. This would mitigate the exposure to price spikes, for a reasonable time period during which additional generation resources can be built. "DENA is committed to help bring electricity price stability for the citizens of California through these proposals," Donnell said. "We are confident that our expertise in building and operating power generation facilities can help resolve the supply crisis." Duke Energy North America (DENA), is a leading wholesale energy services company. DENA, and its affiliates, including Duke Energy Trading and Marketing, provides natural gas and power supply and services, and risk management products to wholesale energy producers and users. DENA also develops, owns and manages a portfolio of merchant generation facilities. DENA is a wholly owned subsidiary of Duke Energy. Duke Energy (NYSE: DUK), a diversified multinational energy company, creates value for customers and shareholders through an integrated network of energy assets and expertise. Duke Energy manages a dynamic portfolio of natural gas and electric supply, delivery and trading businesses -- generating revenues of nearly \$22 billion in 1999. Duke Energy, headquartered in Charlotte, N.C., is a Fortune 100 company traded on the New York Stock Exchange under the symbol DUK. More information about the company is available on the Internet at: <http://www.duke-energy.com>.

SOURCE Duke Energy Corporation

Web site: <http://www.duke-energy.com>

Company News On-Call: <http://www.prnewswire.com/comp/257451.html> or fax, 800-758-5804, ext. 257451

CONTACT: Tom Williams, California, 805-595-4270, or pager, 877-364-5170, or Bryant Kinney, 704-382-2208, both of Duke Energy Corporation

EDITOR'S ADVISORY: Duke Energy North America will hold an audioconference today at 1 p.m. Pacific time. Jim Donnell, president and chief executive officer, will discuss DENA's position and proposed solutions for California's power supply crisis. Media representatives should dial 800/289-0437 and provide access code 744661 to participate in the call. The call will be replayed later this afternoon. Dial 888/203-1112 for the replay and use the same access code above.

Message 169 of 218

Re: First Meeting of the Electricity Restructuring Advisory Board

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['maureen.mcvicker@enron.com'] |
| File | kean-s/calendar/untitled/2033. |

meeting file ----- Forwarded by Steven J Kean/NA/Enron on 11/26/2000 08:59 AM -----

Christine Elwell <scenergy@web.net> 11/24/2000 03:48 PM

To: Andrew Horsman <Ahorsman@ccemtl.org>, stomasky@aep.com, aescofet@alesco.com.mx, Rkelter@citizensutilityboard.org, skean@enron.com, elizabeth.moler@exeloncorp.com, t.Rawls@greenmountain.com, Klimpt.Jean-Etienne@hydro.qc.ca, RCavanagh@nrdc.org, jgibbons@pollutionprobe.org, alesco@sisisa.podernet.com.mx, Bob_page@transalta.com, ron.daniels@utoronto.ca, Greg Block <Gblock@ccemtl.org>, Scott Vaughan <svaughan@ccemtl.org>, philip_sharp@Harvard.edu cc: Subject: Re: First Meeting of the Electricity Restructuring Advisory Board

Greetings and thanks to CEC for organizing this interesting process...wanted to give you all a quick snapshot of were Sierra Club of Canada is on electricity restructuring - we're hosting Canada's 1st Green Power Trade Show - pls see attached program where you can see some of the issues we are struggling with...looking forward to our first CEC meeting together to help make a North American Green Power market thrive....Wish us luck and I will fwd to you a copy of the materials and final report if there is interest! Bye for now...Christine

Andrew Horsman wrote:

Montreal, November 20, 2000 RE: North American Commission for Environmental Cooperation Electricity Advisory Board - Message from Chair

Dear Colleagues, I wanted to take this opportunity to update you on a few important planning and communication matters regarding your participation on the North American Commission for Environmental Cooperation's (NACEC) Electricity Advisory Board and to provide you with the date for the upcoming meeting. It will take place the 16th of January at the Commission's offices in Montreal.

In August, I had the opportunity to visit the NACEC's Montreal headquarters to discuss a number of the key issues to be addressed by the electricity restructuring expert report and to get a better feel for the nature of the guidance and input the Advisory Board can contribute to this initiative. More than ever, I am convinced that the outstanding group of individuals serving on the Advisory Board can play an important role in defining and deepening our understanding of the key trade and environment issues at play on a continental scale.

The Secretariat has made considerable progress in conducting a thorough scoping analysis, compiling a searchable database of renewable energy definitions and portfolio standards and initiating work in the area of market access and trade disciplines. At this early stage of development of the expert report, I believe it is an ideal time to schedule our first meeting of the Advisory Board to familiarize ourselves with major issues and provide advice on the scope and content of the report, as well as the broader initiative.

The Secretariat has been in contact with you in advance to select a date for our first meeting so that the greatest number of Board members can participate. Accordingly, we will hold a one-day meeting in Montreal on Tuesday, the 16th of January 2001. The NACEC will cover all travel expenses along with accommodations and per diem. The Meeting Coordinator at the NACEC, Leticia Villeneuve, will be in touch to assist you in making your travel arrangements. If you wish you may contact her at 514-350-4313. Those Board members that cannot attend will be able to join portions of the meeting by conference call.

I have included a draft agenda for your review along with the list of current members of the Advisory Board. The Secretariat will soon establish a web site and list serve to facilitate our communications, including the exchange and review of documents. The Secretariat will also prepare, in advance of our first meeting, a brief but detailed report outline, including the major themes that are being considered for the report. The Secretariat is seeking our views on the key issues that warrant special analysis.

I very much look forward to meeting you soon in Montreal. As always, feel free to contact me if you would like to talk over any aspect of our work together. Or, if you have any questions regarding the logistics of the meeting, please contact Alicia Chica at the Secretariat at 514-350-4330, or by e-mail at achica@ccemtl.org.

Sincerely, Philip Sharp Chair North American Commission for Environmental Cooperation Electricity Advisory Board

----- Name: AGENDA.DOC AGENDA.DOC Type: Download File
(application/msword) Encoding: base64

-- ***** Christine Elwell Sierra Club of Canada Senior Policy Analyst 517 College St. Suite #237 Toronto, ON, Canada, M6G-4A2 Phone#:416-533-5177 Fax:416-960-0020 E-mail: scenergy@web.net
***** - program.doc

Message 170 of 218

Re: Arbitration with Reliance and ONGC

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | [' mark.schroeder@enron.com ', ' jane.wilson@enron.com '] |
| File | kean-s/discussion_threads/753. |

Are you aware of this? ----- Forwarded by Steven J Kean/HOU/EES on 08/01/2000 07:49 AM

Sanjay Bhatnagar@ENRON_DEVELOPMENT 08/01/2000 12:23 AM To: Steven J Kean@EES cc: Subject: Re: Arbitration with Reliance and ONGC

----- Forwarded by Sanjay Bhatnagar/ENRON_DEVELOPMENT on
08/01/2000 12:23 AM -----

Delivery Failure Report Your document: Re: Arbitration with Reliance and ONGC was not delivered to: steven kean because: User steven kean not listed in public Name & Address Book

What should you do? You can resend the undeliverable document to the recipients listed above by choosing the Resend button or the Resend command on the Actions menu. Once you have resent the document you may delete this Delivery Failure Report. If resending the document is not successful you will receive a new failure report Unless you receive other Delivery Failure Reports, the document was successfully delivered to all other recipients.

EI-NINET01/ENRON_DEVELOPMENT, EI-NINET01/ENRON_DEVELOPMENT,
EDC_NMAIL01/ENRON_DEVELOPMENT

To: Jeffrey Sherrick/Corp/Enron@ENRON cc: Joseph W Sutton/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Rob Walls, steven kean, Wade Cline/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jimmy Mogal/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT From: Sanjay Bhatnagar/ENRON_DEVELOPMENT Date: 08/01/2000 12:08:55 AM Subject: Re: Arbitration with Reliance and ONGC

Jeff:

This is all Ok after the fact but I would have expected that we would have discussed this before action was taken.

For the record, I would not advise calling this an arbitration BUT mediation and I would work with senior government officials and politicians ahead of time to control the fall out that may come about especially since Parliament is in session right now.

I will advise our PR group to say nothing to the press but route all queries to you.

sanjay

Jeffrey Sherrick@ENRON 07/31/2000 06:19 AM To: John Ambler/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Larry Morse/Corp/Enron@Enron, Mike Stewart/Corp/Enron@ENRON, Sanjay Bhatnagar/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Michael J Smalling/HOU/ECT@ECT, Stephen Wallace/Corp/Enron@ENRON, Wade Cline/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Rick Phillips/Corp/Enron@Enron cc: Rob Walls/NA/Enron@Enron, James Derrick/Corp/Enron@ENRON, Steven J Kean/HOU/EES@EES, Joseph W Sutton/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Pam Benson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Christina Grow/Corp/Enron@ENRON Subject: Arbitration with Reliance and ONGC

I was in India last week meeting with partners and we all agreed that the best thing to do to move ahead regarding the old unrecovered cash calls ("joint interest billings") was to file an arbitration proceeding and get an objective third party to settle the issue. As you know, Reliance and ONGC owe EOGIL approximately \$7.1 and \$10.3 million, respectively (including interest on non-payment). The arbitration notices reflected only the non-payment numbers which are \$5.8 and \$7.3 million for RIL and ONGC respectively. We finalized the drafting and dated the notices on July 29th and we delivered the official notice during business hours Monday July 31, 2000. This was the final step in a very long effort to resolve this issue in other means, but as I noted to the OOC after the June meetings this was the only solution in the end. While nobody likes to file arbitration, the good news is in the end all parties seen this as the only solution and as best as I can tell, at least internally ONGC and Reliance support this decision. If the issue gets external, I don't know how any of the parties will respond. Our goal is to keep it as low keyed as possible, but this is India and I would expect someone to try to make a big issue out of it.

I will be in contact with John Ambler today to discuss the details of the submittal and to prepare for any response to the media that may be necessary. While both parties were expecting the notice, it may leak into the media over the next few days. Please defer any questions or comments to either John Ambler, Larry Morse or myself regarding this issue. Until John advises us otherwise, our comment will be as follows;

" The parties (ONGC, Reliance and Enron Oil and Gas India Limited) have had a dispute on certain cost items and together we have agreed it is best for the joint venture to have this dispute resolved by an independent third party using the guidelines as set forth in the Joint Operating Agreement."

Mike Smalling in our office will coordinate this matter with John Ambler and the appropriate staff. I will be available to respond if necessary and my contact numbers are as follows;

office-713-853-5934 pager 888-493-1770 cell 713-569-4713 home 281-320-2198

Larry, please make sure our office understands that only you are to comment on this and any other official E&P business in India and Wade/Sanjay would you share this note with the appropriate people in your office so nobody is surprised if something comes up. Mike Smalling, John and/or I will keep you informed of any relevant events.

jeff

Message 171 of 218

GRS ElectricGasOil Alert [06/21/00]

| | |
|------------|---------------------------------|
| Sender | grsinc@erols.com |
| Recipients | [] |
| File | kean-s/archiving/untitled/1670. |

GRS' ElectricGasOil Alert

June 21, 2000

ELECTRIC / HYDRO REPORT

Entergy Services, Inc., ER00-2854-000 (6/15/00) -- Section 205 application on behalf of the Entergy Operating Companies submitting amendments to the System Agreement between ESI and the Operating Companies to facilitate the introduction of retail competition in Arkansas and Texas and to provide for continued rough equalization of costs among the Operating Companies in Louisiana and Mississippi.

Consumers Energy Company, EC00-103-000, ER00-2869-000 (6/16/00) -- Section 203 and 205 applications for approval of an alternative governance structure for the Alliance Regional Transmission Organization.

El Paso Electric Company, El Paso Electric Generating Company and El Paso Transmission and Distribution Company, EC00-104-000, ER00-2870-000, ES00-46-000 (6/16/00) -- Section 203 and 204 applications to effectuate a corporate restructuring required by electric industry restructuring in Texas and New Mexico. Includes two wholesale power contracts between EPE Genco and T&D Utility to enable T&D utility to provide bundled electric service to EPE's current retail customers pending the implementation of retail customer choice.

PJM Interconnection, L.L.C., EL00-85-000, ES00-47-000; Atlantic City Electric Company, et al., EC00-105-000 (6/19/00) -- Petition for declaratory order requesting that the Commission find that PJM may recover from its customers, through formula rates, the costs to acquire from the PJM transmission owners the information technology and other assets PJM uses to conduct its operations. Companion filings include a Section 203 application for the transfer of the assets from their current owners to PJM and a Section 204 application to obtain the financing needed by PJM to acquire the assets.

NATURAL GAS / OIL Report:

Chevron Pipe Line Company, OR00-6-000 (6/13/00) -- Application for authority to charge market-based rates for deliveries of petroleum products on CPL's two pipelines originating in El Paso, Texas for deliveries to Belen and Albuquerque, New

Mexico on the Albuquerque Products System and to Juarez, Mexico by means of the Juarez Line.

Order No. 637 Compliance Filings -- On June 15, 2000, the following companies submitted tariff filings in compliance with Order No. 637:

Algonquin Gas Transmission, RP00-331-000 Algonquin LNG, Inc., RP00-328-000 ANR Pipeline Company, RP00-332-000 ANR Storage Company, RP00-323-000 Arkansas Western Pipeline Company, LLC, RP00-339-000 Black Marlin Pipeline Company, RP00-335-000, RP00-353-000 Blue Lake Gas Storage Company, RP00-324-000 Canyon Creek Compression Company, RP00-347-000, RP00-348-000 Chandeleur Pipe Line Company, RP00-320-000 Colorado Interstate Gas Company, RP00-325-000 Columbia Gas Transmission Corp., RP00-327-000 Columbia Gulf Transmission Company, RP00-326-000 Crossroads Pipeline Company, RP00-333-000 Dauphin Island Gathering Partnership, RP00-330-000 Destin Pipeline Company, LLC, RP00-321-000 Discovery Gas Transmission, LLC, RP00-319-000 Dominion Transmission, Inc. (formerly CNG Transmission Corp.), RP00-344-000 Egan Hub Partners, L.P., RP00-341-000 El Paso Natural Gas Company, RP00-336-000 Garden Banks Gas Pipeline, LLC, RP00-322-000 Great Lakes Gas Transmission, L.P., RP00-329-000 Kinder Morgan Interstate Gas Transmission, LLC, RP00-343-000 Kansas Pipeline Company, RP00-318-000 Kern River Gas Transmission Company, RP00-337-000 KN Wattenberg Transmission L.L.C., RP00-334-000, RP00-345-000 Koch Gateway Pipeline Company, RP00-340-000 MIGC, RP00-342-000 Mojave Pipeline Company, RP00-338-000 Mississippi Canyon Gas Pipeline, LLC, RP00-317-000

[To request a copy of any of the above listed filings, please call 202-255-4771 or toll-free, 1-877-544-4771; or e-mail rgadsden@grsenergy.com]

The GRS EGO Alert (electric, gas, oil) e-mail notification is a free courtesy service of Gadsden Research Services, Inc., Washington's regulatory research specialists. Periodically (generally once or twice weekly), GRS will broadcast the EGO Alert with descriptions of major FERC issuances or filings such as rulemakings, policy statements, mergers, new rate filings, major rate changes, and certificate filings.

GRS can provide hardcopies of any of the above listed items at nominal charges; for document requests or estimates of charges, please reply to rgadsden@grsenergy.com or call 202.255.4771 (toll free, 1.877.544.4771).

For a mailed copy of the GRS brochure of services and rates for FERC, SEC, DOE and other federal agency research, please e-mail your street address to brochure@grsenergy.com.

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Send suggestions on how the EGO Alert can better serve the energy community to EGOalert@grsenergy.com. - att1.htm - grs2logo.bmp

Message 172 of 218

Observations and Proposals on National Energy Policy 4-24-01

| | |
|------------|--|
| Sender | linda.robertson@enron.com |
| Recipients | ['steven.kean@enron.com', 'kpwood3@yahoo.com'] |
| File | kean-s/discussion_threads/3077. |

Pursuant to your conversation with Steve Kean yesterday, I have attached to this Email several documents we have recently submitted to the White House for its consideration. I hope this material is useful to you. We have also prepared a comprehensive confirmation briefing book on FERC. It is a very detailed compendium of documents on FERC's structure, operations, historical policy decisions, and current issues. I will call your office today to see if you would like us to provide you a copy of this material. I look forward to meeting you. My contact #s are: (o) 202-466-9159, (h) 202-265-9640, and (cell) 202-236-3779.

(Please scroll down)

Message 173 of 218

Media Info & Mtg 1 Specifics

| | |
|------------|--|
| Sender | lisa.connolly@enron.com |
| Recipients | ['sherri.sera@enron.com', 'gbsmith@smith-graham.com', 'steven.j.kean@enron.com', 'jeff.skilling@enron.com', 'k...] |
| File | kean-s/all_documents/6075. |

I understand some committee members were contacted by the media prior to the news conference this afternoon. The Mayor has asked that we refer any and all queries to Jeff Skilling and remind them that he is the spokesperson for the committee.

Meeting 1 specifics: date - Sunday, February 11 time - 2pm - 6pm where - Enron offices - 1400 Smith St (I'll send out floor and office # details ASAP) format - approx 3 hrs worth of presentations/HFD panel discussions(?), 1 hr for committee member discussions and compilation of Fire Chief attributes/qualifications list

I'll send out a list of topics and the respective speaker(s) for each of the presentations as soon as I've worked it all out.

Lisa 713-345-4840 (office) 713-569-9563 (cell) 713-524-5189 (home)

Message 174 of 218

sub-head

| | |
|------------|--|
| Sender | josh-pekarisky@kekst.com |
| Recipients | ['j..kean@enron.com', 'karen.denne@enron.com', 'lar@kekst.com', 'pr <.palmer@enron.com'] |
| File | kean-s/deleted_items/266. |

If we can, let's change the sub-head I suggested to:

Company Draws Down \$3 Billion of Credit to Enhance Liquidity

Josh Pekarisky Kekst and Company ph. (212) 521-4877 fax. (212) 521-4900

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If you have received this e-mail in error, please immediately notify me at (212) 521-4800 and permanently delete the original and any copy of the e-mail and any printout thereof.

Message 175 of 218

Re: CPUC Subpoena - Conference call TODAY!

| | |
|------------|----------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['twanda.sweet@enron.com'] |
| File | kean-s/all_documents/1503. |

I won't be on the call, but will fax my comments to you this am

Twanda Sweet@ECT 10/06/2000 09:51 AM

To: Steven J Kean/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Mary Hain/HOU/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, msmith1@enron.com, david_aamodt@pgn.com, mday@gmssr.com, Mark Palmer/Corp/Enron@ENRON, Mark E Haedicke/HOU/ECT@ECT, gfergus@brobeck.com cc: Subject: CPUC Subpoena - Conference call TODAY!

Please be advised that there will be a conference call today at 11:30a.m. central standard time to discuss the draft response to CPUC. The dial in number is 800-998-2462 (passcode 4672956). If you have any questions, please call me at 713-853-5587.

Thanks. Richard

Twanda Sweet Enron North America Corp. EB3821 (713) 853-9402

Message 176 of 218

| Draft Plan | |
|------------|--|
| Sender | josh-pekarsky@kekst.com |
| Recipients | ['mary.clark@enron.com', 'karen.denne@enron.com', 'lrand@enron.com', 'j..kean@enron.com', 'scott.gilchrist@enr...] |
| File | kean-s/pr___notre_dame/24. |

All --

Here is the document Steve referred to on our call. It's very much a work in progress but perhaps can serve as a building block for some of the other work under way.

Regards,

Josh Pekarsky Kekst and Company ph. (212) 521-4877 fax. (212) 521-4900

<<post-deal_comms.doc>> <<post-deal_Activities.doc>>

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited.

If you have received this e-mail in error, please immediately notify me at (212) 521-4800 and permanently delete the original and any copy of the e-mail and any printout thereof.

Message 177 of 218

| RE: | |
|------------|-------------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['slipin@brunswickgroup.com'] |
| File | kean-s/sent_items/612. |

713.853.1586; H: 713.621.6550; Pager: 888.906.9761

-----Original Message-----

From: Steve Lipin [mailto:slipin@BrunswickGroup.com] Sent: Monday, November 26, 2001 3:45 PM To: Kean, Steven J. Subject:

Steve,

What's your direct dial?

Steve Lipin

This email is sent by Brunswick Group Limited, 16 Lincoln's Inn Fields, London, WC2A 3ED (also the registered office). The company is registered in England (No. 2094879).

This email and any files transmitted with it are confidential and intended solely for the use of the individual or entity to whom they are addressed. If you are not the intended recipient, you are hereby notified that any use or dissemination of this communication is strictly prohibited. If you have received this E-mail in error, please notify us immediately, then delete this E-mail.

This footnote also confirms that this email message has been swept by MIMESweeper for the presence of computer viruses.

Message 178 of 218

Severe Weather

| | |
|------------|---|
| Sender | security.console@enron.com |
| Recipients | ['jenny.rub@enron.com', 'martin.bucknell@enron.com', 'lance.jameson@enron.com'] |
| File | kean-s/archiving/untitled/4652. |

Wackenhut Security -- Enron ph#: 713-853-5361 or 713-853-5360 fax#: 713-646-2407

Rainfall: 2.0 to 4.0 inches, isolated to 7 to 10 inch amounts possible

Discussion: There is a fairly good chance of torrential rainfall to redevelop across your area during the overnight hours producing hours producing flooding. The surface and upper level low pressure area that is the remnants of Allison will drift southwestward during the night and bands of tropical showers and thunderstorms are expected to increase across your area overnight, particularly during the period between 2 am and 9 pm Friday morning. Due to the excessive amounts of rain that have already fallen, this is potentially a very dangerous situation that may develop. Rainfall amounts of 2 to 4 inches are expected with isolated excessive amounts of 7 to 10 inches possible. Occasional to frequent lighting will accompany the stronger storms in the downtown area.

Message 179 of 218

Impact Weather -- Severe Weather Threat Assessment

| | |
|------------|---|
| Sender | console.security@enron.com |
| Recipients | ['jenny.rub@enron.com', 'martin.bucknell@enron.com', 'lance.jameson@enron.com'] |
| File | kean-s/deleted_items/493. |

Wackenhut Security -- Enron ph#: 713-853-5361 or 713-853-5360 fax#: 713-646-2407

----- Forwarded by Security Console/EPSC/HOU/ECT on 11/27/2001 01:18 PM -----

Impact Weather <impact@univ-wea.com> 11/27/2001 12:59 PM To: security.console@enron.com, ken.berryman@enron.com, christal.hattaway@enron.com, doug.blake@enron.com, randy.lord@enron.com cc: Subject: Impact Weather -- Severe Weather Threat Assessment

Severe Weather Threat Assessment For: Enron Property and Services Corp. - Houston, TX

Issued: 12:57 PM CST Tuesday, November 27, 2001.

Currently Selected Severe Weather Threat Parameters

Risk Parameter Time Period Slight Severe Thunderstorms Midnight Tue to Midnight Wed Slight Excessive Rainfall 1pm to midnight Tue and Slight to Moderate Midnight Tue to Midnight Wed Wind Gusts 40+ MPH Not expected through Wednesday.

Meteorologist: T. Treadway

Description of Severe Weather Parameters and Risk Category

To update or modify your severe weather parameters, please contact Universal Impact Weather .

Impact Weather Home

Message 180 of 218

Enron Advisory Council

| | |
|------------|---|
| Sender | maureen.mcvicker@enron.com |
| Recipients | ['deborah.marino@msdw.com', 'vikram.pandit@msdw.com'] |
| File | kean-s/discussion_threads/1066. |

Here is a copy of the original email sent to you:

___ I am contacting you on the recommendation of Pug Winokur, who is on our Board of Directors. Enron has formed an Advisory Council which consists of academicians, public policy thinkers and media, together with Enron executives. I would like to invite you to address the group on E-Commerce issues at our next meeting (Friday, September 8th in Houston).

Attached is a list of our Advisory Council members.

I think you will find this group interesting and thought provoking.

Please contact me at your earliest convenience at 713-853-1586.

DEBORAH: Please fax me Mr. Pandit's bio. My fax number is 713-646-8160.

Also, would you email his presentation when you have it available. Most presenters use Power Point - but if you have different needs, please give me a call at 713-853-1808. The person to email the presentation to is Russell Mitchell. His email address is russell.mitchell@enron.com

Thanks for your assistance.

Message 181 of 218

Jan 16 - Meeting of the Electricity Restructuring Advisory Board

| | |
|------------|---|
| Sender | yolanda@ccemtl.org |
| Recipients | ['svaughan@ccemtl.org', 'lvillene@ccemtl.org', 'gblock@ccemtl.org', 'aescofet@alesco.com.mx', 'stomasky@aep.co...'] |
| File | kean-s/electricity_restructuring_advisory_group/1. |

Dear Colleagues,

We look forward to the first meeting of The Electricity Restructuring Advisory Board. The meeting will be held in Montreal, January 16, 2001 (commencing at 8:30 am), at the Commission for Environmental Cooperation (CEC), 393 St-Jacques Street West, Suite 200.

The CEC will cover all travel expenses along with accommodations and per diem. Kindly complete the attached "Confirmation of Participation" form and return it to Leticia Villeneuve by Dec. 18, 2000 (lvillene@ccemtl.org or fax 514-350-4345) so that we can arrange your travel plans. Since the holidays are almost here, please note that after this Dec 18 deadline, we ask that you arrange your own travel/hotel and the CEC will reimburse you (for an economy priced ticket).

Please do not hesitate to contact me should you have any questions or concerns.

Thank you, Yolanda Clegg

Yolanda Clegg, M.Sc. Environment, Economy and Trade Program North American Commission for Environmental Cooperation 393 rue St-Jacques Ouest, bureau 200 Montreal Quebec CANADA H2Y 1N9

tel: 514-350-4368 fax: 514-350-4314 yolanda@ccemtl.org

<http://www.cec.org>

- Confirmation-english.doc - Confirmation - Spanish.doc

Message 182 of 218

Re: CI at EBS

| | |
|-------------------|---|
| Sender | steven.kean@enron.com |
| Recipients | ['rita.hartfield@enron.com', 'Anthony Mends/Enron Communications@Enron Communications'] |
| File | kean-s/calendar/untitled/727. |

Thanks for the message.

Rita Hartfield@ENRON COMMUNICATIONS 07/17/2000 02:52 PM To: Steven J Kean/HOU/EES@EES cc: Anthony Mends/Enron Communications@Enron Communications Subject: CI at EBS

Steve, I have heard "through the grapevine" that Amy Oberg has relayed to you that EBS will not be doing competitive intelligence and that you were dismayed to hear this.

Amy is correct in the fact that EBS is not likely to buy the software Strategy that provides a strategic, top-down focus on competitive intelligence. However, EBS is doing tactical competitive analysis and market research. We are providing the business units with the information that they need to make intelligent decisions at the business unit level.

Amy's view is that competitive intelligence (CI) belongs at the corporate level and that CI should drive the strategic direction of the company. You and I both know this is not the way Enron operates.

I hope this e:mail does not sound negative but I did want you to know that EBS is providing information and intelligence to its business units -- it is just not in the context that Amy thinks it should be in.

If you have any questions, please let me know.

Rita Hartfield Phone: 713-853-5854 Cell: 713-304-5428 Fax: 713-646-8861 rita_hartfield@enron.net

Message 183 of 218

Continental Airlines - Elite Upgrade

| | |
|-------------------|---------------------------|
| Sender | eua@coair.com |
| Recipients | ['skean@enron.com'] |
| File | kean-s/deleted_items/404. |

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: ULWD9V Flight Number: 149 Date: November 21, 2001 Origination: IAH Destination: ABQ Seat: 03A*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 2 hours prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS E-MAIL. UNFORTUNATELY E-MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED. PLEASE DIRECT ALL INQUIRIES TO THE ELITE PRIORITY LINE, WHICH CAN BE FOUND ON YOUR ELITE CARD.

To make changes to your e-mail address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from OnePass Elite upgrade e-mail notification, please visit <http://onepass.continental.com/emailupgrades>

Thank you for choosing Continental Airlines.

Message 184 of 218

Re: Letter to President on Energy Efficiency - Immediate Review

Sender steven.kean@enron.com

Recipients ['rosalee.fleming@enron.com', 'dham@ase.org']

File kean-s/calendar/untitled/1384.

Decline.

Rosalee Fleming 09/21/2000 05:29 PM

To: Steven J Kean/NA/Enron@Enron cc: Subject: Letter to President on Energy Efficiency - Immediate Review Requested

Is this something we want to do? ----- Forwarded by Rosalee Fleming/Corp/Enron on 09/21/2000 05:27 PM -----

nemtzw@ase.org on 09/21/2000 05:00:08 PM To: cc: dham@ase.org Subject: Letter to President on Energy Efficiency - Immediate Review Requested

To Alliance Board and Associates:

As you may know, President Clinton is considering releasing oil from the Strategic Petroleum Reserve, perhaps as early as the next several days. Regardless of what you think about release of oil from the Reserve, I hope you will help us take advantage of this opportunity to encourage the President to renew his efforts to pursue energy efficiency - our nation's best long-term response to rising oil imports.

Due to the immediacy of the decision, we ask that you let us know if we can sign you on, no later than this Monday, September 25 at noon Eastern. Please respond with sign ons (giving us the precise company/organization name) by reply email, or call Dave Hamilton or myself at 202-857-0666. Thank you for your consideration and support.

David

David Nemtzw Alliance to Save Energy nemtzw@ase.org <<mailto:nemtzw@ase.org>> ph: (202) 857-0666 fax: (202) 331-9588 <http://www.ase.org> <<http://www.ase.org>>

Message 185 of 218

FW: Severance Issues - a suggestion

| | |
|------------|--------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['jim.fallon@enron.com'] |
| File | kean-s/sent_items/590. |

-----Original Message-----

From: Phelan, Joseph Sent: Tuesday, November 20, 2001 10:58 AM To: Kean, Steven J. Cc: Olson, Cindy Subject: Severance Issues - a suggestion

Steve,

I have been told that the severance program is "under review".

As you well know, many long term, dedicated Enron employees who have been with the company for nearly a decade have seen their entire net worth completely wiped out. Retirement plans, college funds, etc have all evaporated. Since the average tenure for an Enron employee is rather short, I believe that this subset is actually quite small. This small subset of employees has been wronged. I believe one way to cushion this blow is to alter the severance equation as follows:

4 weeks X (number of employment years) 1 week X (each 10,000 of salary)

Example one: 2 year employee with an \$80,000 salary = $2*4+80/10 = 16$ weeks severance

Example two: 10 year employee with a \$100,000 salary = $10*4+100/10 = 50$ weeks severance

This will accomplish two tasks, one is to skew the severance towards the longer term employees, the other is to reduce the total outlay so as not to overburden the company (since the group receiving the higher severance is small). I believe this is fair to both the employees and to our soon-to-be new management. Pls consider running this by management and or some focus groups, if in fact, the package is under review.

Joe Phelan Sr.Director Enron Corporate Development EB 517a (713) 853-9691 (713) 594-9381 (Cell) (888) 784-6344 (Pager)

Message 186 of 218

Davis Press Conference 2/8

| | |
|------------|---|
| Sender | jeff.dasovich@enron.com |
| Recipients | ['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com'] |
| File | kean-s/discussion_threads/2358. |

----- Forwarded by Jeff Dasovich/NA/Enron on 02/08/2001 03:31 PM -----

=09Jean Munoz <jmunoz@mcnallytemple.com> =0902/08/2001 03:20 PM =09=09=20 =09=09 To: IEP
<jmunoz@mcnallytemple.com> =09=09 cc:=20 =09=09 Subject: Davis Press Conference 2/8

Attached is IEP's response to Governor Davis.

Thanks, Jean

---- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

Contact: Jean Munoz FOR IMMEDIATE RELEASE 916-447-8186 February 8, 2001

Statement by Jan Smutny-Jones, Executive Director of Independent Energy Providers, in Response to Today's News Conference by Governor Davis

"We applaud the Governor's plan to increase electric generating capacity in California.

"Despite dramatic population growth, no major power plants have been built in California for ten years -- making it impossible to keep up with the demand for power and driving up the cost of electricity.

"We are working with the Governor, legislators and regulators to help solve the problem. and we've made heroic efforts to keep our plants running at capacity to provide power during this crisis.

"Rather than using tax money, we're investing billions of private-sector dollars to buy, modernize and build new power plants to provide California with clean, reliable and affordable electricity.

"Meanwhile, we urge California electricity users to do everything possible to conserve electricity at home and work."

###

- 8 - IEP/Davis Response 2/8

Message 187 of 218

RE: Enron Management Conference

| | |
|------------|----------------------------|
| Sender | j..kean@enron.com |
| Recipients | ['terrie.james@enron.com'] |
| File | kean-s/sent_items/27. |

Just fyi -- Amabile did not present to Enron management as she was unavailable on the day of the meeting. Some of her work was presented by her colleague and Enron Advisory Council member -- Pankaj Ghemawat.

-----Original Message-----

From: James, Terrie Sent: Friday, September 07, 2001 1:50 PM To: 'tamabile@hbs.edu' Cc: Kean, Steven J.; Olson, Cindy Subject: Enron Management Conference

Professor Amabile,

I work for Enron, a leading energy company based in Houston. I believe you recently presented some of your research on creativity and motivation to members of our management team. I am responsible for preparing the business agenda for Enron's annual Management Conference. Scheduled in San Antonio on November 15-16, the two-day meeting brings together more than 400 Enron executives.

Enron has been named most innovative company for six consecutive years by Fortune magazine. However, this year has been challenging for the company. External market issues and internal restructurings have resulted in a depressed stock price and low moral among employees.

Your insights on creating a motivating work environment and stimulating innovation would be especially interesting at this year's conference. If you are interested in presenting to our group, I'd like to explore your availability the morning of Friday, November 16.

Please feel free to respond to my email or call me at 713-853-7727. I look forward to hearing from you.

Terrie James Senior Director, Public Relations Enron Broadband Services (ph) 713.853.7727 (fax) 713.646.3248
terrie.james@enron.com

Message 188 of 218

RE: CEO

| | |
|------------|-----------------------------|
| Sender | j..kean@enron.com |
| Recipients | [rosalee.fleming@enron.com] |
| File | kean-s/sent_items/278. |

I left a message. Ken has stated publicly that succession will be internal, so we won't be needing these guys.

-----Original Message-----

From: Fleming, Rosalee Sent: Wednesday, August 15, 2001 6:59 AM To: Kean, Steven J. Subject: FW: CEO Importance: High

Steve, I gave this fellow your phone number if he decides to call. Would you like me to route these somewhere else? It was all I could think of late last evening. (I should have already forwarded our phones to voicemail!).

Rosie

-----Original Message-----

From: Mike Gergen <mgergen@aalpsearch.com>@ENRON
[mailto:IMCEANOTES-Mike+20Gergen+20+3Cmgergen+40aalpsearch+2Ecom+3E+40ENRON@ENRON.com] Sent: Tuesday, August 14, 2001 6:57 PM To: Lay, Kenneth Subject: CEO Importance: High

Ken,

Rosa Lee indicated that e-mail would be a great way to initially communicate with you regarding the announcement during the Astros pre-game show that your CEO stepped down today.

When you are ready to evaluate your options to staff the position, my CEO and I would like to meet with you to discuss Allen Austin Lowe & Powers' capabilities to do a thorough retain search for this position. Two salient points are: 1) We have filled 100% of our retained searches, and 2) We guarantee our candidates for one year.

Allen Austin Lowe & Powers has done work for Enron in the past and is located here in Houston.

I can be reached on my direct line listed below or on my cell at (281) 923-4563.

Regards,

Mike Gergen Allen Austin Lowe & Powers Partner & Practice Leader Phone: 281 419 0253 Fax: 281 419 4044
Email:mgergen@aalpsearch.com

Message 189 of 218

Re: Will Hixon - UT Candidate

| | |
|------------|----------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [lexi.elliott@enron.com] |
| File | kean-s/all_documents/5667. |

I don't see a fit

Lexi Elliott 02/28/2001 02:39 PM

To: Steven J Kean/NA/Enron@Enron cc: Maureen McVicker/NA/Enron@Enron, Chris Harman/Enron Communications@Enron Communications Subject: Will Hixon - UT Candidate

Steve:

Per my voicemail message to you, I have forwarded Will's resume for your consideration.

Thank you!

lexi

----- Forwarded by Lexi Elliott/NA/Enron on 02/28/2001 02:35

PM ----- From: Chris Harman@ENRON COMMUNICATIONS on 02/13/2001 10:15 PM To: Lexi Elliott/NA/Enron@ENRON cc:

Subject: Will Hixon - UT Candidate

Lexi-

Thanks for your message. Let me know what we can do with Will. I know Rick, so If you can have a conversation with him, let me know.

Thanks for your assistance in placing Will. Call with any questions.

Regards,

Christopher T. Harman Global Bandwidth Risk Management Enron Broadband Services, Inc. EB4429C 713-853-3064 direct 877-311-1909 pager 713-306-7245 mobile chris_harman@enron.net ----- Forwarded by Chris Harman/Enron Communications on 02/13/01 10:13 PM

wlhv@hotmail.com 01/16/01 11:42 AM

To: Chris Harman/Enron Communications@Enron Communications cc: Subject: interview (01-22-01)

Chris, Attached to this message is a copy of my resume. A few thoughts on what I would be interested in this summer: 1)Political 2)International

These are two areas which I have pursued in the past and might like to continue with in the future. Thanks for all your help.

Will Hixon

Get your FREE download of MSN Explorer at <http://explorer.msn.com>

Message 190 of 218

Utility-Scale Green Power

| | |
|------------|------------------------------|
| Sender | eismail@energyinfosource.com |
| Recipients | [] |
| File | kean-s/deleted_items/244. |

Energy Info Source is privileged to offer its Utility-Scale Green Power Report, a comprehensive 175-page study of the International green power market.

The report takes a wide-ranging look at the past, present, and future state of utility-scale green power, and both individually and collectively addresses the technologies of Biopower, Geothermal, Ocean Power, Photovoltaics, Concentrating Solar, and Wind.

http://www.energyinfosource.com/products/product.cfm?report_ID=16

Topics covered in the report include: - The Key Technologies Being Used or Planned for Utility-Scale Green Power

- The Economics of Utility-Scale Green Power and its Market Potential - Historical and Current Use of Utility-Scale Green Power on a National Basis - Government Policies and Incentives in Support Of Utility-Scale Green Power - The Use of Green Pricing Programs - A Discussion of Recent Projects to Build Utility-Scale Green Power - Profiles of 24 Utility-Scale Green Power Manufacturers, Developers, and Generators

Energy Info Source's Utility-Scale Green Power Report includes over 60 charts, tables, and schematics that provide a wealth of cost, market, and technical information on utility-scale green power.

The report comes in Adobe Acrobat PDF format and is available via email, CD-ROM or Hardcopy for \$699.

To order click on the following link or call us at 888-986-2250 (303-986-7449 overseas or in Canada). We accept Visa/Mastercard/American Express.

http://www.energyinfosource.com/products/product.cfm?report_ID=16

If you want to be removed from our mailing list or for more information:

Energy Info Source, Inc. email: eismail@energyinfosource.com phone: 888-986-2250

Message 191 of 218

Daily Agenda for Thursday

| | |
|------------|--|
| Sender | richard.costigan@asm.ca.gov |
| Recipients | [] |
| File | kean-s/discussion_threads/3312. |

Daily Agenda Thursday, May 17, 2001

Today's events... * 11:30 a.m., SACRAMENTO Gov. Gray Davis holds news conference to respond to President Bush's energy plan, Capitol, room 1190. Contact: 916-445-4571. * 2 p.m., SACRAMENTO Assemblyman Juan Vargas discusses legislation that would prevent utilities from disconnecting power to many senior citizens, Capitol, room 2188. Contact: Wendy Harmon, 916-319-2079.

In the news... * SacBee, Hardy: UC reinstitutes affirmative action.

http://www.sacbee.com/news/news/local01_20010517.html * SacBee, Weintraub:

http://www.sacbee.com/voices/news/voices05_20010517.html * LA Times, Tamaki: Governor's budget may have shortfall.

<http://www.latimes.com/news/state/20010517/t000041479.html> * SF Chronicle, Lucas: LAO - Budget shortfall predicted.

<http://www.sfgate.com/cgi-bin/article.cgi?f=/c/a/2001/05/17/MN82295.DTL>

In committee... * OPEN ISSUES. Budget Subcommittee No. 1 on Health and Human Services. 8:00am or upon call of the Chair, room TBA. * OPEN ISSUES. Budget Subcommittee No. 2 on Education Finance. 8:00am or upon call of the Chair, room TBA. * OPEN ISSUES. Budget Subcommittee No. 3 on Resources. 8:00am or upon call of the Chair, room TBA. * OPEN ISSUES. Budget Subcommittee No. 4 on State Administration. 8:00am or upon call of the Chair, room TBA. * OPEN ISSUES. Budget Subcommittee No. 5 on Information Technology and Transportation. 8:00am or upon call of the Chair, room TBA.

Today on the floor... * Assembly session at 8:30am. (Squawk Box 89.7, Assembly TV, CH. 7) * Senate session at 8:30am. (Squawk Box 99.1, Senate TV, CH. 5)

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

Message 192 of 218

Request for Comments

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['Information & Administration', ' nancy.hetrick@enron.com ', 'Regulatory Risk Analysis & Competitive'] |
| File | kean-s/all_documents/1043. |

Have you solicited comments from EES? ----- Forwarded by Steven J Kean/HOU/EES on 08/15/2000 08:00 AM -----

Enron Energy Services

From: Ginger Dernehl 08/14/2000 11:41 AM Phone No: 713 853-7751

To: Government Affairs cc: Information & Administration, Regulatory Risk Analysis & Competitive Analysis Subject: Request for Comments

Please see the attached e:mail below from Nancy Hetrick and respond directly to her.

thanks

gngr ----- Forwarded by Ginger Dernehl/HOU/EES on 08/14/2000 11:40 AM -----

Nancy Hetrick 08/14/2000 11:15 AM

To: Ginger Dernehl/HOU/EES@EES cc: Jeff Brown/HOU/EES@EES Subject: Request for Comments

Ginger, would you please forward the following request to the State Government Affairs group for me. Thanks.

Attached for your review and comments is the second group of recommended practices worked on by the UBP group. The Suppliers that have participated in the UBP plan to submit joint comments to this report and I would like to be able to incorporate any comments that individuals in Enron's State Government Affairs Group may have into the overall Supplier comments. In order to meet the deadline for comments, I need to receive your comments no later than noon, August 28th. The best way to submit these comments is by red-lining the actual document.

You can also review and download the entire UBP report, including the finalized chapters and the chapters "out for comments", on <http://www.ubpnet.org/workshop/download.htm>.

Please feel free to contact me (712-366-3399 or pager 888-912-1426) if you have any questions. Thanks for your time and consideration.

Message 193 of 218

help with neighborhood

| | |
|------------|--------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['maureen.mcvicker@enron.com'] |
| File | kean-s/discussion_threads/799. |

Please forward to Sue Walden and get her ideas. ----- Forwarded by Steven J Kean/HOU/EES on 08/03/2000 06:44 PM -----

Carol Ann Brown@ENRON COMMUNICATIONS 08/03/2000 08:49 AM To: Steven J Kean/HOU/EES@EES cc: Subject: help with neighborhood

Steve,

I am having a problem with the drainage in our easements in my neighborhood and Kevin Hannon suggested I email you. I live in Garden Oaks (which is located off of the 610 North Loop between Shepherd and Yale near the Heights). Our neighborhood was built in the early 1940's, and the city put in open drainage (which is basically ditches in the front of all the properties). Over the past 60 years the drains have filled in and leveled which is preventing the water from flowing correctly to the sewers, and this in turn causes minor flooding and BIG headaches.

My address is 236 W. 30th Street and the area of 30th Street I am asking the city to regrade is between Ashland and Yale (approximately 2,500 feet). I have been calling the City of Houston Public Works Department 713-247-1000 for about the last 4 years (generally once a month) to ask them to please come out and regrade our ditches. (The Public Works Department only has records over the last year because they changed their computer system and lost many files including

mine.) For the last year or so I have been receiving a more positive response when I call which is: "This is a Code 1 priority and will schedule as work load allows." Although this response is encouraging, I still feel that my request is falling on deaf ears.

Kevin suggested that perhaps a call or letter to a city council person might help expedite this work request. I would be extremely grateful if there is anything you could do to help me and my neighbors.

Carol Brown Executive Assistant Office of the Chairman Enron Broadband Services, Inc. 713.853.7974 713.853.9469 - fax carol_brown@enron.net

Message 194 of 218

South America Announcement

| | |
|------------|--|
| Sender | john.ambler@enron.com |
| Recipients | [rebecca.mcdonald@enron.com', 'steven.kean@enron.com'] |
| File | kean-s/archiving/untitled/6100. |

Rumors about Jim and Diomedes departure are widespread and they have asked= =20 that we distribute the following message to South America employees as soon= =20 as possible:

Memo to Enron South America:

We have decided to leave Enron to pursue other interests. It has been a=20 pleasure and honor to have worked with all of you over the past few years. = =20 We can be reached through the following numbers:

Jim Bannantine

email at bannant@attglobal.net=20 phone at 55-11-247-4449 fax at 55-11-5548-5528

Diomedes Christodoulou

email at dchristo2@attglobal.net.=20 phone at 44-207-823-9870 fax at 44-207-823-9871, cel 713-539-6731

I have discussed with Steve Kean and we are comfortable with sending out th= is=20 internal message, if you concur. In addition, we expect that there will be= =20 local (South America) inquiries and perhaps international media inquiries= =20 about the resignations. We plan to use the following statements for these= =20 audiences respectively. =20

South America I can confirm that Jim Bannantine and Diomedes Christodoulou have resigned= =20 from Enron to pursue other interests. We wish them well in their new=20 endeavors. Both had begun the transfer over to other Enron's businesses=20 several months ago, so the transition at Enron South America is already=20 underway. We have a strong management team in place and every confidence i= n=20 their continuing ability to manage the business effectively.

International Media I can confirm that =01(XXX=01(. resigned from Enron to pursue other interes= ts. We=20 wish him/them well in his/their new endeavors. Over the past year Enron ha= s=20 decreased its emphasis on international infrastructure development, as the= =20 company continues to re-deploy its capital into newer, higher growth=20 opportunities. The transition to this new organizational structure already= =20 has been underway for several months. In fact, we have a strong management= =20 team in place and every confidence in their ability to manage the business= =20 effectively.

Please let me know if you have any comments or concerns with this approach.= =20 I will call to confirm that this is acceptable to you.

John

Message 195 of 218

Comments from Michelle Cash (RE: EIM and EGM note)

| | |
|------------|---|
| Sender | eric.thode@enron.com |
| Recipients | ['j..kean@enron.com', 'karen.denne@enron.com', 'pr <.palmer@enron.com'] |
| File | kean-s/deleted_items/347. |

FYI...

-----Original Message-----

From: Cash, Michelle Sent: Friday, November 16, 2001 10:43 AM To: Jones, Robert W.- HR Exec; Thode, Eric Cc: Mayes, Fran; Funkhouser, Shanna Subject: RE:

I like the message and agree that communication is critical at this time. Should we go right out and say that no one will be affected next week (more artfully phrased of course)? I believe that is the right way to go (no terminations Thanksgiving week), so I'd like to go ahead and say it. Michelle

-----Original Message-----

From: Jones, Robert W.- HR Exec Sent: Friday, November 16, 2001 10:29 AM To: Thode, Eric; Cash, Michelle Cc: Mayes, Fran; Funkhouser, Shanna Subject: FW:

Eric & Michelle,

Fran & Shanna would like to send this out to all EIM and EGM employees today from their respective OTC. David and I have reviewed and agree that we should send. We would like your thoughts and/or suggestions.

Thanks,

Robert

-----Original Message-----

From: Mayes, Fran Sent: Friday, November 16, 2001 9:41 AM To: Jones, Robert W.- HR Exec Subject: FW:

FYI, I drafted this for Bowen to send out to All EIM employees in an effort to allay their fears that terminations will be occurring either today or next next.

Fran

-----Original Message-----

From: Mayes, Fran Sent: Friday, November 16, 2001 9:37 AM To: Funkhouser, Shanna Subject: FW:

-----Original Message-----

From: Mayes, Fran Sent: Friday, November 16, 2001 8:47 AM To: Schiller, Marsha Subject:

This week, each business unit has been asked to identify the optimal structure and resources for EIM on a going forward basis.. While the review is not complete, we are close to finalizing decisions surrounding the business and the employees associated with them.

Until the final decisions have been made, I ask for your continued patience. You will be notified at the appropriate time regarding the future of the team.

Please take the opportunity to enjoy the time with your family next week at Thanksgiving and know that we are working hard on finalizing all details.

Fran Mayes HR Manager Phone (713) 853-7211 Fax (713) 646-8100 Cell/Pager 713 875-3820 or 7138753820@messaging.nextel.com

Message 196 of 218

Debriefing on FERC California Meeting

| | |
|------------|--|
| Sender | bernadette.hawkins@enron.com |
| Recipients | ['susan.mara@enron.com', 'richard.shapiro@enron.com', 'skean@enron.com'] |
| File | kean-s/all_documents/1779. |

A conference call has been scheduled for November 1, at 12:15 PM (est), 11:15 AM (cst), 9:15 AM (pst). To access the call dial: 1-888-232-3866, Host Code: 595944, Participant Code: 455218.

If you have any questions, please call (202) 466-9147.

----- Forwarded by Bernadette Hawkins/Corp/Enron on 11/01/2000 11:14 AM -----

Ginger Dernehl 11/01/2000 10:17 AM

To: Paul Kaufman/PDX/ECT@ECT, Lysa Akin/PDX/ECT@ECT cc: Bernadette Hawkins/Corp/Enron@ENRON Subject: Debriefing on FERC California Meeting

Lysa, make sure Paul gets this info.

Bernadette: Please make sure Paul gets copied on the e:mail.

gngr 713-853-7751

----- Forwarded by Ginger Dernehl/NA/Enron on 11/01/2000 09:15 AM -----

Sarah Novosel 11/01/2000 08:55 AM

To: skean@enron.com, Richard Shapiro/NA/Enron@Enron, Susan J Mara/NA/Enron@Enron, Mona L Petrochko/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Mary Hain/HOU/ECT@ECT, Joe Hartsoe/Corp/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron, Karen Denne/Corp/Enron@ENRON, mpalmer@enron.com, Ginger Dernehl/NA/Enron@Enron, Marcia A Linton/NA/Enron@Enron, Bernadette Hawkins/Corp/Enron@ENRON cc: Subject: Debriefing on FERC California Meeting

We will hold a conference call within 1 to 1 1/2 hours after the conclusion of the FERC meeting this morning on California. Joe Hartose and Donna Fulton are at the Commission for the meeting, and they are hoping to talk with FERC staff after the meeting to get a better idea of the thinking at FERC, so we would like to hold off on the conference call until they have these discussions.

Therefore, we will send out a follow up email establishing the time and call in number once the meeting is over and I have a chance to talk to Joe and Donna.

Sarah

----- Forwarded by Sarah Novosel/Corp/Enron on 11/01/2000 09:42 AM -----

Jeff Dasovich Sent by: Jeff Dasovich 10/27/2000 09:24 AM

To: skean@enron.com, Richard Shapiro/NA/Enron@Enron, Susan J Mara/NA/Enron@Enron, Mona L Petrochko/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Mary Hain/HOU/ECT@ECT, Joe Hartsoe/Corp/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron, Karen Denne/Corp/Enron@ENRON, mpalmer@enron.com cc: Subject: New ISO Price Cap

Message 197 of 218

Re: Funky Business

| | |
|------------|----------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['terrie.james@enron.com'] |
| File | kean-s/sent/2507. |

Follow up to previous message: I would not have "managing for the slow down" on the agenda. I don't think it is as relevant to our business as it is to many others.

TERRIE JAMES@ENRON COMMUNICATIONS 07/05/2001 01:09 PM To: Steven J Kean/NA/Enron@Enron cc:

Subject: Funky Business

Steve,

Have you had a chance to look at the book "Funky Business" and to give any thought to having Jonas present at the Management Conference? I know you have a thousand other things on your plate, not the least of which is California, so I understand if the answer is no. However, they've been contacted by someone else about the date so we may be forced to decide rather soon.

On a related subject, I'm contemplating another topic for the conference. I'd seen an article in Fortune several months ago titled "Managing for the Slowdown." It talked about new challenges managers face in light of the economic downturn. (Most young managers have never experienced anything but boom times.) The article also outlines a dozen or so things companies should be thinking about now. (Use the downturn as a new opportunity to evaluate people. Overhaul your budget process. Don't stop communicating. etc.) I think it would be beneficial to address similar strategies and ideas with our managers. I'd love to get your thoughts on this idea. (Is it appropriate for Enron or am I just seeing the world through bleak-colored glasses?)

Terrie James Sr. Director, Corporate Communication Enron Broadband Services 713-853-7727 (phone) 713-646-8887 (fax) terrie_james@enron.net ----- Forwarded by Terrie James/Enron Communications on 07/05/01 12:44 PM

Alison@isbspeakers.com 07/05/01 10:40 AM

To: Terrie James/Enron Communications@Enron Communications cc: Subject: Funky Business

July 5, 2001

Terrie:

We received an e-mail today from the Funky Business office asking about the date we have on hold with Enron. They have another inquiry about that date and wondered if Enron is still considering using Jonas. If you are still considering them I will keep him on hold. And if they get a firm offer I will let you know immediately. We will have 24 hours to make an offer or release the hold once a firm offer comes in from another company.

Hope you had a great 4th of July,

Alison Kravetz 800-842-4483 x239

Message 198 of 218

Re: California Power Crisis

| | |
|------------|---------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['lipsen@cisco.com'] |
| File | kean-s/discussion_threads/2421. |

Absolutely. Feel free to use the content. I forgot to give you Mike Day's number; it is: 415.765.8408. As you'll recall, you asked for a California energy expert. Mike certainly qualifies.

Laura Ipsen <lipsen@cisco.com> 02/13/2001 07:04 PM

To: Steven.J.Kean@enron.com cc: Jeff.Dasovich@enron.com, Karen.Denne@enron.com, Jeff.Skilling@enron.com
Subject: Re: California Power Crisis

Steve,

Appreciate the call this morning. It is good to learn from an expert that shares the same type of market-driven approach to policy in energy as we do in broadband deployment. We are not energy experts, but will do our best to get up to speed and take more active role in long-term solution.

I will keep all of these documents confidential, but would like to use some of the data points to create an action plan from high-tech that we can share with others such as HP, Intel, Novell, Solectron, National Semiconductor and others that have engaged in this issue. Let's discuss tomorrow afternoon. As I mentioned, we (Silicon Valley cos.) have meetings in the morning and evening on 2/15 with Gov. Davis and will be discussing energy crisis.

Thanks,

Laura

Laura Ipsen Director Worldwide Government Affairs <http://www.cisco.com/gov> T:(408) 526-6650 F:(408) 853-1598

At 02:29 PM 2/13/2001 -0600, Steven.J.Kean@enron.com wrote:

I am attaching several items that I hope you will find useful when you brief Chambers: A background document (which is a bit dated, but still useful). This is an internal document, so I would appreciate it if you would keep it confidential (though you are free to use the content in your own messages or documents).(See attached file: californiacrisisbackground.doc) A basic outline of solutions.(See attached file: Solutions.doc) A summary of the Governor's recent executive orders. (It's another internal analysis.) I think these orders show a better understanding of the problems and solutions than we have seen before. As we discussed on the phone, our biggest problem is inertia ... we don't have much time, many solutions have long lead times, and the political wheels grind slowly.(See attached file: California Executive Orders.doc) Jeff Dasovich: please forward any specifics on the demand buy down proposal and anything else that you think might be helpful background for Laura.

Message 199 of 218

ENA-Government Affairs Meeting

| | |
|------------|---|
| Sender | steven.kean@enron.com |
| Recipients | ['Kevin M', 'John J Lavorato/Corp/Enron@Enron', 'David W Delainey/HOU/ECT@ECT', 'maureen.mcvicker@enron.com'] |
| File | kean-s/calendar/untitled/916. |

calendar ----- Forwarded by Steven J Kean/HOU/EES on 08/03/2000 06:45 PM -----

Enron Energy Services

From: Ginger Dernehl 08/03/2000 08:49 AM Phone No: 713 853-7751

To: Kay Chapman/HOU/ECT@ECT, Kimberly Hillis/HOU/ECT@ect, Felicia Doan/HOU/ECT@ECT, Debra Davidson/PDX/ECT@ECT, Ana Alcantara/HOU/ECT@ECT, Maureen McVicker/HOU/EES@EES, Lysa Akin/PDX/ECT@ECT, Marcia A Linton/HOU/EES@EES, Christy Chapman/HOU/ECT@ECT cc: David W Delainey/HOU/ECT@ECT, John J Lavorato/Corp/Enron@Enron, Kevin M Presto/HOU/ECT@ECT, Tim Belden/HOU/ECT@ECT, Rodney Malcolm/HOU/ECT@ECT, Steven J Kean/HOU/EES@EES, Janet R Dietrich/HOU/ECT@ECT, James D Steffes/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/HOU/EES@EES Subject: ENA-Government Affairs Meeting

This e:mail serves as confirmation of the date and time for the meeting mentioned below. Please see details below.

Date: August 10, 2000

Time: 3:00-5:00pm (CDT)

Location: EB47C1

Number: 1-800-998-2462 Pass Code 4485103

Thanks ladies for all your help in scheduling this. I really appreciate it!!!!

Note to Lysa Akin: Lysa, I understand this date and time was not good for Paul, but if the opportunity arises for him to call in at some point and time, that would be great.

gngr ----- Forwarded by Ginger Dernehl/HOU/EES on 08/03/2000 08:26 AM -----

Enron Energy Services

From: Ginger Dernehl 08/01/2000 01:55 PM Phone No: 713 853-7751

To: Kay Chapman/HOU/ECT@ECT, Kimberly Hillis/HOU/ECT@ect, Felicia Doan/HOU/ECT@ECT, Debra Davidson/PDX/ECT@ECT, Ana Alcantara/HOU/ECT@ECT, Maureen McVicker/HOU/EES@EES, Lysa Akin/PDX/ECT@ECT, Marcia A Linton/HOU/EES@EES cc: (bcc: Ginger Dernehl/HOU/EES) Subject: ENA-Government Affairs Meeting

Rick Shapiro & Jim Steffes would like to schedule a meeting with the following people re:Coordinating Government Affairs activiteis with ENA's business goals:

David Delaney John Lavorato Kevin Presto Tim Belden Rodney Malcolm Janet Dietrich Steve Kean Paul Kaufman

My guess is that we will have to schedule something for late afternoon because of the trading schedule. See below and respond to me with any/all of the dates and times that will work.

Thursday, August 10 3:00pm-5:00pm Friday, August 11 3:00pm-5:00pm

Friday, August 18 3:30pm-5:00pm

Thanks and I wait patiently for your responses.

gngr

Message 200 of 218

Re: Funky Business

| | |
|------------|----------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['terrie.james@enron.com'] |
| File | kean-s/sent/2508. |

I have looked it over. I think they would do a good job. Another idea: Dick Foster (advisor to Enron's Board and Senior Director at McKinsey) has a great book out: "Creative Destruction". I was on a panel with him recently where he shared some of his research. He is a very good presenter; he knows Enron well; and his work is first rate. He might be a good addition. I have an idea on the breakout sessions. It needs some work but I'd like to talk it through with you.

TERRIE JAMES@ENRON COMMUNICATIONS 07/05/2001 01:09 PM To: Steven J Kean/NA/Enron@Enron cc:

Subject: Funky Business

Steve,

Have you had a chance to look at the book "Funky Business" and to give any thought to having Jonas present at the Management Conference? I know you have a thousand other things on your plate, not the least of which is California, so I understand if the answer is no. However, they've been contacted by someone else about the date so we may be forced to

decide rather soon.

On a related subject, I'm contemplating another topic for the conference. I'd seen an article in Fortune several months ago titled "Managing for the Slowdown." It talked about new challenges managers face in light of the economic downturn. (Most young managers have never experienced anything but boom times.) The article also outlines a dozen or so things companies should be thinking about now. (Use the downturn as a new opportunity to evaluate people. Overhaul your budget process. Don't stop communicating. etc.) I think it would be beneficial to address similar strategies and ideas with our managers. I'd love to get your thoughts on this idea. (Is it appropriate for Enron or am I just seeing the world through bleak-colored glasses?)

Terrie James Sr. Director, Corporate Communication Enron Broadband Services 713-853-7727 (phone) 713-646-8887 (fax) terrie_james@enron.net ----- Forwarded by Terrie James/Enron Communications on 07/05/01 12:44 PM

Alison@isbspeakers.com 07/05/01 10:40 AM

To: Terrie James/Enron Communications@Enron Communications cc: Subject: Funky Business

July 5, 2001

Terrie:

We received an e-mail today from the Funky Business office asking about the date we have on hold with Enron. They have another inquiry about that date and wondered if Enron is still considering using Jonas. If you are still considering them I will keep him on hold. And if they get a firm offer I will let you know immediately. We will have 24 hours to make an offer or release the hold once a firm offer comes in from another company.

Hope you had a great 4th of July,

Alison Kravetz 800-842-4483 x239

Message 201 of 218

AW: Houston-Frankfurt

| | |
|------------|---|
| Sender | steven.kean@enron.com |
| Recipients | ['kathleen.magruder@enron.com', 'Mark Schroeder'] |
| File | kean-s/attachments/1803. |

Another bit of background re Frankfurt (see below). I would be a little bit more insistent on German Consulate support than Herr Sturm suggests (otherwise this could become a black hole for your time). -----

Forwarded by Steven J Kean/HOU/EES on 08/30/99 09:40 =20 AM -----

"Sturm, Michael" <ST@frankfurt-business.de> on 08/10/99 11:35:23 AM

=09 To:=09Steven J Kean/HOU/EES@EES, Mark Schroeder <Mark_Schroeder@enron.com> cc:=09"Thomas Geisel (E-Mail)" <tgeisel@ect.enron.com>, "John Thompson (E-Mail)"=20 <jthompson@ect.enron.com> =09 Subject:=09AW: Houston-Frankfurt

Dear Mr. Kean:

I would like to thank you and Mark Schroeder very much for your time and outstanding hospitality in Houston. I very much enjoyed meeting with you and your message, that your Chairman Kenneth Lay confirmed for dinner with our Mayor Petra Roth was very well received and we are all very excited and looking forward to November 30.

However it raises great interest in the question of organization of the dinner and the additional participating chairpeople of other companies. Will Enron now invite for that dinner, which I understand will be the gathering of 10-12 major decision makers in the energy field? If you could be so kind as to share with us the thoughts of Ken Lay's office with regards to that point, or give me a contact there, I would very much appreciate.

An alternative we discussed or as an addition the next day (Lunch), would be that a business-group would host an event, which could include a wider audience of business people of Houston. After having spoken with the German Consulate in Houston and with the German American Chamber here, it unfortunately appears as if they will not be capable for s.th. we achieve. Everybody recommended to work with the reputative Greater Houston Partnership, whose President was on vacation last week. I would welcome any assistance in getting us in contact with them. Probably it would not take too many efforts for Enron, to have them consider supporting our idea of promoting our ideas. To help you pass them, I again include our plan for Houston (see attached doc).

I will be in contact with your colleague Mark Palmer with regards to the press-coverage. Thank you for your response to your earliest possible convenience.

Yours Sincerely

Michael Sturm Wirtschaftsförderung Frankfurt- Frankfurt Economic Development GmbH Hanauer Landstr. 182d 60314 Frankfurt am Main Tel: +011 49 69 212-38764 Fax: +011 49 69 212-36230 E-Mail: st@frankfurt-business.de
<http://www.frankfurt-business.de>

-----Ursprüngliche Nachricht----- Von: Steven J Kean [<mailto:skean@enron.com>] Gesendet am: Samstag, 7. August 1999 00:30 An: st@frankfurt-business.de Cc: Mark Schroeder Betreff:

Ken Lay is confirmed for dinner with the mayor on the evening of November 30.

- Houstonplan.doc

Message 202 of 218

Re: California Power Crisis

| | |
|------------|--|
| Sender | lipsen@cisco.com |
| Recipients | [steven.j.kean@enron.com] |
| File | kean-s/discussion_threads/2447 . |

Thanks Steve. John is going to read the summaries and discuss some of these points tomorrow at the meeting with Gov. Davis on energy. We'll also get in touch with Mike regarding consulting opportunity.

Laura

At 03:17 PM 2/14/2001 -0600, you wrote:

Absolutely. Feel free to use the content. I forgot to give you Mike Day's number; it is: 415.765.8408. As you'll recall, you asked for a California energy expert. Mike certainly qualifies. Laura Ipsen <lipsen@cisco.com> To: Steven.J.Kean@enron.com .com> cc: Jeff.Dasovich@enron.com, Karen.Denne@enron.com, Jeff.Skilling@enron.com 02/13/2001 Subject: Re: California Power Crisis 07:04 PM Steve, Appreciate the call this morning. It is good to learn from an expert that shares the same type of market-driven approach to policy in energy as we do in broadband deployment. We are not energy experts, but will do our best to get up to speed and take more active role in long-term solution. I will keep all of these documents confidential, but would like to use some of the data points to create an action plan from high-tech that we can share with others such as HP, Intel, Novell, Solectron, National Semiconductor and others that have engaged in this issue. Let's discuss tomorrow afternoon. As I mentioned, we (Silicon Valley cos.) have meetings in the morning and evening on 2/15 with Gov. Davis and will be discussing energy crisis. Thanks, Laura Laura Ipsen Director Worldwide Government Affairs <http://www.cisco.com/gov> T:(408) 526-6650 F:(408) 853-1598 At 02:29 PM 2/13/2001 -0600, Steven.J.Kean@enron.com wrote: >I am attaching several items that I hope you will find useful when you >brieff Chambers: >>> A background document (which is a bit dated, but still useful). This > is an internal document, so I would appreciate it if you would keep it > confidential (though you are free to use the content in your own > messages or documents).(See attached file: > [californiacrisisbackground.doc](#)) > A basic outline of solutions.(See attached file: [Solutions.doc](#)) > A summary of the Governor's recent executive orders. (It's another > internal analysis.) I think these orders show a better understanding > of the problems and solutions than we have seen before. As we > discussed on the phone, our biggest problem is inertia ... we don't > have much time, many solutions have long lead times, and the political > wheels grind slowly.(See attached file: [California Executive > Orders.doc](#)) >>>Jeff Dasovich: please forward any specifics on the demand buy down proposal >and anything else that you think might be helpful background for Laura.

Message 203 of 218

Unique Opportunity to Learn the Latest Developments in LNG Industry

| | |
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| Sender | nresourcesmail@srinstitute.com |
| Recipients | [] |
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<http://www.srinstitute.com/emarketing/images/generic/footer_generic.jpg>

Message 204 of 218**Utilities, Electric: Retail Wheeling: Calif Officials Examine**

| | |
|-------------------|---|
| Sender | miyung.buster@enron.com |
| Recipients | ['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com'] |
| File | kean-s/archiving/untitled/932. |

Calif Officials Examine Cal-ISO, CalPX Merger

09/21/2000 Dow Jones Energy Service (Copyright (c) 2000, Dow Jones&Company, Inc.) LOS ANGELES -(Dow Jones)- California officials are examining the possibility of a merger between the state's Independent System Operator and the California Power Exchange. The state auditor's office met Monday with the ISO to look into the ISO's operations and its relationship with the CalPX, according to documents obtained by Dow Jones Newswires. The audit was requested by state senator Steve Peace, D-El Cajon, who believes a merger between the ISO and the CalPX would make California's electricity market more competitive, said Jan Smutny-Jones, chairman of the ISO Board of Governors. The ISO controls 75% of the state's electricity grid and real-time electricity market. The CalPX is the spot market where electricity is bought and sold in the state. Monday's meeting, which lasted approximately 1 1/2 hours, was largely introductory, said ISO legal counsel Charles Robinson. "There were five or six people from the auditor's office, and they talked briefly about the scope of the audit and the time frame. We provided information on how the markets work and the ISO's organizational structure," Robinson said. The auditor's office will meet with the ISO Monday for 4-5 hours for a "training session on ISO 101," Robinson said. Once the office has a sense of the ISO's activities, he said, a more intensive document and on-site review will take place. The audit is expected to be finished by spring, said state auditor Mary Noble. Senator Peace requested the audit in mid-August due to concern over high wholesale electricity costs and the doubling of electricity rates paid by San Diego customers. San Diegans are the first to pay market-based electricity rates under the state's 1998 deregulation law. A recent report by the Electricity Oversight Board and the California Public Utilities Commission showed that wholesale electricity prices in the state have increased 270% over the same period in 1999. In his audit request, Peace said he also wanted to examine how effective the ISO and CalPX were at detecting and correcting market problems. Peace, who is running for California Secretary of State, is the architect of the state's deregulation law and has sponsored several bills to refine that law. -By Jessica Berthold, Dow Jones Newswires; 323-658-3761, jessica.berthold@dowjones.com

Folder Name: Utilities, Electric: Retail Wheeling Relevance Score on Scale of 100: 56

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Message 205 of 218

CalPX Told To Release Confidential Trade Data To ..

| | |
|-------------------|---|
| Sender | miyung.buster@enron.com |
| Recipients | ['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com'] |
| File | kean-s/archiving/untitled/931. |

CalPX Told To Release Confidential Trade Data To State

09/22/2000 Dow Jones Energy Service (Copyright (c) 2000, Dow Jones&Company, Inc.) LOS ANGELES -(Dow Jones)- California's Electricity Oversight Board has ordered the state's Power Exchange to hand over confidential information to the board regarding the trading activities of utilities, generation companies and other market participants who traded power

at the exchange since June, according to a copy of a subpoena obtained by Dow Jones Newswires. The subpoena marks the first time the state will gain access and learn how each company traded power in the day-of, day-ahead and block forward markets. Moreover, the EOB subpoena requests the CalPX release the names of the participants who traded power at the exchange since June to better understand how and why the participants conduct business in the various markets at the exchange. The CalPX has until Wednesday to hand over "aggregate supply and demand curves, individual firm bid dates, final schedules for each firm by generating unit, injection point and take out point," from June 1 through September and continue supplying trading data through Nov. 1. In addition, the subpoena requests "block forward trade positions by firm for June, July, August and September" and that this information continue to be supplied through October and November. The subpoena is part of the state's ongoing investigation into California's troubled deregulated electricity market, which has resulted in high wholesale power prices in San Diego, landmark legislative action and accusations of collusion, price gouging and market power. Gov. Gray Davis ordered an investigation in June, when power prices soared to near record levels and rolling blackouts wreaked havoc in the Bay Area. The CalPX said it will comply with the EOB request and that a subpoena to access the confidential information is required according to the rules of the exchange. But the EOB will be required to protect the confidentiality of each trade it gains insight into as well as the identities of the participants who traded. If the trading activities of a company or other participant is leaked or becomes public it could have a devastating affect on the company and the EOB would be held liable, according to the CalPX. The CalPX said it must notify each and every participant who traded power in its various markets to alert them of the EOB subpoena. -By Jason Leopold; Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

Folder Name: Utilities, Electric: Retail Wheeling Relevance Score on Scale of 100: 53

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Message 206 of 218

DRAFT - Document for next week

| | |
|------------|---------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | ['cindy.olson@enron.com'] |
| File | kean-s/discussion_threads/1719. |

I had a hard time logging on remotely, so I just got this now. As you can see, it's a relatively brief "overview" presentation for Jeff, not going into much of the detail surrounding, for example, performance criteria and evaluation or job classification (where much of the real work remains). The main purpose of this presentation is to give Jeff something for the December Board meeting.

I need your thoughts on something: one of the rationales I had discussed with McKinsey for this new organizational approach was the need to win the war for talent. A partnership at least theoretically creates unlimited opportunity and reduced hierarchy in an organization. It also creates substantial upside opportunity and continued motivation for the business leadership. My question for you and your team is where are we at risk in fact when it comes to attracting and retaining talent. My suspicion is that our turnover is fairly low, and that it is especially low in the top tiers of the organization. Where we run into problems, my gut tells me, is that we have some difficulty getting the very best from the very best schools (ie we often lose out to the I-Banks and, perhaps McKinsey-level consulting firms) and that we have a tough time holding the most talented managers and directors (ie we're OK at the top levels already). Could you have someone do an analysis of the turnover rates at different levels? We may need to weed out the performance related departures (including those who left after getting a low performance ranking even if they were not officially terminated for performance reasons) if possible. ----- Forwarded by Steven J Kean/NA/Enron on 11/26/2000 09:40 AM -----

<Dan_Marcontell@mckinsey.com> 11/22/2000 03:47 PM

To: skean@enron.com cc: Suzanne_Nimocks@mckinsey.com, Jon_Zagrodzky@mckinsey.com Subject: DRAFT - Document for next week

Steve,

Attached is a draft of the pack we plan to use in our discussion with Jeff next week. As you might imagine, we've been going through many iterations of this document, and it is still very much a work-in-process. Hopefully, you can get a sense of the outline and where we are heading, but the specific points on each page will continue to be wordsmithed.

We look forward to getting your reaction/feedback to the structure and overall message.

Suzanne asked me to give you her home number, (713) 807-7788, where you can reach her over the weekend. Otherwise, please feel free to leave a voicemail for either Suzanne (713) 751-4390 or me (214) 665-1754.

Thanks, Dan Marcontell

(See attached file: 01204dm6c.ppt)

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+-----+ - 01204dm6c.ppt

Message 207 of 218

Enron Corp.: Dynegy Confirms -3: Deal May Be Cut More Than 40% -WSJ

| | |
|------------|--|
| Sender | elizabeth.tilney@enron.com |
| Recipients | ['j..kean@enron.com', 'pr <.palmer@enron.com'] |
| File | kean-s/deleted_items/501. |

----- Forwarded by Elizabeth Tilney/HOU/EES on 11/27/2001 11:54 AM -----

Peggy Mahoney 11/27/2001 11:45 AM To: Elizabeth Tilney/HOU/EES@EES cc: Subject: Enron Corp.: Dynegy Confirms -3: Deal May Be Cut More Than 40% -WSJ

Doesn't have the facts about 401K. Need to move fast. ----- Forwarded by Peggy Mahoney/HOU/EES on 11/27/2001 11:45 AM -----

djcustomclips@djinteractive.com on 11/27/2001 10:18:51 AM Please respond to nobody@mail1.djnr.com To: 1529@WCTOPICS.djnr.com cc: Subject: Enron Corp.: Dynegy Confirms -3: Deal May Be Cut More Than 40% -WSJ

Dynegy Confirms -3: Deal May Be Cut More Than 40% -WSJ

11/27/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

Earlier Tuesday, a report in The Wall Street Journal quoted people familiar with the matter who said Enron and Dynegy were in advanced discussions to cut the price of the all-stock transaction by more than 40% to about \$5 billion. Sousa, the Dynegy spokesman, didn't comment on the newspaper report.

Dynegy shares recently traded at \$40, up 75 cents, or 1.9%, while Enron shares changed hands at \$3.94, down 7 cents, or 1.7%. Under the original terms of the transaction, Enron shareholders are to receive 0.2685 of a Dynegy share, or \$10.78, for each share outstanding, or about \$9.14 billion, based on Dynegy's recent stock price.

According to the Journal report, the new terms could be below 0.15 of a Dynegy share.

The deal is critical for Enron, which also simultaneously carrying out talks to receive between \$500 million to \$1 billion in additional funding to support its operations, while carrying on negotiations to restructure its debt, which totals about \$13 billion.

While Dynegy has already provided Enron with a cash infusion, it is uncertain how long Enron's current funds will allow it to remain solvent.

Meanwhile, a third employee lawsuit has been filed against Enron over lost 401(k) retirement savings due to the recent collapse of Enron's stock, which has declined more than 90% in the trailing 12 months. The suit claims Enron "locked down" the plan, which prevented employees from being able to sell the shares, and seeks \$850 million for plan losses.

Although the other recently filed employee suits didn't disclose the amount of compensation the plaintiffs are seeking, it is possible the suits seek a similar level of damages, a CreditSights report said.

If this is true, the CreditSights report said, it is possible the clause that allows Dynegy to walk away from the deal if the liabilities from "pending" or "threatened" litigation may exceed \$3.5 billion may be invoked.

In addition, to the employee lawsuits, more than a dozen shareholder suits have been filed against Enron.

-By Christina Cheddar, Dow Jones Newswires; 201-938-5166; christina.cheddar@dowjones.com

Folder Name: Enron Corp. Relevance Score on Scale of 100: 100

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Message 208 of 218

Utilities, Electric: Retail Wheeling: Calif EOB Official Says ISO,

| | |
|------------|---|
| Sender | miyung.buster@enron.com |
| Recipients | ['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com'] |
| File | kean-s/heat_wave/94. |

Calif EOB Official Says ISO, PX `Don't Get It'

09/21/2000 Dow Jones Energy Service (Copyright (c) 2000, Dow Jones&Company, Inc.) LOS ANGELES -(Dow Jones)- The executive director of California's Electricity Oversight Board stressed to the state's Power Exchange and Independent System Operator to provide detailed information to the state agency before making changes to their market structure.

In an e-mail obtained by Dow Jones Newswires and sent Monday to ISO and CalPX officials, EOB executive director Gary Heath wrote he was unaware that the ISO had engaged in a new "seasonal super peak day of market" to purchase forward power Tuesday from Santa Clara-based Automated Power Exchange. The CalPX and APX have developed a proposal that would allow its customers to power in hour blocks directly to the ISO weekdays. The ISO had filed with federal regulators last week seeking authority to make such purchases, but apparently the Electricity Oversight Board was left in the dark. "No one seems to get it," reads the email written by Heath and sent to ISO and PX officials. "No more surprises from the ISO, PX, etc. This is not the time to change any procedures without notice to the EOB... you file with the (Federal Energy Regulatory Commission) seeking approval of the ISO's ability to buy in forwards and you have no sense to run this by the state before you file..." "We are in troubling times," Heath's e-mail states. "Both corporations must begin to realize that what was created by the state can be undone." Neither of the parties mentioned in the e-mail would comment on the issues. The ISO and PX are currently the target of a state audit spearheaded by state Sen. Steve Peace, D-El Cajon, who believes merging the two corporations will help California's troubled deregulated market work better for consumers. Sen. Peace, in past interviews, has threatened to dismantle the current ISO structure and have the EOB control the ISO markets. Heath also wrote his board was upset that the federal Bonneville Power Administration has managed to save California from rolling blackouts, referred to as a stage three emergency, "at the last minute." "I've got the administration on my butt wanting to know what's going on with BPA and we can't get a straight answer from the ISO...

no more BS from the ISO," the e-mail states. Furthermore, Heath stated the ISO must run any proposed changes or additions to its market structure before the EOB before filing with federal regulators as well as providing the EOB information on power plant outages. "When we ask for information on outages... I expect the ISO to fully disclose to us," the e-mail says. "The ISO&PX are quick to make market rule changes but are too reluctant to make changes in your disclosure of information/data to the state." -By Jason Leopold; Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

Folder Name: Utilities, Electric: Retail Wheeling Relevance Score on Scale of 100: 56

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Message 209 of 218

MI: SB937 and SB1253 passed House last night

| | |
|------------|---|
| Sender | richard.shapiro@enron.com |
| Recipients | ['steven.kean@enron.com', 'Roy Boston/HOU/EES@EES'] |
| File | kean-s/calendar/untitled/616. |

On balance , this is a good thing- not great, but Barbara and Roy did a great job to get the improvements they got- also, the securitization is good for project motown assets. ----- Forwarded by Richard Shapiro/HOU/EES on 06/01/2000 07:02 AM -----

Barbara A Hueter 06/01/2000 06:23 AM To: Steven J Kean/HOU/EES@EES, Richard Shapiro/HOU/EES@EES, Janine Migden/DUB/EES@EES, James D Steffes/HOU/EES@EES, Harry Kingerski/HOU/EES@EES, Susan T Covino/HOU/EES@EES, Becky L Merola/DUB/EES@EES, Susan M Landwehr/HOU/EES@EES, Kerry Stroup/DUB/EES@EES, Jeffery Ader/HOU/ECT@ECT, Wendy King/Corp/Enron@ENRON, Richard Hill/LON/ECT@ECT, Adam Cooper/DUB/EES@EES, Mark Harada/HOU/EES@EES, Debbie Chance/Corp/Enron@Enron, Elizabeth Linnell/HOU/EES@EES, Lynnette Barnes/HOU/EES@EES cc: Roy Boston/HOU/EES@EES Subject: MI: SB937 and SB1253 passed House last night

Late yesterday evening the Michigan House of Representatives approved the package of electric restructuring bills, namely SB937 (vote of 72 -35) and SB1253 (vote of 73 - 35). The bills now go back to the Senate where the changes made by the House are expected to be agreed to. If this occurs, which we expect it will, the bill will be signed by the Governor this weekend and take immediate effect.

Attached is an initial summary of SB937 as passed by the House. The House accepted approximately 7 amendments on the floor. This summary may be updated should these amendments have any real impact on the bill for Enron. Our initial assessment is that they do not - Eric Schneidewind and I are meeting first thing Thursday morning to review them carefully. We will keep you updated.

Finally, regarding the issue of being subject to acquiring local franchises as a condition of doing business in municipalities in Michigan: You will recall that we had language inserted into the bill in the Senate which declared that Alternative Electric Suppliers would not be considered public utilities. This language would have deleted the requirement that we obtain local franchises. However, the Governor had made a deal with the MI Municipal League that this issue would not be resolved in this legislation. (This deal I believe was struck in the context of various other issues pending among the legislature, governor and municipal league). Late yesterday, Senate Leader DeGrow came out in support of an amendment to exclude schools (elementary, secondary, community colleges, universities, etc...) from the local franchise for purposes of aggregation -- thus upsetting the status quo which had been agreed to by the Governor and Municipal League. Senator DeGrow was firm in his support and said that in order for the Senate to agree to House changes, this language had to be

added. Well, the language was not added in the House --- due to overall confusion. So, we are going to talk with Senator DeGrow this morning to urge him to go forward with the Senate agreeing to the House changes in the bill and to consider the schools amendment in the context of exempting all Alternative Electric Suppliers from local franchise requirements. A bill or amendment to this effect can be handled during the September session. Customer groups are also going to do the same thing. The Governor supports our position on this issue and we believe we have the momentum to get this done when the legislature comes back in September.

Roy and I are available today if you have any questions. You can reach Roy at 630-654-6472. I can be reached this morning at 614-306-4359 and this afternoon at 614-760-7472.

Message 210 of 218

Re: Fw: Bill 602P

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['sherri.sera@enron.com', '(bcc: Sherri Sera/Corp/Enron)'] |
| File | kean-s/calendar/untitled/1850. |

It's a hoax.. This e-mail made it into a reporter's hands and the reporter asked about this in the Clinton-Lazio debates in NY. CNN covered the hoax the next day.

The US Postal Service denied it, of course. By the way, I have never seen a letter -- "P" -- following a bill number in the Congressional numbering system.

Sherri Sera 11/07/2000 01:33 PM

To: Steven J Kean/NA/Enron@Enron cc: Subject: Fw: Bill 602P

Do you know if there is any truth to this? SRS ----- Forwarded by Sherri Sera/Corp/Enron on 11/07/2000 01:22 PM ----- From: Eddie Sera@ENRON COMMUNICATIONS on 11/07/2000 01:02 PM Sent by: Eduardo Sera@ENRON COMMUNICATIONS To: cc: (bcc: Sherri Sera/Corp/Enron)

Subject: Fw: Bill 602P

I don't know how true this is but if it is it is no bueno!

Regards,

Eddie Sera Enron Broadband Services Inc. Event Specialist

PH: 713 853-0480 CELL: 713 562-7614 FAX: 713 646-8887 eddie_sera@enron.net www.enron.net

> > Bill 602P > > Guess the warnings were true. Federal Bill 602P 5-cents per E-mail > Sent. It figures! No more free E-mail!
We knew this was coming!! > > Bill 602P will permit the Federal Government to charge a 5-cent charge
on

> every > delivered E-mail. > > Please read the following carefully if you intend to stay online, and > continue using E-mail. The
last few months have revealed an alarming > trend in the Government of the United States attempting to quietly push > through
legislation that will effect our use of the Internet. Under proposed > legislation, the US Postal Service will be attempting to bill
E-mail

users

> out of "alternative postage fees". Bill 602P will permit the Federal > Government > to charge a 5-cent surcharge on every
E-Mail delivered, by billing Internet > Service Providers at source. The consumer would then be billed in turn

by

the > ISP. > > Washington DC lawyer Richard Stepp is working without pay to prevent
this

> legislation from becoming law. The US Postal Service is claiming lost > revenue, due to the proliferation of E-mail is costing
nearly

\$230,000,000

> in revenue per year. You may have noticed their recent ad campaign: > "There is nothing like a letter." Since the average person received

about

> 10 pieces of E-mail per day in 1998, the cost of the typical individual would > be an additional 50 cents a day - or over \$180 per year - above and

beyond

> their regular Internet costs. Note that this would be money paid

directly

to > the US Postal Service for a service they do not even provide. The whole point > of the > Internet is democracy and non-interference. You are already paying an > exorbitant > price for snail mail because of bureaucratic efficiency. It currently takes > up to 6 days for a letter to be delivered from coast to coast. If the US > Postal Service is allowed to tinker with E-mail it will mark the end of the > "free" Internet in the United States. Our Congressional representative, Tony > Schnell (R) has even suggested a "\$20-\$40 per month surcharge on all Internet > service" above and beyond the governments proposed E-mail charges. Note that > most of the major newspapers have ignored the story - the only exception > being the Washingtonian - which called the idea of E-mail surcharge "a useful > idea who's time has come" {March 6th, 1999 Editorial}. > > Do not sit by and watch your freedom erode away! Send this to E-mail to > EVERYONE on your list, and tell all your friends and relatives write their > congressional representative and say "NO" to Bill 602P. It will only

take

a > few moments of your time and could very well be instrumental in killing > a bill we do not want. Please forward! > > >

Message 211 of 218

Enron Corp.: IN THE MONEY: Enron Melts As Many See Merger In

| | |
|------------|--|
| Sender | peggy.mahoney@enron.com |
| Recipients | [j..kean@enron.com', 'karen.denne@enron.com', 'pr <.palmer@enron.com'] |
| File | kean-s/deleted_items/387. |

I'm sure you are already seeing these.....any word from Dynegy? Peggy

IN THE MONEY: Enron Melts As Many See Merger In Jeopardy By Carol S. Remond

11/20/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

A Dow Jones Newswires Column

NEW YORK -(Dow Jones)- Investors are running for the exits as doubts about Enron Corp.'s (ENE) planned merger with Dynegy Inc. (DYN) mount. Debt and equity markets are taking news of Enron's never ending credit woes with renewed pessimism Tuesday, sending the company's stock down almost 24% and its bonds sharply lower.

And with so much riding on Dynegy's financial support, risk arbitrageurs, those investors who bet on the stock price of companies involved in merger, aren't willing to play. "There is just too much risk," said a trader at a New York risk arbitrage firm. "Nobody wants to even get close to the deal."

Perhaps most telling about the uncertainty surrounding Enron and the merger with Dynegy is the fact that even a 68% risk premium over the value of the Dynegy deal has so far failed to attract investors. "The deal appears in real jeopardy here," a bond trader said.

Under the merger plan, Enron holders would receive 0.2685 Dynegy share for each Enron share. At Dynegy's current share price of \$41.77, that means the value of the deal is about \$11.20 a share for Enron holders. But Enron stock recently traded as low as \$6.68 a share, almost 68% below the value of the merger.

Adding to doubts about Enron's long-term viability, the company said in a delayed quarterly filing late Monday that its ability to continue as a going concern depends on a number of factors, including being able to retain an investment grade credit rating.

Dynegy declined to comment on whether its decision to merge with Enron would be affected by the company's latest Securities and Exchange Commission filing, including the disclosure that Enron will have to repay \$690 million in debt by next Tuesday if it doesn't come up with collateral for a loan.

An Enron spokeswoman wasn't available to comment on the merger plan.

Among other bad news, Enron's latest report warned investors that the company faces immediate demand for \$3.9 billion in debt if its credit rating is downgraded any further.

Earlier this month, Standard & Poor's Corp. and Moody's Investors Service cut Enron's credit ratings to "BBB-" and "Baa3", just one notch higher than below-investment grade, or "junk" status. The rating agencies warned that they may cut their respective ratings again. Neither S&P nor Moody's were available for comment Tuesday.

Meanwhile, as investors look at the Dynegy deal as Enron's one and only hope to avoid bankruptcy, bondholders are also showing renewed worries.

Enron's 7 7/8% bonds due in 2003 are down about 10 cents on the day, now trading at about 70 cents on the dollar. Subordinated bonds due in 2005 are also sharply lower, changing hands at about 62 cents on the dollar.

Enron has set a number of partnerships over the years to hedge investment risks, and in some cases keep debt off its balance sheet. In the wake of a SEC probe into its accounting and disclosure practice, the company recently restated its earnings, reducing profits taken over previous years by more than \$500 million. Enron also took steps to consolidate some debt back on its books.

Carol S. Remond; 201-938-2074; Dow Jones Newswires carol.remond@dowjones.com

Folder Name: Enron Corp. Relevance Score on Scale of 100: 100

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Message 212 of 218

Appeal for your support to continue to serve Enron

| | |
|------------|---------------------------------|
| Sender | steven.kean@enron.com |
| Recipients | [dan.leff@enron.com] |
| File | kean-s/discussion_threads/1768. |

see below. I'm sure your guys are considering all of the applications in d= ue=20 course and those who are waiting are naturally going to be anxious to hear.= 20 Not asking for any special treatment for this individual, but, as we=20 discussed in your office the other day, there are some continuing core skill= ls=20 in the EE&CC group that we need to hold onto. At first glance, this guy=20 seems to have those skills. ----- Forwarded by Steven J Kean/NA/Enron on 12/04/2000 08:06 AM -----

=09Adel Rizkalla@ENRON DEVELOPMENT =0911/30/2000 03:44 PM =09=09=20 =09=09 To: Steven J Kean@EES, Cindy Olson@ENRON =09=09 cc:=20 =09=09 Subject: Appeal for your support to continue to serve Enron

=09

From: Adel A. Rizkalla, Ph.D. November 30, 2000 12118 Knobcrest Dr. Houston, Texas 77070

e-mail: Adel.Rizkalla@enron.com

Extension: 55841

Attention: MR. STEVE KEAN MS. CINDY OLSON =20

Dear Mr. Kean and Ms. Olson:

I am privileged and delighted for providing me with this opportunity of=20 writing directly to both of you, while I am on re-deployment status.

The purpose of this letter is to respectfully appeal to both of you to plea= se=20 help me continue serving Enron and continue being an active manager within= =20 this most challenging environment, as I feel I am most qualified.

I joined Enron EE&CC on March 1, 2000; now am an EES employee. I am a=20 Mechanical Engineer, with 32 years work experience and extraordinary track= =20 record in the oil & gas and power generation EPC business worldwide, with= =20 major global organizations. =20

I hold a Ph.D. in Mechanical Engineering (specifically in the Gas Turbines= =20 Technology). I have been a Project Manager, Senior Project Manager, and=20 Project Director on major multi-million Dollar onshore and offshore=20 development projects since 1980, in every hydrocarbons producing region.

I was interviewed at Enron=01,s EE&CC in mid February 2000 pursuant to my= =20 application for Project Manager/Senior Project Manager position. =20

I was then hired on March 1, 2000 as Project Engineering Manager (PEM), und= er=20 quite urgent circumstances, to be in charge of all three (3) major and most= =20 active Power Projects at EE&CC in Brazil. Just one (1) week later, after m= y=20 new hires orientation, I had to join a delegation and travel to Brazil for= =20 Due Diligence of Local Engineering and Construction Contractors. =20

The Expected NTP was January 2001, and the life of these foreign Projects= =20 (except for Electrobolt =01) simple cycle plant) is three (3) to four (4) y= ears,=20 i.e. until the year 2003 and 2004. These Projects are RioGen, Cuiaba II, a= nd=20 Electrobolt.

I was attracted to Enron due to its standing and recognition in the industr= y,=20 reputation, globalization, and active market penetration. In fact, I felt= =20 very fortunate to become the center of the above-mentioned challenges with= =20 three such major Enron Power Projects.

I resigned my then current and very secure position as Senior Project Manag= er=20 at Solar Turbines Incorporated (a Caterpillar company), after almost 6=20 successful years, where I was entrusted with Solar=01,s major turnkey power= and=20 gas compression projects, worldwide.=20

My prime objective and priority then, when I accepted to work for Enron wer= e,=20 clearly, to tackle and continue with the new challenges that Enron offered = me=20 until the year 2003 =01) 2004. =20

However, I am still very optimistic and hopeful that, with your kind suppor= t,=20 I am hoping to receive due consideration of this appeal.

I have already interviewed with Messrs. Steve Meyers and Dave Roberts at EE= S,=20 and both believe that they are certainly in need of a strong technical pers= on=20 like myself, but no confirmation has been received yet.

I have also applied to at least fifteen (15) pertinent positions within EES= ,=20 ENA, and Enron Transportation but, unfortunately, have received no response= =20 yet.

Nevertheless, I am most certain that you do not want to loose a knowledgeab= le=20 and active member of your team, and I am most confident that you can assist= =20 placing me in a position where I can contribute most positively to Enron=01= ,s=20 continued success and profitability.

Sincerely,

Adel

Attachments:

Message 213 of 218

Enron Corp.: Enron Unit,New England Market Downplay Report Of

| | |
|-------------------|---------------------------|
| Sender | peggy.mahoney@enron.com |
| Recipients | [j..kean@enron.com] |
| File | kean-s/deleted_items/275. |

Came back not sent - here it is again. Peggy ----- Forwarded by Peggy Mahoney/HOU/EES on 10/26/2001 04:34 PM -----

Peggy Mahoney 10/26/2001 04:34 PM To: David W Delaine/HOU/EES@EES, Dan Leff/HOU/EES@EES, Janet Dietrich/HOU/EES@EES, Jeremy Blachman/Enron@EnronXGate, Scott Gahn/HOU/EES@EES, etilney@enron.com, Richard Ring/Enron@EnronXGate, Rogers Herndon/Enron@EnronXGate, Daniel Allegretti/Enron@EnronXGate, Cheryl Lipshutz/HOU/EES@EES, Denise Furey/Enron@EnronXGate, Vicki Sharp/HOU/EES@EES, Karen Denne/Enron@EnronXGate, Steven J Kean/HOU/EES@EES, Richard Shapiro/Enron@EnronXGate, Angela Schwarz/HOU/EES@EES, Michael Mann/Enron@EnronXGate, David Cox/Enron@EnronXGate, Evan Hughes/HOU/EES@EES, Ron Bertasi/HOU/EES@EES, Alex Hidalgo/HOU/EES@EES, Dana Saucier/DUB/EES@EES, Ignacio Taveras/HOU/EES@EES cc: Subject: Enron Corp.: Enron Unit,New England Market Downplay Report Of Default

FYI: follow-on wire story on EES NEPOOL issue. Great quote from secretary and general counsel from NEPOOL. Peggy ----- Forwarded by Peggy Mahoney/HOU/EES on 10/26/2001 04:29 PM -----

djcustomclips@djinteractive.com on 10/26/2001 05:19:23 PM Please respond to nobody@mail1.djnr.com To: 1529@WCTOPICS.djnr.com cc: Subject: Enron Corp.: Enron Unit,New England Market Downplay Report Of Default

Enron Unit,New England Market Downplay Report Of Default By Kristen McNamara

10/26/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- Enron Corp.'s (ENE) retail sales unit defaulted on its credit requirement in New England's wholesale power market this month, but the event was neither unique nor newsworthy, the energy company and the organization that developed the market's rules said Friday.

The operator of the region's wholesale power market informed Enron Energy Services last week that, for the third time in 12 months, it had traded a greater volume of electricity than allowed by the bond it had posted and was at risk for expulsion from New England's market. But it was administrative mixups, rather than financial problems, that triggered the warning, which a few other companies have also received in the past, the market's rulemaker said.

"I can state with considerable confidence that there have been other participants" that have defaulted on their credit agreements, "and it's never been in the news," said David Doot, secretary and general counsel for the New England Power Pool, which developed the policies governing the region's electricity market. "My instinct is that this is blown way the hell out of proportion."

News of the Enron unit's default appeared in a trade publication and a major metropolitan newspaper this week, as Enron's dealings with partnerships headed by its former chief financial officer contributed to a plunge in the company's stock and bond prices.

Enron Energy Services never received word that it had defaulted on its bonding requirement twice before, because both times it corrected the problem within a day, spokeswoman Peggy Mahoney said.

The letter sent by ISO New England, which operates the region's power market, to notify the Enron unit of its third violation was addressed to the wrong person, delaying the company's response, Mahoney said.

"Clearly, it was an administrative error that we immediately took care of to ensure that we would never exceed the volume limit," Mahoney said.

The company resolved the problem by Oct. 19, Mahoney said. ISO New England spokeswoman Ellen Foley confirmed Friday that the company had cured its default.

It's rare for a company to default three times, but it has happened on occasion, Foley and Doot said.

"I won't say it's commonplace, but I won't say it's unusual for a participant to find itself out of compliance," Doot said. "Those things have in fact happened from time to time."

-By Kristen McNamara, Dow Jones Newswires; 201-938-2061; kristen.mcnamara@dowjones.com

Folder Name: Enron Corp. Relevance Score on Scale of 100: 100

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Message 214 of 218

EGM opportunities in Bush Energy Plan

| | |
|------------|--|
| Sender | jeffrey.keeler@enron.com |
| Recipients | ['jeffrey.shankman@enron.com', 'linda.robertson@enron.com', 'richard.shapiro@enron.com', 'lisa.yoho@enron.com']... |
| File | kean-s/discussion_threads/3347. |

Jeff,

Good to see you in New York last week at the Guggenheim -- I enjoyed your company at the dinner. Lisa Yoho passed on your questions about the Bush Energy Plan and opportunities for EGM, so I thought I'd outline a few from Lisa Jacobson's and my perspective. Many of the recommendations in the Energy Plan are very broad and could take months (if not years) to approve. However, there are certainly a few areas where EGM could find more immediate opportunity, or where we could weigh in to make the longer-term components of the plan beneficial to Enron.

Short-term opportunities

\$2 billion over ten years for Clean Coal Technologies: There may be opportunities to pursue R&D funding, pilot projects, or tax incentives for technologies such as NOx Tech. While the bulk of this money could take several years to approve, there is "clean coal" program money available now for FY 2002, and DOE is already structuring programs for 2003 money. I have already discussed this briefly with the Clean Energy Solutions folks, but we have good contacts at DOE and they are very anxious to work with Enron, as they see us as a company who can help make the most of their R&D money because we are serious about moving technologies to market.

Climate Change R&D: Any financial support the government puts toward climate change R&D could likely also be utilized for new generation/control technologies, but this would be a longer-term opportunity.

New Source Review (NSR) Reforms - NSR has been an obstacle to constructing new generation, but also a huge thorn in the side of big coal-using utilities who would like to make modifications to keep grandfathered plants alive as long as possible. The Clinton/Browner EPA brought major enforcement lawsuits against a number (Southern, TVA, AEP, Cinergy) and a few have settled (Cinergy, TECO). The Bush Energy Plan asks the EPA and Justice Dept. to look at 1) possible changes to the NSR enforcement lawsuits and 2) longer term changes to NSR regulation -- all in the name of bringing more energy supply on line. The utilities are mounting very aggressive lobbying efforts to change NSR.

A DOJ decision on the enforcement could be forthcoming in the short term (summer 2001). In the big picture for Enron, letting the big, coal-using utilities off the hook would not be the best outcome -- enforcement relief only holds benefits for the incumbents and not new entrants in the power development market. But if it happens, we'll make sure the EGM folks have good advance warning so that they can take advantage of any coal trading or technology plays that they might find as a result from these utilities moving forward with plant modifications or capacity increases.

Any NSR regulatory changes will be fought over the longer-term (with resistance from environmentalists), and could also likely be addressed in the multipollutant debate -- see below.

Long Term Opportunities/Advocacy

Multipollutant legislation - A regulatory program that all at once streamlines regulation of NOx, SO2 and mercury as well as provides relief from NSR requirements could be extremely beneficial for EGM's emissions trading and technology businesses (as well as a number of other Enron businesses). Nationwide trading for these pollutants would open up markets and create liquidity far beyond the current programs. Regulatory certainty for generators seeking to upgrade, expand and improve efficiency at power plants could provide incentives for technology and risk management services.

Our Environmental Strategies group has developed a multipollutant plan that achieves a number of goals for Enron, including nationwide cap-and-trade for 3 (or even 4, if CO2 is included) pollutants in a way that provides incentives for new technologies, promotes fuel diversity, and has economic safeguards in place. We've structured it to have multiple benefits to Enron, and we are working on getting key Administration and congressional officials to adopt our ideas. We're making progress, but expect this debate to go on for at least a few years.

Here are some excerpts from recent slides summarizing our plan, if you're interested.

Please let us know if you have any questions - we are happy to work with you and anyone in EGM to take advantage of opportunities in these environmental proposals.

Regards,

Jeff Keeler Director, Environmental Strategies Enron (202) 466-9157 Cell Phone (203) 464-1541

Lisa Jacobson Manager, Environmental Strategies Enron (202) 466-9176

Message 215 of 218

EGEP Sale Announcement

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['Mike', 'maureen.mcvicker@enron.com', 'Larry Morse/Corp/Enron@Enron', 'Stephen Wallace/Corp/Enron@ENRON'] |
| File | kean-s/attachments/645. |

print ----- Forwarded by Steven J Kean/NA/Enron on 10/16/2000 10:15 AM -----

John Ambler@ENRON_DEVELOPMENT 10/13/2000 04:39 PM

To: Jimmy Mogal/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Steven J Kean/NA/Enron@Enron, Mark Palmer@ENRON, Johan Zaayman/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: EGEP Sale Announcement

Jimmy,

I'll be working up a limited statement and Q&As, which we will need to run by Jeff Sherrick and Mark Metts. Once we have an approved statement I'll let you know. Of course, we would prefer to avoid publicity if possible. Until we have an approved statement, please call me to discuss if you have pressing demands.

Thanks,

John ----- Forwarded by John Ambler/ENRON_DEVELOPMENT on 10/13/2000 04:26 PM

Jeffrey Sherrick@ENRON 10/13/2000 03:04 PM To: Steven J Kean/NA/Enron@Enron, John Ambler/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jimmy Mogal/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Stephen Wallace/Corp/Enron@ENRON, Larry

Morse/Corp/Enron@Enron, Mike Stewart/Corp/Enron@ENRON, Mark Koenig/Corp/Enron@ENRON, Sanjay Bhatnagar/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: EGEP Sale Announcement

On Friday (last night Houston time) we announced Enron's decision to sell Enron Oil & Gas India Ltd. (EOGIL), our subsidiary that owns a 30% interest in the Panna, Mukta and Tapti concession areas. We now have bankers involved and a data room is being prepared in Houston which made it extremely difficult to keep the deal quiet any longer. There were a rumors circulating through the office, but the reality of the announcement was still a shock to most of the employees in India and Houston. Attached is a memo we handed out to employees, but basically we said the following: 1) Selling assets or companies is a routine part of Enron's strategy to redeploy capital in the higher return opportunities. The company has exposure to a number of tremendous opportunities today that were not envisioned even twelve months ago. In line with this strategy, we are placing EOGIL in the market. 2) Depending on the success of finding an acceptable buyer for EOGIL, we will be reviewing the balance of our portfolio for transfer to other Enron entities or for sale as separate packages. We anticipate closing the EOGIL transaction and rationalizing the remaining portfolio by March 31, 2001. 3) Pending the success outlined in item #2, we will eliminate Enron Global E&P as an Enron business unit on March 31, 2001. 4) We announced some interim staff changes to facilitate the process. a) Jeff Sherrick would re-focus his time largely on the sale process b) Mike Stewart will be responsible for all India activity except the sale process c) Steve Harper will be responsible for EGEP's sale activity and coordination with our bankers and Corporate Development 5) Commented on the potential impact to employees in general terms. We told them it was pre-mature to outline all of the possibilities until we signed a PSA with a buyer. However, in general, there is a good likelihood that many people will either have opportunities for future employment with the buyers or through redeployment within Enron. Those people that do not remain with the assets or are not redeployed in Enron will be involuntarily terminated March 31, 2001 unless they are needed to close a transaction or to provide transition services to a buyer.

I would like to keep this as low-keyed as possible. Last year when we were for sale there were not a lot of comments, but you never know. If anyone in the media picks up on this I would expect it to happen early next week. Mike Stewart is currently in India in the Mumbai office (01191228395841) and can be reached at the Marriott after-hours(01191228577878). He is fully briefed on our position regarding the activities within EGEP and EOGIL. Mike will be traveling offshore and to Baroda over the weekend and on Monday. I will be available all weekend and next week at the following numbers; (work) 713-853-5934, (home) 281-320-2198, (cell) 713-569-4713. I would suggest talking with Mike or I before making any comments to the media if possible.

This afternoon I notified our partners and thr Gov't of India of our intention to market our assets. I will be making a trip to India soon to visit with the appropriate people in these organizations within the next two weeks. While I wouldn't expect this to happen, please refer any inquiries from our partners (ONGC and Reliance) or the GOI to Mike or me. As you might expect, we want to be careful and consistent in our message to these groups.

I will keep you informed regarding any changes to the above. If you have any questions, contact me at the above numbers.

jeff

Message 216 of 218

Re: Security and Human Rights Policy Question

| | |
|------------|---|
| Sender | lauren.goldblatt@enron.com |
| Recipients | ['john.schwartzburg@enron.com', 'Steven J Kean@EES', 'Vicki Sharp@EES'] |
| File | kean-s/all_documents/1928. |

John:

Thank you again for your help on this. I think your points are valid and had a few thoughts that might help to clarify.

The State Department and UK Foreign Commercial Office developed these principles with the intent that the principles would serve as broad guidelines, general enough to apply to any company in any industry. As you will note, with the exception of the title, the principles are general and applicable to any company involved with hiring security to protect an facility and/or asset - be it in the U.S. or otherwise.

I agree that we may need to distinguish ourselves from the typical extractive sector participant. Should we agree to support the principles, I suggest that we draft the letter so that it distinguishes Enron from the other participating companies. The letter (and maybe Dept. of State) could also note that Enron is the first company outside of the extractive sector to support these principles. This would go a long way in demonstrating our leadership on the issue of human rights.

Also, we may want to consider that while we may be exiting the asset development business by selling our pipelines and power plants, we are taking equity positions (albeit minority and/or short term) in industries that do fall into the category of extractive industries such as coal and metals. To date, we have already received inquiries about our activities in these sectors, particularly in the coal sector.

With respect to public accountability, we will continue to be criticized for not being accountable in this area unless we take some policies steps in this area. Our stakeholders and "critics" are aware that we do not have policies and procedures addressing security arrangements. In addition, they are aware that we have participated in this discussion and dialogue because it is our intent to strengthen our human rights policies and performance. Until now, the weakness in our critics' arguments (with respect to India and otherwise) has been the lack of benchmarks and/or guidelines with respect to this issue. However, once these guidelines are public, it will be difficult to maintain the position that there is a lack of consensus on the issue.

A risk we should consider: should we decide not to support the principles, the NGOs and others will be asking us why we have not adopted these/and or any guidelines. These guidelines are particularly attractive because they have been developed in collaboration with government, industry and NGOs - rather than by one particular interest.

I hope this is helpful and look forward to your feedback. I am in the Washington office today, but can be reached on my cell at 917-821-0724,

Thanks again,

Lauren

From: John Schwartzenburg@ENRON_DEVELOPMENT on 11/13/2000 02:02 PM To: Lauren Goldblatt@ECT, Kelly Kimberly@Enron Communications, Mark Palmer@ENRON_DEVELOPMENT cc: Steven J Kean@EES, Vicki Sharp@EES

Subject: Security and Human Rights Policy Question

We are finishing the legal comments to the Security and Human Rights paper that Lauren Goldblatt circulated for legal review, and will finalize it today or tomorrow.

Before get the detailed comments out, however, there is a threshold policy issue that needs to be considered:

These guidelines expressly applicat to the "Extractive Industries", which are typically thought of as the mining and oil and gas exploration and development industries. The companies listed as cooperating with the UK and US governments and the NGO's in producing the principles do not include Enron peers. Enron has only one unit that is engaged in that economic sector, and that unit is being sold right now. None of Enron's other units are in what would normally be referred to as an extractive industry.

Since that is the case, we wonder if Enron has made an appropriate level policy decision to publicly endorse these principles and make them corporate policy when the company is energetically exiting its only remaining business line that is in the express industrial peer group targeted by the principles? At first I understood that such a decision had been taken, but Vicki and I wanted to confirm that before proceeding.

There are two major concerns:

Endorsing the principles would would identify Enron more closely with the members of a particular peer group that Enron is consciously exiting and distinguishing itself from.

Once Enron endorses the principles, the fact of that endorsement, the resulting public "accountability" for the principles, and the consequent need to demonstrate compliance will become essentially a permanent feature. Once endorsed, it would be nearly impossible for the Company to distance itself from the guidelines. That being the case, should Enron at this juncture endorse the guidelines when it could do so later if it ever makes a committed re-entry into the extractive industry?

Are there other security type principles that are more appropriate to or focused on our new core business lines, or the remaining asset ownership and construction lines that Enron should be looking at instead?

Please call either me at 713-646-6309 to discuss. You can also call Vicki Sharp at 713-853-7413.

Thanks.

Message 217 of 218

EGEP Sale Announcement

| | |
|------------|--|
| Sender | steven.kean@enron.com |
| Recipients | ['Mike', 'Steven J Kean/NA/Enron@Enron', 'Larry Morse/Corp/Enron@Enron', 'John', 'Stephen Wallace/Corp/Enron@E...] |
| File | kean-s/attachments/641. |

Please make sure that nothing goes out internally or externally without the approval of Cliff Baxter or Mark Metts. We need to continue our usual vetting process through both PR and IR, but need also to add Cliff and Mark. In getting the OK from Cliff and Mark we must have no OKs by default -- ie because we haven't received comments or a response on time. If anybody needs help getting to Cliff or Mark, then Mark Palmer, Karen Denne, or I can help.

Thanks ----- Forwarded by Steven J Kean/NA/Enron on 10/16/2000 10:05 AM -----

John Ambler@ENRON_DEVELOPMENT 10/13/2000 04:39 PM

To: Jimmy Mogal/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Steven J Kean/NA/Enron@Enron, Mark Palmer@ENRON, Johan Zaayman/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: EGEP Sale Announcement

Jimmy,

I'll be working up a limited statement and Q&As, which we will need to run by Jeff Sherrick and Mark Metts. Once we have an approved statement I'll let you know. Of course, we would prefer to avoid publicity if possible. Until we have an approved statement, please call me to discuss if you have pressing demands.

Thanks,

John ----- Forwarded by John Ambler/ENRON_DEVELOPMENT on 10/13/2000 04:26 PM -----

Jeffrey Sherrick@ENRON 10/13/2000 03:04 PM To: Steven J Kean/NA/Enron@Enron, John Ambler/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jimmy Mogal/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Stephen Wallace/Corp/Enron@ENRON, Larry Morse/Corp/Enron@Enron, Mike Stewart/Corp/Enron@ENRON, Mark Koenig/Corp/Enron@ENRON, Sanjay Bhatnagar/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: EGEP Sale Announcement

On Friday (last night Houston time) we announced Enron's decision to sell Enron Oil & Gas India Ltd. (EOGIL), our subsidiary that owns a 30% interest in the Panna, Mukta and Tapti concession areas. We now have bankers involved and a data room is being prepared in Houston which made it extremely difficult to keep the deal quiet any longer. There were rumors circulating through the office, but the reality of the announcement was still a shock to most of the employees in India and Houston. Attached is a memo we handed out to employees, but basically we said the following: 1) Selling assets

or companies is a routine part of Enron's strategy to redeploy capital in the higher return opportunities. The company has exposure to a number of tremendous opportunities today that were not envisioned even twelve months ago. In line with this strategy, we are placing EOGIL in the market. 2) Depending on the success of finding an acceptable buyer for EOGIL, we will be reviewing the balance of our portfolio for transfer to other Enron entities or for sale as separate packages. We anticipate closing the EOGIL transaction and rationalizing the remaining portfolio by March 31, 2001. 3) Pending the success outlined in item #2, we will eliminate Enron Global E&P as an Enron business unit on March 31, 2001. 4) We announced some interim staff changes to facilitate the process. a) Jeff Sherrick would re-focus his time largely on the sale process b) Mike Stewart will be responsible for all India activity except the sale process c) Steve Harper will be responsible for EGEP's sale activity and coordination with our bankers and Corporate Development 5) Commented on the potential impact to employees in general terms. We told them it was pre-mature to outline all of the possibilities until we signed a PSA with a buyer. However, in general, there is a good likelihood that many people will either have opportunities for future employment with the buyers or through redeployment within Enron. Those people that do not remain with the assets or are not redeployed in Enron will be involuntarily terminated March 31, 2001 unless they are needed to close a transaction or to provide transition services to a buyer.

I would like to keep this as low-keyed as possible. Last year when we were for sale there were not a lot of comments, but you never know. If anyone in the media picks up on this I would expect it to happen early next week. Mike Stewart is currently in India in the Mumbai office (01191228395841) and can be reached at the Mariott after-hours(01191228577878). He is fully briefed on our position regarding the activities within EGEP and EOGIL. Mike will be traveling offshore and to Baroda over the weekend and on Monday. I will be available all weekend and next week at the following numbers; (work) 713-853-5934, (home) 281-320-2198, (cell) 713-569-4713. I would suggest talking with Mike or I before making any comments to the media if possible.

This afternoon I notified our partners and the Gov't of India of our intention to market our assets. I will be making a trip to India soon to visit with the appropriate people in these organizations within the next two weeks. While I wouldn't expect this to happen, please refer any inquiries from our partners (ONGC and Reliance) or the GOI to Mike or me. As you might expect, we want to be careful and consistent in our message to these groups.

I will keep you informed regarding any changes to the above. If you have any questions, contact me at the above numbers.

jeff

Message 218 of 218

DJ Enron Dn-3: Enron Hurting From Fears Of More Disclosures

| | |
|------------|---|
| Sender | m..schmidt@enron.com |
| Recipients | ['vance.meyer@enron.com', 'karen.denne@enron.com', 'pr <.palmer@enron.com'] |
| File | kean-s/deleted_items/25. |

=DJ Enron Dn-3: Enron Hurting From Fears Of More Disclosures 2001-10-19 14:40 (New York)

A.G. Edwards analyst Michael Heim also said Enron's stock drop is "probably related to the articles that have been run in The Wall Street Journal."

He said there is now a feeling within the financial community that there might be more surprises and more charges from Enron on the horizon. Heim can't remember more than general allusions to the LJM2 partnership in filings with the Securities and Exchange Commission. There were no details as to the quantity of the impact of transactions between Enron and the partnership, he said.

"I don't feel any certainty that there's not other similar problems that might not be revealed," Heim said.

Credibility is particularly important for Enron, he said, because it is difficult for analysts to model due to its tens of thousands of trading contracts changing on a daily basis in oil, gas, power, coal, and other areas.

"Companies like Enron rely a lot more on reputation than other companies given the clandestine nature of its earnings," Heim said. But Enron has a history of meeting its earnings guidance, which helps, he added.

A spokesperson at the company was not immediately available for comment.

While Heim is not totally convinced there won't be future charges that could take a toll on Enron's balance sheet, he still thinks the severity of the stock drop over the last few days might be overdone.

"My gut feel is that the market has probably overreacted to this," he said.

-By Tom Locke, Dow Jones Newswires; 303-293-9294; tom.locke@dowjones.com

Enron Shares Fall on Concern Over CFO's Partnerships (Update2) 2001-10-19 14:40 (New York)

Enron Shares Fall on Concern Over CFO's Partnerships (Update2)

(Adds more businesses with Fastow ties in seventh paragraph.)

Houston, Oct. 19 (Bloomberg) -- Enron Corp.'s shares have fallen as much as 28 percent in the past three days on concern the biggest energy trader's dealings with partnerships run by its chief financial officer contributed to investment losses.

Shares of Enron fell as much as 13 percent today. Enron's board cost the company at least \$35 million by allowing Chief Financial Officer Andrew Fastow to manage LJM Cayman and LJM2 Co-Investment, partnerships that bought Enron assets, a shareholder alleged Wednesday in a lawsuit.

The lawsuit came the day after Enron reported \$1.01 billion in third-quarter losses from failed investments. The Wall Street Journal reported \$35 million of the losses were connected with the two limited partnerships. Enron also reduced shareholders' equity by \$1.2 billion when it bought back 55 million shares from the partnerships, the paper reported yesterday.

"It looks sleazy," said Roger Hamilton, a manager at John Hancock's Value funds, which own 600,000 shares. "If you are someone who invests in a company's management, it's almost time to punt with Enron."

Enron spokeswoman Karen Denne didn't return calls or written requests seeking comment.

Fastow and a handful of associates made more than \$7 million last year in management fees and about \$4 million in capital increases on an investment of about \$3 million in one of the partnerships, the Journal reported today.

Buying Enron Assets

Fastow is involved in 17 other similar companies and partnerships that appear to have ties to Houston-based Enron, based on filings with the Texas secretary of state.

The foreign business corporations and limited liability companies have directors, officers or managers whose address is listed as 1400 Smith Street in Houston, Enron's corporate address, according to Texas records.

Fastow is listed as a director, officer or managing member in each one. At least one of the companies bought and sold Enron assets, including foreign power plants.

Whitewing Management, which lists Fastow as its managing member, received \$807 million from the sale of Enron debt last year.

Under the terms of the debt sale, Whitewing is allowed to use the proceeds to buy power plants from Enron or make other "permitted investments." Whitewing has bought 14 Enron plants or companies since 1999 and sold four.

Enron's Denne has not responded to written requests about Fastow's role at Whitewing or whether he used his knowledge of the value of Enron assets to benefit outside investors or company executives at Enron's expense.

Shares of Enron fell \$3.40 to \$25.60 in midafternoon trading. Earlier, the shares touched \$25.15. They have fallen 67 percent in the past 12 months, and 69 percent this year.

--Russell Hubbard in the Princeton newsroom at 609-750-4651, or at rhubbard2@Bloomberg.net and Jim Kennett in Houston, (713) 353-4871 or jkennett@bloomberg.net/pjm/alp

USA: Enron stock sustains further heavy losses.

10/19/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, Oct 19 (Reuters) - Enron Corp. stock sustained further heavy losses on Friday as investor confidence in the former Wall Street favorite remained at a low ebb after it reported its first quarterly loss in over four years. In early afternoon trading the energy giant's stock was off \$3.32 or 11.45 percent at \$25.68 per share, making a cumulative loss of 28 percent for a week in which it reported a third-quarter loss of \$638 million. Analysts said investor confidence had been rattled by several articles in the Wall Street Journal this week alleging possible conflict of interest on the part of Chief Financial Officer Andrew Fastow, who until recently ran a limited partnership that bought assets worth hundreds of millions of dollars from Enron. Enron has rejected the suggestion that there was anything improper about the arrangements, but Fastow severed his ties with the LJM2 partnership earlier this year to allay concerns raised by investors and analysts about his dual responsibilities. "For a company that had a lot of question marks around it already, these questions about financial dealings are really worrisome for investors," said Commerzbank Securities analyst Andre Meade. "It points to poor decision-making on behalf of the board and top management at Enron," he said. Enron, North America's biggest buyer and seller of natural gas and electricity, was one of Wall Street's high flyers last year when its stock posted a gain of 87 percent. The stock's ascent was driven by enthusiasm for the company's plans to build a broadband telecommunications business and the success of its EnronOnline Internet energy trading platform. This year Enron's shares have fallen 69 percent as sentiment toward broadband and the Internet soured, new chief executive Jeff Skilling resigned after six months in the job and a power plant project in India became mired in a financial dispute. Moody's Investor Service said earlier this week that it had placed all of Enron's long-term debt obligations on review for a possible downgrade after Enron took \$1.01 billion in writedowns and charges, substantially reducing valuations for several non-core businesses including broadband and water services. Some of Enron's financing arrangements require the company to maintain investment grade credit ratings.

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